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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**EX PARTE APPLICATION FOR
ORDER SHORTENING TIME TO
HEAR MOTION FOR LEAVE TO
AMEND CONCURRENTLY WITH
DEFENDANT’S SPECIAL MOTION TO
STRIKE**

Date: _____
Time: _____
Dept.: _____
Judge: _____
Reservation No.: _____

Case: Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Ex Parte Application for an Order Shortening Time. Plaintiff requests that the Court set the hearing for Plaintiff’s Motion for Leave to File a Second Amended Complaint (“SAC”)—a **doctrinally corrected pleading** designed to

1 anchor the action in non-communicative institutional conduct—to be heard either concurrently
2 with or prior to Defendant CSAA Insurance Exchange’s (“CSAA”) pending Special Motion to
3 Strike (Anti-SLAPP) and Demurrer.

4 Good cause exists because CSAA has filed an Anti-SLAPP motion targeting the First Amended
5 Complaint (“FAC”), while Plaintiff has independently prepared and filed a Motion for Leave to
6 Amend (the SAC). Under California law, while a plaintiff cannot generally amend a complaint
7 after an Anti-SLAPP motion is filed as a matter of right to avoid the motion, a trial court retains the
8 discretion to grant leave to amend and to consider the amended pleading when ruling on the Anti-
9 SLAPP motion, provided the amendment is legally viable and addresses the purported deficiencies.
10 See Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858.

11 Plaintiff’s concurrently filed **Opposition to Defendant’s Special Motion to Strike (Anti-SLAPP)**
12 **and Demurrer** includes **Appendix A**, which compares CSAA’s in-argument use of cases to the
13 holdings available in Plaintiff’s record and to the proposed SAC’s gravamen. That analysis, to-
14 gether with Plaintiff’s **Memorandum of Points and Authorities** in support of the motion for leave
15 to file the Second Amended Complaint, allows the Court to rule on sequencing without losing sight
16 of the corrected authority picture.

17 **II. GOOD CAUSE EXISTS TO SHORTEN TIME**

- 18 1. **Judicial Economy:** Hearing the Motion for Leave to Amend concurrently with the Anti-
19 SLAPP motion will prevent the Court from ruling on an outdated pleading (the FAC) when the
20 proposed SAC—which serves as a **doctrinally corrected pleading**—explicitly clarifies the
21 gravamen of the claims (focusing on non-communicative conduct, thereby defeating Prong 1
22 of the Anti-SLAPP analysis).
- 23 2. **Prevention of Prejudice:** If the Anti-SLAPP motion is heard and decided first, Plaintiff may
24 be irrevocably prejudiced by the striking of claims that are fully cured and clarified in the
25 SAC.
- 26 3. **Clarification of Gravamen:** The proposed SAC clearly establishes that the gravamen of
27 Plaintiff’s action is CSAA’s non-communicative failure to investigate and its institutional bad
28 faith business practices, rather than any protected petitioning activity. Reviewing the SAC is

1 essential for the Court to properly conduct the Park v. Board of Trustees analysis.

2 **III. CONCLUSION**

3 For the foregoing reasons, Plaintiff respectfully requests that the Court grant this Ex Parte Applica-
4 tion, shorten time, and calendar Plaintiff's Motion for Leave to File a Second Amended Complaint
5 concurrently with Defendant's Special Motion to Strike.

6 Respectfully submitted,

7 Franciscus Dylan Rosario Plaintiff In Pro Per

Dated: April 13, 2026



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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**PLAINTIFF'S OPPOSITION TO
DEFENDANT'S SPECIAL MOTION TO
STRIKE (ANTI-SLAPP) AND
DEMURRER**

Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. INTRODUCTION

Defendant CSAA Insurance Exchange's special motion to strike under Code of Civil Procedure section 425.16 depends on a threshold mischaracterization of Plaintiff Franciscus Dylan Rosario's claims. The motion reframes a course of alleged noncommunicative institutional conduct, namely, failure to conduct a reasonable investigation and concealment of material facts, as if it were a claim arising from protected petitioning activity. That reframing is legally insufficient under controlling California Supreme Court authority, which requires courts to identify the specific acts supplying the elements of the claim, rather than relying on generalized references to litigation context or downstream communications.

1 Specifically, Plaintiff's theory targets alleged institutional failures to obtain and consider readily
2 available objective materials (including third-party witness evidence reflected in the 911 recording
3 and related record), alleged gaps between what discovery and hearing transcripts show was known
4 or produced and what was later represented, and a file progression toward denial while noncom-
5 municative investigative choices allegedly sidelined that objective proof. Defendant now attempts
6 to reframe that alleged course of institutional misconduct as a claim arising principally from the
7 subsequent denial letter and other litigation communications rather than from the underlying omis-
8 sions and concealment.

9 Under Park v. Board of Trustees of California State University, the critical inquiry at step one is
10 whether the plaintiff's cause of action arises from protected activity, not whether protected activity
11 is present somewhere in the factual background. A claim does not arise from protected activity
12 merely because it follows or is accompanied by communications made in anticipation of litigation.
13 Here, the alleged wrongful conduct consists of institutional decisions and omissions, specifically,
14 the failure to obtain and consider readily available evidence and the concealment of that evidence,
15 not the act of communicating a denial. The denial letter is, at most, evidence of the alleged mis-
16 conduct, not the source of liability itself.

17 Defendant's motion relies on an overbroad reading of cases such as City of Cotati v. Cashman
18 and Martinez v. Metabolife International, Inc. to argue that the presence of litigation-related
19 communications satisfies step one. That argument fails because it substitutes a contextual inquiry
20 for the required gravamen analysis. As clarified in Park, courts must isolate the allegedly wrongful
21 acts themselves. When those acts are noncommunicative, such as business decisions, investigative
22 failures, or omissions, they do not become protected simply because they are later memorialized
23 in a communication.

24 The same overreach appears in Defendant's reliance on the litigation privilege under Civil Code
25 section 47(b). While the privilege broadly protects communications made in connection with ju-
26 dicial proceedings, it does not convert all underlying conduct into privileged activity. Kimmel v.
27 Goland draws a clear distinction between communicative acts (which may be privileged) and non-
28 communicative conduct (which is not). The privilege applies to publications and broadcasts made

1 in judicial proceedings, but it does not bar liability for independently tortious conduct merely be-
2 cause that conduct is related to litigation.

3 Similarly, Action Apartment Assn., Inc. v. City of Santa Monica confirms that prelitigation com-
4 munications may be privileged only when made in good faith and under serious consideration of
5 litigation. It does not establish a categorical rule immunizing all conduct associated with antici-
6 pated litigation, regardless of whether that conduct is communicative or lawful.

7 Defendant also invokes Flatley v. Mauro, but its reliance is incomplete. Flatley confirms that
8 anti-SLAPP protection does not apply where the asserted conduct is illegal as a matter of law.

9 While Plaintiff ultimately bears the burden of substantiating illegality, Flatley underscores that the
10 statute does not protect all conduct merely because it is framed as petitioning. The case therefore
11 reinforces, rather than undermines, the need for a precise inquiry into the nature of the acts at issue.

12 With respect to insurance law, Defendant overreads Moradi-Shalal v. Fireman's Fund Insurance
13 Companies as creating a broad bar against third-party claims. Moradi-Shalal eliminated private
14 causes of action under Insurance Code section 790.03 but did not abolish traditional common-
15 law tort remedies. Zhang v. Superior Court confirms that claims grounded in independent legal
16 duties, such as fraud or misrepresentation, remain viable when they do not depend on a prohibited
17 statutory cause of action. While Zhang addressed the first-party context, its reasoning confirms that
18 Moradi-Shalal does not create categorical immunity for insurers against all non-statutory claims.

19 Defendant's preclusion arguments are likewise overstated. California's primary rights doctrine, as
20 discussed in Crowley v. Katleman, requires courts to determine whether the present action seeks
21 to vindicate a distinct injury from that litigated previously. The underlying negligence action con-
22 cerned liability for a physical injury caused by an insured tortfeasor. This case concerns alleged
23 fraud and concealment by the insurer, implicating a different duty and a different injury. While
24 preclusion doctrines may apply where issues were actually litigated and necessarily decided, De-
25 fendant has not established that the alleged investigative failures and concealment were previously
26 adjudicated.

27 Finally, at step two, Plaintiff's burden is one of minimal merit, not proof by a preponderance or
28 clear and convincing evidence. Baral v. Schnitt makes clear that a claim survives if it is legally suf-

1 ficient and supported by a prima facie showing of facts that, if credited, would sustain a judgment.
2 Defendant's attempt to impose a heightened evidentiary burden at the pleading stage is inconsistent
3 with that standard.

4 In sum, Defendant's motion rests on three incorrect premises: first, that the presence of litigation-
5 related communications transforms all related conduct into protected activity; second, that the
6 litigation privilege immunizes noncommunicative or unlawful conduct; and third, that statutory
7 limitations on certain insurance claims eliminate all related common-law remedies. Properly ap-
8 plied, controlling California authority requires denial of the motion because Plaintiff's claims arise
9 from alleged noncommunicative conduct and are supported by at least minimal merit.

10 This opposition addresses both the special motion to strike under Code of Civil Procedure section
11 425.16 and the demurrer, if still calendared together with the motion.

12 **Appendix A**, infra, contains the authority-by-authority rebuttal to Defendant's Anti-SLAPP mem-
13 orandum (court file no. **10152120**), including procedural counters to the notice, request for judi-
14 cial notice, and defense declaration where noted. Plaintiff concurrently files Plaintiff's Evidentiary
15 Objections to Defendant's Declaration of Tyler J. O'Connell and Request for Judicial Notice and
16 Plaintiff's Declaration in Support of Opposition. Those objections are not duplicated in full in the
17 memorandum body.

18 If the Court grants leave to amend, the proposed Second Amended Complaint anchors this action
19 in unprotected conduct; ruling on the First Amended Complaint alone while amendment is sought
20 would disregard orderly amendment procedure.

21 **STANDARD OF REVIEW**

22 Code of Civil Procedure section 425.16 establishes a two-step inquiry. At **step one**, the defendant
23 bears the burden to show that the challenged claim arises from protected speech or petitioning
24 activity within the meaning of the statute (Park v. Board of Trustees of California State University
25 (2017) 2 Cal.5th 1057). If that showing is made, **step two** shifts the burden to the plaintiff to
26 demonstrate a **probability of prevailing on the claim**, which requires a **prima facie** showing
27 of facts, supported by **admissible evidence**, sufficient to sustain a favorable judgment if credited
28 (Baral v. Schnitt (2016) 1 Cal.5th 376). **Demurrer** review, by contrast, tests only whether the

1 complaint alleges facts sufficient to state a cause of action, accepting well-pleaded allegations as
2 true; it does not substitute for the plaintiff’s separate **evidentiary** burden at Anti-SLAPP step two.

3 **II. ARGUMENT: THE ANTI-SLAPP MOTION FAILS AT STEP ONE**

4 **A. The Gravamen of the Action is a Non-Communicative Institutional Failure**

5 Under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, the Anti-
6 SLAPP statute does not apply where the protected activity is merely incidental to unprotected
7 conduct. The gravamen here is the **non-communicative institutional failure** to investigate and the
8 “deny-delay-defend” scheme. The denial letter is merely an **evidentiary artifact** of that underlying
9 omission (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1064 [a
10 claim may be struck only if the speech itself is the wrong complained of, “and not just evidence of
11 liability or a step leading to some different act”]; City of Cotati v. Cashman (2002) 29 Cal.4th 69,
12 78).

13 **B. Channel Separation: Suing in the “Common Law Fraud Channel”**

14 Plaintiff maintains strict **Channel Separation** as authorized by Zhang v. Superior Court (2013) 57
15 Cal.4th 364. This action lies in the “Common Law Fraud Channel,” independent of the Insurance
16 Code. The detailed analysis of Zhang and the category error in CSAA’s citation practice is set forth
17 in **Section II**, ante, and in **Appendix A**, infra.

18 **C. Funding the Defense is Not “Petitioning”**

19 CSAA’s financial underwriting of the defense in the underlying action is a commercial, contractual
20 activity. CSAA was not a party to the underlying suit; it was a third-party financier. A non-
21 party insurer’s funding of a lawsuit to protect its own capital reserves is a commercial activity, not
22 petitioning for the redress of its own grievances.

23 Because the act of funding litigation is distinct from the communicative act of petitioning the court,
24 it does not constitute protected activity under Code of Civil Procedure section 425.16, subdivision
25 (e), and claims arising from this commercial conduct cannot be stricken on the theory that reserve
26 protection is itself protected petitioning.

1 **D. CSAA’s step-one cases do not disprove the Park gravamen**

2 CSAA strings Kashian v. Harriman (2002) 98 Cal.App.4th 892, A.F. Brown Elec. Contractor,
3 Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118, Cabral v. Martins (2009) 177
4 Cal.App.4th 471, and Aronson v. Kinsella (1997) 58 Cal.App.4th 254 for the proposition that pre-
5 litigation communications are often protected. That is not the end of the inquiry. Park v. Board
6 of Trustees (2017) 2 Cal.5th 1057 requires identifying the **gravamen** of the claim. Here, the SAC
7 proposes to anchor the case on the **non-communicative** institutional failure to investigate and on
8 the denial letter as corroborating **evidence** of that omission (Park v. Board of Trustees of California
9 State University (2017) 2 Cal.5th 1057, 1064; City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78).
10 Martinez v. Metabolife (2003) 113 Cal.App.4th 181, which CSAA itself cites for the “principal
11 thrust” test, is equally useful to Plaintiff: if the thrust is the omission, not the words, step one fails
12 for CSAA.

13 **III. ARGUMENT: THE LITIGATION PRIVILEGE DOES NOT BAR**
14 **THE CLAIMS**

15 The Litigation Privilege (Civil Code § 47(b)) protects communications, not conduct. In Kimmel
16 v. Goland (1990) 51 Cal.3d 202, the Court held that the litigation privilege does not protect non-
17 communicative acts. CSAA’s failure to investigate and its institutional suppression of claims are
18 noncommunicative acts. Furthermore, the privilege cannot be weaponized to shield extrinsic fraud,
19 unlawful conduct that prevents a party from presenting their case in court (Action Apartment Assn.,
20 Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232).

21 **IV. ARGUMENT: THE PRIMARY RIGHTS DOCTRINE PREVENTS**
22 **PRECLUSION**

23 Under the Primary Rights Theory, this action is insulated from preclusion because the right to be
24 free from bodily injury litigated in the underlying negligence case is entirely distinct from the right
25 to be free from fraudulent business practices asserted here (Crowley v. Katleman (1994) 8 Cal.4th
26 666). Plaintiff further relies on the preservation of common law fraud claims in Moradi-Shalal v.
27 Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, 304-305. The application of these doctrines

1 to CSAA’s “collateral attack” rhetoric is developed in **Appendix A**, infra.

2 **V. ARGUMENT: PLAINTIFF HAS ESTABLISHED A PROBABILITY** 3 **OF PREVAILING (STEP TWO)**

4 Once the burden shifts to step two, the plaintiff need only demonstrate that the claim has “minimal
5 merit.” Baral v. Schnitt (2016) 1 Cal.5th 376.

6 **Demurrer.** For demurrer purposes, the First Amended Complaint adequately alleges the elements
7 of fraud and unfair competition under Business and Professions Code section 17200, accepting as
8 true well-pleaded facts and reasonable inferences therefrom.

9 **Anti-SLAPP step two.** For step two, Plaintiff must offer a **prima facie** evidentiary showing
10 through **admissible** proof, not merely well-pleaded allegations. As detailed in the concurrently
11 filed **Declaration of Plaintiff Franciscus Dylan Rosario in Support of Opposition to Special**
12 **Motion to Strike and Demurrer** and the exhibits and record references described or authenticated
13 there (including the 911 recording, underlying transcripts, and discovery-related materials Plaintiff
14 relies upon for timing and knowledge), the evidence would permit a trier of fact to find minimal
15 merit for:

16 1. **Fraud:** A **prima facie** showing that misrepresentations or misleading half-truths (including
17 that an investigation was “concluded” while objective third-party and record evidence al-
18 legedly went unaddressed or misaligned with later representations), coupled with knowledge,
19 intent, justifiable reliance, and **independent** economic loss, could be found if credited; the
20 declaration and record excerpts supply the factual substrate for that showing beyond the face
21 of the pleading.

22 2. **UCL (Business & Professions Code § 17200):** A **prima facie** showing that the alleged
23 course of conduct qualifies as “unfair” or “fraudulent” under settled UCL standards and public
24 policy, supported by the same institutional-conduct facts rather than by naked allegations
25 alone.

26 CSAA’s reliance on Zhang v. Superior Court (2013) 57 Cal.4th 364 to suggest a categorical bar on
27 common law fraud claims is misplaced for the reasons set forth in **Section II**, ante, and **Appendix**
28 **A**, infra. Moradi-Shalal and Zhang both preserve claims that independently violate the law, such

as the pre-litigation fraud and related misconduct alleged here.

VI. OVERVIEW; APPENDIX A

Defendant’s memorandum builds a high-volume citation wall around broad themes: protected petitioning, the litigation privilege, collateral attack, and insurance-channel limits. **Appendix A**, *infra*, walks through Defendant’s authorities in cluster order with memorandum references (including table-of-authorities and argument pointers where provided). **Appendix A** provides Plaintiff’s substantive legal rebuttal to the authorities in Defendant’s memorandum and addresses application of the case law to the facts at bar, rather than the bibliographic validity of citations. The Court is asked to apply Park’s gravamen framework, the conduct-versus-communication line from Kimmel, and the minimal-merit standard from Baral before treating citation volume as dispositive of step one or step two.

VII. CONCLUSION

The Defense’s Anti-SLAPP motion represents a systemic attempt to replace the rule of law with a rule of atmospheric immunity. By systematically misapplying California’s two-step framework, the Defense seeks to dissolve the specific, non-communicative gravamen of Plaintiff’s claims, namely institutional failure to investigate and fraudulent concealment, into a general “wall of authority” that celebrates litigation protection while ignoring the conduct and speech distinction. This collective error is not merely a series of isolated citation mistakes; it is a structural failure to address the core of the case. The Defense collapses non-communicative institutional acts into “privileged communications,” mischaracterizes direct fraud as an indirect collateral attack, and attempts to expand narrow statutory bars into a total common-law shield.

Under Park v. Board of Trustees and Kimmel v. Goland, this Court must look past the “mood music” of the Defense’s petitioning narrative to identify the underlying injury-producing act. Because the gravamen of the action rests on unprotected, non-communicative conduct, and because Plaintiff has demonstrated the requisite “minimal merit” to proceed on these preserved common law theories, Defendant’s Special Motion to Strike and Demurrer must be denied.

Respectfully submitted,

Franciscus Dylan Rosario Plaintiff In Pro Per

TABLE OF AUTHORITIES (DEFENSE CROSS-REFERENCE)

CASES

- Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232 — Def. Memo [10152120]: (Not Cited)
- Adams v. Superior Court (1992) 2 Cal.App.4th 521 — Def. Memo [10152120]: 9:23
- Aronson v. Kinsella (1997) 58 Cal.App.4th 254 — Def. Memo [10152120]: 8:18, 9:10, 10:19
- A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118 — Def. Memo [10152120]: 8:13
- Baral v. Schnitt (2016) 1 Cal.5th 376 — Def. Memo [10152120]: (Not Cited)
- Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106 — Def. Memo [10152120]: 11:21
- Cabral v. Martins (2009) 177 Cal.App.4th 471 — Def. Memo [10152120]: 9:19
- City of Colton v. Singletary (2012) 206 Cal.App.4th 751 — Def. Memo [10152120]: 10:10
- Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309 — Def. Memo [10152120]: 6:18
- Crowley v. Katleman (1994) 8 Cal.4th 666 — Def. Memo [10152120]: (Not Cited)
- Dove Audio, Inc. v. Rosenfeld (1996) 47 Cal.App.4th 777 — Def. Memo [10152120]: 11:22
- Flatley v. Mauro (2006) 39 Cal.4th 299 — Def. Memo [10152120]: 9:1
- Fremont Reorganizing Corp. v. Faigin (2011) 198 Cal.App.4th 1153 — Def. Memo [10152120]: 6:20
- Gilbert v. Sykes (2007) 147 Cal.App.4th 13 — Def. Memo [10152120]: 7:13
- Graham-Sult v. Clainos (9th Cir. 2014) 756 F.3d 724 — Def. Memo [10152120]: 10:14
- Kashian v. Harriman (2002) 98 Cal.App.4th 892 — Def. Memo [10152120]: 8:11
- Kimmel v. Goland (1990) 51 Cal.3d 202 — Def. Memo [10152120]: (Not Cited)
- Martinez v. Metabolife (2003) 113 Cal.App.4th 181 — Def. Memo [10152120]: 7:15
- Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287 — Def. Memo

[10152120]: 15:3

- Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057 — Def. Memo [10152120]: (Not Cited)
- Singh v. Lipworth (2014) 227 Cal.App.4th 813 — Def. Memo [10152120]: 13:4
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82 — Def. Memo [10152120]: 13:2
- Zhang v. Superior Court (2013) 57 Cal.4th 364 — Def. Memo [10152120]: 15:2

STATUTES

- Business & Professions Code § 17200 — Def. Memo [10152120]: 2:13, 15:1
- Civil Code § 47(b) — Def. Memo [10152120]: 2:14, 6, 10, 11, 12, 13
- Code of Civil Procedure § 425.16 — Def. Memo [10152120]: 1:22, 2:5, 6, 7, 8, 10, 11, 12, 16
- Insurance Code § 790.03 — Def. Memo [10152120]: 9:6, 15:3

APPENDIX A. PLAINTIFF’S FULL NARRATIVE REBUTTAL TO DEFENDANT’S ANTI-SLAPP PLEADINGS

Case: Franciscus Dylan Rosario v. CSAA Insurance Exchange, San Francisco Superior Court Case No. CGC-25-631802.

Purpose: For each authority, this appendix gives **memorandum citations**, a single **overview of Defendant’s use and analytical defect**, and **Plaintiff’s rebuttal**. A **master index** at the end lists authority, primary defect labels, and memorandum location.

Primary defense briefing: Memorandum of Points and Authorities in Support of Special Motion to Strike, lodged in this action as court file no. **10152120**. **Line numbers** are the numbered lines on each page of that document as filed (judicial council margin line grid). **TOA** means the Table of Authorities case-name or statute line; **argument** means the body section where Defendant develops the cite.

Related filings: Notice of Motion (court file no. 10152119); Request for Judicial Notice (court file no. 10152117); Declaration of Tyler J. O’Connell (court file no. 10152121).

Note: Below, defense analytical errors are labeled using formal descriptions (for example, over-

broad statutory abstraction; conflation of conduct and communication).

Note to the Court regarding Appendix A: This appendix provides Plaintiff's substantive legal rebuttal to the specific authorities relied upon in Defendant's Memorandum. It addresses the application of the case law to the facts at bar, rather than the bibliographic validity of the citations.

I. PROCEDURAL FILINGS (NOTICE, JUDICIAL NOTICE, DECLARATION)

Notice of Motion (court file no. 10152119)

Memorandum citations **Memorandum citations:** Notice, pp. 2-3, ll. 5-12 (relief: strike under Code of Civil Procedure section 425.16, fees under subdivision (c), Civil Code section 47(b)); p. 3, l. 16 (Code of Civil Procedure section 437c(g) / tentative ruling).

DEFENSE ERROR **Procedural overreach.** Treating the notice as if it discharges Defendant's merits burden on Anti-SLAPP step one or step two. Defendant asks the Court to strike the First Amended Complaint under the Anti-SLAPP statute, invokes the litigation privilege, and seeks fees. The notice frames the motion but does not carry Defendant's burden on the merits. The notice is procedural only. Plaintiff's opposition will show that the gravamen targets noncommunicative institutional conduct and omissions under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, and that step two requires only minimal merit under Baral v. Schnitt (2016) 1 Cal.5th 376. Themes previewed in the notice are answered on the merits in the memorandum sections cited infra.

Request for Judicial Notice (court file no. 10152117)

Memorandum citations **Memorandum citations:** RJN, pp. 2-4, ll. 1-28 per page (Evidence Code sections 452-453; numbered request paragraphs 1-20).

DEFENSE ERROR **Misuse of judicial notice.** Using RJN to prove truth of disputed facts or to equate filed records with collateral estoppel or merits findings. Defendant asks the Court to take

1 judicial notice of operative complaints, register of actions, MILs, orders, post-trial papers, appeal
2 papers, judgment notice, and related court records.

3 Judicial notice is appropriate for **existence and authenticity** of court records, not for the **truth**
4 of matters asserted inside them. Defendant may not use the RJN to prove that a jury verdict
5 forecloses fraud, omission, or triable dispute on Anti-SLAPP step two. See Herrera v. Deutsche
6 Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375. Additional objections are set forth
7 in Plaintiff's Evidentiary Objections to Defendant's Declaration of Tyler J. O'Connell and Request
8 for Judicial Notice filed concurrently herewith.

9
10 **Declaration of Tyler J. O'Connell (court file no. 10152121)**

11 **Memorandum citations** **Memorandum citations:** Declaration, pp. 2-4, ll. 1-28 per page in the
12 clerk extract (numbered paragraphs and exhibit hooks).

13 **DEFENSE ERROR** **Evidentiary and legal-conclusion defects.** Framing ultimate legal conclu-
14 sions as facts; opinion and lack of personal knowledge on intent; service facts offered for improper
15 substantive purposes. The declarant authenticates exhibits, summarizes the underlying trial and
16 appeal, characterizes Plaintiff's allegations as targeting protected activity, and describes discovery
17 and service.

18 Objections include improper legal conclusions in place of fact (e.g. what claims "arise from,"
19 whether protected), lack of personal knowledge for intent of discovery, and narrow admissibility of
20 service stipulations. Additional detail appears in Plaintiff's Evidentiary Objections to Defendant's
21 Declaration of Tyler J. O'Connell and Request for Judicial Notice filed concurrently herewith.

22
23 **II. CLUSTER A. STEP ONE, PRE-LITIGATION DENIAL, AND EX-**
24 **PANSIVE ANTI-SLAPP**

25 Cluster A pairs analysis with **Overbroad Statutory Abstraction** (substituting broad statutory
26 purpose for Park* gravamen) and **Conflation of Conduct and Communication** (dissolving non-
27 communicative omissions into an undifferentiated Civil Code section 47(b) shield under Kimmel

1 v. Goland (1990) 51 Cal.3d 202).*

2 **Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309**

3 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
4 10152120): TOA, p. 3, l. 23; argument, Part IV opening, p. 10, ll. 10-23.

5 **DEFENSE ERROR Overbroad Statutory Abstraction.** Treating broad Anti-SLAPP construc-
6 tion as a per se step-one win and bypassing Park gravamen isolation. Defendant invokes the broad
7 remedial purpose of the Anti-SLAPP statute and the early dismissal of claims that interfere with
8 speech and petitioning as rhetorical dicta and policy atmospherics favoring an early strike. That
9 is an **Overbroad Statutory Abstraction (Park)**: while the opinion supports broad construction in
10 the abstract, Defendant overreads the case to imply that a broad statute means the defense automat-
11 ically prevails at step one. That reasoning fails because it substitutes a broad-construction mandate
12 for the mandatory “arising from” inquiry, incorrectly implying that a statute’s remedial purpose
13 creates a per se presumption of protection that overrides gravamen isolation.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Club Members
15 for an Honest Election v. Sierra Club because broad construction is not a substitute for the manda-
16 tory step-one requirement to isolate the specific injurious act causing the injury. Under Park, the
17 remedial purpose of the statute cannot be used to collapse the gravamen inquiry into a generic
18 “litigation” bucket. Because the operative wrong here is a noncommunicative institutional omis-
19 sion, the defense’s framing fails to satisfy the statutory “arising from” nexus as a question of law
20 reviewed de novo.

21 _____
22 **Fremont Reorganizing Corp. v. Faigin (2011) 198 Cal.App.4th 1153**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 3, l. 33; argument, Part IV opening, p. 10, ll. 10-23.

25 **DEFENSE ERROR Overbroad Statutory Abstraction.** Using statutory-breadth dicta as a
26 substitute for identifying the specific injurious act under Park. Defendant cites Faigin for the

high-level generality that the Anti-SLAPP statute must be construed broadly. In context, the case supports breadth of construction but does not dispense with the requirement to identify the specific injurious act causing the injury. The defense’s reliance on non-binding policy dicta regarding statutory purpose is an **Overbroad Statutory Abstraction** and an improper substitute for identifying the gravamen of the claim.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s use of Fremont Reorganizing Corp. v. Faigin by correctly identifying the noncommunicative omission as the gravamen, whereas the defense mistakenly relies on mere ipse dixit regarding statutory breadth. Under Park and Martinez v. Metabolife (2003) 113 Cal.App.4th 181, the defense’s failure to address the specific injurious act renders their application of Faigin erroneous, as broad construction does not immunize institutional conduct that is merely incidental to protected speech.

City of Cotati v. Cashman (2002) 29 Cal.4th 69

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 19; argument, Part IV opening, p. 10, ll. 10-23; and Part IV.B introductory block, p. 15, ll. 11-22.

DEFENSE ERROR Overbroad Statutory Abstraction. Using the two-step framework as if mere presence of protected communications completes step one without gravamen analysis. Defendant uses Cotati for the two-step Anti-SLAPP framework, which is accurate as hornbook, settled law. However, the defense then mistakenly treats the mere presence of “protected communications” as if they end the step-one inquiry without a gravamen analysis. That is an **Overbroad Statutory Abstraction**: using Cotati as a generic standard to bypass the mandatory gravamen filter for noncommunicative omissions.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s application of City of Cotati v. Cashman because the existence of a two-step framework does not dispense with the necessity of the gravamen filter. The defense’s error lies in treating the mere presence of “protected communi-

cations” as the completion of step one, which Cotati does not support when the underlying injury arises from noncommunicative conduct.

Martinez v. Metabolife (2003) 113 Cal.App.4th 181

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 9; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l. 5.

DEFENSE ERROR Overbroad Statutory Abstraction. Misapplying principal-thrust analysis by assuming the gravamen must be communicative denial or litigation rather than institutional omission. Defendant cites Martinez for the “principal thrust” or gravamen test but applies it only to their own characterization of the case as “words about a claim,” an **Overbroad Statutory Abstraction** that assumes the principal thrust must always be the defendant’s communicative acts (denial or litigation) and cannot be an omission. That distinguishable use supports Plaintiff if the operative wrong is a noncommunicative failure.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s reading of Martinez v. Metabolife by applying the “principal thrust” test to the actual injurious act, the institutional omission, rather than the defense’s self-serving characterization of the words in a denial letter. The defense’s application is mistaken because it ignores the “gist of the wrong” requirement, which in this case rests on noncommunicative conduct, not the speech that corroborated it.

Gilbert v. Sykes (2007) 147 Cal.App.4th 13

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 35; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l. 5.

DEFENSE ERROR Overbroad Statutory Abstraction. Converting expansive protected-activity language into categorical immunity from fraud and omission theories. Defendant cites Gilbert for

1 an expansive view of protected activity, erroneously treating it as a rule of categorical immunity
2 where any “litigation-themed” activity automatically triggers protection. That **Overbroad Statu-**
3 **tory Abstraction** attempts to use broad construction to ignore the gravamen of fraud and the
4 specific noncommunicative omissions alleged.

5 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Gilbert v. Sykes
6 because a “litigation theme” is not a per se shield for institutional fraud. The defense erroneously
7 implies that “broad reading” equals absolute immunity, whereas Plaintiff’s use of Park establishes
8 that the gravamen inquiry remains the controlling gatekeeper at step one.

9
10 Trinity Risk Mgmt. v. Simplified Lab. Staffing (2021) 59 Cal.App.5th 995

11 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
12 10152120): TOA, p. 4, l. 27; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
13 5.

14 **DEFENSE ERROR** **Overbroad Statutory Abstraction; Conflation of Conduct and Com-**
15 **munication.** Elevating access-to-courts dicta into a rule that dissolves fraud into generic petition-
16 ing and erasing conduct-versus-communication separation. Defendant relies on the policy favor-
17 ing access to courts and broad Anti-SLAPP protection as dicta and background for their motion,
18 in service of the memo’s **Categorical Immunity Fallacy** move to dissolve fraud into a generic
19 atmosphere of protected petitioning. However, this opinion is not a holding that insurer institu-
20 tional investigation fraud is per se petitioning or that gravamen analysis disappears. Moving from
21 a policy favoring access to the conclusion that institutional fraud claims must be stricken is an
22 **Overbroad Statutory Abstraction** and an overbroad misapplication of the law.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Trinity Risk Mgmt.
24 v. Simplified Lab. Staffing by distinguishing policy dicta from holding. The defense’s mistake is
25 in substituting rhetorical preference for access to courts for the mandatory requirement to identify
26 a protected “arising from” act, and in the related **Conflation of Conduct and Communication**

1 mistake of treating “communications” policy as a shield for noncommunicative conduct. Under
2 Kimmel, the noncommunicative “conduct” alleged by Plaintiff is not shielded by the “policy”
3 favoring protection of “communications.”

4
5 **Digerati Holdings v. Young Money Entertainment (2011) 194 Cal.App.4th 873**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 3, l. 25; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
8 5; and Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

9 **DEFENSE ERROR Conflation of Conduct and Communication.** Extending pre-litigation
10 communication privilege to noncommunicative omissions and institutional investigation failures.
11 Defendant cites Digerati for the proposition that privilege may extend to pre-litigation communi-
12 cations. While true in the abstract, the case does not hold that a failure to investigate is a commu-
13 nicative act or that an omission is a protected communication under Civil Code section 47(b). The
14 defense commits the **Conflation of Conduct and Communication** error: it collapses, without dif-
15 ferentiation, the Kimmel distinction between communication and conduct into an undifferentiated
16 section 47(b) shield.

17 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Digerati Holdings
18 v. Young Money Entertainment because a noncommunicative “act” is not a “communication”
19 merely because it occurs in a pre-litigation context. The defense erroneously attempts to elide that
20 distinction, whereas Kimmel and Park v. Board of Trustees of California State University (2017)
21 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, confirm
22 that the underlying institutional omission remains actionable conduct regardless of any subsequent
23 privileged letters.

24
25 **Hunter v. CBS Broadcasting, Inc. (2013) 221 Cal.App.4th 1510**

26 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
27 10152120): TOA, p. 3, l. 43; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.

1 5.

2 **DEFENSE ERROR Gravamen misidentification.** Misidentifying the operative act from which
3 claims arise by fixing on denial or litigation instead of institutional omission and concealment.
4 Defendant uses the “acts not motives” rule to anchor their claims in the denial and litigation acts
5 as the acts from which the claims arise. While the rule is accurate, Defendant mistakenly identifies
6 the wrong act as the gravamen, ignoring the institutional omission and concealment that form the
7 basis of Plaintiff’s theory.

8 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Hunter v. CBS Broadcasting,
9 Inc. by correctly identifying the “act” as the institutional omission and concealment. The defense’s
10 error is in assuming that the “denial” is the only act from which the claim could arise, whereas Park
11 (2017) 2 Cal.5th 1057, 1064, and City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, allow the
12 denial letter to be framed as evidentiary of the preceding noncommunicative failure.

13
14 **Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628**

15 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
16 10152120): TOA, p. 3, l. 17; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
17 5.

18 **DEFENSE ERROR Incomplete collateral-attack doctrine.** Overreading prior-judgment pro-
19 tection to ignore different primary rights and parties for carrier fraud duties. Defendant cites
20 Wollersheim for the idea that Anti-SLAPP protects against direct attacks on prior judgments. That
21 use is incomplete and misidentifies the dispositive inquiry because it fails to account for different
22 primary rights and parties. The existence of a prior judgment does not mean any new suit involving
23 the same accident is an impermissible attack.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Church of Scientology
25 v. Wollersheim because the existence of a prior judgment does not preclude a fraud action where

1 there is no identity of primary rights or parties. The defense’s application is incomplete because it
2 fails to account for the carrier’s independent duty to the claimant, which was never litigated in the
3 underlying personal injury trial.

4
5 **Bergstein v. Stroock & Stroock & Lavan LLP (2015) 236 Cal.App.4th 793**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 3, l. 11; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
8 5.

9 **DEFENSE ERROR Conflation of Conduct and Communication.** Equating litigation-related
10 statements with immunity for noncommunicative claim-handling and institutional conduct. Defen-
11 dant relies on Bergstein for the proposition that statements in connection with litigation are pro-
12 tected. That position is overbroad when applied to insurer claim-handling conduct. The defense
13 attempts a **Conflation of Conduct and Communication** maneuver, wrapping noncommunicative
14 institutional failures into the protection afforded to litigation-related speech and failing to identify
15 the specific injurious act as required by Park.

16 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s overbroad use of Bergstein v.
17 Stroock & Stroock & Lavan LLP by correctly separating “statements” from “claim-handling con-
18 duct.” The defense’s error lies in attempting to wrap noncommunicative institutional failures into
19 the protection afforded to litigation-related speech. Under Park, the gravamen remains the conduct,
20 not the speech.

21
22 **Kashian v. Harriman (2002) 98 Cal.App.4th 892**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 4, l. 1; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.A.2, p. 13, l.
25 13 through p. 14, l. 4.

1 **DEFENSE ERROR Overbroad Statutory Abstraction.** Treating an expansive view of litigation-
2 related activity as categorical immunity that bypasses principal-thrust and Park analysis. Defendant
3 cites Kashian for an “expansive view” of litigation-related activities, treating it as a rule of categor-
4 ical immunity that bypasses the “principal thrust” test. That **Overbroad Statutory Abstraction**
5 erroneously assumes that “expansive” construction allows the court to ignore the mandatory grava-
6 men separation that distinguishes speech from the operative wrong.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Kashian v.
8 Harriman because an “expansive view” is not a substitute for the “principal thrust” test. The
9 defense’s error is in assuming that “expansive” means all-encompassing, whereas Plaintiff’s use of
10 Park demonstrates that the gravamen inquiry must still isolate the specific injurious act, which in
11 this case is noncommunicative.

12
13 **A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118**
14 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
15 10152120): TOA, p. 3, l. 5; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

16 **DEFENSE ERROR Overbroad Statutory Abstraction.** Leaping from contemplated litiga-
17 tion to fraud immunity and treating the letter as the sole gravamen. Defendant uses A.F. Brown
18 for the rule that pre-litigation statements are protected when litigation is genuinely contemplated.
19 However, they make an **Overbroad Statutory Abstraction**, a categorical leap from “contem-
20 plated litigation” to “fraud immunity,” ignoring that a false representation can be evidence of a
21 noncommunicative wrong and that communication does not erase the gravamen of the underlying
22 institutional fraud.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of A.F. Brown Elec. Contractor,
24 Inc. v. Rhino Elec. Supply, Inc. because “contemplated litigation” does not immunize institutional
25 fraud. The defense’s error is in treating the “letter” as the only relevant act, whereas Park (2017)
26 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, allow the

1 letter to be framed as an evidentiary artifact of the underlying fraudulent investigation, which is
2 not protected petitioning activity.

4 **Adams v. Superior Court (1992) 2 Cal.App.4th 521**

5 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
6 10152120): TOA, p. 3, l. 7; argument, Part IV.A.2, p. 13, l. 13 through p. 14, l. 4.

7 **DEFENSE ERROR** **Categorical Immunity Fallacy; Conflation of Conduct and Commu-**
8 **nication.** Reading Adams as erasing all fraud theories and collapsing conduct into privileged
9 communications. Defendant treats Adams as the memo’s **Categorical Immunity Fallacy** and as a
10 **Conflation of Conduct and Communication** to suggest that all alleged fraud in connection with
11 litigation is privileged. That undifferentiated reading incorrectly elides the distinction between
12 conduct and speech, overreading the authority to imply that it wipes out the Kimmel conduct line
13 and equitable doctrines that limit privilege in cases involving fraud on the court.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Adams v. Superior
15 Court because “litigation privilege” only protects “words,” not the underlying “conduct.” The
16 defense’s error lies in its **Categorical Immunity Fallacy / Conflation of Conduct and Com-**
17 **munication** attempt to use Adams as a categorical bar to all fraud claims, ignoring the Kimmel
18 preservation of liability for noncommunicative acts and Action Apartment Assn., Inc. v. City of
19 Santa Monica (2007) 41 Cal.4th 1232 (discussing limits on extending Civil Code section 47(b)
20 where unlawful conduct impedes a party’s access to justice).

22 **Aronson v. Kinsella (1997) 58 Cal.App.4th 254**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 3, l. 9; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.A.3, p. 14, l.
25 5 through p. 15, l. 10.

1 **DEFENSE ERROR Conflation of Conduct and Communication.** Treating imminent litigation
2 as converting institutional omissions into protected expression or fraud immunity. Defendant
3 cites Aronson to infer that because litigation was imminent, the insurer’s investigation and denial
4 are per se protected. That **Conflation of Conduct and Communication** reasoning is legal error
5 because imminent litigation does not convert a noncommunicative institutional omission into
6 protected expression or immunize institutional fraud.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Aronson v. Kinsella
8 because “contemplated litigation” does not transform a noncommunicative “omission” into “ex-
9 pression.” The defense’s error is in assuming that the litigation context automatically protects the
10 preceding failure to investigate, whereas Kimmel and Park confirm that the gravamen remains the
11 conduct, not the speech.

12
13 Cabral v. Martins (2009) 177 Cal.App.4th 471

14 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
15 10152120): TOA, p. 3, l. 15; argument, Part IV.A.2, p. 13, l. 13 through p. 14, l. 4.

16 **DEFENSE ERROR Conflation of Conduct and Communication; Overbroad Statutory Ab-**
17 **straction.** Assuming intertwined communications make the letter the inevitable gravamen of the
18 entire action. Defendant relies on Cabral for the idea that communications intertwined with a fil-
19 ing qualify as petitioning. While true in context, the defense overreads the case to assume that the
20 entire claim must “arise from” the letter, a **Conflation of Conduct and Communication / Over-**
21 **broad Statutory Abstraction** that ignores that intertwined communications can be evidentiary
22 while the gravamen remains noncommunicative institutional conduct.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Cabral v. Martins by cor-
24 rectly separating “intertwined communications” from the “gravamen.” The defense’s error lies in
25 its assumption that because a letter is intertwined with a filing, the entire claim must “arise from”
26 that letter. Under Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002)

29 Cal.4th 69, 78, the letter is merely evidence of the non-protected institutional omission.

People ex rel. Fire Ins. Exchange v. Anapol (2012) 211 Cal.App.4th 809

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 15; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

DEFENSE ERROR Overbroad Statutory Abstraction. Treating contemplation-of-litigation and compliance tropes as fraud immunity and as dispositive of gravamen. Defendant uses Anapol to suggest that regulatory compliance or the contemplation of litigation proves that no fraudulent investigation can be pleaded. That **Overbroad Statutory Abstraction** misframes the dispositive issue because factually plausible imminent litigation is not a fraud immunity rule and does not decide the gravamen of a noncommunicative concealment.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of People ex rel. Fire Ins. Exchange v. Anapol because “genuine contemplation” and “regulatory compliance” are not per se shields for “fraud.” The defense’s error is in misapplying the “contemplation” rule to a gravamen inquiry that rests on noncommunicative concealment, which Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, confirm is not the protected speech that supplies the gravamen.

Laker v. Bd. of Trustees (2019) 32 Cal.App.5th 745

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 7; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR Overbroad Statutory Abstraction. Generalizing official-proceeding analogy while ignoring absent-illegality limits and fraud allegations. Defendant analogizes insurer investigation to Laker’s holding that internal investigations may qualify as “official proceedings,” an **Overbroad Statutory Abstraction** that generalizes Laker beyond its facts. That analogy is

distinguishable because the defense ignores the “absent illegality” language in Laker. Plaintiff specifically alleges illegality, concealment, and business practices that do not fit the facts of Laker.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s analogy to Laker v. Bd. of Trustees. Allegations of “illegality” and “systematic concealment” fall within an exception that Laker itself acknowledges to the “official proceeding” characterization. The defense’s error is in attempting to generalize Laker to “all investigations,” whereas Plaintiff’s specific allegations of fraud remove this case from the Laker ambit.

Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 45; argument, Part IV.B introductory block, p. 15, ll. 11-22.

DEFENSE ERROR Conflation of Step One and Step Two. Importing probability and substantiation rhetoric into step one and blurring Anti-SLAPP stages. Defendant uses Huntingdon to introduce probability-of-prevailing language into a step-one posture. That **Conflation of Step One and Step Two** (the impermissible collapse of step two into step one) is legal error because merits-based rhetoric cannot substitute for the mandatory step-one gravamen inquiry. Treating citation volume as ending step one confuses the distinct stages of the Anti-SLAPP analysis.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s use of Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. because “probability” language applies at step two, on the prima facie showing. The defense’s **Conflation of Step One and Step Two** folds step-two merits rhetoric into step one and attempts to bypass the mandatory gravamen inquiry. Under Park and Baral, step one must be satisfied before the court reaches whether Plaintiff has shown a prima facie case and minimal merit.

III. CLUSTER B. FUNDING, IN-COURT CONDUCT, AND FEDERAL PERSUASIVE AUTHORITY

City of Colton v. Singletary (2012) 206 Cal.App.4th 751

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 21; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

DEFENSE ERROR Overbroad Statutory Abstraction. Equating commercial funding and underwriting with the protected act of filing motions or petitioning. Defendant cites Colton to claim that funding litigation is “petitioning” because filing motions is protected activity. That level-of-abstraction error overreaches by asserting that commercial business decisions and funding underwriting are petitioning. Under Park, the commercial conduct behind the motion must be isolated from the protected act of filing.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of City of Colton v. Singletary because “filing a motion” is not the same as “funding a business practice.” The defense’s error lies in its level-of-abstraction error, attempting to wrap commercial underwriting and non-party funding into the definition of “petitioning.” Under Park, the specific injurious act remains the commercial conduct, not the incidental court filings.

Graham-Sult v. Clainos (9th Cir. 2014) 756 F.3d 724

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 37; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

DEFENSE ERROR Misplaced federal authority. Using persuasive Ninth Circuit authority to bypass mandatory California Park gravamen methodology. Defendant cites this federal case for the proposition that representations to the court are protected. That reliance on non-binding, persuasive authority is error because it attempts to use federal dicta to override California’s state-law gravamen methodology. Binding state authorities like Park control the “arising from” and “gist

1 of the wrong” analysis on this record.

2 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Graham-Sult v. Clainos
3 because federal persuasive authority cannot override state methodology. The defense’s error is in
4 treating a non-binding federal case as a means to bypass Park’s requirements. Under California
5 law, the “gist of the wrong” inquiry is mandatory and controls over any persuasive federal shortcut.

6
7 **Dove Audio, Inc. v. Rosenfeld (1996) 47 Cal.App.4th 777**

8 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
9 10152120): TOA, p. 3, l. 27; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

10 **DEFENSE ERROR Overbroad Statutory Abstraction.** Treating preparatory-communications
11 protection as categorical immunity without gravamen filtering. Defendant uses Dove as a bridge to
12 categorical immunity, claiming that because preparatory communications are protected, the entire
13 claim is barred. That ignores that the gravamen filter still applies. Symmetry between statutes con-
14 strued in pari materia does not erase the noncommunicative, extrinsic fraud, and gravamen limits
15 established by Park and Kimmel.

16 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Dove Audio, Inc. v. Rosenfeld
17 because symmetry between statutes does not create immunity from gravamen analysis. The de-
18 fense’s error is in treating “preparatory acts” as a categorical shield, whereas Park and Kimmel
19 confirm that if the gravamen is noncommunicative conduct, the preparatory context does not trig-
20 ger Anti-SLAPP protection.

21
22 **Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 3, l. 41; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

1 **DEFENSE ERROR False analogy (non sequitur).** Importing settlement-context privilege
2 rhetoric to defeat institutional fraud and concealment theories. Defendant cites Home Ins. to
3 suggest that “even bad faith lies can be privileged” in a settlement context. That citation is dis-
4 tinguishable because Plaintiff’s theory involves institutional investigation fraud and concealment
5 of objective records, not the narrow settlement-limit misrepresentation addressed in the case. The
6 inference is a non sequitur: a privilege in one context does not mean all fraud theories fail.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Home Ins. Co. v.
8 Zurich Ins. Co. by distinguishing a “settlement misrepresentation” from an “institutional omis-
9 sion.” The defense’s error is the non sequitur that “privilege in one context” means “all fraud
10 theories fail.” Kimmel preserves liability for conduct, and Plaintiff’s theory is anchored in non-
11 communicative concealment, not the narrow settlement lie addressed in Home Ins.

12 13 **IV. CLUSTER C. LITIGATION PRIVILEGE, BRIGGS, AND FLATLEY** 14 **POLICY**

15 **Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106**

16 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
17 10152120): TOA, p. 3, l. 13; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

18 **DEFENSE ERROR Overbroad in pari materia bridge.** Treating Briggs as erasing Action
19 Apartment and Flatley limits and Park gravamen. Defendant uses Briggs to imply a blanket im-
20 munity that erases exceptions for extrinsic fraud or illegal conduct. While the case bridges the two
21 statutes in pari materia for qualifying communications, it is overbroad to suggest that this bridge
22 eliminates the Action Apartment and Flatley limits. The bridge does not dispense with the Park
23 gravamen filter.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s overbroad application of Briggs
25 v. Eden Council for Hope & Opportunity because a bridge between statutes does not erase excep-

tions to those statutes. The defense’s error lies in assuming that “protected statements” automatically immunize related noncommunicative “conduct” or “illegal acts.” Under Action Apartment and Flatley, the bridge does not cover extrinsic fraud or illegal conduct.

Hagberg v. California Federal Bank (2004) 32 Cal.4th 350

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 39; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR **Conflation of Conduct and Communication.** Extending pre-filing communication privilege to noncommunicative institutional failures. Defendant cites Hagberg for the rule that privilege applies to pre-filing statements. That rule is distinguishable because the defense misapplies it to noncommunicative institutional failures. Collapsing an omission into a communication overreads the case and ignores the Kimmel line separating noncommunicative conduct from speech.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of Hagberg v. California Federal Bank by correctly identifying “omissions” as “conduct,” not “communications.” The defense’s mistake is in its attempt to collapse the Kimmel distinction, whereas Hagberg confirms that the privilege only applies to “pre-filing communications” and does not extend to the noncommunicative institutional failures alleged here.

Laffer v. Levinson (1995) 34 Cal.App.4th 117

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 5; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR **Overbroad privilege.** Converting litigation privilege into a total tort shield ignoring conduct and extrinsic-fraud limits. Defendant uses Laffer to claim that the litigation privilege is a total defense to all torts in a litigation context. That position is overbroad and ignores

1 the Kimmel and Action Apartment limits. Privilege as a tort defense is restricted to qualifying
2 communications and does not provide an undifferentiated shield for institutional fraud and conduct.

3 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Laffer v. Levinson
4 because a “privilege defense” is not a shield for conduct. The defense’s error is in assuming
5 that all torts vanish in a litigation context, whereas Kimmel and Action Apartment confirm that
6 noncommunicative conduct and extrinsic fraud remain actionable notwithstanding the litigation
7 privilege.

8
9 **Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416**

10 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
11 10152120): TOA, p. 4, l. 17; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

12 **DEFENSE ERROR** **Categorical Immunity Fallacy.** Using doubts-favor-privilege rhetoric to
13 avoid gravamen, exceptions, and Park analysis. Defendant uses the “doubts favor privilege” formu-
14 lation as a universal solvent to avoid gravamen and exception analysis. That reasoning is unsound
15 because a standard formulation regarding the scope of a privilege cannot erase the mandatory anal-
16 ysis required by Park, Action Apartment, and Flatley. Doubts about a privilege do not dispense
17 with the necessity of identifying a protected act.

18 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Pollock v. University
19 of Southern California because “doubts favor privilege” does not mean privilege swallows the
20 gravamen inquiry. The defense’s error lies in its attempt to use this standard formulation as a
21 categorical substitute for the mandatory analysis required by Park, Action Apartment, and Flatley.
22 Doubts about the scope of a privilege do not dispense with the necessity of identifying a protected
23 “arising from” act.

1 **L.G. v. M.B. (2018) 25 Cal.App.5th 211**

2 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
3 10152120): TOA, p. 4, l. 3; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
4 5.

5 **DEFENSE ERROR Misapplication to facts.** Applying communication-based formulations to
6 a complaint whose gravamen is alleged noncommunicative institutional conduct. Defendant cites
7 the Hagberg formulation in this case to argue that every claim is communication-based. That
8 is an accurate but narrow use that fails to reach Plaintiff’s noncommunicative gravamen. The
9 defense erroneously assumes that because the test is correct, it must apply to Plaintiff’s theory of
10 institutional failure, which is anchored in conduct rather than speech.

11 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s application of L.G. v. M.B. be-
12 cause an accurate test must be applied to the correct acts. The defense’s error is in assuming that
13 “claims are words,” whereas Plaintiff’s theory is anchored in noncommunicative institutional fail-
14 ures. The Hagberg formulation cannot be used to strike a claim whose gravamen is conduct, not
15 speech.

16
17 **Flatley v. Mauro (2006) 39 Cal.4th 299**

18 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
19 10152120): TOA, p. 3, l. 31; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

20 **DEFENSE ERROR Selective citation.** Mining finality policy while underplaying illegal-conduct
21 exclusion from Anti-SLAPP protection. Defendant mines Flatley for “finality” policy while ignor-
22 ing its central holding that illegal conduct is categorically excluded from Anti-SLAPP protection.
23 That selective reading is misleading because it attempts to use the decision as total authority for
24 finality while ignoring the very exception Plaintiff invokes. Under the full Flatley decision, allega-
25 tions of systematic concealment and institutional fraud survive the strike.

1 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s selective reading of Flatley v.
2 Mauro because policy does not override holding. The defense’s error lies in mining the decision for
3 finality-related dicta while ignoring its central holding that illegal conduct is categorically excluded
4 from Anti-SLAPP protection. Under the full Flatley decision, Plaintiff’s allegations of systematic
5 concealment and institutional fraud survive the strike.

7 **V. CLUSTER D. COLLATERAL ATTACK, VOID JUDGMENT, ESTOP-** 8 **PEL, AND FEDERAL POLICY**

9 **F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462**

10 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
11 10152120): TOA, p. 3, l. 29; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

12 **DEFENSE ERROR** **Collateral attack overbreadth.** Treating generic collateral-attack defini-
13 tion as a per se bar without primary-rights and party analysis. Defendant uses the generic definition
14 of “collateral attack” to argue that this fraud action is automatically barred. That argument is dis-
15 tinguishable because a generic definition does not resolve the “Primary Rights Wall” inquiry under
16 Crowley v. Katleman (1994) 8 Cal.4th 666. Different primary rights and different parties (in-
17 sured vs. carrier) break the inference that a fraud action is an impermissible attack on a negligence
18 judgment.

19 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s application of F.E.V. v. City
20 of Anaheim because an accurate definition does not yield a per se bar. The defense’s error is
21 in assuming that no distinct claims can exist, whereas Crowley and the Primary Rights Theory
22 confirm that a fraud action against a carrier involves a different primary right and different parties
23 than the underlying personal injury trial.

1 **Rico v. Nasser Bros. (1943) 58 Cal.App.2d 878**

2 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
3 10152120): TOA, p. 4, l. 19; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

4 **DEFENSE ERROR Collateral attack overbreadth.** Assuming void-on-the-face framing abol-
5 ishes extrinsic fraud and independent carrier duties. Defendant cites Rico for collateral-attack
6 definitions to argue that a judgment not void on its face allows no fraud action. That incorrectly
7 assumes that such a judgment abolishes the extrinsic fraud doctrine. California law specifically
8 preserves the extrinsic fraud doctrine and the assertion of independent primary rights against non-
9 party carriers.

10 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Rico v. Nasser Bros. be-
11 cause a judgment not void on its face does not abolish extrinsic fraud. The defense’s error is
12 in incorrectly assuming that no fraud action can ever follow a judgment, whereas California law
13 specifically preserves the extrinsic fraud doctrine and the assertion of independent primary rights
14 against non-parties.

15
16 **Wouldridge v. Burns (1968) 265 Cal.App.2d 82**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 31; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

19 **DEFENSE ERROR Misidentification of claim.** Treating fraud on independent duties as an
20 impermissible voiding attack on the judgment. Defendant cites the “void on its face” rule to argue
21 that Plaintiff’s fraud case is a barred collateral attack. That misidentification of the dispositive
22 issue overreads the case by assuming that a fraud action for independent misrepresentations seeks
23 to “void” the underlying judgment. Under Crowley, a fraud case is not a collateral attack if it rests
24 on a different primary right.

1 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's overbroad application of Wouldridge
2 v. Burns because an accurate narrow rule cannot be used to abolish the extrinsic fraud doctrine.
3 The defense's error lies in its misidentification of the claim, assuming that no fraud action is al-
4 lowed unless the judgment is void on its face. Under Crowley, a fraud case is not a collateral attack
5 if it rests on a different primary right than the case that went to judgment.

6
7 **Singh v. Lipworth (2014) 227 Cal.App.4th 813**

8 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
9 10152120): TOA, p. 4, l. 25; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

10 **DEFENSE ERROR Preclusion overbreadth.** Simplistic relitigation narrative without strict
11 collateral estoppel and res judicata elements. Defendant invokes Singh for a simplistic relitigation
12 narrative that bypasses the actual elements of collateral estoppel and res judicata. That misidentifi-
13 cation incorrectly assumes that the underlying trial decided everything about the accident, ignoring
14 that the carrier's fraudulent investigation was never actually litigated and involves different duties
15 and parties.

16 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's invocation of Singh v. Lipworth
17 because the elements of issue preclusion and claim preclusion must be strictly met. The defense's
18 error is in eliding identity of rights and assuming that no fraud action can ever proceed after a
19 judgment. Under Singh, preclusion requires that the issues be actually litigated, which the carrier's
20 fraudulent investigation was not.

21
22 **United States v. Throckmorton (1878) 98 U.S. 61**

23 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
24 10152120): TOA, p. 4, l. 29; argument, Part IV.B.3 (fraud subpart), pp. 17-19, l. 10 on p. 17
25 through l. 28 on p. 19.

1 **DEFENSE ERROR Non-California law substitution.** Substituting federal policy rhetoric for
2 California primary-rights and preclusion doctrine. Defendant uses 19th-century federal policy
3 rhetoric to suggest that California preclusion law is replaced by a general policy against repeated
4 litigation. That reliance on non-binding federal dicta is unsound because federal rhetoric cannot
5 override the specific primary-rights and preclusion requirements of California law, which control
6 the outcome on this record.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's reliance on United States v. Throckmorton
8 because federal policy and dicta are not substantive California law. The defense's error is in at-
9 tempting to replace state methodology with 19th-century federal platitudes, whereas the California
10 Primary Rights Theory and specific preclusion doctrines control the outcome here.

11
12 **VI. CLUSTER E. FRAUD ELEMENTS, DAMAGES, STANDING, ZHANG,**
13 **AND MORADI-SHALAL**

14 **Service by Medallion v. Clorox Co. (1996) 44 Cal.App.4th 1807**

15 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
16 10152120): TOA, p. 4, l. 21; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
17 on p. 19.

18 **DEFENSE ERROR Summary-judgment standard at step two.** Using fraud elements list to
19 demand dispositive merits proof below Baral minimal-merit standard. Defendant uses an elements-
20 of-fraud list to demand a summary judgment standard at the Anti-SLAPP stage. That accurate but
21 narrow use of hornbook law is a mistake because it diverts from the pleaded facts and ignores that
22 only minimal merit and a prima facie showing are required at step two. Listing elements does not
23 win a strike as a matter of law without a proper record.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's accurate but narrow use of Service
25 by Medallion v. Clorox Co. because an accurate black-letter elements list does not yield an au-

1 automatic Anti-SLAPP strike. The defense’s error is in diverting from pleaded facts and demanding
2 a summary judgment standard at step two, whereas Baral confirms that only minimal merit and a
3 prima facie case are required for Plaintiff to survive.

4
5 **Orcilla v. Big Sur Lodge, Inc. (2016) 244 Cal.App.4th 982**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 4, l. 13; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
8 on p. 19.

9 **DEFENSE ERROR Merits threshold confusion.** Treating damages nuance as a pleading-stage
10 total bar on fraud survival. Defendant cites Orcilla regarding consequential damages to suggest a
11 total bar on fraud theories. That is a merits-based nuance that does not defeat minimal merit or
12 a prima facie showing at the pleading stage. Treating merits depth as an automatic strike is error
13 because rough edges on damages do not result in a total bar under the Baral standard.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Orcilla v. Big Sur
15 Lodge, Inc. because a merits issue like consequential damages does not suggest a total bar at the
16 Anti-SLAPP stage. The defense’s error is in treating merits-based nuance as a threshold strike,
17 whereas Plaintiff’s specific allegations of independent economic loss satisfy the minimal merit and
18 prima facie requirements of Baral.

19
20 **Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268**

21 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
22 10152120): TOA, p. 4, l. 23; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
23 on p. 19.

24 **DEFENSE ERROR Misapplied standing rule.** Extending contract third-party default to fore-
25 close common law fraud channels that Moradi-Shalal preserves. Defendant cites the default rule
26 that third parties need an assignment or judgment to argue for a per se bar on this action. That

misapplies a contract-standing rule to direct fraud theories that were expressly preserved by the Supreme Court. The defense incorrectly assumes that a default rule for contract claims bars common law fraud theories.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of Shaolian v. Safeco Ins. Co. because a default rule regarding contract standing is not a per se bar on fraud. The defense’s error is in incorrectly assuming no common law fraud can exist, whereas Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287 expressly confirms that common law fraud remains a valid channel for direct third-party suits against carriers.

Zhang v. Superior Court (2013) 57 Cal.4th 364

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 33; argument, Part IV.B.3 (UCL subpart), pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19.

DEFENSE ERROR **Channel error.** Overreading enforcement-channel limits as total immunity from common law fraud and UCL prongs. Defendant uses Zhang to argue that the UCL cannot be used to plead around a statutory bar, correctly stating the narrow rule. However, they then commit a channel error by extending this to mean that no fraud or UCL theory can exist at all. That overreads the decision to imply a total (and unauthorized) immunity for traditional torts that do not depend on forbidden statutory enforcement.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s channel error in its reading of Zhang v. Superior Court because “no private statutory remedy” does not mean “no common law fraud claim.” The defense’s error lies in ignoring channel separation and attempting to use an accurate narrow rule regarding statutory enforcement to immunize the carrier against traditional common law fraud and business-practice liability.

1 **Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287**

2 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
3 10152120): TOA, p. 4, l. 11; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
4 on p. 19.

5 **DEFENSE ERROR** **Channel error; overread.** Characterizing the holding as a categorical bar
6 on all third-party theories despite preservation of common law fraud. Defendant characterizes this
7 decision as broadly barring all third-party claims until liability is established. That channel error
8 under-reads the opinion's express preservation of common law fraud actions. The actual holding
9 leaves the common law lane open, confirming that the defense's narrative of a categorical bar is
10 overbroad and mistaken.

11 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's channel error regarding Moradi-Shalal
12 v. Fireman's Fund Ins. Companies because "no private statutory remedy" is merely a statutory
13 limit, not a bar on fraud. The defense's error is in ignoring preservation and assuming no common
14 law fraud claim can ever proceed. The actual Moradi-Shalal holding expressly preserves the court's
15 jurisdiction over common law fraud actions, confirming that the defense's total bar narrative is a
16 misapplication of the law.

17
18 **VII. CLUSTER F. STATUTORY AUTHORITIES IN THE ANTI-SLAPP**
19 **MEMORANDUM**

20 **Cross-cutting overview** **Overbroad Statutory Abstraction; Conflation of Conduct and Com-**
21 **munication; Conflation of Step One and Step Two; Channel error.** Defendant fuses Code of
22 Civil Procedure section 425.16 with Civil Code section 47(b) so that breadth rhetoric and privilege
23 swallow the complaint. That fusion imports merits and channel arguments at the wrong stage and
24 substitutes policy for Park gravamen and Kimmel conduct lines. Defendant's memorandum repeat-
25 edly **fuses** Code of Civil Procedure section 425.16 with Civil Code section 47(b) so that "protected
26 activity" and "absolute privilege" swallow the complaint as a whole. The same **Overbroad Statu-**

1 **tory Abstraction** and **Conflation of Conduct and Communication** labels apply when the vehicle
2 is **statute text** rather than a case cite: broad definitions and remedial purpose are substituted for
3 gravamen isolation under Park, and undifferentiated “communications” protection is substituted
4 for the conduct line preserved under Kimmel. Where Defendant imports **step-two** merits or **chan-**
5 **nel** arguments while still at step one, **Conflation of Step One and Step Two** and **channel error**
6 (see Baral; Zhang; Moradi-Shalal) remain available.

7
8 **Code of Civil Procedure section 425.16**

9 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
10 10152120): TOA, p. 4, l. 40; argument examples: Part I (Introduction), p. 5, ll. 1-28; Part II
11 (Summary of Argument), p. 6, ll. 1-28; Part IV opening, p. 10, ll. 10-23; Part V (Conclusion),
12 p. 20, ll. 1-16; and throughout Part IV.

13 **DEFENSE ERROR Overbroad Statutory Abstraction; step collapse.** Partial reading of sub-
14 division (e) and breadth rhetoric as completing step one and collapsing protected activity with
15 all alleged wrongs. Defendant correctly recites high-level legislative findings in subdivision (a),
16 including that the statute **shall be construed broadly**, and the two-step framework under subdivi-
17 sion (b) (see City of Cotati v. Cashman, cited in the memorandum). Defendant then emphasizes
18 subdivisions (e)(1) and (e)(2), which describe **written or oral statements or writings** made in
19 connection with official or judicial proceedings, and treats those subdivisions as if they **complete**
20 step one for every allegation, including institutional investigation, denial, and trial conduct. The
21 memorandum also leans on Laker to equate internal investigation with an “official proceeding au-
22 thorized by law” under section 425.16, and concludes that all challenged conduct is “protected
23 activity” under section 425.16. That use of the statute is an **Overbroad Statutory Abstraction**
24 because it treats definitional **breadth** and a **partial** reading of subdivision (e) as a substitute for
25 the mandatory “arising from” and gravamen inquiry. Subdivision (e) also includes clause (4), “any
26 other conduct in furtherance of” petition or free speech in connection with a public issue or inter-
27 est, which does not erase Park’s requirement to separate protected **petitioning** from the **specific**

1 **injurious act** that is the gist of the wrong. Subdivision (b) itself separates the motion to strike from
2 the **probability** showing; blanket rhetorical equations of “all allegations” with protected activity
3 **collapse** those stages.

4 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s statutory framing by applying
5 **section 425.16 as a whole**: broad construction in subdivision (a) does not create a per se step-one
6 win, and subdivisions (e)(1) and (e)(2) do not **define away** a gravamen that rests on **noncommu-**
7 **nunicative** institutional conduct or omissions. Under Park, the court still isolates whether the claim
8 **arises from** protected activity or from conduct that is **merely incidental** to it. Where Defendant’s
9 theory depends on treating a denial letter or investigation as the **only** act from which injury flows,
10 Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69,
11 78, supports treating protected speech as **evidence** of a different injurious act when the speech is
12 **not** itself the wrong complained of, without conceding that the **gist** is petitioning. Laker’s own
13 “**absent illegality**” framing limits how far “official proceeding” analogies extend when Plaintiff
14 alleges **fraud, concealment, or systemic** practices, not good-faith claim handling alone.

15
16 **Civil Code section 47 (subdivision (b))**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 39; argument examples: Part IV.A introductory block, p. 10, l. 24
19 through p. 12, l. 5; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23; Notice, pp. 2-3, ll. 5-12.

20 **DEFENSE ERROR** **Truncated statute; Conflation of Conduct and Communication.** Quot-
21 ing subdivision (b) branch while ignoring exceptions and treating privilege as absolute against
22 fraud and conduct theories. Defendant quotes the opening branch of subdivision (b), describing
23 privileged publications in legislative, judicial, or other official proceedings, and then treats **sec-**
24 **tion 47(b)** as an **absolute** bar to fraud and to both Anti-SLAPP steps, including through Briggs
25 (“equally entitled to the benefits of section 425.16”) and Pollock (“doubts” favor privilege). That
26 presentation is structurally **incomplete** relative to the **same subdivision**: section 47(b) contains
27 **numbered exceptions**, including communications in furtherance of **intentional destruction or**

1 **alteration of physical evidence** (subdivision (b)(2)) and communications **knowingly concealing**
2 **the existence of insurance** in a judicial proceeding (subdivision (b)(3)). The memorandum does
3 not integrate those exceptions into its “all statements are privileged” thesis. Even aside from ex-
4 ceptions, Defendant’s move is a **Conflation of Conduct and Communication**: it assumes that
5 every alleged wrong is a **communication** subject to privilege, rather than **conduct** that may be
6 evidenced by communications, a line Kimmel and the case clusters above already stress.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s use of section 47(b) by insisting
8 on **full subdivision context** and **conduct-versus-communication** separation. Privilege attaches
9 to **qualifying communications**, not to every **institutional** practice or omission that the complaint
10 targets. Action Apartment and Flatley (Cluster C) supply limits on extending the privilege where
11 **unlawful conduct** or fraud on the court is alleged, so that section 47(b) cannot operate as a **blanket**
12 **immunity** to all tort theories. Where the complaint’s gravamen is **noncommunicative** wrongdo-
13 ing, or falls within statutory **exceptions** Plaintiff is prepared to prove, Defendant cannot rely on a
14 **truncated** quotation of (b) to strike the action as a matter of law at step one.

15
16 **Business and Professions Code section 17200**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 38; argument: Part II (Summary of Argument), p. 6, ll. 1-28; Part
19 IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19.

20 **DEFENSE ERROR** **Policy gloss; Channel error.** Adding non-text UCL policy to narrow
21 prongs and overreading Zhang / Moradi-Shalal as total immunity. Defendant quotes the **defini-**
22 **tional** sentence of section 17200 accurately: unfair competition includes **unlawful, unfair, or**
23 **fraudulent** business acts or practices and related advertising categories. The memorandum then
24 adds **non-statutory** policy claims (for example, that the UCL is “not meant” as a vehicle for dis-
25 pute over a third-party claim denial, and that it is aimed at “predatory” marketplace behavior).
26 Those glosses are **argument**, not text of section 17200. Defendant couples the UCL discussion
27 with Zhang and Moradi-Shalal to argue that **channel** limits foreclose Plaintiff’s theory. That strat-

egy risks **channel error** if it treats a **narrow** holding about **pleading around** a statutory bar as a **total** immunity against any **unlawful** or **fraudulent** business-practice theory that does not depend on the forbidden channel.

PLAINTIFF OPPOSITION Plaintiff overcomes Defendant's use of section 17200 by **separating accurate black-letter definition from Defendant's policy narrative**. The **unlawful** prong can incorporate violations of other law; the **fraudulent** prong reaches deceptive practices in commerce as defined by California UCL jurisprudence. Zhang and Moradi-Shalal address **specific** enforcement limits (Cluster E); they do not **rewrite** section 17200's text or eliminate **minimal merit** analysis under Baral at Anti-SLAPP step two. Defendant's insistence that a jury verdict on **underlying tort** liability ends all **UCL** analysis confuses **merits** outcomes in one action with **elements** and **channel** questions in this action.

Insurance Code section 790.03 (with 10 Cal. Code Regs. section 2695.7)

Memorandum citations **Memorandum citations** (Defendant's memorandum, court file no. 10152120): TOA: Insurance Code section 790.03 at p. 4, l. 41; 10 Cal. Code Regs. section 2695.7 at p. 4, l. 44; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

DEFENSE ERROR **Compliance-to-immunity leap; Overbroad Statutory Abstraction.** Inferring Anti-SLAPP immunity and fraud disproof from regulatory timing and standards without Park or Baral analysis. Defendant invokes section 790.03 together with **10 Cal. Code Regs. section 2695.7** to argue that CSAA satisfied a **duty to investigate promptly** and issue a timely denial, and that this compliance supports characterization of the denial as **protected** pre-litigation activity (including under Aronson). The **verbatim** timing language quoted in the memorandum tracks the **regulation**, while **790.03** supplies the broader **unfair claims settlement practices** framework, particularly subdivision (h). The inferential leap is the problem: **compliance** with claim-handling norms (even if true) does **not** establish that Plaintiff's causes of action **arise from** protected **petitioning** under section 425.16, nor does it prove the **absence** of **fraud** or **unfair** practices as a matter of law at the Anti-SLAPP stage. Defendant also cites Zhang for the proposition that **790.03(h)** vi-

1 olations are **not** independently actionable in certain **UCL** configurations; that limitation **does not**
2 convert statutory claim standards into a **complete** immunity shield against all theories Plaintiff
3 pleads.

4 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s use of section 790.03 by treating
5 it as **what it is: a source of public policy and standards** for insurer conduct in the business of
6 insurance, not a **substitute** for Park gravamen analysis or for Baral’s **probability** standard. Alle-
7 gations that go to **misrepresentation, concealment, or systematic mishandling** are not **refuted**
8 by pointing to **any single** regulatory timeline. At step two, Defendant still cannot **judicially notice**
9 away disputed facts; at step one, **790.03** cannot **collapse** noncommunicative wrongs into priv-
10 ileged **communications**. The memorandum’s blend of **790.03**, **CCR 2695.7**, and Anti-SLAPP
11 **immunity** is an **Overbroad Statutory Abstraction** that moves from **regulatory compliance** to
12 **civil immunity** without the intermediate statutory and precedential steps California law requires.

14 **VIII. MASTER INDEX: AUTHORITY, DEFENSE ANALYTICAL LA-**
15 **BELS, MEMORANDUM LOCATION (DEFENDANT’S MEMORANDUM,**
16 **COURT FILE NO. 10152120)**

17 **TOA** means Table of Authorities on Defendant’s memorandum. Line numbers reset each page.
18 The first three rows reference separate court-file PDFs, not the memorandum. Shared argument
19 blocks may repeat locations across authorities.

Authority	Defense error	Memo location
Notice of Motion (court file no. 10152119; not part of Defendant’s memorandum)	Procedural overreach	pp. 2-3, ll. 5-12; p. 3, l. 16
Request for Judicial Notice (court file no. 10152117)	Misuse of judicial notice	pp. 2-4, ll. 1-28 (each page)

Authority	Defense error	Memo location
Declaration of Tyler J. O'Connell (court file no. 10152121)	Evidentiary and legal-conclusion defects	pp. 2-4, ll. 1-28 (each page)
<u>Club Members for an Honest Election v. Sierra Club</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 23; argument p. 10, ll. 10-23
<u>Fremont Reorganizing Corp. v. Faigin</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 33; argument p. 10, ll. 10-23
<u>City of Cotati v. Cashman</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 19; argument p. 10, ll. 10-23; p. 15, ll. 11-22
<u>Martinez v. Metabolife</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 9; argument p. 10, l. 24 through p. 12, l. 5
<u>Gilbert v. Sykes</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 35; argument p. 10, l. 24 through p. 12, l. 5
<u>Trinity Risk Mgmt. v. Simplified Lab. Staffing</u>	Overbroad Statutory Abstraction; Conflation of Conduct and Communication	TOA p. 4, l. 27; argument p. 10, l. 24 through p. 12, l. 5
<u>Digerati Holdings v. Young Money Entertainment</u>	Conflation of Conduct and Communication	TOA p. 3, l. 25; argument p. 10, l. 24 through p. 12, l. 5; p. 15, l. 23 through p. 16, l. 23
<u>Hunter v. CBS Broadcasting, Inc.</u>	Gravamen misidentification	TOA p. 3, l. 43; argument p. 10, l. 24 through p. 12, l. 5
<u>Church of Scientology v. Wollersheim</u>	Incomplete collateral-attack doctrine	TOA p. 3, l. 17; argument p. 10, l. 24 through p. 12, l. 5
<u>Bergstein v. Stroock & Stroock & Lavan LLP</u>	Conflation of Conduct and Communication	TOA p. 3, l. 11; argument p. 10, l. 24 through p. 12, l. 5

Authority	Defense error	Memo location
<u>Kashian v. Harriman</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 1; argument pp. 12-13, ll. 6-12; p. 13, l. 13 through p. 14, l. 4
<u>A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 5; argument pp. 12-13, ll. 6-12
<u>Adams v. Superior Court</u>	Categorical Immunity Fallacy; Conflation of Conduct and Communication	TOA p. 3, l. 7; argument p. 13, l. 13 through p. 14, l. 4
<u>Aronson v. Kinsella</u>	Conflation of Conduct and Communication	TOA p. 3, l. 9; argument pp. 12-13, ll. 6-12; p. 14, l. 5 through p. 15, l. 10
<u>Cabral v. Martins</u>	Conflation of Conduct and Communication; Overbroad Statutory Abstraction	TOA p. 3, l. 15; argument p. 13, l. 13 through p. 14, l. 4
<u>People ex rel. Fire Ins. Exchange v. Anapol</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 15; argument pp. 12-13, ll. 6-12
<u>Laker v. Bd. of Trustees</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 7; argument pp. 12-13, ll. 6-12; p. 15, l. 23 through p. 16, l. 23
<u>Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.</u>	Conflation of Step One and Step Two	TOA p. 3, l. 45; argument p. 15, ll. 11-22
<u>City of Colton v. Singletary</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 21; argument p. 14, l. 5 through p. 15, l. 10

Authority	Defense error	Memo location
<u>Graham-Sult v. Clainos</u>	Misplaced federal authority	TOA p. 3, l. 37; argument p. 14, l. 5 through p. 15, l. 10
<u>Dove Audio, Inc. v. Rosenfeld</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 27; argument p. 14, l. 5 through p. 15, l. 10
<u>Home Ins. Co. v. Zurich Ins. Co.</u>	False analogy (non sequitur)	TOA p. 3, l. 41; argument pp. 12-13, ll. 6-12
<u>Briggs v. Eden Council for Hope & Opportunity</u>	Overbroad in pari materia bridge	TOA p. 3, l. 13; argument p. 15, l. 23 through p. 16, l. 23
<u>Hagberg v. California Federal Bank</u>	Conflation of Conduct and Communication	TOA p. 3, l. 39; argument pp. 12-13, ll. 6-12; p. 15, l. 23 through p. 16, l. 23
<u>Laffer v. Levinson</u>	Overbroad privilege	TOA p. 4, l. 5; argument p. 15, l. 23 through p. 16, l. 23
<u>Pollock v. University of Southern California</u>	Categorical Immunity Fallacy	TOA p. 4, l. 17; argument p. 15, l. 23 through p. 16, l. 23
<u>L.G. v. M.B.</u>	Misapplication to facts	TOA p. 4, l. 3; argument p. 10, l. 24 through p. 12, l. 5
<u>Flatley v. Mauro</u>	Selective citation	TOA p. 3, l. 31; argument pp. 12-13, ll. 6-12
<u>F.E.V. v. City of Anaheim</u>	Collateral attack overbreadth	TOA p. 3, l. 29; argument p. 16, l. 24 through p. 17, l. 9
<u>Rico v. Nasser Bros.</u>	Collateral attack overbreadth	TOA p. 4, l. 19; argument p. 16, l. 24 through p. 17, l. 9
<u>Wouldridge v. Burns</u>	Misidentification of claim	TOA p. 4, l. 31; argument p. 16, l. 24 through p. 17, l. 9

Authority	Defense error	Memo location
<u>Singh v. Lipworth</u>	Preclusion overbreadth	TOA p. 4, l. 25; argument p. 16, l. 24 through p. 17, l. 9
<u>United States v. Throckmorton</u>	Non-California law substitution	TOA p. 4, l. 29; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Service by Medallion v. Clorox Co.</u>	Summary-judgment standard at step two	TOA p. 4, l. 21; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Orcilla v. Big Sur Lodge, Inc.</u>	Merits threshold confusion	TOA p. 4, l. 13; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Shaolian v. Safeco Ins. Co.</u>	Misapplied standing rule	TOA p. 4, l. 23; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Zhang v. Superior Court</u>	Channel error	TOA p. 4, l. 33; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Moradi-Shalal v. Fireman's Fund Ins. Companies</u>	Channel error; overread	TOA p. 4, l. 11; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
Code of Civil Procedure section 425.16	Overbroad Statutory Abstraction; step collapse	TOA p. 4, l. 40; argument p. 5, ll. 1-28; p. 6, ll. 1-28; p. 10, ll. 10-23; p. 20, ll. 1-16; throughout Part IV

Authority	Defense error	Memo location
Civil Code section 47(b)	Truncated statute; Conflation of Conduct and Communication	TOA p. 4, l. 39; argument p. 10, l. 24 through p. 12, l. 5; p. 15, l. 23 through p. 16, l. 23; <u>Notice</u> (court file no. 10152119) pp. 2-3, ll. 5-12
Business and Professions Code section 17200	Policy gloss; Channel error	TOA p. 4, l. 38; argument p. 6, ll. 1-28; pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
Insurance Code section 790.03 and 10 Cal. Code Regs. section 2695.7	Compliance-to-immunity leap; Overbroad Statutory Abstraction	TOA p. 4, ll. 41 and 44; argument pp. 12-13, ll. 6-12

End of Appendix A.

Dated: April 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Franciscus Dylan Rosario,
7624 Melody
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**DECLARATION OF PLAINTIFF
FRANCISCUS DYLAN ROSARIO IN
SUPPORT OF OPPOSITION**

Franciscus Dylan Rosario v. CSAA Insurance Exchange

Case No.: CGC-25-631802

Hearing: April 13, 2026

Executed at: San Francisco, California

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action, suing in pro per. I have personal knowledge of the facts stated below except where stated as matters of information and belief, and as to those I believe them to be true based on the reasons stated.
2. This declaration is filed in support of Plaintiff's Opposition to Defendant's Special Motion

to Strike (Anti-SLAPP) and Demurrer and is limited to facts, document authentication where stated, and responses to themes in Defendant's request for judicial notice and declaration. Legal argument appears in Plaintiff's memorandum of points and authorities and Appendix A thereto, filed concurrently herewith.

3. I am familiar with the operative pleading currently before the Court (the First Amended Complaint) and, if the Court grants leave, the proposed Second Amended Complaint offered to clarify that the gravamen of the claims targets alleged institutional failures to investigate and alleged concealment, with communications offered as corroboration.
4. I have reviewed Defendant's Memorandum of Points and Authorities in Support of Special Motion to Strike lodged in this action as court file no. 10152120, together with related defense papers identified on their face (Notice of Motion, Request for Judicial Notice, and supporting declaration).
5. Based on my review of the trial and hearing record in the underlying personal injury action and related proceedings (including transcripts and orders I have obtained or reviewed in preparing this case), I believe the following record facts are accurately stated for purposes of this motion practice; the Court may consider the cited locations if it elects to review the record:
 - 5.1. The underlying action involved a motor vehicle incident; liability and damages were contested.
 - 5.2. Materials in the record include a 911 recording in which the driver made statements about contact with a person on a bicycle; I rely on that recording and related materials as part of my fraud and concealment theory in this action.
 - 5.3. Discovery and hearing transcripts reflect production of certain materials to prior defense counsel and statements in court concerning timing of receipt of records; I rely on those events as part of my theory that relevant materials were known or available earlier than as represented in later proceedings.
 - 5.4. I suffered economic and business harms separate from the personal injury judgment in the underlying case, including lost or impaired business opportunities; the scope and proof of

damages are for later proceedings, but I have personal knowledge of efforts to pursue projects and the impact of disputed evidence handling on those efforts.

6. I dispute, as explained in Plaintiff's Evidentiary Objections to Defendant's Declaration of Tyler J. O'Connell and Request for Judicial Notice filed concurrently herewith, that Defendant's request for judicial notice may be used to prove the truth of disputed facts for purposes of the Anti-SLAPP inquiry or to collapse this fraud action into a barred "collateral attack" without the primary-rights and preclusion analysis described in Plaintiff's memorandum of points and authorities filed concurrently herewith.
7. I dispute, for the reasons stated in those objections, that paragraphs in Defendant's supporting declaration that characterize what my claims "arise from," or that state ultimate legal conclusions about Anti-SLAPP protection, are admissible for the truth of those legal conclusions.
8. I am informed of e-filing practices in this court and understand that separate electronic uploads may be required for each lead document under California Rules of Court, rules 2.100 through 2.111, and applicable vendor rules, even when related papers are offered in one filing transaction.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 13, 2026 at San Francisco, California.

Franciscus Dylan Rosario, Plaintiff in pro per

NOTICE RE LINE NUMBERS: The memorandum and Appendix A, when filed as a single instrument, may include judicial council line numbering on those pages. This declaration is filed as a separate instrument **without** line numbers, so pagination and any line grid apply only to the memorandum portion as filed.

Dated: April 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**PLAINTIFF'S EVIDENTIARY
OBJECTIONS TO DEFENDANT'S
DECLARATION OF TYLER J.
O'CONNELL AND REQUEST FOR
JUDICIAL NOTICE**

Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. OBJECTIONS TO THE DECLARATION OF TYLER J. O'CONNELL

Plaintiff objects to the following portions of the Declaration of Tyler J. O'Connell filed in support of Defendant's Special Motion to Strike:

Objection 1: Material Objected To: Paragraph 2: "Plaintiff's allegations focus on Defendant's acts... including claims investigation and litigation activity." Grounds for Objection: Improper Legal Conclusion; Improper Opinion (Evid. Code §§ 800, 803). The declarant is attempting to interpret the legal scope and gravamen of Plaintiff's pleadings, which is the ultimate legal issue for the Court to decide.

Objection 2: Material Objected To: Paragraph 3: "All the acts alleged by Plaintiff arise from

1 Defendant's exercise of its constitutional right of free speech. . ." Grounds for Objection: Improper
2 Legal Conclusion. This is the ultimate legal issue for the Court to decide in Step 1 of the Anti-
3 SLAPP analysis.

4 **Objection 3: Material Objected To:** Paragraph 5: "Plaintiff has also served a large tranche of
5 duplicative, misnumbered, burdensome, and harassing discovery requests... intended to further
6 chill and punish..." Grounds for Objection: Lack of Personal Knowledge as to Plaintiff's intent
7 (Evid. Code § 702); Speculation; Improper Opinion.

8 **II. OBJECTIONS TO DEFENDANT'S REQUEST FOR JUDICIAL NO-** 9 **TICE**

10 Plaintiff objects to Defendant's Request for Judicial Notice of the 20 documents from the underly-
11 ing action on the following grounds:

12 **Objection 4: General Objection to Truth of Hearsay Matters** While the Court may take judicial
13 notice of the existence of the underlying court records (Exhibits E-N), it may **not** take judicial
14 notice of the truth of the factual matters asserted within those documents. Herrera v. Deutsche
15 Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375. Defendant improperly attempts to
16 use the Request for Judicial Notice to implicitly argue that the underlying jury verdict establishes
17 the truth of CSAA's "no liability" position. The Court cannot accept the factual findings of the
18 prior jury as undisputed truth against Plaintiff in this distinct action for fraud and UCL violations.

19 **III. CONCLUSION**

20 Plaintiff respectfully requests that the Court sustain these evidentiary objections and strike the of-
21 fending portions of the O'Connell Declaration, and further limit the judicial notice of Defendant's
22 exhibits strictly to their existence, excluding the truth of any matters asserted therein.

23 Respectfully submitted,

24 Franciscus Dylan Rosario Plaintiff In Pro Per

Dated: April 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: Memorandum in Support / Supplemental Memorandum (non-duplicated)

(Exhibits A, F, G are in 04-DEMAND-WITH-EXHIBITS)

Exhibit	Brief Description	Page
B	Hearing Tr. pp. 29-31 (911 obtainability: Dolan Law Firm M	1
C	Hearing Tr. p. 140 (Defense subpoena to SFPD for 911/BWC/C	4
D	RT Day 8, pp. 108-110 (Abdelhalim authenticates 911)	6
E	Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged	10

EXHIBIT B

Hearing Tr. Feb 18, 2025, pp. 29-31 (911 obtainability: Dolan Law Firm May 12, 2021)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. pp. 29, 30, 31

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup testimony: Dolan Law Firm obtained 911 recording May 12, 2021; proves obtainability

Merits: Sworn testimony; supports fraud claim that CSAA could have obtained 911 before denial.

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm
2 that's dated 5-12-2021, for \$70. And, attached to that is a
3 document which is seven pages in total. So, there are six pages
4 in addition to the receipt. The receipt is number 987352. And,
5 I'll ask Defense to review these documents.

6 All right. The first question I have to Mr. Rosario is, some
7 of these exhibits -- and, I will identify the fifth page of
8 Exhibit A, the sixth page of Exhibit A -- have items that have
9 been blacked out or redacted. Can you tell me who or what was
10 involved with that redaction, or was that something that you just
11 received and copied off the disc -- the discs that you have
12 presented?

13 MR. ROSARIO: Those were redacted by the emergency services.
14 I believe that there was personally identifying information of the
15 individual or the phone numbers. You can see on F145631 they
16 redacted the anonymous phone number, as well as they redacted the
17 defendant's phone number at 145608. They approximately came in at
18 about 22 seconds apart from each other.

19 THE COURT: All right. Is there any objection to having
20 these admitted?

21 MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all,
22 this is the first -- I mean, we're just -- these were not produced
23 in discovery -- during the regular course of discovery. It
24 appears from this receipt that they were retained in 2021, so I'm
25 not sure why we're seeing them here now.

EXHIBIT C

Hearing Tr. Feb 18, 2025, p. 140 (Defense subpoena to SFPD for 911/BWC/CAD)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. p. 140

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup: defense subpoenaed SFPD for 911/BWC/CAD; proves CSAA later sought same record

Merits: Sworn testimony; implicit admission that 'concluded investigation' was incomplete.

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, April 17, 2025 Trial (RT Day 8), CGC-21-594102

Document: 2025-04-17 Trial Day 8.pdf

Pages Included: RT 8, pp. 108-110

Date: April 17, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Abdelhalim: 'Yes. That is my voice'; authenticates 911 admission; logical impossibil

Merits: Sworn trial testimony; Evid. Code 1220/1221.

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

EXHIBIT E

Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged collision; described incident)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Deposition of Subhi Abdelhalim (CSAA's insured), September 30, 2022, CGC-21-594102

Document: 034-ALL-DEPOSITIONS.pdf (Abdelhalim deposition, pp. 4-5, 17-19)

Pages Included: Deposition pp. 4-5, 17-19

Date: September 30, 2022

Court Registry: CGC-21-594102

Relevance: Insured acknowledged 'that collision'; described incident in detail; supports falsit

Merits: Sworn deposition; corroborates CSAA could have obtained insured's account before denial

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

7 _____
8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 - - 000 - -

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 **A. Correct.**

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 **A. You go -- alley is one way down from 6th. And**
7 **from there, you see the Mint building, which is -- you**
8 **know the Mint building, they used to make coin in?**

9 Q. Yes.

10 **A. You cannot go straight up. You have to turn**
11 **left and there's a stop sign on Mission. And after**
12 **that, you have to turn right on that alley to take**
13 **Mission.**

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 **A. From Mission, comes 5th Street.**

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 **A. When I get to Mission, I have to turn left on**
20 **Mission, which is -- there's a light. I remember I have**
21 **to wait on light. And slowly I went to 5th and Mission,**
22 **south.**

23 **We find another street called Howard Street.**
24 **After Howard --**

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

April 6, 2026

Author's email: ctapp@porterscott.com
toconnell@porterscott.com

VIA CERTIFIED MAIL

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

RE: ROSARIO v CSAA INSURANCE EXCHANGE, et al.
San Francisco County Superior Court, Case No. CGC-25-631802
Meet & Confer re Demurrer and Motions to Strike

Mr. Rosario:

Please accept this correspondence as an attempt to meet and confer regarding the deficiencies in your First Amended Complaint (“FAC”) against the Defendant CSAA INSURANCE EXCHANGE (“Defendant” or “CSAA”). My office represents CSAA in this action.

I understand that you do not have an attorney representing you in this case. If that changes, at any point, please make sure that I am immediately made aware, and I will then direct all correspondence through your attorney.

I also must extend to you an offer to engage in a meet and confer phone call on the topics addressed in this letter and my office’s anticipated demurrer and motions to strike (per Code Civ. Proc. §§ 436; 425.16. The deficiencies on the face of your FAC, filed on February 25, 2026, are subject to a demurrer and motions to strike pursuant to California Code of Civil Procedure §§ 430.10; and 436.

Both Causes of Action: 1) Fraud; and 2) Violations of the UCL are Legally Unsupportable against CSAA

There are several legal and factual bases for Defendant to demurrer/move to strike your FAC. Those several bases will be listed herein, with a short description of the relevance of each objection.

///

Franciscus Dylan Rosario
Rosario v CSAA Insurance Exchange, et al.
April 6, 2026
Page 2

1) Protected Litigation Conduct:

All your factual allegations against my client, CSAA, squarely target protected litigation conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and your claims against CSAA are therefore barred as a matter of law. As you know, your factual allegations target the underlying defense of your personal injury lawsuit and jury trial. Judgment in that jury trial was entered in April 2025, after the jury rendered a defense verdict. All your FAC's allegations focus on the litigation activity, conduct, and communications on the part of CSAA and its retained insurance defense counsels. This is in violation of black letter California law, shielding CSAA from such legally unsupportable and duplicative litigation.

Furthermore, your FAC's unlawful targeting of such privileged conduct justifies my clients filing a Special Motion to Strike under Code Civ. Proc. § 425.16. As you may be aware, this so-called Anti-SLAPP motion, and legal authorization for that motion, requires the recovery of attorneys' fees and costs in the event that CSAA prevails on its Anti-SLAPP motion. I assure you, my office will file an Anti-SLAPP motion, should you not withdraw these pleadings, and my client will vigorously seek recovery of its attorneys' fees and costs in defending against this lawsuit.

2) The Statute of Limitations Precludes Your Claim.

The statute of limitations for a claim under the California Unfair Competition Law (UCL), codified in Cal Bus & Prof Code § 17200, is four years. Meanwhile, the statute of limitations for fraud claims in California is three years, as provided under Cal Code Civ Proc § 338. It is also true that “[t]he cause of action... is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.”.) *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472. “To excuse failure to discover the fraud within three years after its commission, a plaintiff also must plead “facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry. To that end, a plaintiff must allege facts showing the time and surrounding circumstances of the discovery and what the discovery was.” (*Ibid.*)

Here, the FAC fails to properly allege timeliness on either the UCL claim or the fraud claim. Factually, the FAC alleges that CSAA's “Liability-Claim Denial Letter” (*FAC* ¶ 1) was false when issued, in February of 2021. (*FAC* ¶ 4). However, you proceeded to litigate the underlying case from 2021 – 2025, culminating in a jury verdict. The FAC fails to allege any “facts showing the time and surrounding circumstances of the discovery and what the discovery was.” *Cansino, supra*, 224 Cal.App.4th at 1472.

///

Franciscus Dylan Rosario
Rosario v CSAA Insurance Exchange, et al.
April 6, 2026
Page 3

3) No Standing

Mr. Rosario, you lack standing to sue CSAA. As you are well aware, CSAA was the insurance carrier for a third-party insured, Mr. Abdelhalim, whom you sued, and lost. That makes you a third party to CSAA and its counsels. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268) (emphasis added). Here, you obtained neither an assignment from, nor judgment against, the Insured, Mr. Abdelhalim. Therefore, you do not have standing to sue CSAA and this effort to do so is improper and subject to demurrer.

4) This Court has No Jurisdiction (Code of Civ. Proc., § 430.10(a).)

Code Civ. Proc. § 904.1(a) provides: that “[a]n appeal, other than in a limited civil case, is to the court of appeal,” including from “a judgment.” This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry of judgment. The entire FAC in reality is an unlawful and improper “appeal” at the Superior Court level, masquerading as a new lawsuit. This justifies demurrer.

5) Another Action Pending (Code of Civ. Proc., § 430.10(b).)

As above, your pending appeal justifies demurrer under this subdivision as well.

6) The pleading fails to allege facts sufficient to constitute any cause of action against Defendants. (Code of Civ. Proc., § 430.10(e).)

For a host of reasons, you have not alleged sufficient facts to constitute a cause of action against CSAA. For one, you have not pled fraud with the required level of “particularity.” Each element [of fraud] must be alleged with particularity.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059–1060). Your FAC falls short of this requirement. Nowhere does your FAC purport to plead the actual “misrepresentations” made by CSAA to the Court, or anyone else. In fact, all the key allegations of “misleading representations” in your pleading target PSA, not my clients.

7) The FAC “is uncertain” (Code of Civ. Proc., § 430.10(f).)

Your pleading is unintelligible and ambiguous insofar as it cannot possibly constitute a cause of action against my clients. Your true remedy is an appeal, which you have already filed. This new lawsuit is completely legally unsupportable and frivolous.

///

Franciscus Dylan Rosario
Rosario v CSAA Insurance Exchange, et al.
April 6, 2026
Page 4

8) Collateral Estoppel

“A collateral attack is an attempt to avoid the effect of a judgment or order made in some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

Here, your FAC’s entire effort is to relitigate all the same issues presented in his underlying case—including CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1); the alleged falsity of that letter (*FAC* ¶ 4); CSAA’s “Fund[ing] and Direct[ing] [of] the Defense” (*FAC* ¶ 22F); and the alleged other “False and Misleading Representations” CSAA allegedly made to the Court while maintaining its “Litigation-Stage Denial Posture.” (*FAC* ¶ 22F). All the key factual allegations against CSAA target the third-party claims denial and litigation of that denial, which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in this present FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826)

Conclusion:

Based upon the above, your First Amended Complaint (“FAC”) fails to state sufficient facts to support the cause of action contained therein. I would like to offer to conduct a telephone conversation with you to discuss your FAC. On that call, I will discuss with you in greater detail the points contained in this letter, which will also be discussed in my client’s subsequent Demurrer, Motion to Strike (Code Civ. Proc. § 436), and Special Motion to Strike (Code Civ. Proc. § 425.16).

I implore you to withdraw your pleadings and dismiss this meritless lawsuit. I understand your loss at trial was difficult for you; however, if you continue in this misguided effort, my client will seek recovery of its attorneys’ fees and costs in Striking your pleadings.

///

Franciscus Dylan Rosario
Rosario v CSAA Insurance Exchange, et al.
April 6, 2026
Page 5

I look forward to having a telephone conference to discuss the contents of this meet and confer correspondence. Please let me know as soon as possible your availability to have a conference regarding the pleading issues identified above, prior to our deadline to file a demurrer and motions to strike, which is **Monday, April 22, 2026.**

Very truly yours,

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By Chad S. Tapp
Tyler J. O'Connell

CST/TOC/mps



Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: vl turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



In the Matter Of:

ROSARIO vs ABDELHALIM, ET AL.

CGC-21-594102

HEARING

February 18, 2025



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1 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

2 IN AND FOR THE COUNTY OF SAN FRANCISCO -

3 UNLIMITED JURISDICTION

4 BEFORE THE HON. GARRETT L. WONG - DEPT. 504

5 ---oOo---

6 FRANCISCUS DYLAN ROSARIO,

7 Plaintiff,

8 vs.

Case No. CGC-21-594102

9 SUBHI ABDELHALIM, INDIVIDUALLY,
10 and DBA SONOMA LIQOUR, DOES 1 TO
50,

11 Defendants.
12 _____/

13
14
15 REPORTER'S TRANSCRIPT OF PROCEEDINGS

16 Tuesday, February 18, 2025
17
18
19
20

21 REPORTED BY:

22 SANDRA L. CARRANZA, CRR, RPR, CSR 7062

23 Job No. J12424517
24
25

A P P E A R A N C E S

APPEARING FOR THE PLAINTIFF:

IN PROPIA PERSONA
FRANCISCUS DYLAN ROSARIO
7624 Melody Drive
Rohnert Park, California 94928
soltrinox@gmail.com
victoriarosario4621@gmail.com

APPEARING FOR THE DEFENDANT:

PHILLIPS, SPALLAS & ANGSTADT LLP
BY: PRIYA D. NAVARATNASINGHAM,
ATTORNEY AT LAW
BY: ALBERTO REYNA, ATTORNEY AT LAW
560 Mission Street
San Francisco, CA 94105
(415) 278-9400

ALSO PRESENT: JEREMY M. JESSUP, DOLAN LAW FIRM
KIMBERLY LEVY, DOLAN LAW FIRM

KAREEM SOBATI, ksobati@gmail.com
VICTORIA ROSARIO

---oOo---

1 SAN FRANCISCO, CALIFORNIA

9:30 AM

2 P R O C E E D I N G S

3 - - -

4 THE COURT: All right.

5 We are on the record in the matter of Rosario
6 versus Abdelhalim, and that's San Francisco Superior
7 Court No. CGC-21-594102.

8 Appearances, please.

9 Mr. Rosario.

10 MR. ROSARIO: Franciscus Rosario. Thank you.

11 THE COURT: Who is sitting with you?

12 MR. ROSARIO: Mr. Sobati.

13 MR. SOBATI: Kareem Sobati, Your Honor.

14 MS. NAVARATNASINGHAM: Good morning, Your
15 Honor. Priya Navaratnasingham for defendant.

16 MR. REYNA: Good morning, Your Honor. Alberto
17 Reyna for defendant.

18 THE COURT: Okay. I understand we have some
19 lawyers from the Dolan firm that are present in the
20 courtroom; am I correct?

21 MR. JESSUP: Yes, Your Honor. Jeremy Jessup
22 from Dolan Law Firm.

23 MS. LEVY: Kim Levy from Dolan Law Firm.

24 THE COURT: All right. And you are here
25 pursuant to a subpoena. I have not seen the subpoena.

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

1 you issued a subpoena of which department, police
2 department or the fire department?

3 MR. ROSARIO: The San Francisco Department of
4 Emergency Management Services.

5 THE COURT: Okay. And their reply was, We
6 don't have -- what was it that you were seeking? I
7 don't have the item in front of me. I don't have the
8 response.

9 MR. ROSARIO: Mr. Sobati was the one that
10 served that subpoena.

11 MR. SOBATI: Yes. Should I tell you about that
12 on the record, Your Honor?

13 THE COURT: I'm sorry?

14 MR. SOBATI: May I tell you about the subpoena,
15 Your Honor?

16 THE COURT: Yes.

17 MR. SOBATI: We served it locally, Your Honor,
18 in person, at the SF Department of Emergency Management
19 offices at which time they were directed to communicate
20 with the Court. And then they would not -- they would
21 not be providing whatever they provide to the Court to
22 us, so we are unawares of exactly what may be or may not
23 be in your possession.

24 THE COURT: Okay. Thank you.

25 MR. SOBATI: You're welcome.

1 THE COURT: All right. I just opened an
2 envelope from the San Francisco Department of Emergency
3 Services and it's a declaration from the custodian of
4 records which indicates that they received a subpoena
5 duces tecum in this matter seeking production of the
6 following records from the department: CAD -- that's
7 CAD -- 210352080.

8 And CAD is spelled out as Computer Aided
9 Dispatch information.

10 They explain that the Department's secure
11 computer database is kept or stored for a minimum of two
12 years in accordance with the California Government Code
13 Section 26202, and they're unable to provide records
14 created prior to February 5th, 2022. I assume that the
15 incident involved occurred before 2022, given that this
16 case was filed in 2021.

17 Okay. So the question that I have is, do you
18 have the 911 audio calls, the CAD report, or the body
19 cams, Mr. Rosario?

20 MR. ROSARIO: I have copies, digital copies
21 that I downloaded from my former counsel.

22 THE COURT: Okay. I think that we'll need to
23 turn them over to defense now. To the extent that
24 there's some issue about its reliability or verify that
25 it's a true and correct copy, I think defense should at

1 least have an opportunity to look at it. I mean, I
2 don't think there's any hint or suggestion of splicing
3 or changing the items, but, Mr. Rosario, you need to
4 turn that over as soon as possible.

5 I assume that the Dolan firm does not have in
6 its possession any of these items, correct?

7 MR. JESSUP: Not on my person, Your Honor, but
8 we still retain a copy of the file as well as the
9 electronic data and, in fact, in his file with regards
10 to --

11 THE COURT: "His" being?

12 MR. JESSUP: I'm sorry. Within the --
13 Mr. Rosario's file, a copy of which was provided to him,
14 there's actually correspondence from the department,
15 police department, providing links to the body cam
16 footage, but we still have maintained possession of
17 these documents, but they were electronically sent to us
18 as well.

19 THE COURT: By?

20 MR. JESSUP: By the police department and the
21 department of emergency management.

22 THE COURT: Is it at all possible that these
23 electronic documents or these documents, that may be in
24 electronic form, may be sent directly to
25 Ms. Navaratnasingham? Because it's just --

1 MR. JESSUP: Absolutely. Well, what I'll do
2 is, I will direct my office to -- they'll be a link
3 because they're so big, and it'll be the -- I just want
4 to make sure we get it right -- all the body cam
5 footage, the 911 call, as well as the CAD report. We
6 can send to counsel, as well as plaintiff, a link that
7 they can access.

8 THE COURT: Does that work?

9 MS. NAVARATNASINGHAM: That's acceptable, yes,
10 Your Honor.

11 THE COURT: Okay. Look, unless there's some
12 issue with regard to the reliability and validity of
13 these documents, the only issue that would remain is
14 whether they are, in fact, logically relevant and
15 legally relevant in the courtroom.

16 So I would like to release counsel this
17 morning, from the Dolan firm, given their
18 representations that they're going to provide that
19 material.

20 How soon do you think you can get to it?

21 MR. JESSUP: As soon as I get back to the
22 office, I can probably get it out within 20 minutes or
23 10 minutes.

24 THE COURT: Okay. Very good.

25 So we'll have that done today, given counsel's

1 representation, and then we can address the
2 admissibility of those items later.

3 So, Mr. Rosario, please understand that in
4 terms of whether or not they're authentic or not, the
5 Court is inclined, unless there's some real concern
6 raised by the defendants, is inclined to overrule any
7 objection as to authenticity. However, there is still a
8 question about whether or not its pertinent to the case
9 either substance-wise or whether there's some other
10 policy which would prevent it from being admissible
11 under Evidence Code Section 352.

12 MR. ROSARIO: Understood, Your Honor.

13 There are several confessions by the defendant
14 there, so I believe it's absolutely --

15 THE COURT: Well, sir, confessions are not --
16 that term is not used in a civil case.

17 MR. ROSARIO: I apologize. Excited utterances
18 of fault.

19 THE COURT: If you don't understand what that
20 term -- what the legal significance of those terms are,
21 please don't use those terms.

22 MR. ROSARIO: Okay.

23 THE COURT: The Court adheres to evidentiary
24 rules very strictly. You are likely to have an
25 objection overruled if you cite the wrong objection.

1 All right. Thank you for coming in, sir.

2 MR. JESSUP: Your Honor, would you like me to
3 send or include the clerk on the e-mail to counsel?

4 THE COURT: No. I don't think that that's
5 required yet. It's an issue about admissibility.
6 They'll have to be printed out at some point for
7 purposes of keeping a good record. We don't digitally
8 retain evidence, as far as I understand, in this Court.
9 We don't digitally retain it. Goodness, I think we
10 would have warehouses to store the electronic evidence
11 as well.

12 So, in any event, I appreciate you making that
13 available, and what we'll do is, we'll just wait until
14 all the parties have the materials so we can take a look
15 at whether these documents are, in fact, admissible.

16 MR. JESSUP: Absolutely, Your Honor. I will
17 get right on it so not to delay the Court any further.

18 But I did see madam court reporter had her hand
19 up. Before I leave --

20 Yes, ma'am?

21 THE REPORTER: I need your cards, please.

22 MR. JESSUP: May I approach, Your Honor?

23 THE COURT: Yes, sir.

24 MR. JESSUP: Thank you.

25 THE COURT: Thank you for coming in this

1 morning.

2 All right. The next thing on our agenda, I
3 believe, is a motion to continue this case.

4 Mr. Rosario.

5 MR. ROSARIO: Yes, Your Honor.

6 In light of the fact that we have been having
7 difficulty getting the providence of this 911 record and
8 extreme prejudices caused in my case, I'd like to note
9 that, please, in your consideration of the continuance,
10 sir.

11 THE COURT: Okay. Well, the way your
12 discovery -- your continuance request was framed was
13 that it's two grounds. One, was an ADA request, and the
14 Court will indicate that we fielded an ADA request on
15 February 7th, 2025. We don't consider it an ex-parte
16 because there really wasn't anything that is tied to the
17 substance of the case. It's simply a procedural matter
18 which, if you want to call it that, it's an American
19 Disabilities Act accommodation, and the Court, I
20 believe, granted all the requests.

21 However, I believe defense counsel is entitled
22 to see the request and we'll make arrangements to
23 provide that to defense counsel.

24 MR. ROSARIO: Your Honor, I provided a black
25 book with the details of my medical discharge papers or

1 aftercare from the --

2 THE COURT: That's not what your request was,
3 sir. Your request was for the Court to allow you to use
4 a laptop or electronic computer here. I don't have the
5 request, so I'm working back a week or so, and I think
6 the Court's distinct recollection of this was that you
7 may use electronic equipment in the courtroom that
8 belongs to you. The Court will not supply any
9 electronic equipment to you. The Court does not have
10 the capacity to provide that kind of equipment to you.

11 Further, you asked if Mr. -- I think it was
12 Mr. Sobati, who is present today, and Mr. Keegan, who
13 was present on February 3rd, to be present to assist
14 you. I don't know if that was extended to your wife,
15 but the Court will allow those three individuals to
16 assist you.

17 And I think the other request was for frequent
18 breaks which the Court doesn't have any issue with.

19 MR. ROSARIO: Thank you, Your Honor.

20 THE COURT: But that's your ADA requests. That
21 will not be a cause for a continuance.

22 The second item which you are requesting is a
23 continuance based on a request to continue discovery.
24 I'm not quite sure what -- or continue the trial for
25 discovery, and I'm not quite sure what specifically,

1 other than this 911 recording, that you need in order to
2 proceed with your trial.

3 MR. ROSARIO: There is a number of other pieces
4 of evidence that were -- as we already established --
5 that were kind of a surprise to me such as the body
6 cams. Only had a matter of weeks. I have not been able
7 to go through them.

8 Also, we found an eyewitness that was in the
9 body cam and we've not been able to reach that
10 eyewitness to be able to bring them in. I believe that
11 has been very, very difficult. The eyewitness is in
12 Louisiana now, who saw the collision firsthand and --

13 THE COURT: Let me just interrupt you, pardon
14 me, Mr. Rosario, but your prior counsel, as represented
15 by the lawyer that was in the courtroom this morning,
16 and I don't recall his name, but he said that all this
17 material was handed over to you. This would be the body
18 cam, the 911 audio calls, the computer-aided dispatch
19 report, so I'm not quite sure what you mean by being
20 surprised by this material.

21 Now, if you received this material and you
22 discovered somehow that there was a witness, and I'm not
23 quite sure how you would find the witness unless you
24 have the material, how that is a basis for discovery --
25 for a continuance.

1 MR. ROSARIO: There's more than that, Your
2 Honor.

3 THE COURT: Go ahead. Tell me what's more
4 here, but I'm just pointing that out.

5 MR. ROSARIO: Okay. We wanted to depose the
6 witness as well as depose some of the police officers
7 who were at the scene. I have not been able to be given
8 that chance since I took over the case, and there's
9 severe prejudice to me, because there's questions that
10 need to be asked of the police officers that were not
11 asked and that are relevant, absolutely relevant to the
12 police officer's body cam. There's a lack of
13 information that was not disclosed in there.

14 Those depositions are going to be absolutely
15 critical for me to move forward and be able to try this
16 case. I was denied that opportunity because the
17 information was completely concealed from me.

18 I never received any access to any of the
19 videos or 911 tapes before the moment they had sent me a
20 hyperlink to download it, and it took me quite a while,
21 Your Honor, to go through thousands of files, and they
22 were buried very deeply. And I didn't even know that
23 there was even 911 or body cam videos until they were
24 pulled up, and I believe it was in December, and we were
25 already like days away from the MSC conference, and I

1 was completely surprised, Your Honor. I have multiple
2 witnesses that will verify this. There was no prior
3 mention and that's in this pink book, your Honor.

4 I have the evidence to show that there is no
5 prior mention whatsoever before almost mid-December of
6 me having any knowledge of the 911 records and several
7 of the details in the video, and I have not been given a
8 chance to depose those individuals, which are absolutely
9 fundamental to the causation for this case, as well as
10 witnesses who were on the scene that were not recorded
11 in the police report.

12 There's actually an eyewitness that reported to
13 the police that he saw the incident; yet, that was not
14 recorded in the police report.

15 THE COURT: Well, something just struck me.
16 You did announce you were ready on January 27th of this
17 year, you were ready for trial, so if you knew about
18 this material in December, why is it that you announced
19 that you were ready on January 27th in front of the
20 presiding judge in this court?

21 MR. ROSARIO: I made several attempts to get a
22 continuance through ex-parte. I failed to secure that,
23 and then I was told that there were no more
24 continuances. Every time I made an attempt, Your Honor,
25 I was referred to come back to you to trial. So I was

1 under the presumption that I was going to figure out how
2 to get a continuance from you due to the surprise of
3 this information.

4 THE COURT: Well, the rules of -- the local
5 rules of our court require you to seek the continuance
6 from the presiding judge, and there are various steps
7 that you must take, whether they're ex-parte or not,
8 that you must follow, and they would not send you out to
9 my department unless you announced that you were ready
10 to proceed.

11 And I'll ask defense counsel, do you remember
12 what the representation was in Department 206 when the
13 case was called?

14 MR. REYNA: Yes, Your Honor. The plaintiff --

15 THE COURT: Why don't you announce your
16 appearance, please.

17 MR. REYNA: Yes, Your Honor. Alberto Reyna on
18 behalf of defendant.

19 The plaintiff represented on January 27, which
20 would have been the first day of trial or the morning
21 thereof, that he was ready for trial to the presiding
22 judge.

23 MR. ROSARIO: I was unaware that when the judge
24 tells me there's no continuance unless there's a severe
25 situation that I can ask for another continuance.

1 Unfortunately, I had agreed to the stipulation, Your
2 Honor. That did not include that there were going to be
3 no continuances. It was handwritten in by a judge. I
4 believe the Judge East handwrote in that there's no
5 continuances allowed.

6 The stipulation I signed, Your Honor, was to
7 agree that I would -- that it would just extend because
8 the defense had a witness who was out of the country.
9 And then suddenly I'm here. Oh, great. I'm not allowed
10 this.

11 So I tried every mechanism I could to ask for a
12 continuance prior to the trial and, finally, once the
13 eve of the trial is here, I'm being forced to go into
14 that.

15 So, I mean, what do I do? If I -- I don't
16 know. If I say I'm not ready for trial, does that mean
17 they win by default? I'm not sure. So I just had to
18 essentially throw myself in the mercy of the Court to
19 try to figure out how to approach this correctly.

20 There's a lot of conditions around here that
21 not only was I surprised, my health has been
22 continuously degrading.

23 (Reporter clarification.)

24 MR. ROSARIO: My vision has been going out on
25 me, Your Honor. I'm having difficulty with my left eye

1 and it's very difficult; it's going in and out of focus.

2 THE COURT: Well, sir, the order granting
3 Mr. Abdelhalim's request for continuance was granted on
4 September 17, 2024. It was not Judge East who signed
5 off on it, but it was the prior presiding judge, Judge
6 Massullo, M-A-S-S-U-L-L-O. And it said in pertinent
7 part: It is hereby ordered the trial in this action
8 currently set for September 23rd, 2024 be continued to
9 January 27, 2025 at 9:30 a.m. in Department 206.

10 Number two: It is hereby ordered that all
11 trial-related deadlines, discovery-related deadlines,
12 including both expert and percipient witness discovery
13 will be based on the new continued trial date as ordered
14 by the Court.

15 Number three: All further requests to continue
16 the trial date must be by noticed motion. This shall be
17 the final continuance, except -- absent exceptional
18 cause.

19 And then there are instructions about how to
20 proceed with this matter and, yes, number three was
21 handwritten, but that is within the province of the
22 presiding judge.

23 So if you missed certain dates or you failed to
24 follow certain rules laid out by the Code of Civil
25 Procedure with respect to discovery, you didn't follow

1 it.

2 I don't know why -- I don't understand what the
3 exceptional cause is here that allows me to grant a
4 continuance based on an inability to look at some
5 discovery that appears to have been in your possession
6 as of December, and if there was something that you
7 discovered in December, it seems to the Court that,
8 frankly, you should have asked or moved for a
9 continuance or called opposing counsel right away to
10 say, look, I just found this material and I need
11 additional time. Will you please agree to a further
12 continuance; otherwise, I have to go into court to ask
13 for a continuance from the presiding judge.

14 And I'm going to ask Mr. Reyna what the remarks
15 were in December, if any, from Mr. Rosario regarding
16 discovery.

17 MR. REYNA: Your Honor, the Court never heard
18 his applications due to procedural issues with his
19 applications, and so each time the Court just didn't
20 hear his application requests.

21 THE COURT: Okay. So they were never
22 considered by the Court, Mr. Rosario, so I guess somehow
23 you missed some procedural guideline here or step in
24 order to get it in front of the presiding judge for a
25 continuance, so I'm not quite sure what you want me to

1 do here, since I have to follow the rules, too.

2 MR. ROSARIO: Yes, Your Honor. Well, I can
3 provide you with, in the binder, Your Honor, the
4 instances of where I had communicated with PSA law.

5 THE COURT: Who is PSA law?

6 MR. ROSARIO: The defense.

7 THE COURT: Oh, I see.

8 MR. ROSARIO: I provided a list of every single
9 communication I had with them. I'm not an attorney,
10 Your Honor, of course, I'm pro per, and I'm doing my
11 best to abide by the procedure here. And so I
12 highlighted and provided every e-mail that was ever sent
13 by myself to them, with a date and the month, as well as
14 the information that was in there.

15 And if it please Your Honor, I do need a little
16 recess. My spine is starting to hurt me right now.

17 THE COURT: Is there something in here which
18 you can point to, before we take a recess, which will
19 aid the Court in assessing what attempts you made --

20 MR. ROSARIO: Yes.

21 THE COURT: -- to request a continuance? Is
22 there a particular e-mail or date? You have it tabbed
23 by month and date.

24 MR. ROSARIO: Yeah. There was an e-mail here
25 on Friday, December 6th that was also sent, and there

1 was a mandatory settlement conference, and I know
2 they're not allowed to give me legal advice, but I
3 voiced that I did not have all of the evidence yet and
4 I --

5 THE COURT: Well, okay. So you're pointing to
6 something that you wrote on December 6th?

7 MR. ROSARIO: Yeah.

8 THE COURT: Was this the e-mail dated
9 December 6, 2024 at 9:43 a.m.?

10 MR. ROSARIO: Yes, Your Honor.

11 THE COURT: Can you point to a page? It's
12 apparently a five-page document and there are some other
13 pages that follow. Is there something that you want me
14 to look at?

15 MR. ROSARIO: The first page at the bottom,
16 that I have not been able to collect the essential
17 evidence, and I've asked -- I kept on asking in prior
18 e-mails -- I continued to ask the defense whether they
19 had knowledge of these things and they were just pretty
20 much stonewalling. They wouldn't make any
21 acknowledgement of the videos, 911 call records, and I
22 was completely surprised when we got the motion in
23 limines.

24 I was under the impression, as Dolan had
25 already testified, that they had them, and so I kept on

1 spending all this effort and time trying to figure out
2 why the defense was continuing to claim they never had
3 anything, when I was informed by my -- I guess now that
4 they have it. I presumed that Dolan had done their job,
5 and the defense continued to claim that they had never
6 had these things.

7 So I was in this kind of like catch-22 loop
8 trying to figure out why these guys keep on denying this
9 over and over and over, and then they testified under
10 penalty of perjury that they never heard about it, and
11 I'm just completely aghast that the defense continues to
12 make these claims for months. And then we get to trial
13 and they continue this game of saying, oh, we don't know
14 about anything. It's caused me so much energy and
15 effort, I'm completely worn down by trying to figure out
16 why the defense would be lying to the Court. And it's
17 caused me so much time. I didn't know what to do when
18 the defendant is being dishonest about what's been given
19 to them.

20 I'm sorry, Your Honor. It's just -- I didn't
21 know what to do. I tried to ask -- I didn't know how to
22 do this, and my attorney decided that, you know, what --
23 I didn't fit into their equation, so they wanted me
24 out -- they wanted me to settle with these guys
25 beforehand. So here I am. I'm here because they told

1 me that they didn't have any idea about it. Under
2 penalty of perjury, they said they had no idea about it.
3 They've had absolute access to that for months, and they
4 continue to deny me about that. They were provided
5 transcripts, they were provided images; transcripts were
6 provided where they actually acknowledged that their
7 defendant called 911; yet, they claimed no knowledge of
8 these things, and I didn't know what to do when somebody
9 is flat-out lying to my face.

10 I'm extremely upset. It's caused severe trauma
11 and stress to me to try to figure out why a law firm,
12 including this backing of AAA, would be continuously
13 lying over and over and not -- it's upsetting and it's
14 caused me everything.

15 I have not been able to do this. I don't know
16 how to ask for a continuance when the defense just
17 flat-out denies something, and I know this is how their
18 tactics are. It's obvious. But you know what the thing
19 is, it's not fair to me. The amount of effort I've had
20 to do to try to figure out why they continue to say that
21 they lack something. I've spent hours and hours of time
22 in trying to figure out, how do I force them to
23 acknowledge it before trial, and here we are at the
24 trial, and I spent all my time just trying to even get
25 the most basic piece of information on the table, and

1 they continue to deny it. Under penalty of perjury,
2 they continue to say they had no knowledge of it.

3 And what am I supposed to do? I can't control
4 somebody else's statements. I don't know what to do in
5 the face of something like that, Your Honor, when you
6 believe that we're being, you know -- their candor to
7 the tribunal saying that we're supposed to come forward
8 and be honest about what we know. And when somebody
9 says we don't have it, I start scrambling to try to
10 figure out why they don't have this.

11 And Dolan is not communicating with me because
12 they wanted me to settle. These guys are denying they
13 even had it. I spent all this effort, time, and money
14 and energy trying to sort that out. That consumed my
15 time, Your Honor, just the simple fact of causation.
16 And they denied it all the way to this point. You know,
17 whether that's their mechanism of wearing a person down,
18 it's not fair to me.

19 THE COURT: Okay. We are going to take a
20 15-minute break. We're going to allow defense counsel
21 to review the materials that you submitted to the Court,
22 specifically the December 6th, 2024 e-mail.

23 I think one of the questions I have for defense
24 counsel is, if there are depositions where these
25 materials were shown, did that raise any question in

1 your mind as to their pertinence? He certainly thinks
2 that they're relevant to the proceeding. I don't know
3 if they are or not.

4 The question is whether or not there was an
5 accident that was caused by their client and so forth,
6 whether that extends to his injuries and so forth.

7 So I haven't allowed you to say very much, or
8 rather, you haven't said very much so far, but I would
9 like for you to address those issues since Mr. Rosario
10 has made a number of accusations which apparently impugn
11 your integrity and I'd like to hear some response from
12 you.

13 Okay. So we'll be back at 10:30. Thank you.

14 (Recess taken.)

15 THE COURT: We're back on the record in the
16 matter of Rosario versus Subhi Abdelhalim, and counsel
17 is present for defendant, and Mr. Rosario is present
18 with Mr. Sobati.

19 All right. So I wanted to give either
20 Mr. Reyna or Ms. Navaratnasingham an opportunity to
21 respond to the remarks by Mr. Rosario. This is all in
22 the context of a motion to continue by plaintiff.

23 MS. NAVARATNASINGHAM: Yes, thank you, Your
24 Honor.

25 Your Honor, yes, we went through and reviewed

1 this December 6th e-mail that Mr. Rosario has referred
2 to and the e-mail is pretty consistent with, you know,
3 our motion in limine.

4 The e-mail has general statements of AAA's
5 tactics to delay the matter and our tactics to delay the
6 matter. I don't see anything specific in this e-mail
7 with reference to the 911 calls, and I don't see any
8 reference in here to a request for a continuance, number
9 one.

10 Number two, with reference to his allegations
11 of us lying, I'm not -- we did not -- so our motion in
12 limine to exclude the 911 call and there was, like, a
13 call statement or a call log was very specific to those
14 two items, and I am representing to this Court that we
15 did not have those two items until the day of the MSC
16 and those items were produced in connection with the
17 settlement to the settlement officer.

18 Now, if Mr. Jessup, who was here this morning,
19 his prior defense counsel, said that he produced those
20 links, okay, and he's going to produce those links to
21 me. I believe this Court, when you granted our motion
22 in limine, you did so without prejudice subject to that
23 discovery being produced.

24 And here again today the Court ordered
25 Mr. Jessup to provide me with the links, and I believe

1 you cured Mr. Rosario's concern. There's no prejudice
2 here.

3 I have -- I'm going to get the links presumably
4 today for the 911 call, and so I believe this Court has
5 already cured that concern and there is no prejudice to
6 Mr. Rosario on that end.

7 We also reviewed the deposition transcript.
8 Again, we were not counsel when Mr. Rosario was deposed,
9 but we reviewed the deposition transcript very quickly,
10 Your Honor, and there were no exhibits attached to the
11 deposition transcript.

12 The only reference to a 911 call is Mr. Rosario
13 testifying that the police arrived after 911 was called
14 by my client.

15 During the deposition, it appears that
16 Mr. Rosario produced some photographs and pay stubs.
17 That's the extent of that.

18 The responding officer has been deposed, Your
19 Honor, by Mr. Dolan's office -- or excuse me -- yes,
20 Mr. Dolan's office. The officer who prepared the
21 traffic collision report has been deposed. Mr. Dolan
22 was present at that deposition. Again, the exhibits to
23 that deposition were the traffic collision report and
24 some -- a photograph of the scene.

25 The traffic collision report, which we also

1 quickly reviewed, only makes references to photographs,
2 which we have. It does not reference a 911 call or a
3 call log and that is the -- that was the subject of our
4 motions in limine, but, again, I'm not sure why we are
5 still discussing this because I believe the Court cured
6 Mr. Rosario's concern of prejudice because he's -- he's
7 allowed counsel to produce it to me. And if there's
8 issues regarding relevance and all that, we bring it up,
9 you know, later on down the road, but I do not believe
10 that's grounds for continuance.

11 THE COURT: Okay.

12 Mr. Rosario.

13 MR. ROSARIO: Yeah, I disagree. You know, it's
14 convenient that they didn't acknowledge it, but the
15 thing is that there was multiple other pieces of
16 information, just not just the 911, for which I'm asking
17 for the continuance, your Honor. The 911 was the
18 predominant one that they claimed that they had no
19 knowledge of, even though the defense had cited multiple
20 times that he had called 911.

21 They even sent me an image of the defendant's
22 phone records and this was absolutely under contention,
23 and then they went on ahead to say, oh, we have no
24 knowledge of it. You know, I can't imagine that they
25 didn't read their own client's deposition. He was

1 deposed and he mentioned this. So this information has
2 always been available to them.

3 It cost a huge amount of time for me to try and
4 figure out how to compel people to the admission of the
5 911 record. This denial and this delay is very
6 convenient for them to try and say that, oh, it's been
7 resolved, on that particular issue maybe but not on the
8 rest of the other discovery that's still outstanding
9 that they have also still denied.

10 THE COURT: Well, I don't understand. If they
11 are saying that there's no issue with the
12 authenticity -- let's assume that they say there's no
13 issue with the authenticity of these items and you offer
14 them in trial and they object on some other grounds that
15 they're not relevant or something to that effect. How
16 are you harmed?

17 I don't understand where the prejudice is that
18 would be the basis for your continuance. You have the
19 materials. You can offer them in trial. And they have
20 a right to object on whatever legal grounds they believe
21 is permissible, and the Court will rule on whether or
22 not that objection is to be sustained or overruled.

23 So what's the harm here that would be the
24 reason for a continuance? I don't understand. Or what
25 am I missing here?

1 MR. ROSARIO: There are -- there are specific
2 witnesses that have been denied to me and access to
3 depositions, and without being able to have a little bit
4 more time to depose these individuals, I'm not -- I'm
5 going to be extremely prejudiced to be able to rely on
6 their testimony or impeach them. And I was only given
7 the files, Your Honor, literally, Here. Download it
8 yourself. You know --

9 THE COURT: Who said that to you?

10 MR. ROSARIO: Oh, Dolan law firm, my former
11 counsel, Your Honor.

12 THE COURT: But wait a second --

13 MR. ROSARIO: I got access to that, Your Honor,
14 and when you find something, you immediately tell the
15 other counsel, right? And they're like, oh, it's too
16 late to give it to us. And I'm, well, you know, that's
17 what you call surprise. It's the prejudice. I didn't
18 know these things. I have not been able to prepare any
19 kind of -- my case against this information.

20 Dolan admits that I didn't have that. They
21 only gave it to me when they were -- when they were
22 substituted as my counsel. I have not had adequate time
23 to even look at the data or even do a deposition of the
24 witnesses that were there. If that's not the definition
25 of prejudice due to surprise, I don't know.

1 MS. NAVARATNASINGHAM: Your Honor, may I
2 quickly respond to that?

3 Mr. Rosario has been pro per since August of
4 2024. And I believe that the last time that we were --
5 at one of the hearings that would have been before Your
6 Honor, I believe he said he only opened the file in
7 December of 2024. That's not cause for a continuance
8 here. You know, discovery is closed. This case has
9 been pending for almost five years. He's been pro per
10 since August of 2024. Presumably Mr. Dolan gave him the
11 file at that point, and, again, I'm not sure -- as Your
12 Honor said, I'm not sure what prejudice there is. Your
13 Honor is allowing him to try to introduce the 911 record
14 for a call recording, so ...

15 MR. ROSARIO: Discovery actually was open until
16 the 27th of December, not the MSC.

17 MS. NAVARATNASINGHAM: Correct. But discovery
18 is presently closed. That's what I'm saying.

19 MR. ROSARIO: Right. So when somebody finds
20 something in mid-December, believe it or not, Your
21 Honor, and they say, hey, let's have a meet-and-confer
22 about this, and the defense denies and refuses to
23 communicate with you about it or even acknowledge it,
24 what do you do? Which I tried to establish that, hey,
25 this information that you guys have, too, we are going

1 to talk about this during the trial. Nothing. And when
2 we get here, they want to block it. So I'm at this
3 place where I'm saying, okay, but you're right about me
4 having the files transferred to me in August. I'm not
5 an attorney. I was homeless. I lost my work and my
6 home because of my inability to work. I did my best,
7 and then the moment I found it, Your Honor, I
8 communicated saying, here, there's a 911 record. But
9 that does not mean that I was -- you know, had ample
10 time to look through that. Those files were only
11 located -- I can share the files, tree structure; they
12 are down about 12 levels, and I had to go through every
13 single one. There were thousands of records. So,
14 again, this is not my fault. But the Court would
15 understand if you found something in your garage like a
16 bloody knife and somebody from the neighborhood had been
17 killed, you're like, whoa, wait, hold on a second.

18 So I'm trying to find out how I can make sure
19 that I have the appropriate time now that we are here at
20 this point. I knew that the -- I had to triage which
21 are the most important pieces. There was a lot of
22 discovery, Your Honor, that's very important to my case.

23 The defense has asked for numerous
24 continuances. They even went as far as me waiting three
25 months for one of their witnesses. The fact that I can

1 just have a short time just to get the simple basics to
2 go forward, it absolutely serves the defense to be able
3 to press the matter and try to force it into trial when
4 I don't have the information. And, unfortunately, I
5 stipulated, out of kindness, that they would be
6 available and get one of their witnesses back that they
7 said was so important.

8 I'm feeling that not only my medical condition
9 and also the fact of the surprise warrants the ability
10 for me to just get a short time to be able to depose
11 these individuals. As you already know, I'm very
12 proactive in that. I took it upon myself to subpoena
13 Dolan to make sure that the records were going to be
14 brought and be available, and I ensured and guaranteed
15 to the Court that I'm going to approach it with the same
16 gusto. I'm not looking for a long continuance. I'm
17 just looking for enough time, Your Honor, to reopen
18 discovery and make sure that the pertinent relevant --
19 the information and the evidence that's relevant gets --
20 can be put in front of the jury.

21 This absolutely serves the defense, to block
22 it, because, hey, Mr. Rosario just got these things,
23 he's very surprised about it; let's go to trial before
24 he gets time to get his feet under him.

25 THE COURT: Well, again, I don't see the

1 defense, as you put it, blocking this information. You
2 are welcome to try and have these items admitted at
3 trial.

4 MR. ROSARIO: Okay.

5 THE COURT: It's subject to basic rules of
6 evidence, so I don't see that as an issue, and you
7 haven't explained to me how you're prejudiced other than
8 to say, well, I got these materials in December and
9 there appears to be something in those materials that I
10 want to investigate further.

11 Had that been the case, I think the retort by
12 defense counsel is, well, then you need to file a
13 written continuance and have it heard by the presiding
14 judge in Department 206. It doesn't sound like you did
15 that. That's the rule.

16 MR. ROSARIO: That's not -- actually, on
17 December 11, I believe, also, I had notified them that I
18 was looking at -- deeper into the video cameras.

19 THE COURT: Who would have --

20 MR. ROSARIO: The defense, the PSA law. I
21 notified PSA law that I was looking deeper into the
22 video cameras after locating an eyewitness who testified
23 during the video camera, and unfortunately, I went
24 multiple times to the police department to try and
25 adjust what happened, because I found a second audio

1 record that testifies that it was a hit-and-run, and I
2 kept on going back to the police department trying to
3 adjust that, you know, and I wasn't able to get any --
4 it's called a -- it's not an amendment, but it's a --
5 there's an original police record and they accepted more
6 information, because they had not known about that, but
7 they modified the police record, but they did not modify
8 it to show that there was a 911 call.

9 I was trying to make a statement to the police
10 about what -- that the crime that actually had been
11 committed, the hit-and-run. The man hit me with his
12 truck, drove off, walked back, and offered me money.
13 None of that made it into the record, and I have been
14 trying -- my attorney had said, Hey, you had an
15 opportunity to do that. And I said, oh, you mean, I can
16 actually alter a police record?

17 He said, yeah, you just have to go down and
18 make a statement. I actually have multiple -- multiple
19 times I actually went with Mr. Sobati, Mr. Keegan, to
20 the police department to establish that there was more
21 information that needed to be disclosed as well as try
22 to communicate with the police officers.

23 THE COURT: Did you go to Department 206 to
24 make a request?

25 THE WITNESS: Yes.

1 THE COURT: By way of writing?

2 THE WITNESS: Yes. I made ex-partes.

3 THE COURT: You made ex-partes, and I assume by
4 doing the ex-partes, you had to notify the Phillips law
5 firm?

6 MR. ROSARIO: Yes.

7 THE COURT: And you did that, correct?

8 MR. ROSARIO: Yes, Your Honor. They were given
9 multiple proof of services and all those things were
10 notified to them.

11 THE COURT: What did Department 206 tell you?

12 MR. ROSARIO: I didn't know the procedure very
13 well, so I continued to fail on getting one piece or
14 paper or something like that. Finally, we did get to
15 one, and Judge Quinn said, You're really close to your
16 trial. You should meet up with your -- with the judge
17 that's going to be presiding over your case.

18 THE COURT: Okay. And then your trial date was
19 on January 27, 2025?

20 MR. ROSARIO: Yes, Your Honor.

21 THE COURT: And you represented at that time
22 that you were ready for trial; am I correct? At least
23 that's what Mr. Reyna says.

24 MR. ROSARIO: Was I ready for trial?

25 THE COURT: Yeah.

1 MR. ROSARIO: Would not being ready for trial
2 mean that I'd give it up?

3 THE COURT: No.

4 MR. ROSARIO: Oh, I had no idea about that. I
5 didn't know I had a choice. I was told that there was
6 no continuances, and I was forced to come here even
7 whether I was ready or not. I had no idea.

8 I'm not a -- they didn't say, hey, by the way,
9 if you don't have your evidence, you can ask for another
10 continuance even though the judge says you can't ask for
11 another continuance. I was, like -- I thought I was
12 forced into the trial.

13 If I had known that there was a way that I
14 could say, hey, I am not ready yet, I need more time,
15 I'm sure the defense would have probably filed for an
16 objection. They want me to go into trial without my
17 evidence. Absolutely. It's absolutely to their
18 advantage.

19 THE COURT: They're not saying -- they're not
20 preventing you from having the body cam, the 911 audio
21 calls, and the CAD report --

22 MR. ROSARIO: Okay.

23 THE COURT: -- being considered for admission.
24 All right. They're not questioning the authenticity in
25 the documents.

1 The question for admissibility, the second
2 step, is to determine whether they are logically
3 relevant; that is, they touch upon some issue in the
4 courtroom, in the trial, that's tied to your complaint,
5 and if not, then the Court may very well say the
6 objection is sustained.

7 MR. ROSARIO: Your Honor --

8 THE COURT: If not -- if it's related, and I
9 will -- it's for me to be that gatekeeper for evidence
10 in this case.

11 MR. ROSARIO: Your Honor, I'm going to be
12 extremely explicit. I found the evidence of two new
13 witnesses in December, one who saw me get hit with the
14 truck, another one who saw the hit-and-run. And I have
15 not had time to get them to depose them or get in
16 contact with them because I found them in mid-December.
17 I had less than 30 days and discovery closed, and they
18 denied -- started denying that the 911 even existed, so
19 I'm absolutely prejudiced against being able to get the
20 witnesses who saw me literally almost get killed in the
21 street by the defendant, and the other person who drove
22 by seeing the defendant flee from the scene.

23 So I'm not going to say, anything other than
24 that there were eyewitnesses, I discovered them in
25 December, and I'm asking for a continuance to find those

1 people and depose them, please, Your Honor.

2 THE COURT: Okay. Any final comments?

3 MS. NAVARATNASINGHAM: I had two comments, Your
4 Honor, and now I'm forgetting them because so much has
5 been said.

6 Well, I mean, we oppose the continuance. He's
7 been pro per since August. He's had the file since
8 August. According to Mr. Jessup, the body cam footage,
9 the 911 call, all this stuff has been in his possession
10 since August.

11 The motion in limine that I filed was saying
12 that the 911 call was not produced in the normal course
13 of discovery. Your Honor has cured that concern of his,
14 and you are allowing him to present that and subject to
15 relevance and other objections.

16 You know, the identification of late witnesses
17 is not grounds for a continuance. You are free to call
18 a witness to testify at trial. You don't necessarily
19 have to take a deposition. You know, you can list
20 people on your witness list. None of this is cause for
21 a continuance.

22 And so we, of course, object and would like to
23 select a trial date.

24 THE COURT: Very well.

25 Anything else, Mr. Rosario?

1 MR. ROSARIO: Yes. Because of the
2 inconsistencies of the police report that did not show
3 that, I guess I'm going to have to cross-examine the
4 officer who failed to put the eyewitnesses in there
5 during trial; is that correct?

6 THE COURT: Yes, you may do so.

7 MR. ROSARIO: Okay. Well, then, are there
8 other pieces that I have not been --

9 I believe medical records and --

10 MR. SOBATI: We have multiple --

11 THE COURT: Let's stick to the motion for
12 continuance first.

13 The admissibility of anything else is the
14 second consideration for documents, and whether they're
15 authentic or not, that's the second -- a different kind
16 of concern for the Court.

17 The Court is only concerned -- only interested
18 at this time in the grounds for the continuance. As far
19 as I understand it, you are requesting a continuance
20 based on the issue with respect to your medical
21 condition which the Court has granted in whole. There's
22 nothing here to prevent you -- based on what the Court
23 understands, we'll accommodate you completely, other
24 than to say that any electronic equipment you bring will
25 be yours, not the Court's. The Court does not have the

1 ability to provide you with laptops, printers, and so
2 forth.

3 Second, you are asking the Court for a
4 continuance based on what you have discovered within
5 your own materials, which you, apparently, have had
6 since August of 2024, and that includes two witnesses
7 who may have said something or saw something with regard
8 to your accident. You do not have a name and you have
9 been unable to get the name, but more importantly, the
10 discovery deadlines -- trial-related deadlines,
11 discovery-related deadlines, including percipient
12 witness discovery, expert discovery, having been based
13 on the January 27 trial date and that is contained in an
14 order that was issued granting the continuance by Judge
15 Massullo --

16 MR. ROSARIO: Your Honor, may I ask one
17 question here?

18 THE COURT: Not yet.

19 MR. ROSARIO: Sorry.

20 THE COURT: -- on September 17, 2024. And if
21 you discovered this material in December, you may have
22 sought relief from the presiding judge, but it appears
23 that -- how many efforts you made -- it was rejected by
24 Department 206, the presiding judge's courtroom or staff
25 or judge. Specifically the judge said that you did not

1 handle the matter procedurally. Correct?

2 Correct?

3 MR. ROSARIO: Those -- that last statement is
4 correct, Your Honor. The discovery of the -- of what my
5 attorney handed to me in August, the files, just like
6 President Joe Biden had a bunch of files when he was
7 president, or Donald Trump when he went home. He didn't
8 know there was stuff in the box and when he found it
9 months and months later, he then was aware of those
10 things. This is a common thing when somebody gets
11 something handed to them. That type of discovery, it
12 really changed the entire understanding of my case and
13 being press- -- pushed into this knowing that the judge
14 had said no more continuances.

15 What I believe would be fair, you know, is that
16 at least up to two to three weeks for me to be able to
17 prepare the proper information. I've been literally
18 running on -- like on a gerbil's cage trying to figure
19 out how to get this basic download done, let alone the
20 other pieces of information that I found when I got that
21 from my attorney, and that's obviously something I can
22 take up with my attorney in a separate matter.

23 The fact that they concealed those things from
24 me -- I mean, the fact that I wasn't even told that
25 there was eyewitnesses and confessions inside 911 calls

1 for four years, that's pretty disturbing. You can
2 imagine how you feel when you get to a trial, your
3 attorney dumps you if you don't take a settlement, and
4 instead you find, quite literally, a smoking gun like a
5 murder weapon.

6 So at this point right now I am going to
7 continue to state it, that I'm absolutely prejudiced.
8 This is going on the record. So when somebody finds,
9 quite literally, this type of information, they haven't
10 even been able to prepare a case about that, let alone
11 be able to get it together to be able to depose
12 people -- Your Honor, I found it literally days before
13 discovery closed. So yes, thank you very much for the
14 accommodations on the medical, but the foundation from
15 which somebody is surprised if they find murder weapons
16 or these types of things out of surprise, just like
17 Donald Trump said, Hey, I didn't know what's in those
18 boxes, you don't have the time to go through it.

19 THE COURT: Very well. Anything else?

20 MR. ROSARIO: Thank you, Your Honor. I
21 appreciate your consideration.

22 THE COURT: All right. Thank you.

23 Anything else?

24 MS. NAVARATNASINGHAM: No, Your Honor.

25 THE COURT: All right. The motion to continue

1 is denied.

2 An in propria persona litigant is held to the
3 same rules of procedure as an attorney. The case is
4 entitled Burnete, B-U-R-N-E-T-E, versus La Casa Dana,
5 D-A-N-A, Apartments, a 2007 decision, 148 Cal.App.4th,
6 1262, for the pincite of 1267. Further,
7 self-represented litigants are held to the same
8 standards as attorneys and must comply with the rules of
9 civil procedure.

10 Kobayashi, K-O-B-A-Y-A-S-H-I, versus Superior
11 Court, 2009 decision, 175 Cal.App.4th 536-543.

12 And finally, "A doctrine generally requiring or
13 permitting exceptional treatment of parties who
14 represent themselves would lead to a quagmire in the
15 trial courts. It would be unfair to the other parties
16 to litigation." And that is a quote from Rappleyea,
17 R-A-P-P-L-E-Y-E-A, versus Campbell, 1994 decision
18 8 Cal.4th 975 with a pincite of 984-985.

19 The Court does not find in this instance that
20 there's sufficient grounds to grant a continuance.

21 The Court does not find that surprise under 473
22 of the CCP is a sufficient basis, given the facts that
23 have been discussed this morning with respect to the
24 basis for a continuance.

25 Again, on those two requests the motion to

1 continue is denied.

2 The Court will further point out that the Court
3 is not preventing plaintiff from seeking to have
4 admitted the items that he is concerned about and
5 expressed several remarks about a body cam, 911 audio
6 calls, a computer-aided dispatch report, which,
7 apparently, were provided to him in August when he
8 transitioned from Mr. Dolan's office to his in propria
9 persona status.

10 The Court is not, as he would frame it,
11 blocking him from seeking the admission of any of these
12 items unless there's some concern about the authenticity
13 of these items.

14 The Court is willing, based on the
15 representation of Mr. Jessup, J-E-S-S-U-P, of the Dolan
16 office to allow an agreement for authentication here
17 subject to some unexpected claim about the nature of
18 whatever is being submitted, and that applies to many of
19 the -- in fact, all of the items I just mentioned.

20 Now, with respect to medical records, the Court
21 will address those in a moment.

22 But in any event, the Court is not blocking
23 defendant -- or, rather, plaintiff from the admission,
24 nor is it blocking defendant from using these documents
25 if they choose to have them admitted in the courtroom.

1 So I don't find any prejudice with respect to
2 defendant in this matter. He's essentially -- he
3 essentially missed the discovery deadline and he's not
4 executed his request ex-parte or otherwise, written, as
5 required by the local rules and by the code to obtain
6 a continuance for good cause.

7 Very well.

8 MS. NAVARATNASINGHAM: For the record, I think
9 you said "defendant" but you meant "plaintiff."

10 THE COURT: I meant plaintiff. I'm sorry.

11 MS. NAVARATNASINGHAM: Thank you.

12 THE COURT: I did mean plaintiff's motion to
13 continue is denied for the reasons expressed by the
14 Court.

15 Very well. There's some other things that we
16 have to take up. There's the balance of the motions in
17 limine and also there's some issue with regard to
18 medical reports which have been presented to the Court
19 this morning. I've not seen those medical reports.

20 And is there some issue? And I have no idea
21 what defense has to say about these medical reports
22 other than they're there, except we have no expert
23 witnesses to talk about them, even if they were
24 admitted. It would require some testimony about the
25 nature of those documents.

1 I'm not saying I'm going to admit them, but
2 assuming they were admitted, then we have no one to, at
3 this point, to give an opinion about those medical
4 records at least from plaintiff. That has to be
5 established as a basic proof of each cause of action
6 that plaintiff seeks to prove in this case.

7 MR. ROSARIO: Thank you for the clarification,
8 Your Honor.

9 THE COURT: So to the extent that there are
10 medical records here, we'll just wait until trial. If
11 you want to seek to have them admitted, then you've got
12 to meet all the proper steps for admission of each one
13 of these items. That's the way I work it. That
14 doesn't -- it applies to pro pers and to any party who
15 appears in front of me. You've gotta show that these
16 are documents or items that are what they are, otherwise
17 authentic, and then you've gotta show that they are
18 pertinent or relevant to the case either the substance
19 of your issues, and it also has to meet the threshold of
20 legal relevance, which means that if it becomes
21 cumulative or unnecessarily prejudicial under Evidence
22 Code Section 352, the Court will, upon the objection of
23 counsel, exclude it, unless the Court believes that too
24 much time has been spent on a particular piece of
25 evidence which the Court deems is unnecessary. Okay.

1 We have motions in limine in front of us.

2 MR. ROSARIO: Your Honor, one moment.

3 THE COURT: Sure.

4 MR. ROSARIO: There was an opposition to my
5 motion for continuance based upon the fact that they
6 claim there was no evidence of my medical things.

7 Are you saying that this information that I
8 collected over the last couple of weeks from my medical
9 appointments -- is that outside of the discovery still
10 and so it would have to be admitted again? In order to
11 get that information in, all the records that I have
12 just provided to you, Your Honor, in the black book, in
13 the first section which includes all of my medical
14 records, the information that the doctors have provided,
15 and we've disclosed to the Court, the most recent,
16 there's no -- none of that information -- I've gone
17 ahead and included the after-visit summary --
18 after-visit summaries for the defense, but we did not
19 include the actual doctor's notes because those are
20 HIPAA and are my private notes.

21 Unless discovery is reopened, Your Honor, they
22 don't have access to that, but also at the same time,
23 some of this information is pertinent to the case
24 because -- well, it's the result of the injuries.

25 THE COURT: Well, are you saying this was

1 attached as an exhibit to your motion to continue?

2 MR. ROSARIO: No. They were provided because
3 they're my personal records. Your Honor had asked that
4 I make sure that I provide to you good cause for why I
5 was -- why I wasn't able to make it in the last two
6 appearances, and I provided those to you directly.

7 The defense had claimed that I had no reason
8 for it, but you said you granted that, that there was
9 good cause. But does that mean that that medical data
10 would then be privy to have to be resubmitted under a
11 discovery again in order for them to be able to access
12 that? Because it's not available to them yet, this new
13 evidence, which has to do with my loss of my eye vision
14 and the ongoing -- there are several things in there.

15 THE COURT: You mean since January 27, 2025?

16 MR. ROSARIO: Yes, Your Honor. There's new
17 evidence that was brought up here that was found by the
18 doctors, and that evidence -- before we start talking
19 about all the other motion in limines, the thing is that
20 that new evidence has caused -- would be absolutely
21 relevant to the case. It's the compound of things like
22 the brain damage and other things that has come up, and
23 so it would be fair for the defense to be able to
24 have -- you know, to observe that and look at that and
25 be able to get their own experts to determine whether

1 they think it's relevant.

2 Because right now, my doctors are already
3 feeling that it's relevant to the case, but, you know,
4 this is where we're at. We're at this impasse. It's
5 unfortunate that this happened when the trial started.
6 My health deteriorated quickly. I was under so much
7 stress. I was trying to get the 911 data, with the
8 defense denying its existence took a toll on me.

9 So I just want to know, what do we do with this
10 new medical evidence? The doctor said that they found,
11 you know, advanced deterioration and things like that.
12 What do we do? Do we pause to get that in? Do we
13 reopen discovery? Whatever pleases the Court, but it's
14 absolutely relevant.

15 THE COURT: Ms. Navaratnasingham.

16 MS. NAVARATNASINGHAM: Yes. From the defense's
17 perspective, the medical records of any alleged brain
18 damage is not relevant to our case because the Court
19 sort of granted a motion in limine excluding the
20 plaintiff from offering testimony or argument about a
21 traumatic brain injury or brain injury.

22 The medical records, my understanding was that
23 they were being produced in connection with the request
24 for the continuance of the trial. However, I believe
25 that plaintiff requested accommodations which this Court

1 is meeting all of his accommodation requests, and so,
2 once again, I don't think these medical records are
3 relevant.

4 I'm not sure what purpose Mr. Rosario is using
5 them for, but I think this has already been adjudicated
6 by this Court by granting him all of the requests for
7 his accommodations.

8 MR. ROSARIO: Because these are sealed medical
9 evidence is not available to them right now, Your Honor.

10 If we can put this aside, talking about the
11 medical, until you review what the doctors have said and
12 determine whether you feel it's something that would be
13 admissible because, you know, this is my personal
14 medical stuff. Discovery is closed. And now we are at
15 this place where they're saying it's not relevant. My
16 actual doctors are saying it's the compound effect of me
17 being struck and almost killed by a truck. So they're
18 saying it's not; my doctor saying it is.

19 And I provided them for you to review so that
20 Your Honor would be able to determine that and say,
21 Mr. Rosario, you should probably have discovery reopened
22 in order to get that evidence in; that way it can be
23 admitted. It's up to you, Your Honor. But the doctors
24 are saying that it is related to my injuries that I
25 incurred.

1 THE COURT: Well, the general rule is if you
2 have placed the matter of your medical -- of your
3 physical injury at issue, then the defense may have
4 access to those medical records. I mean, you
5 essentially waived your privilege.

6 MR. ROSARIO: They just don't have access to
7 the doctor's notes. They have access to the fact that I
8 went to the doctor and they have access to the doctor
9 gave me a referral, but they are not able to see what
10 the doctors are saying.

11 THE COURT: Right. That's based on privilege?

12 MR. ROSARIO: Correct.

13 THE COURT: Okay. So then the question is, if
14 you put it in as relating to your damages, then they're
15 entitled to see that information. You waived your
16 privilege. I'm trying to find the Evidence Code
17 section. It eludes me right offhand.

18 MR. ROSARIO: Your Honor, would knowledge of
19 going to a doctor mean that you're disclosing what's
20 going on inside the doctor's office, your medical
21 information, Your Honor?

22 THE COURT: Only if you put it in play. As
23 someone would put it out in the street --

24 MR. ROSARIO: Someone, yeah --

25 THE COURT: -- you put it in play. If you put

1 that issue in play, then, of course, they have a right
2 to evaluate whatever you're putting in play before the
3 jury.

4 MR. ROSARIO: But that would also mean that
5 discovery is closed. How could I put something forward
6 and put it in play but also -- so they can use it? So
7 they can selectively choose what goes in and out?

8 THE COURT: No, sir. You -- okay. First of
9 all, there is -- under Evidence Code Section 996, there
10 is no privilege under the Evidence Code as to a
11 communication relevant to an issue concerning the
12 condition of a patient if such issue has been tendered
13 by, A, the patient; B, any party claiming through or
14 under the patient; C, any party claiming as a
15 beneficiary of the patient through a contract in which
16 the patient is or was a party; and, finally, the
17 plaintiff in an action brought by Section 376 or 377 of
18 the Code of Civil Procedure for damages for the injury
19 or death of the patient.

20 The first three don't apply. You are the
21 patient, and under 996, subdivision A of the Evidence
22 Code, that section provides, in pertinent part, that
23 there is no privilege.

24 So if you don't put it out there, they don't
25 have access to that material.

1 Secondly, the Court has ruled already that you
2 are precluded from -- because you did not follow the
3 Code of Civil Procedure with regard to your exchange of
4 expert witnesses or even non-designated witnesses -- let
5 me rephrase it.

6 Whether it's designated or non-designated
7 expert witnesses, you didn't follow the rules for that.
8 There was an exchange, I think in mid-December, and that
9 was not followed.

10 When you do that, then everybody has an
11 opportunity to work through those schedules of the
12 experts and there are certain rules that must be
13 followed with respect to their availability and so
14 forth, but that all has to be listed. You didn't do
15 that, so I'm not quite sure how or why this information
16 that you have acquired since January 27th, 2025 would be
17 pertinent in this case.

18 If you put it in -- if you try to put it in
19 before the jury, you are going to have to have a doctor
20 testify about it. So far, I haven't heard any reason
21 why you should have that opportunity, to put in a doctor
22 to testify as to the link between your injuries
23 resulting from the accident that brought you here and
24 your subsequent medical history after January 27, 2025.

25 So tell me what do you want me to do?

1 MR. ROSARIO: I thought if the document was
2 listed, they can't testify but because of the new
3 evidence there --

4 THE COURT: You'll have to tell me in plain
5 English. Why is it important for what happened to you
6 after January 27, 2025 -- why it is important to have
7 these medical records brought into the courtroom?

8 MR. ROSARIO: Yeah. Bear with me. There's
9 several witnesses.

10 Can you explain?

11 MR. SOBATI: Your Honor, if I may, I've spent a
12 lot of time around Mr. Rosario, especially in recent
13 weeks, and I've known Mr. Rosario for a fair amount of
14 time, and based on, certainly in recent time, he
15 exhibits diminished capacity even further from where
16 he's been historically.

17 I have personally witnessed him having several
18 emotional, mental health breakdowns where he is not
19 capable of functioning, much less doing any case work.
20 I'm his assistant --

21 MR. ROSARIO: The medical stuff again.

22 MR. SOBATI: -- there's consistent issues
23 around -- not everything from ambulation and moving
24 around the room, I have seen his hands freeze up right
25 in front of me while typing.

1 Issues big and small. And I've seen -- and
2 I've been in and out -- multiple people have been in and
3 out of the emergency rooms with him. Sometimes he's
4 waiting there for hours, sleeping on some sort of
5 surface he shouldn't be, trying to actually get help
6 because he doesn't actually know what's going on with
7 his medical condition ultimately. There's several
8 things that are puzzling, needless to say.

9 I'm a decorated veteran. I've been in a war
10 zone. I've been under a lot of pressure just working
11 day in and day out at times. I've never seen anybody
12 push themselves to try to conform and do the amount of
13 research that I've seen this man doing myself. It's
14 because he cares. He cares about this case. He cares
15 about doing things the right way. It's just he's
16 literally, I feel, at times incapable of understanding
17 the requirements of even a normal life, much less a
18 courtroom.

19 MR. ROSARIO: The doctors, Your Honor, are
20 investigating right now the conditions of the brain
21 damage and to what extent. As you've already said that
22 the TBI -- and you've blocked that. Regardless of the
23 TBI, the effects of the TBI are directly affecting my
24 vision and my ability to move.

25 My spinal cord is severely damaged from this

1 condition. That's already in the evidence. And the
2 evidence is now -- you know, we're four years past the
3 date when I started this trial, Your Honor, and we're at
4 a place now where the doctors are finally getting a
5 chance to see it and, you know, suddenly -- it's very,
6 very unfortunate to have this happen the first week with
7 the added stress. You know, I've -- I've lost sensation
8 in the -- in the outer part of my right arm, my neck is
9 severe, and my vision has been going in and out, and the
10 doctors are recording that and they're saying that it is
11 definitely more likely than not as a cause of severe
12 trauma to my body.

13 And these things are now just coming up. I've
14 not -- I've not had financial capacity, my wife and I.
15 And she can tell you.

16 Please, Victoria, please come up and tell the
17 judge about how many appointments that we've made. I
18 don't -- I don't have -- I barely even remember all the
19 doctors offices that I've been to, because my wife is
20 the one that's helping me afford that.

21 The judge has invited you to please explain.
22 But this is a condition of what the doctors -- please
23 tell this court.

24 MRS. VICTORIA ROSARIO: I'm Victoria Rosario.
25 I'm quite sleep deprived. Excuse me. Yeah, we've --

1 it's been -- oh, gosh, so many appointments. We've had
2 vision appointments, checking out his brain. I mean, I
3 can't tell you how many. Recent or just in the past?

4 MR. ROSARIO: Just in the last -- since
5 January 27th, whatever the doctors are finding.

6 MRS. VICTORIA ROSARIO: Yeah. I mean, he's got
7 severe -- his neck. He's lost vision in the left eye.
8 Lost mobility in his arms. Spinal damage. I mean, it's
9 just -- it's ongoing. And we're trying to figure out
10 exactly what's happening with your brain.

11 MR. ROSARIO: What did the doctors say? What
12 do you think that they're coming to the conclusion --

13 MRS. VICTORIA ROSARIO: It's definitely from
14 him getting hit by this truck, absolutely.

15 MR. SOBATI: The last ophthalmologist said
16 there's neurological issues and he referred to yet
17 another specialist.

18 MRS. VICTORIA ROSARIO: Yeah. There was
19 another neurology referral that he has, so ...

20 MR. ROSARIO: The spinal doctor asked me the
21 other day, You're pretty much in this permanently now.
22 You need to get therapy.

23 And these pieces of information were not
24 available during the discovery. Like I said, it's
25 really unfortunate that my health took this south turn,

1 but the stress and the challenges for me as a pro per
2 litigant, Your Honor, has caused severe stress.

3 Now, at least they checked to make sure it
4 wasn't a heart attack that's causing my vision loss and
5 my loss of control on my left arm, but we're lucky that
6 it's not, but it doesn't change the fact that it's very
7 real, whether we want to ignore the fact -- they want to
8 ignore the images, the doctors are treating me for it.
9 So we're at this place where we have to establish
10 whether discovery is reopened to be able to allow a fair
11 and impartial jury to be able to see information that
12 has only become recently available.

13 You know, I didn't complain immediately for the
14 week and week-and-a-half up to this trial, because I
15 thought I was -- it was live or die. I was under the
16 impression if I don't show up and agree to go forward
17 they were going to dismiss my case. That's what we all
18 thought. That's the only reason I agreed to do this is
19 because I was told if I don't show up on the 27th and
20 start this case, I can't try it. So here I am, but it's
21 not going to stop the fact that the doctors are treating
22 me.

23 So we have a situation where we have to address
24 where doctors are saying, you have severe medical
25 conditions that are -- that are more likely than not

1 caused by the collision that the defendant put you
2 through, and we are going to start treating you. But
3 that information, if you're saying it's not relevant,
4 then the doctors are going to disagree with you. They
5 already are. It's absolutely relevant. We can -- we
6 can sit here until the cows come home, but that's not
7 going to reverse the brain damage that I have. That's
8 permanent. I can sit there and try and maybe mend the
9 muscles and maybe even get stem cell treatments for my
10 nerve endings and my spine, but that's not going to
11 erase the brain damage.

12 THE COURT: All right.

13 MS. NAVARATNASINGHAM: Yes, Your Honor.

14 The Burnete case, which the Court cited
15 earlier, is directly on point to what is happening here.
16 I'm not sure what the request is, frankly, Your Honor.

17 The motions in limine as to the traumatic brain
18 injury and the expert situation have been ruled upon.

19 In Burnete, the plaintiff made the exact same
20 claims as Rosario's making now: Disability, lack of
21 counsel, debilitating medical conditions, and the Court
22 did order that trial to proceed.

23 I also want to remind the Court that we
24 answered "ready" in Department 206, and we came up here
25 and Your Honor asked us again when we came to this

1 courtroom, Are you ready to proceed to trial? And
2 Mr. Rosario at that time raised no issues and said that
3 he was ready to proceed with the jury trial.

4 MR. ROSARIO: That's changed. My health has
5 deteriorated. Before we take up the Court's time and
6 the witnesses -- that's why I've asked for these
7 continuances, to be able to collect the information,
8 Your Honor. That way my doctor doesn't say, Hey,
9 Dylan's health has deteriorated. There's a need to put
10 him on -- and immobilize my neck. They're already
11 talking about putting my neck into a brace so that way
12 my spine quits slipping out. My vision is going out.
13 And you are going to force me into this because it's
14 convenient for the defense, after multiple people,
15 multiple doctors and everyone is telling you this.
16 Okay.

17 But if it's -- because I made the mistake and
18 don't understand that I was not able to say, no, I don't
19 want to do this. Okay. That's my mistake, and I
20 understand that the Court is privy to try to make this
21 happen, but we're going to keep on getting back to this.
22 My vision could completely go out next week and I'll
23 need to seek accommodations. I don't know how to read
24 Braille yet. Or my neck can fall out of place where I'm
25 in a paraplegic chair. These things are out of my

1 control.

2 And the defense wants to pretend it's not
3 there, but I want to tell you, it can very well happen.
4 The doctors have been giving me warning signs. So ...

5 THE COURT: Mr. Rosario, you were sent here for
6 trial.

7 MR. ROSARIO: Yes, sir.

8 THE COURT: You represented that you're ready
9 for trial.

10 MR. ROSARIO: Well, I was mistaken.

11 THE COURT: You made the representation to the
12 presiding judge of this court that you were ready for
13 trial. Now --

14 MR. ROSARIO: I can't control my body.

15 THE COURT: You are now -- sir, don't interrupt
16 me.

17 Compose yourself, sir.

18 Now, how many doctors are you talking about?

19 MR. ROSARIO: How many doctors have I seen?

20 MRS. VICTORIA ROSARIO: Probably -- the doctors
21 or --

22 MR. SOBATI: Can you clarify? Are you saying
23 how many doctors is he to see?

24 MR. ROSARIO: You Honor, I don't understand.
25 When you say --

1 THE COURT: Here's what I'm hearing. I am not
2 granting a continuance. However, the Code of Civil
3 Procedure, in my discretion, allows for the Court to
4 have experts deposed.

5 You're saying in this case that you didn't know
6 any better. I frankly don't believe that's an excuse.
7 But what you -- and I'll hear from defense counsel, but
8 what I would expect you to do -- this is my proposal --
9 is that you have to exchange with defense counsel a list
10 of your experts who will discuss not what happened
11 before January 27, 2025, but only the -- well, I can't
12 really say that. I think we need to know the doctors
13 who will explain the connection between your current
14 injuries and the accident.

15 We need to have a list of those doctors to
16 defense counsel by the end of this week, the 21st of
17 February, by 4:30 p.m.

18 You also must provide -- with each of these
19 doctors, you must provide an explanation of what they're
20 going to testify about and whether they are, in fact,
21 available to testify.

22 You must also say how long it will take for
23 each deposition. That all must take place before the
24 end of this week, the 21st.

25 You have to tell the other side whether they

1 are ready and available for deposition.

2 I will allow the parties to set a time during
3 the week of February 24th for depositions of these
4 doctors, these treating physicians -- they are not
5 designated. You will not be permitted to have
6 designated experts. They are treating physicians --
7 between now and the trial date in this case which would
8 be March 10th. I'm giving you two weeks.

9 If you cannot arrange to have a scheduled
10 deposition between the 24th and the 7th -- the Court
11 will designate three days: The 5th, the 6th, and the
12 7th of March for depositions of your experts that are
13 listed.

14 We will start trial on March 10th.

15 MR. ROSARIO: Your Honor, did you say experts
16 or treating physicians?

17 THE COURT: Treating physicians, yes.
18 Non-designated. These are non-designated experts who
19 are otherwise in this case be known as the treating
20 physicians, so they have to be available between the
21 24th and March 7th.

22 MR. SOBATI: Yes, Your Honor.

23 THE COURT: If you don't make them available
24 for deposition on the 5th, 6th, and 7th, they will not
25 be allowed to testify unless the defendant agrees to

1 have a deposition taken on another date during the
2 trial, but trial will start on the 10th.

3 We are available on the 10th, are we not?

4 THE CLERK: We are, yes.

5 THE COURT: You can offer your objection.

6 MS. NAVARATNASINGHAM: You Honor, if I can
7 reply to this for my record.

8 Your Honor, we obviously wholly object to this
9 proposal.

10 The Court is essentially reopening discovery
11 and expert discovery. The case has been pending for
12 almost five years. Expert designations, I think, were
13 actually done mid-November and so there was no response
14 whatsoever to our designation of experts. We did
15 everything properly and correctly. And the Court is now
16 allowing for -- we're essentially one month past the
17 date that this matter was set for trial, and the Court
18 is reopening discovery and allowing plaintiff to now
19 designate treaters. And I'm confused because if they're
20 going to testify about post-start-trial date medical
21 condition but then they won't be allowed to offer expert
22 testimony, I'm not sure what their role would be at this
23 trial because the Court has already granted our motion
24 to exclude any reference to a brain injury or a
25 traumatic brain injury.

1 So we oppose this proposal and, you know, our
2 position is that discovery is closed, expert discovery
3 is closed. This is exactly the Burnete versus the
4 La Casa Bana case.

5 THE COURT: The problem with the Burnete case,
6 as I recall, it's not entirely factually parallel to
7 this case.

8 MR. ROSARIO: Exactly.

9 THE COURT: Excuse me, sir.

10 MR. ROSARIO: Sorry.

11 THE COURT: Be careful where you tread.

12 MR. ROSARIO: Sorry, sir.

13 THE COURT: When I'm speaking, I don't want to
14 hear a word out of you.

15 It's different largely because in that case the
16 plaintiff did not take ill during the trial, or at some
17 point after the trial deadline. That's the distinction
18 here. And what I'm concerned about is the fact that the
19 request, albeit a tardy request, may be a problem for
20 the Court with regard to its discretion. I think in
21 this case, depending on what is said by the doctors --
22 and I don't have a proffer from him, but I have to rely
23 on Mr. Sobati's representations -- this would be an
24 exceptional circumstance for which an expert deposition
25 will be permitted in this case.

1 And I'm looking at 2034.710, and it says, in
2 pertinent part, "On motion of any party who has failed
3 to submit an expert witness information on the date
4 specified in a demand for that exchange, the Court may
5 grant leave to submit that information on a later date."

6 Subdivision (b) says, "A motion under
7 subdivision (a) shall be made in sufficient time in
8 advance of the time limit for the completion of
9 discovery under Chapter 8 (commencing with Section
10 2024.010) to permit the deposition of any expert, to
11 whom the motion relates, to be taken within the time
12 limit."

13 Obviously, that doesn't apply because he's
14 failed to meet that requirement.

15 However, subdivision "(d) provides, quote,
16 "Under exceptional circumstances, the Court may permit
17 the motion to be made at a later time," close quote.

18 However, I'll point out that you failed, sir,
19 to meet and confer with opposing counsel. Your
20 characterization of them as liars and otherwise does not
21 make the Court particularly enthusiastic about agreeing
22 to grant this sua sponte order, so if you do not have
23 these experts available, they're not going to testify.

24 I expect you to be ready on the 10th, and if
25 you do not show, the Court will reconsider. It has

1 not -- it's still pending, defendant's motion to dismiss
2 for abandonment of this case.

3 The objection is noted. I think it's
4 well-founded. However, given the tenor of how we treat
5 in pro per plaintiffs these days, I have to give them
6 every latitude I can in order to enable them to make
7 their case, and to the extent there will be limitations
8 that you want imposed on the questioning or in an in
9 limine motion.

10 I mean, I think the deposition is your
11 opportunity to see what they have to say, but to the
12 extent that they get into extraneous or irrelevant
13 material, you're free to return to motion in limine
14 number one and motion in limine number two to cut off
15 their testimony. The Court will consider it.

16 MS. NAVARATNASINGHAM: Your Honor, may I make
17 one request?

18 THE COURT: Yes.

19 MS. NAVARATNASINGHAM: Just because it's
20 putting us in a bit of a bind, with scheduling and costs
21 and everything else.

22 Can these depositions be done at plaintiff's
23 cost? We are going to be expending a significant amount
24 of fees to take --

25 THE COURT: Of course.

1 MS. NAVARATNASINGHAM: Thank you.

2 THE COURT: It's at your cost, sir. So if the
3 doctor says, I need \$500 to testify at a deposition,
4 defendants don't have to pay it. It's your fault --
5 it's not really your fault, but the burden is on you to
6 make sure that they show up. If they don't show up,
7 sorry. They don't show up on the date that the
8 deposition is going to be taken, you need to meet and
9 confer and talk to defense counsel about when they're
10 going to be available and set a date, but I'm going to
11 give you the 5, 6, and 7 dates as the dates where they
12 have to take place.

13 If they don't take place on March 5th,
14 March 6th, or March 7th, then they won't be allowed to
15 testify.

16 MR. ROSARIO: Thank you, Your Honor. My family
17 and --

18 THE COURT: I don't need to hear that, sir.
19 This is all business.

20 MR. ROSARIO: Yes, sir.

21 THE COURT: Very well. We'll see you back here
22 on March 10th. We will -- on that day, we will complete
23 the rest of the in limine motions. On Tuesday, the
24 11th, we will start the trial. That will -- we will
25 continue to the 12th for jury selection. The 11th --

1 the 11th and 12th will be for jury selection, and then
2 we will start the trial on the 17th once we have a
3 completed jury.

4 MS. NAVARATNASINGHAM: Yes, Your Honor. Those
5 dates are great.

6 Your Honor, the only thing -- and this is
7 probably not an issue. I just want to raise it to the
8 Court that I do have a conflict on March -- that last
9 week of March but, hopefully, we'll be done by that
10 point.

11 THE COURT: Which one?

12 MS. NAVARATNASINGHAM: So March 26th through
13 the 30th, which is the last week in March.

14 THE COURT: That's fine. I think you have to
15 anticipate how long the case is going to be. You'll
16 need to set up a short --

17 I require the parties to complete a very short
18 two- or three-sentence statement to the jury about what
19 you anticipate this case is going to be. You should
20 meet and confer to determine how long you think the case
21 is going to be and I will tell the jury. So if you
22 think the jury is going to -- the trial is going to be
23 completed on the 27th -- remember, I don't hear cases on
24 Fridays and, in fact, the 13th and the 14th, I'm not
25 going to be here, so ...

1 MS. NAVARATNASINGHAM: Okay.

2 MR. SOBATI: Which dates, 13th and 14th?

3 THE COURT: Yes.

4 MR. SOBATI: Thank you, Your Honor.

5 THE COURT: Any questions?

6 MS. NAVARATNASINGHAM: No, Your Honor.

7 THE COURT: Okay. Feel free to contact
8 Department 504 if you have any other questions.

9 MR. ROSARIO: Thank you, Your Honor.

10 THE COURT: Thank you.

11 The other thing is, I should -- though it's
12 understood, the Court has taken into consideration
13 Section 2034.720 which says, "When leave to submit tardy
14 expert witness information may be granted." The Court
15 has looked at subdivisions (a), (b), and (c) and also
16 considered the fact that there has been some new
17 information that has arisen in this court. And I will
18 point out that subdivision (d) makes clear that the
19 order is conditioned "on the moving party making the
20 expert available immediately for deposition...and on any
21 other terms as may be just, including, but not limited
22 to, leave to any party opposing the motion to designate
23 additional expert witnesses or to elicit additional
24 opinions from those previously designated. And a
25 continuance," if defense counsel seeks it, "for a

1 reasonable period of time," although I doubt that that's
2 a request. And finally, "the awarding of costs and
3 litigation expenses to any party opposing the motion."

4 So folded within that is also a monetary
5 sanction for opposing the motion. That doesn't apply in
6 this case. But the Court will impose litigation
7 expenses and costs upon -- well, the costs of the
8 deposition of the expert, those fees, should be
9 attributed to plaintiff in this matter.

10 And you are to arrange -- I don't know who is
11 going to arrange for the deposition. I assume defense
12 is going to notice the deposition and have a court
13 reporter available.

14 MR. SOBATI: I will be the point of contact,
15 Your Honor, for plaintiff.

16 THE COURT: Very well. Meet and confer. You
17 should discuss the matter with Ms. Navaratnasingham
18 right now.

19 MR. SOBATI: Yes, Your Honor.

20 THE COURT: We'll see you on the 10th.

21 MR. SOBATI: Thank you, Your Honor.

22 (Court adjourned at 11:50 A.M.)

23 - - -
24
25

1 State of California)
2 County of San Francisco)

3
4 I, Sandra L. Carranza, Certified Shorthand
5 Reporter, do hereby certify:

6 That I was present at the time of the above
7 proceedings;

8 That I took down in machine shorthand notes all
9 proceedings had and testimony given;

10 That I thereafter transcribed said shorthand notes
11 with the aid of a computer;

12 That the above and foregoing is a full, true, and
13 correct transcription of said shorthand notes, and a
14 full, true and correct transcript of all proceedings had
15 and testimony taken;

16 That I am not a party to the action or related to a
17 party or counsel;

18 That I have no financial or other interest in the
19 outcome of the action.

20
21 Dated: February 21st, 2025

22
23 

24 Sandra L. Carranza, CSR No. 7062
25

Reference No.: 12424517

Case: ROSARIO vs ABDELHALIM, ET AL.

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I have read the entire transcript of my Deposition taken in the captioned matter or the same has been read to me, and the same is true and accurate, save and except for changes and/or corrections, if any, as indicated by me on the DEPOSITION ERRATA SHEET hereof, with the understanding that I offer these changes as if still under oath.

Hearing

NOTARIZATION OF CHANGES

(If Required)

Subscribed and sworn to on the _____ day of

_____, 20____ before me,

(Notary Sign) _____

(Print Name) _____ Notary Public,

in and for the State of _____

Trial Transcript

Case Number: CGC-21-594102

Date: April 16, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 7

**CERTIFIED
COPY**

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1 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
2 IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
3 BEFORE THE HONORABLE GARRETT L. WONG
4 DEPARTMENT 504

5 FRANCISCUS DYLAN ROSARIO,

6 Plaintiff,

7 vs.

8 Case No. CGC-21-594102

9 SUBHI ABDELHALIM;
10 INDIVIDUALLY, AND DBA
11 SONOMA LIQUOR, DOES
12 1 TO 50,

13 Defendants.

14 _____/

15 REPORTER'S TRANSCRIPT

16 WEDNESDAY, APRIL 16, 2025

17 PAGES 1 - 220

18 Location: San Francisco Superior Court
19 400 McAllister St., Dept 504
20 San Francisco, California 94102

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19
20
21
22
23
24
25
26
27
28

SESSIONS

PAGE

Wednesday, April 16, 2025

MORNING SESSION

5

AFTERNOON SESSION

110

1
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

INDEX OF WITNESSES

Direct	Cross	ReDirect	ReCross
--------	-------	----------	---------

Officer David Fernandez

BY: Mr. Rosario	64		155
-----------------	----	--	-----

BY: Ms. Navaratnasingham		149	
--------------------------	--	-----	--

Franciscus Dylan Rosario

BY: Mr. Sobati	168		
----------------	-----	--	--

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

INDEX OF EXHIBITS

THERE WERE NONE MARKED

1 April 16, 2025 San Francisco, California
2 PROCEEDINGS

3 THE CLERK: Please be seated and come to
4 order.

5 THE COURT: We are on the record. The record
6 should reflect we are here on Rosario versus
7 Abdelhalim and Mr. Rosario is present with Mr. Keegan,
8 Mr. Sobati, and the Defense is represented by Miss
9 Navaratnasingham and Mr. Reyna.

10 I received a motion yesterday to bifurcate
11 and submit special verdict form on causation prior to
12 the damages phase.

13 Where does the Defense stand on this?

14 MS. NAVARATNASINGHAM: Yes, Your Honor. We
15 are agreeing to bifurcate the issue of liability from
16 the issue of injuries and damages.

17 The only thing we were going to request, Your
18 Honor, was that, to streamline the process, we have
19 the issue of liability heard, then we prepared a
20 verdict form on just liability which the jury can then
21 deliberate over, and then we keep the same jury for
22 injuries and damages, which if the jury comes back
23 with a determination that my client is liable, then we
24 could move to injuries and damages a day or two later,
25 whatever makes sense to the Court.

26 THE COURT: Very well.

27 MR. ROSARIO: The Court says this is my case
28 to prove. We are going to start with causation so we

1 can get all these things out of the way.

2 There are a number of different things that
3 happen once causation is established. Fault, for
4 example, it creates a new fact for the Court and we
5 are able to use that as we move forward.

6 So causation is absolutely the critical
7 piece. They are claiming, still to this day -- that
8 you stated yesterday in front of all the jury people
9 that they are claiming there is no fault, nothing. So
10 we need to get that out of the way. Causation, we
11 can't move forward without that.

12 You stated clearly that: We don't have
13 causation for the medical, we don't have causation for
14 the other damages.

15 That is the only way this thing can go down.

16 THE COURT: I didn't say: You don't have
17 causation for medical. What I said is there are no
18 experts that can testify with respect to causation in
19 this case.

20 I am not preventing you, per my earlier
21 motion in limine, from telling the jury some aspect of
22 what happened to you.

23 These are matters of common experience. The
24 law indicates -- even in the cases that Defense
25 Counsel have cited -- allows you to discuss things
26 such as your opinion of what happened and to describe
27 your injuries.

28 However, I am just warning you that the

1 moment you start getting into what's in the records,
2 if any, as you plan to present, that requires doctors
3 or expert witness's opinion, and anything that is
4 contained in those medical records, are,
5 essentially -- and I haven't reviewed them -- are,
6 essentially, hearsay until shown otherwise.

7 MR. ROSARIO: Business records come from the
8 hospitals with MRIs and x-rays. Those are part of the
9 standard business records clause. They fall under
10 that.

11 They can be used as information for people to
12 come across and be able to determine causation.

13 If somebody goes in and they have, for
14 example, a stab wound or a gunshot wound, they find a
15 bullet inside a person, this is obvious as to that.

16 Those things don't just happen, people don't
17 just get shot and bullets manifest in people's bodies.

18 The same thing for the accident here. So
19 when a person sees that there is a damage, they can go
20 to 911 center or emergency room.

21 You have damage. We will show the chain of
22 events. We have a bunch of exhibits to show the chain
23 of events that led to the injury and the images that
24 we have from three different medical centers; Sutter
25 Zuckerberg as well as UCSF, three different x-rays on
26 the same day all showing the damage that the Defendant
27 caused to me.

28 We have the evidence. We have the exhibits.

1 We have Bates stamps on the exhibits. We will
2 introduce those as we build the timeline. The theory
3 of our case will begin with the fact I was a
4 pedestrian. We will move forward from that.

5 From there, we will establish that I was
6 struck; we have evidence to show I was struck from
7 behind followed by the incidents and the details that
8 followed immediately after the striking.

9 We have the exhibits that are available here.

10 UCSF x-rays, exams which we have an offer of
11 proof; Sutter discharge; Sutter MRI images; the
12 Zuckerberg chest CT scans; the catalogs from the
13 police report; the SFPD photos and requests; the 911
14 transcripts that were taken from the audio files, the
15 PSA law police subpoena; the PSA law records request
16 for the medical records that were at the hospital;
17 Officer Fernandez's deposition and then the scene
18 photos from the incident and collision.

19 All have been prepared with Bates stamps and
20 the exhibit numbers to be presented to the Court.

21 THE COURT: Sir, I appreciate your offer of
22 proof in this matter.

23 Let me just caution you here, you need not
24 tell the Court everything you are going to do with
25 some belief that the Court is going to guarantee the
26 admissibility of any of those items that you seek to
27 present.

28 I am going to field the objections and your

1 requests -- first of all, you will make the request to
2 have something admitted. That is the first thing you
3 are going to do.

4 Then secondly, there will be an objection. I
5 will hear the objection -- it is usually a one or
6 two-word objection like "hearsay" and I will give you
7 an opportunity to respond, and I will rule. Once I
8 have ruled, then we will move on.

9 I am going to tell you right now, however,
10 just so that this gives you some understanding of
11 where I am coming from, I will allow you to testify,
12 as I said, about your aches and pains and what has
13 happened at the accident and so forth, these are all
14 matters of common understanding; however, the moment
15 you start explaining what -- your understanding of the
16 results of the CT scan or an MRI -- or anything
17 else -- that requires an expert witness to talk about
18 it.

19 So I am just giving you a forecast. I am not
20 saying I am doing it yet because I don't know what
21 evidence is in there yet.

22 MR. ROSARIO: Okay.

23 THE COURT: So you go ahead and try and make
24 whatever evidence you want to have -- you want to try
25 to have something admitted, that is fine, but there is
26 going to be -- presumably, there is going to be some
27 form of hearsay objection unless Counsel decides
28 strategically that that is something they are not

1 going to object to.

2 Yes, sir?

3 MR. ROSARIO: All right. When a business
4 records is that somebody has a pneumothorax, that word
5 means they have a collapsed lung.

6 It doesn't require any special -- look it up
7 in the dictionary. There is no special anything about
8 that. So when the documents clearly state you have
9 broken ribs and you have pneumothorax and are going to
10 suffocate to death, those things are obvious.

11 You cannot unwind that. You cannot delete
12 the reality. The records are provided by three
13 different companies.

14 So I am understanding you are saying we are
15 going to present those. All right.

16 The Defense claims that you need an expert to
17 understand that a punctured lung and broken ribs -- I
18 don't believe so. I think any common person
19 understands -- any person that has ever been hit
20 before or broken a rib or cracked a rib requires no
21 medical.

22 If someone gets shot, you have a gunshot
23 wound, it is obvious.

24 So we are not looking for anybody to analyze
25 what these things mean because these are obvious
26 common-sense injuries that people can understand
27 clearly.

28 And the law provides that. There is a lot of

1 case law where people walk in and say: I got shot, I
2 got ran over, I have a broken leg. The medical record
3 and business records show those things.

4 There is nothing special claiming you need an
5 expert to say that anybody got shot. They have a
6 bullet wound and they have a bullet in them.

7 We are not trying to get damages, Your Honor.
8 We are trying to show there was an injury.

9 You cannot erase an injury that was created
10 and recorded by medical agencies. Those do not
11 require experts. Those are life-threatening injuries
12 a person can die from.

13 Again, we are back at this place saying: We
14 will have to take a recess, because I would have to
15 figure this out.

16 If you feel that life-threatening injuries
17 like a bullet wound and a bullet inside of a person
18 requires an expert to interpret, we will have a pause
19 here. I don't believe that you are allowed to tell me
20 that I cannot present a business record of an injury
21 that was recorded.

22 If you are going to say what the long-term
23 injuries are, I agree with you, those require experts
24 to analyze. But seeing a -- from any type of
25 individual who sees that somebody has a bullet wound
26 or fractured ribs and a pneumothorax and a collapsing
27 lung, those things are documented by three different
28 hospitals.

1 We are not telling anybody what they mean. I
2 think the people who are in the jury can understand,
3 once your lung starts collapsing it can cause a whole
4 chain of events.

5 We are not trying to tell people what it is,
6 we are not even going to say. We are just trying to
7 show there was an injury.

8 This is where we get to causation. That is
9 why I asked to bifurcate.

10 THE COURT: Mr. Rosario, I understand, even
11 in personal injury cases, the complexity of causation.
12 But the causation issue is not always beyond common
13 experience.

14 An expert testimony is not always required to
15 establish causation, that much I agree.

16 If a jury could reasonably conclude that your
17 accident might be expected to produce the kind of
18 injuries you are describing, then they can make a
19 determination, in part, about what happened between --
20 what happened with regard to the causal relation
21 between the accident and your injuries, even without
22 expert testimony. I think that much we can say.

23 However, if you are trying to admit, even
24 through a business record, that somebody said X or
25 somebody said Y about an MRI, an x-ray, a CT scan,
26 there is going to be an objection. The objection is
27 going to be hearsay.

28 MR. ROSARIO: I understand.

1 THE COURT: Because that is a out-of-court
2 statement offered to prove the truth of the matter.

3 You are relying on what those x-rays, those
4 MRIs, those CT scans have been interpreted by another
5 to explain to you.

6 It is your understanding what someone else
7 told you. That is hearsay and I will sustain the
8 objection.

9 MR. ROSARIO: Okay. Let me kind of like give
10 you --

11 THE COURT: No. I won't spend the next 10 or
12 15 minutes arguing with you over what I haven't even
13 heard with regards to evidence.

14 I am giving you a general outline of where I
15 am coming from with respect to the rulings.

16 I don't know if Defense Counsel agrees or
17 disagrees with the Court. They may have an objection,
18 too.

19 You haven't even given them an opportunity to
20 speak.

21 So the evidence isn't even in yet.

22 I need to hear what you are offering to put
23 into evidence before I can even rule on this.

24 No. I don't want your offer of proof right
25 now. You are going to have to deal with the
26 objections.

27 I don't deal with evidence beforehand unless
28 there is a specific piece of evidence that one party

1 is objecting to. But your affirmative demonstration
2 of what evidence is required is not something that I
3 need to hear.

4 You are required to put on the evidence on
5 the basic steps, as any other person would, to prove
6 your case. It is your burden.

7 You do it during trial, not before; at least
8 in this occasion, not now, five minutes before the
9 jury has been asked to come into the courtroom.

10 MR. ROSARIO: What are you talking about? I
11 have made my case and I have stated these details and
12 multiple things to you.

13 THE COURT: Sir, I don't need to hear
14 anything further from you right now. As you said, you
15 have repeated your arguments on multiple occasions.
16 You made multiple offers of proof. Now is the time
17 for you to try to have this evidence admitted in
18 Court.

19 It will be subject to whatever objections
20 Defense makes.

21 I am not saying I am granting every objection
22 or sustaining every objection or overruling every
23 objection.

24 Sir --

25 MR. ROSARIO: Yes, sir?

26 THE COURT: You will look at me when I am
27 speaking to you.

28 Do you understand that?

1 I do not condone you moving away or walking
2 away or turning your head to speak to somebody else
3 when I am discussing this matter with you.

4 I demand complete respect in this courtroom
5 and courtesy to all parties, sir.

6 MR. ROSARIO: I didn't know you were talking
7 to me. You continued to look at the Defense. Is that
8 right?

9 THE COURT: I was not speaking to the
10 Defense. I was speaking to you, sir.

11 MR. ROSARIO: I am sorry. It looks to me
12 your eyes are focusing on them. I apologize. I
13 didn't know you were directly speaking to me.

14 THE COURT: I will hear now from Defense
15 Counsel on anything.

16 MS. NAVARATNASINGHAM: Your Honor, yes, we
17 will raise objections to the records.

18 So the bifurcation issue is not at issue?

19 THE COURT: The bifurcation issue, since the
20 parties are willing to -- since the parties are
21 willing to do it and there is an agreement by Defense
22 to bifurcate the matter, and since the Defense has
23 prepared a verdict form on the liability/causation
24 issue, the Court is willing to grant the motion on its
25 own.

26 MR. ROSARIO: I have not. We have provided a
27 verdict form on the causation, not on liability.

28 That is completely new to us. We were

1 surprised about any concept of discussion of
2 liability.

3 We said causation, not the liability. That
4 was very explicit in the documentation. We were
5 looking at causation, not liability yet.

6 So I want to make sure that the Court right
7 now knows that the Plaintiff has requested and has
8 asked for the bifurcation on causation, not on
9 liability.

10 We didn't even want to talk about damages.
11 We are not looking at interpretations of anything --

12 THE COURT: Sir, your motion says:

13 The Plaintiff requests that the jury first
14 hear and render a special verdict on the threshold
15 issues of liability and causation.

16 This is exactly what you asked for.

17 MR. ROSARIO: Then why are we excluding
18 causation suddenly? I asked for liability and
19 causation, not just for liability.

20 THE COURT: I am not excluding causation. I
21 am telling you what the parameters are for admission
22 of the evidence, which is a wholly different issue.

23 MR. ROSARIO: Let's make sure we have a
24 stipulation on causation and liability not just
25 liability.

26 This is a causation situation. We are going
27 to show the Defendant --

28 THE COURT: I don't need to hear further

1 argument. There is no objection to your motion, sir.

2 They have simply prepared a verdict form
3 which I will review and you should review before the
4 matter is submitted to the jury.

5 MR. ROSARIO: What do you expect to happen
6 when your jury comes in today?

7 THE COURT: If you would like I can tell the
8 jury this morning that the case will be bifurcated.

9 That is up to you, if you want me to do that.

10 MR. ROSARIO: Yeah. I would like to hear on
11 the causation first, yes, please.

12 THE COURT: Sir, your motion was for a
13 bifurcated hearing on the threshold issues of
14 liability and causation.

15 MR. ROSARIO: Yes. So we are going to start
16 with --

17 THE COURT: So we are going to have two
18 phases to this case. And I can explain that to them.

19 MR. ROSARIO: Okay.

20 THE COURT: Let me do that. And then I am
21 going -- first, I am going to give them the
22 instructions in the case, tell them how this case is
23 going to work.

24 Then I am going to explain to them that the
25 parties have agreed to bifurcate this case in two
26 ways. There will be two phases to the trial.

27 The first will be to deal with the threshold
28 issues of liability and causation; and the second

1 phase, assuming they find liability and causation in
2 this matter, will be for them to decide damages. All
3 right.

4 That is all I am going to say. Then you can
5 make your opening statement. I will limit your
6 opening statement to a half an hour at most.

7 I don't think this is that complicated a
8 case.

9 So please try and limit your opening
10 statements to 30 minutes.

11 MR. ROSARIO: Your Honor, we have also
12 Officer Fernandez, which is material in the causation,
13 Officer Fernandez, we have a subpoena for him. We
14 don't see him yet in the courtroom. He has been
15 subpoenaed for today.

16 THE COURT: Very well. Be prepared after
17 your opening statements to put on your evidence, sir.

18 MR. ROSARIO: Okay.

19 THE COURT: Whatever that might be.

20 MS. NAVARATNASINGHAM: Your Honor, I hate to
21 belabor this, there is two points I wanted to raise
22 from yesterday if we could take that up.

23 Number one, we didn't mention anything about
24 a traumatic brain injury before the jury, but I know
25 the jury was talking amongst themselves, thinking that
26 would be an issue.

27 I was going to request that the Court make a
28 statement to the jury before the presentation of

1 evidence that an allegation of traumatic brain injury
2 is not at issue in this case in light of your in
3 limine motion.

4 We didn't raise it yesterday, Mr. Rosario
5 didn't raise it, but the jurors were talking amongst
6 themselves during voir dire.

7 So I would just ask that request before the
8 presentation of evidence.

9 THE COURT: Do you have specific a language
10 you wanted me to use?

11 MS. NAVARATNASINGHAM: I was going to
12 suggest, Your Honor, maybe if the Court were to
13 reference yesterday's voir dire and that some jurors
14 had mentioned traumatic brain injury but that we want
15 to be very clear that any claim of a traumatic brain
16 injury or brain injury is not being made in this case.

17 MR. ROSARIO: Objection. We feel that the
18 Defense has not provided an affirmative Defense
19 against that to begin with to prove that I don't have
20 it.

21 So trying to get a summary judgment to
22 exclude it right now at this phase is premature. We
23 haven't even gotten to the damages. We haven't even
24 discussed those types of things.

25 What we are going to be showing in this phase
26 is specifically -- and only -- the causation.

27 We are not looking at any additional things
28 that require -- as the judge has said -- we are not

1 looking at anything that requires experts.

2 So for the Defense to say there is no expert
3 or that there is no TBI is premature. We aren't even
4 discussing that.

5 I don't think it is appropriate for us to
6 discuss that at this time.

7 THE COURT: Does it really matter?

8 MS. NAVARATNASINGHAM: Your Honor, I am just
9 concerned that it is in the jurors' minds. And in the
10 presentation of evidence that we are about to see, I
11 don't want them to think it is something my client
12 caused.

13 THE COURT: Well, my view about this is these
14 were all remarks made during jury selection.

15 Generally, what they are going to be looking
16 at and what they are going to be hearing about is the
17 evidence in the case.

18 I really regret the use of the word
19 "traumatic brain injury." I misspoke, but I really
20 don't think it is going to make that much of a
21 difference in this matter, largely because even if the
22 issue were to come up -- which it is not -- it is
23 going to be something very different.

24 I mean, I don't have your verdict form in
25 front of me.

26 But is there anything about traumatic brain
27 injury in there?

28 MS. NAVARATNASINGHAM: There is no injuries

1 or damages on the verdict form. I am concerned,
2 Your Honor, that they are going to be putting weight
3 in that when that is not an issue in this case.

4 I didn't want to object yesterday. We were
5 in the flow of everything. The potential juror said
6 it.

7 I didn't want to make a thing about it, to
8 expedite it.

9 THE COURT: If he doesn't show it, it doesn't
10 become an issue, because the assumption that you are
11 making is that it becomes a part of the evidence.

12 It is not part of the evidence. If you make
13 an objection, it is going to be sustained.

14 So I am not inclined to do that.

15 MS. NAVARATNASINGHAM: Okay.

16 THE COURT: I don't think a clarifying
17 admonition here for matters mentioned are going to be
18 that important.

19 MS. NAVARATNASINGHAM: One more matter, very
20 quickly.

21 Yesterday, when the jury -- after we came
22 back from lunch, the jury was impaneled. They were
23 seated. Before you took the bench, Mr. Rosario did
24 get up in front of the jury and use his cane, and was
25 doing stretches and back things in front of the jury,
26 and I ask he refrain from doing that in front of the
27 jury.

28 THE COURT: To the extent that is possible,

1 Mr. Rosario, I would really appreciate if you did your
2 stretching or your pain relief exercises -- this is a
3 private matter. You should take it back to the
4 anteroom. I think the anterooms are open and
5 available to you. So please do that rather than
6 having that done in front of the jury.

7 MR. ROSARIO: May I do that? Because what
8 happens if -- my spine like starts to relax and my
9 vertebrae fall out of place. It happens on a regular
10 basis, so I have to do it about every hour or so for
11 me because, otherwise, I get, like, lethargic and then
12 I can't hear and then my vision starts to go out.

13 So in order for me to do that on a regular
14 basis, to avoid this, I am going to continue to try to
15 request small recesses for me to step away from here
16 to go back in the back room to be able to readjust it
17 because I need to keep clarity for my thought process.

18 That means that I totally agree --

19 THE COURT: It is 9:30. We will take
20 whatever breaks you seek during the session within
21 reason, all right?

22 All right. It is 9:30. We will bring the
23 jury in.

24 (Whereupon, the jury entered the courtroom).

25 THE CLERK: Thank you for being here on time.
26 We will get started in a moment.

27 A reminder to silence your cell phones, turn
28 them off, whatever is your preference. Thank you.

1 We are here on the matter of
2 Franciscus Dylan Rosario versus Subhi Abdelhalim, Case
3 CGC-21-594102.

4 THE COURT: Thank you. Can I have
5 appearances, please?

6 MR. ROSARIO: Franciscus Dylan Rosario for
7 Plaintiff.

8 MR. KEEGAN: Evan Keegan.

9 MR. SOBATI: Good morning. Karim Sobati,
10 legal advocate.

11 MS. NAVARATNASINGHAM: Good morning, Your
12 Honor. Priya Navaratnasingham for Defendant.

13 MR. REYNA: Good morning, Your Honor.
14 Alberto Reyna for Defendant.

15 A VOICE: Good morning, Your Honor.

16 THE COURT: Thank you for being on time. We
17 are going to begin the trial.

18 The first -- let's say, for 35 minutes, I
19 will be giving you some instructions about how the
20 case is going to proceed. And these are out of the
21 standard instruction manual that we received --
22 actually, every juror in the state hears roughly the
23 same things, but with changes depending upon the
24 nature of the case.

25 If you were in another county south or north
26 of here, you will hear pretty much the same
27 instruction.

28 So I will try to give you the name of the

1 instruction as I proceed so that kind of gives you a
2 framework.

3 All right. So the first instruction is
4 entitled, aptly, "Overview of Trial."

5 And let me see. Actually, the first is
6 "Preliminary Admonitions." I am sorry.

7 You have now been sworn in as jurors in this
8 case. I want to impress upon you on -- the
9 seriousness and importance of serving on a jury.

10 Trial by jury is a fundamental right in
11 California.

12 The parties have a right to a trial and to a
13 jury that is selected fairly, that comes to the case
14 without bias and that will attempt to reach a verdict
15 based on the evidence presented.

16 Before we begin, I need to explain to you how
17 you must conduct yourselves during the trial.

18 Please do not allow anything that happens
19 outside this courtroom to affect your decision.

20 During the trial, please do not talk about
21 this case or the people involved in it with anyone,
22 including family and persons living in your household,
23 friends and co-workers, spiritual leaders, advisors or
24 therapists.

25 You may say you are on a jury and how long
26 the trial may take, but that is all.

27 You must not even talk about the case with
28 the other jurors until after I tell you that it is

1 time for you to decide the case.

2 This prohibition is not limited to
3 face-to-face conversations.

4 It also extends to all forms of electronic
5 communications. Please do not use any electronic
6 device or media, such as a cell phone or smart phone,
7 PDA, computer, the internet, any internet service, any
8 text or instant messaging service, any internet chat
9 room, blog or a website, including social networking
10 websites or on-line diaries, to send or to receive any
11 information to or from anyone about this case or your
12 experience as a juror until after you have been
13 discharged from your jury duty.

14 During the trial, you must not listen to
15 anyone else talk about the case or the people involved
16 in the case.

17 You must avoid any contact with the parties,
18 the lawyers, the witnesses and anyone else who may
19 have a connection to the case.

20 If anyone tries to talk to you about this
21 case, please tell that person that you cannot discuss
22 it because you are a juror.

23 If that person keeps talking to you, simply
24 walk away and report the incident to the Bailiff or to
25 our Courtroom Deputy as soon as you can.

26 After the trial is over and I have released
27 you from jury duty, you may discuss the case with
28 anyone, but you are not required to do so.

1 During the trial, please do not read, listen
2 to or watch any news reports about this case, though I
3 have no information that there will be news reports
4 concerning this case.

5 This prohibition extends to the use of the
6 internet in any way, including reading any blog about
7 the case or about anyone involved with it.

8 If you receive any information about this
9 case from any source outside of the courtroom,
10 promptly report it to the Court Clerk or to my
11 Bailiff.

12 It is important that all jurors see and hear
13 the same evidence at the same time.

14 Please do not take anything I say as an
15 opinion about this case; further, do not do any
16 research on your own or as a group. Please do not use
17 dictionaries, the internet or other reference
18 materials. Do not investigate the case or conduct any
19 experiments. Do not contact anyone to assist you,
20 such as a family accountant, doctor or a lawyer.

21 Please do not visit or view the scene of any
22 event involved in this case or use any internet maps
23 or mapping programs or any other program or device to
24 search for or to view any place discussed in the
25 testimony.

26 If you happen to pass by the scene, please do
27 not stop or investigate.

28 If you do need to view the scene during the

1 trial, you will be taken there as a group under proper
2 supervision.

3 If you violate any of these prohibitions on
4 communications and research, including prohibitions on
5 electronic devices and research, you may be held in
6 contempt of court or face other sanctions. That means
7 you may have to serve time in jail, pay a fine or face
8 other punishment for that violation.

9 It is important that you keep an open mind
10 throughout this trial. Evidence can only be presented
11 a piece at a time.

12 Do not form or express an opinion about this
13 case while the trial is going on. You must not decide
14 on a verdict until after you've heard all the evidence
15 and discussed it thoroughly with your fellow jurors in
16 your deliberations.

17 Please do not concern yourselves with the
18 reasons for the rulings I will make during the course
19 of the trial and do not guess what I may think your
20 verdict should be from anything I might say or do.

21 When you begin your deliberations, you may
22 discuss the case only in the jury room and only when
23 all the jurors are present.

24 You must decide what the facts are in this
25 case.

26 Please do not let bias, sympathy, prejudice
27 or public opinion influence your verdict.

28 At the end of the trial, I will explain the

1 law that you must follow to reach your verdict.

2 You must follow the law as I explain it to
3 you even if you do not agree with the law.

4 Now, there is a wrinkle here, and the parties
5 have agreed to what lawyers call bifurcate the trial.

6 There will be two phases to this trial that
7 you will participate in. The first phase will be to
8 determine the threshold issues of liability and
9 causation.

10 Once we have you proceed through the trial on
11 that particular phase, you will be given instructions
12 and then there will be a verdict form.

13 Depending on what your verdict form
14 indicates, there will be a second phase with respect
15 to what kind of damages might or could be imposed in
16 the case.

17 Okay? So there are two phases. You will be
18 part of both.

19 And, by the way, yesterday I mentioned
20 something about traumatic brain injury.

21 That's what I understood the case to be. It
22 may be something that is not part of this case, it is
23 not a part of your decision-making.

24 We will have to let the evidence unfold in
25 the case, okay?

26 So sometimes I read things and I over
27 generalize; but in any event, we were able to sort out
28 folks who had some concerns about those issues. Okay.

1 So the next item that we have here is an
2 instruction which I give to folks who are concerned
3 about legal meanings.

4 Some words or phrases used during this trial
5 have legal meanings that are different from their
6 meanings in everyday use.

7 These words and phrases will be specifically
8 defined in these instructions.

9 Please be sure to listen carefully and to
10 follow the definitions I give you. Words and phrases
11 not specifically defined in these instructions are to
12 be applied using their ordinary, everyday meanings.

13 Some of these instructions may not apply
14 depending on your findings about the facts of this
15 case.

16 Please do not assume just because I give a
17 particular instruction that I am suggesting anything
18 about the facts.

19 After you have decided what the facts are,
20 follow the instructions that do apply to the facts as
21 you find them.

22 Okay. So, next, "Overview of the Trial."
23 Okay.

24 To assist you in your task as jurors, I will
25 now explain how the trial will proceed, because I have
26 already told you there will be two phases.

27 I will first begin by identifying the parties
28 to this case.

1 As you know, Franciscus Dylan Rosario filed
2 this lawsuit. He is called the Plaintiff. He seeks
3 damages from Subhi Abdelhalim, who is called the
4 Defendant.

5 Mr. Rosario claims that he sustained injury
6 when the Lime scooter he was riding collided with
7 Mr. Abdelhalim's vehicle. Mr. Abdelhalim denies that
8 he was at fault for the alleged collision.

9 First, each side may make an opening
10 statement but neither side is required to do so. An
11 opening statement is not evidence. It is simply an
12 outline to help you understand what the party expects
13 the evidence will show.

14 Also because often it is difficult to give
15 you the evidence in the order we prefer, the opening
16 statement allows you to keep an overview of the case
17 in mind during the presentation of the evidence.

18 Next, the jury will hear the evidence.

19 Mr. Rosario will present evidence first. And
20 when Mr. Rosario is finished, Mr. Abdelhalim will have
21 the opportunity to present evidence.

22 Each witness will be first questioned by the
23 side that asked the witness to testify. This is
24 called direct examination.

25 Then the other side is permitted to question
26 the witness. This is called cross-examination.

27 Documents or objects referred to during the
28 trial are called exhibits. Exhibits are given a

1 letter or a number so that they may be clearly
2 identified.

3 Exhibits are not evidence until I admit them
4 into evidence.

5 During your deliberations, you will be able
6 to look at all exhibits admitted into evidence.

7 There are many rules that govern whether
8 something will be admitted into evidence.

9 As one side presents evidence, the other side
10 has the right to object and to ask me to decide if the
11 evidence is permitted by the rules.

12 Usually I will decide immediately, but
13 sometimes I may have to hear arguments outside of your
14 presence.

15 After the evidence is presented, I will
16 instruct you on the law that applies to the case and
17 the parties will make their closing arguments.

18 What the parties say in closing argument is
19 not evidence. The arguments are offered to help you
20 understand the evidence and how the law applies to it.

21 So for each phase, we will be doing the same
22 thing. Okay? All right.

23 Taking Notes During Trial.

24 You will be given notebooks and may take
25 notes during the trial. Please do not take the
26 notebooks out of the courtroom or jury room at any
27 time during the trial.

28 You may take your notes into the jury room

1 during deliberations.

2 You should use your notes only to remind
3 yourself of what happened during the trial.

4 Please do not let your notetaking interfere
5 with your ability to listen carefully to all the
6 testimony and to watch the witnesses as they testify,
7 nor should you allow your impression of a witness or
8 other evidence to be influenced by whether or not
9 other jurors are taking notes.

10 Your independent recollection of the evidence
11 should govern your verdict and you should not allow
12 yourself to be influenced by the notes of other jurors
13 if those notes differ from what you remember.

14 The Court Reporter is making a record of
15 everything that is said. If during deliberations you
16 have a question about what the witness said, you
17 should ask the Court Reporter's records to be read to
18 you. You must accept the Court Reporter's record as
19 accurate.

20 At the end of the trial, your notes will be
21 collected and destroyed.

22 A couple of other comments.

23 If you do miss something, you can simply
24 raise your hand. If a witness is unclear -- that is,
25 you simply didn't hear something or you are unclear
26 about something -- raise your hand.

27 I don't want to have any questions, but we
28 can have the -- the purpose of that is to have the

1 witness either repeat what he or she or they said or
2 to have the Reporter read back to you what was just
3 said by the witness. Okay?

4 So if that is the case, please do so.
5 Sometimes I miss things. I will also, on my own, ask
6 to have a witness clarify or to repeat a statement.

7 Secondly, you will not be handed the
8 notebooks now.

9 The reason is because what the parties say in
10 opening statement is not evidence. What I don't want
11 you to do is to fold in the remarks of the parties in
12 the opening statements with the actual evidence that
13 is admitted into the case.

14 Even among the best of us, sometimes we
15 forget. So I think it is much easier that we draw a
16 bright line between opening statements and the content
17 of those remarks from the actual evidence.

18 You will be presented with the notebooks
19 after the opening statements are given so that you
20 have an opportunity to record your notes from the
21 actual evidence in the case.

22 All right. So the next instruction is
23 entitled, "insurance." It is short.

24 You must not consider whether any of the
25 parties in this case has insurance. The presence or
26 absence of insurance is totally irrelevant. You must
27 decide this case based only on the law and the
28 evidence in this case.

1 "Evidence." You must decide what the facts
2 are in this case only from the evidence you see or
3 hear during the trial.

4 Sworn testimony, documents or anything else
5 may be admitted into evidence.

6 You may not consider as evidence anything
7 that you see or hear when court is not in session,
8 even something done or said by one of the parties,
9 attorneys or witnesses.

10 What the parties say during the trial is not
11 evidence. In their opening statements and closing
12 arguments, the parties will talk to you about the law
13 and the evidence.

14 What the parties may say may help you
15 understand the law and the evidence, but their
16 statements and arguments are not evidence.

17 The parties' questions are not evidence.
18 Only the witnesses' answers are evidence.

19 You should not think that something is true
20 just because an attorney or the Plaintiff's question
21 suggests that it is true. However, the attorney or
22 the attorneys and Plaintiff can agree that certain
23 facts are true. This agreement is called a
24 stipulation.

25 No other proof is needed and you must accept
26 those facts as true in this trial.

27 Each side has the right to object to evidence
28 offered by the other side.

1 If I do not agree with the objection, I will
2 say it is overruled.

3 If I overrule an objection, the witness will
4 answer and you may consider the evidence.

5 If I agree with the objection, I will say it
6 is sustained. If I sustain an objection, you must
7 ignore the question.

8 If the witness did not answer, you must not
9 guess what the witness might have said or why I
10 sustained the objection.

11 If the witness has already answered, you must
12 ignore the answer.

13 A party may make a motion to strike testimony
14 that you have heard.

15 If I grant that motion, you must totally
16 disregard the testimony. You must treat it as though
17 it did not exist.

18 Witnesses. A witness is a person who has
19 knowledge related to this case.

20 You will have to decide whether you believe
21 each witness and how important each witness's
22 testimony is to the case.

23 You may believe all, part or none of a
24 witness's testimony.

25 In deciding whether to believe a witness's
26 testimony, you may consider among other factors the
27 following -- and they give five of them as an example:

28 A: How well did the witness see, hear or

1 otherwise sense what the witness described in Court?

2 B: How well did the witness remember and
3 describe what happened?

4 C: How did the witness look, act and speak
5 while testifying?

6 D: Did the witness have any reason to say
7 something that was not true; for example, did the
8 witness show any bias or prejudice or have a personal
9 relationship with any of the parties involved in the
10 case or have a personal stake in how this case is
11 decided?

12 And E: What was the witness's attitude
13 toward this case or about giving testimony?

14 Sometimes a witness may say something that is
15 not consistent with something else the witness said.

16 Sometimes different witnesses will give
17 different versions of what happened. People often
18 forget things or make mistakes in what they remember.

19 Also, two people may see the same event but
20 remember it differently.

21 You may consider these differences but do not
22 decide the testimony is untrue just because it differs
23 from other testimony; however, if you decide that a
24 witness did not tell the truth about something
25 important, you may choose not to believe anything that
26 witness said.

27 On the other hand, if you think the witness
28 did not tell the truth about some things but told the

1 truth about others, you may accept the part you think
2 is true and ignore the rest.

3 Please do not make any decision simply
4 because there were more witnesses on one side than on
5 the other.

6 If you believe it is true, the testimony of a
7 single witness is enough to prove a fact.

8 This is for our alternate jurors:

9 As an alternate juror, you are bound by the
10 same rules that govern the conduct of the jurors who
11 are sitting on the panel.

12 You will observe the same trial and should
13 pay attention to all of my instructions just as if you
14 were sitting on the panel.

15 Sometimes a juror needs to be excused during
16 a trial for illness or for some other reason.

17 If that happens, an alternate will be
18 selected to take that juror's place.

19 Next, "Bias."

20 Each of us has biases about, or certain
21 perceptions or stereotypes of, other people.

22 Biases is a tendency to favor or disfavor a
23 person or group of people.

24 We may be aware of some of our biases though
25 we may not reveal them to others.

26 We may not be fully aware of some of our
27 other biases. We refer to biases we are not fully
28 aware of as implicit or unconscious.

1 It may be based on stereotypes we would
2 reject if they were brought to our attention.

3 Implicit or unconscious biases can affect how
4 we proceed and how we make decisions without our being
5 aware of the effect of those biases on those
6 decisions.

7 Our biases often affect how we act favorably
8 or unfavorably toward someone.

9 Bias can affect our thoughts, what we
10 remember, what we see and hear and whom we believe or
11 disbelieve.

12 We may favor or be more likely to believe
13 people whom we see as similar to us or with whom we
14 identify, or we may disfavor or be less likely to
15 believe people whom we see as different from us.

16 As jurors, you are being asked to make very
17 important decisions in this case.

18 You must not let bias, prejudice or public
19 opinion influence your decision.

20 You must not be biased in favor of or against
21 parties or witnesses because of their race, national
22 origin, ethnicity, disability, gender, gender
23 identity, gender expression, religion, sexual
24 orientation, age or socioeconomic status.

25 Your verdict must be based solely on the
26 evidence presented.

27 You must carefully evaluate the evidence and
28 resist any urge to reach a verdict that is influenced

1 by bias for or against any party or witness.

2 "Bench Conferences."

3 From time to time during the trial, it may
4 become necessary for me to talk to the parties out of
5 the hearing of the jury, either by having a
6 conversation at the bench when the jury is present in
7 the courtroom or by calling a recess to discuss
8 matters outside of your presence.

9 The purpose of these conferences is not to
10 keep relevant information from you, but to decide how
11 certain evidence is to be treated under the rules of
12 evidence.

13 Please do not be concerned about our
14 discussions or try to guess what is being said.

15 I may not grant a party's request for a
16 conference. Please do not consider my granting or
17 denying a request for a conference as any indication
18 of my opinion of the case or my view of the evidence.

19 All right. Two more.

20 "Why Electronic Communications and Research
21 Are Prohibited."

22 I know that many of us are used to
23 communicating and perhaps even learning by electronic
24 communications and research; however, there are good
25 reasons why you must not electronically communicate or
26 do any research or anything having to do with this
27 trial or the parties.

28 In Court, jurors must make important

1 decisions that have consequences for the parties.
2 Those decisions must be based only on the evidence
3 that you hear in this courtroom.

4 The evidence that is presented in Court can
5 be tested. It can be shown to be right or wrong by
6 either side.

7 It can be questioned and it can be
8 contradicted by other evidence.

9 What you might read or hear on your own could
10 easily be wrong, out of date or inapplicable to this
11 case.

12 The parties can only receive a fair trial
13 only if the facts and information on which you base
14 your decisions are presented to you as a group with
15 each juror having the same opportunity to see, hear
16 and evaluate the evidence.

17 Also, a trial is a public process that
18 depends on disclosure in the courtroom of facts and
19 evidence.

20 Using information gathered in secret by one
21 or more jurors undermines the public process and
22 violates the rights of the parties. Okay.

23 And the last instruction is very short.

24 It is entitled, "Wealth of Parties."

25 In reaching a verdict, you may not consider
26 the wealth or poverty of any party.

27 The party's wealth or poverty is not relevant
28 to any of the issues that you must decide.

1 Very well. All right.

2 So we are going to enter the next phase of
3 the trial where the parties have the opportunity, if
4 they choose, to make opening statements to the jury.

5 Again, an opening statement is not evidence
6 but merely a prediction by the party of what they
7 believe the evidence will show. Very well.

8 How we doing? Ready, Mr. Rosario?

9 MR. ROSARIO: May I drink some water to
10 prepare?

11 THE COURT: Of course. Each party has been
12 given roughly a half an hour to give their remarks.

13 Do you wish to use the lectern, sir?

14 MR. ROSARIO: May I do an adjustment, five
15 seconds?

16 THE COURT: Let's just take a 15-minute break
17 now and then we will go straight through with the
18 opening remarks, okay?

19 So let's come back at 10:25 and remember not
20 to form or express any opinion about this case to
21 anyone. Thank you.

22 MR. KEEGAN: Thank you, Your Honor.

23 (Short recess).

24 THE CLERK: Please remain seated and come to
25 order.

26 THE COURT: All right. The record should
27 reflect that we have all parties present. As I
28 mentioned, this is the occasion for opening statements

1 or opening remarks by the parties in this case.

2 Our Court Reporter has asked to -- sometimes
3 folks appear in the well, which is the area right
4 between the Reporter and Counsel table; sometimes we
5 use the lectern.

6 It is the request of our Reporter that the
7 parties speak from their Counsel table largely because
8 not only the listening, but he is also watching their
9 lips.

10 So whatever makes it work for our record, the
11 better.

12 So we will start with Mr. Rosario.

13 Mr. Rosario, you may begin with your opening
14 remarks.

15

16 OPENING STATEMENT

17 MR. ROSARIO: Good morning, San Franciscans
18 and jury members. We appreciate you being here. I am
19 grateful for each one of you.

20 It has been four years. I was struck in
21 February of 2021 and it has taken a long time to get
22 here before you. We didn't think we could make it.

23 I am self-represented now. I don't have an
24 attorney, but the equation didn't work for them so I
25 will suffer for that.

26 Who I am. Today, no matter what the outcome
27 of this trial is, I have two grandsons and that is all
28 I need.

1 They are going to be all the happiness I
2 need. That is it.

3 I mean, whatever happens here, I have already
4 been blessed, I am grateful.

5 I am not a professional attorney. But what I
6 do in my life today is I am a scientist. I have
7 worked in artificial intelligence, cognitive
8 artificial intelligence and cybernetics since 1998, my
9 first job out of Netscape. I designed massive systems
10 for companies like Orvil or Samsung, IBM for years.

11 And in 2019, I founded a company with my
12 business partner. We started designing separate
13 systems for companies like Google and Amazon and we
14 left our big corporate jobs and decided to strike off
15 on our own like a lot of San Franciscans generally do.

16 The case is split into two parts. The first
17 one that I am meaning to do is -- to get your verdict
18 on, is about the causation, whether I was hit or not.
19 And we understand that that is going to be the
20 fundamentals of the first part of the argument.

21 The Defense has stated multiple times under
22 oath that he never touched me with his vehicle. That
23 is still the standpoint right now.

24 And if you can imagine the chain of events
25 that happens when there is an outright denial if
26 somebody says that, hey, you hit me with a vehicle and
27 the other person goes, no, I didn't, you have to prove
28 that. And when the other person denies it, it causes

1 a chain of events, all sorts of things happen.

2 Whether it comes down to paying for, you
3 know, physical damages that a person has, lots of
4 things become unavailable to you until you are able to
5 prove that fact, and at this part right here that we
6 are going to be going over until we get to the
7 damages, I don't want to get into a lot of the things
8 about how I feel because those aren't relevant right
9 now.

10 The most important thing is for us to
11 understand and to establish whether I was hit by a
12 vehicle. Was it more likely than not that I was hit
13 by a vehicle? Was the other party negligent in that
14 behavior?

15 Were they negligent? Did they follow their
16 duty of care? And what happened immediately
17 afterwards, like during the collision, that will
18 establish a number of different things that happened
19 for us next.

20 We want to get this out of the way, because
21 the most important part is for us to be honest and
22 truthful, for us to have candor and tell the truth
23 regardless of how much we might be in trouble.

24 If we all walked around in our society and we
25 decided that I did something wrong and we can just
26 avoid it and then say, oh, well, you know, and deny
27 our own accountability in those things, we wouldn't
28 really have things like the Court because this is

1 taken care of.

2 When a person states that a wrong has
3 happened, they have a duty, an obligation in society
4 to set that record straight, not deny it for four
5 years, where a person loses everything they have,
6 their home, their career, their physical body.

7 Those things are not fair. A person is
8 obligated to tell the truth from the moment something
9 happens.

10 And you can't leave a person hanging for
11 almost a half a decade. We are going into five years.

12 And all I want is for the truth to be told.
13 I am going to present evidence that is less than a
14 criminal situation.

15 This is more likely than not, that means
16 51 percent. Was I hit? Was there a duty of care to
17 be taken care of?

18 Was the driver obligated to report the
19 situation properly and honestly with candor regardless
20 of his income or my income or anything?

21 The people that you see around me are my
22 family. They have been -- my poor wife, she has been
23 really, really, really strong through this.

24 These people don't even know how much pain I
25 have to stand. And then try to do this by yourself,
26 it is unfortunate, but we took a gamble on you people
27 in San Francisco here that you guys will see the
28 truth.

1 We believe that you guys are smart. The
2 Defense doesn't think so. They think that by omitting
3 words, that you are not going to see through the veil.

4 The job of a Defense oftentimes means they
5 want to limit things to make sure that you don't get
6 emotionally charged. Also they want to make sure that
7 the evidence that I present to you is the only thing
8 that you judge this case upon. But remember, it is
9 only a 51 percent, is it more likely than not.

10 We have a coin, we throw it, and it
11 constantly comes up heads and you have a probability
12 and you will sit there and you are going to say more
13 likely than not it is heads, you can come to that
14 conclusion.

15 That is what gives us this capability to have
16 these amazing courts. Mr. Wong is doing his job with
17 me.

18 I am a Pro Per. I don't know what I am
19 necessarily doing here. I am fumbling through it. I
20 am doing the best I can.

21 He admonishes me and he constantly tells me
22 what I should not be doing.

23 What I do know is -- I should be doing is I
24 should be presenting things to you and telling you the
25 truth and being transparent in everything I say and
26 do. Because what else do we have left in our society?

27 Mr. Keegan and Victoria, my wife,
28 Miss Rosario, will be providing occasional medical

1 help to help me adjust --

2 MS. NAVARATNASINGHAM: Objection.

3 THE COURT: Overruled.

4 MR. ROSARIO: -- I will be going back to make
5 sure that I am not interrupting the proceedings. I am
6 going to do my best to make sure that you guys are
7 informed. The integrity of my case is based upon
8 transparency with all of you and the opportunity for
9 each of you to see the evidence that is put in front
10 of you.

11 You have to be completely objective in this,
12 right?

13 And if you were to sit there and you were to
14 see the evidence, then I guess at the end of it is to
15 say: Hey, you know, what would I think? And you use,
16 to the best your ability, common knowledge. And
17 obviousness is a very important part of this case.

18 I do not have experts in this portion.

19 We have simply facts, all right, business
20 records and those things in this portion of the case.

21 Actually, if you guys are still with me and
22 if we do have a damages section, I am going all in on
23 this right now.

24 This is literally -- by bifurcating this, I
25 am taking a chance that you guys will see what I have
26 experienced, you are going to look at the facts and
27 you are going to determine whether the Defendant hit
28 me with his vehicle, if he operated and followed the

1 duty of care, whether he is liable for the damage that
2 I am telling you that he caused to me and will present
3 a number of different things, and you guys will come
4 to a verdict that shows the honesty and the goodness
5 truth of the people of San Francisco, that you guys
6 are not fooled by, you know, diversions and
7 misrepresentations.

8 That is part of it. Several of you, I
9 believe, are attorneys. And you are highly educated
10 individuals who have worked in your fields. And I
11 respect that.

12 I am hoping all of you draw upon your common
13 sense, your knowledge that an organization such as
14 these Courts just trying to make sure you guys are
15 capable of seeing everything in the most fair light.
16 They have to protect the Defendant from people trying
17 to come in and defraud the courtroom in the Courts.

18 People do that across the country. Rest
19 assured this is not happening here today. This is not
20 what I am here for.

21 I am here to make sure that me and my family,
22 my team, my former employees who have had to furlough,
23 all of those people, one hundred plus people -- the
24 reason you saw all those witnesses on that list,
25 because all those people are standing behind me saying
26 what happened was wrong, and it is all upon me to make
27 sure that you guys have the evidence necessary and put
28 it in front of you.

1 I might not be able to reach the level of
2 standard that Judge Wong or this Court or just the law
3 requires to get the evidence in. I am going to make
4 my best effort, but remember this is a preponderance
5 of the evidence, 51 percent.

6 I might not get a couple of them in but it
7 comes down to the total weight of all of the evidence
8 that I present, one or two of them might not get in,
9 but you look at the group of it, is it more likely
10 than not that these things happened.

11 I don't want to get -- like I said, I am not
12 going to talk about the damages or the things that I
13 am suffering, my alleged suffering is what the Defense
14 says.

15 What I want you to talk about right now is
16 the evidence showing that I was hit and that the
17 Defendant is liable and should have reported that.

18 Imagine four years of being told that that
19 never happened despite all the things that you will be
20 able to see.

21 Matter of fact, we have a gentleman here who
22 is going to help us today.

23 And he will be back shortly, Officer
24 Fernandez.

25 MR. SOBATI: He was here momentarily.

26 THE COURT: Witnesses have been asked to
27 remain outside the courtroom during opening
28 statements.

1 MR. SOBATI: Thank you.

2 MR. ROSARIO: Officer Fernandez was kind
3 enough -- and I believe that -- you know, at first, I
4 had imagined and thought we were sitting in a
5 situation where I was going to have to go ask the
6 police. I realized truthfully what we have to do is
7 explain that.

8 The Defense, I don't know what his motivation
9 is, I am not going to imagine it. Just like I had
10 spoken to the jury yesterday; she didn't know what my
11 motivation was, she didn't jump to conclusions.

12 Some people think I have been motivated by
13 money.

14 I had already owned a multi-million-dollar
15 business. I am an artificial intelligence architect.
16 I can get jobs at companies that pay me very, very
17 well.

18 This is not why I am here.

19 I am here because all the other people have
20 had to sacrifice to help support me for the last four
21 years till we got here.

22 They believe that I deserve justice, you
23 know, and I am not --

24 There are, there are pieces of information
25 here in this -- that are going to be brought before
26 you and they are going to be very disturbing, the
27 images, videos, the calls might make you really,
28 really upset.

1 And I do not want you guys to base this on
2 your emotions about what the Defendant did, okay?

3 I want you to do this logically. Just
4 imagine if it was your mother, your brother or whoever
5 you want to think that did this and you have to rule
6 in a manner that the Court would see that you guys did
7 not do it based upon emotion.

8 Some of the things you are going to hear, and
9 then you kind of go, oh, wow, this was said and these
10 things happened, and then we are here today with a
11 complete denial that Mr. Rosario was ever even touched
12 by the vehicle.

13 You are going to go, all this doesn't add up.
14 Why is the denial still happening in four years? Why
15 have they left him out to hang and dry?

16 Now, that is a kind of a different portion of
17 the calculation.

18 The calculation is going to be that, that
19 liability and causation. And what that does for me is
20 it opens up -- because right now, I do not have
21 experts and there is a reason why -- you know, I am
22 able to say I don't have the financials.

23 But he told you not to judge me based upon my
24 financial capacity, but I do not have experts, experts
25 are required, money is required for experts unless you
26 have them non-retained.

27 I also messed up in not including certain
28 people onto my documents early and because of that I

1 have been denied them.

2 I have failed in my protocol and in those
3 things. It doesn't mean I didn't try.

4 My treating physicians, no. That is, again,
5 damages, not right now.

6 We are going to talk about those things
7 later. Right now we are going to establish whether
8 Mr. Rosario, myself -- once in a while I will talk in
9 the third person. When my family sees me do that,
10 when my students come to my laboratory and I teach
11 mathematics, I teach physics -- I studied, in my
12 graduate studies at Berkeley, also under (inaudible)
13 also Stanford.

14 I am a scientist. I am a businessman. And I
15 owned a company. And this is really, truthfully -- I
16 guess, if you say -- this is almost like the
17 Montague/Capulet situation. This is the Rosario
18 family and my company against Abdelhalim, who refused
19 to take accountability when given the opportunity.
20 Two years later, he was deposed, and still again
21 refused to say he even touched me with his vehicle.

22 Now today, still -- yesterday, before a jury
23 of 122 people -- said that his vehicle never touched
24 me, it was not his fault. He had nothing to do with
25 it.

26 Matter of fact, he claims he was just driving
27 by as a good citizen and found me crying on the
28 sidewalk.

1 And those things you can imagine all this
2 weight and this denial over the years. This is not a
3 criminal case.

4 Some people might call what he did criminal.
5 It might very well be. There are certain factors in
6 there and I don't know how to assess them. I am not a
7 prosecutor.

8 But you are going to see and hear the
9 evidence that is before you that is going to show that
10 Mr. Abdelhalim has been avoiding accountability since
11 day number one.

12 He had called the 911 services from his phone
13 on my behalf. So I can make a dying declaration to my
14 children and family while I was dying on the sidewalk,
15 I thought I was dying, and I needed somebody to record
16 something.

17 Mr. Abdelhalim called and in the call he said
18 he is calling on my behalf and I sent a message, with
19 a collapsed lung, to my children and my family to tell
20 them who had possibly murdered -- that was my
21 recording, my message to my family.

22 And I survived. The people at San Francisco
23 helped me, kept me from dying.

24 And in the face of this type of situation,
25 when an individual like me -- I can write quantum
26 physics equations, I am not stupid.

27 What I don't appreciate is a person, when in
28 the face of all the facts, still can't take

1 accountability. Accountability and the truth is what
2 matters in this courtroom.

3 When the truth comes out and a person has
4 denied and denied and denied for years any -- any
5 involvement, that causes this kind of what you would
6 call a back pressure of things that happen in a
7 person's life.

8 And then when it is found and that truth
9 comes out, accountability is to be served and it is
10 served by you.

11 I am no vigilante. I don't do those crazy
12 things like that one guy in New York that went after
13 the -- that is not me.

14 It is better to have -- in the Court, in the
15 public court, to be exonerated and for the people to
16 say yes, Mr. Rosario, your story is true.

17 And we do not reward people for lying and
18 denying things for years. That is inappropriate.

19 No society can do that. Sometimes they do,
20 you know. Look at what is going on in Washington, DC.
21 We all know what is going on over there. Whatever
22 side of the story that you are on -- but, you know,
23 Mr. Rudy Giuliani, he makes decisions and how he does
24 it, he is an attorney.

25 So not even attorneys are immune to the
26 situation of telling the truth. So remember that. We
27 are all human. I am a human. Every child deserves
28 the rights that I deserve, too.

1 For those of you who have children, I have
2 grandchildren, too, I have two beautiful grandsons
3 born during this trial that I haven't been able to see
4 yet because I am stuck here making sure that the truth
5 so my grandchildren will know: Grandpa, where were
6 you when I was born?

7 I was in San Francisco making sure that the
8 honest truth comes out and then I can come and see
9 you.

10 They are precious to me. Two grandsons in
11 like a month. Both my daughters were pregnant during
12 the same time. It was amazing.

13 And like I said, that is the only gift I
14 needed. If nothing comes out of this, I am
15 indifferent.

16 One of the things that I have just learned
17 about a witness who very well could be dead -- I don't
18 know -- he left a message for me and we are going to
19 present that. Whether it is admissible, whether you
20 guys put any weight on to it or not, my dying
21 declaration was for my children and this man had left
22 a recording.

23 Mr. Fernandez is going to be here and we are
24 going to talk about what that is.

25 And there are some really important things
26 out there we will share later on in this trial or in
27 the next couple of days.

28 Sorry. I will sit down for a minute. You

1 are fully capable of using your common sense and your
2 compassion. I mean, this is not for me. Your
3 compassion is also for the Defendant.

4 What would motivate somebody to deny
5 something for so long, and is that correct?

6 That is upon you as a jury and the peers, the
7 good people of San Francisco, to decide.

8 That is a pretty serious allegation I put
9 against the Defendant here, to carry on the lies that
10 he never touched me with his vehicle for four years.
11 It has got to this point.

12 Sometimes when people lie they just can't
13 back out. Mr. Giuliani, he has a problem with that.
14 He is going to back out and let it go for years.

15 Mr. Abdelhalim has done that as well. He
16 doubled down going so far as even saying that I
17 fabricated all of this.

18 I just want to go see my grandchildren as
19 soon as I can and get this part over.

20 And I am hoping that each of you is capable
21 of seeing through the misdirections, the lies and the
22 things or the limitations that the Defense is going to
23 make an attempt to do.

24 They are going to challenge every single bit
25 of evidence, not because it is fake, but because it
26 damages their case.

27 Every single time, another piece gets weighed
28 on the scales of justice.

1 It is a beautiful system and Mr. Wong has
2 spent his life providing that for people, all right?

3 I disagree with Mr. Wong sometimes on things
4 that I believe are narrow, and my misinterpretations,
5 oftentimes he corrects me and he says, Mr. Rosario,
6 you are wrong, you can't do that, that is not how this
7 thing works.

8 You know, justice is a beautiful system in
9 our country and I want all of you to understand that I
10 absolutely respect it, but I am also going to stand up
11 and I am going to fight when I think it is --
12 something inherently inside my heart doesn't feel
13 right.

14 Sometimes there are rulings and he goes,
15 well, Mr. Rosario, I can't tell you how to practice
16 law but maybe you should go look up how to properly do
17 this part.

18 There is a mechanism, I won't deny it for
19 you. Oftentimes, anxiety as a result of the trauma
20 that I personally experienced, my personal anxiety is
21 very real for me and it echoes through an entire
22 organization of people: My four children, my four
23 sisters, my mother. I mean, it goes on.

24 I wanted to speak to you organically without
25 some kind of prepared letter because it comes down to
26 the transparency part, you know.

27 Am I believable? The preponderance of the
28 evidence that is going to be put before you, like I

1 said, some is going to be disturbing. The Defense is
2 going to say that I am going to elicit too much
3 emotions from you.

4 But it is just fact. These are business
5 records, police records, hospital records. That is
6 all we are going to look at right now.

7 I am not going to say anything about what
8 they mean. I will theorize on things. Like I said, I
9 am not an attorney, I am not a prosecutor. But I want
10 you to reach down and look and say: Is this right?
11 Does this make sense? All right.

12 That is what the beautiful part about the
13 jury is, that even if -- even if Mr. Wong says
14 sometimes it could be just one, one witness can tip
15 the balance for you or one piece of evidence.

16 And that one piece of evidence holds so much
17 weight that I could have a thousand more, but that one
18 just rings clear that there is honesty or there is
19 deception.

20 Those things are the things I want you to pay
21 attention to at this first stage.

22 I have taken the time to hear each of your
23 story and I respect and appreciate all of you.

24 I think what you guys are doing here today
25 means the world to my family, to us, my wife. And
26 I -- we tear up seeing you guys coming in.

27 It is like watching the opening of The
28 Bachelor where all the maidens come in, right?

1 It is like we get to go through this journey
2 with you. You guys get to see me bare my soul.

3 Wouldn't it be just grand if the Defense's
4 story hadn't fabricated all this?

5 This man happens to be one of the best damned
6 actors I have seen in the most elaborate con game.

7 Why would I sabotage my own
8 multi-million-dollar business for these things? It
9 doesn't make any sense.

10 You've got to think: What is my motivation
11 to even claim it, to throw myself in front of a truck?
12 They will come at me with everything.

13 They say, he throws himself at a truck to
14 make money. I was already making money.

15 The absurdity of the Defense's position just
16 makes me laugh after four years, you could go okay,
17 you know, I am grateful to create all of this that we
18 can sit back and we can laugh at the humor of our
19 human condition, of what we learn from one another.

20 That human condition is what we then put --
21 the premise of our entire society, the structure from
22 which we treat each other, the respect, the sanctity
23 from each one of us as we understand who we are, what
24 we mean to each other and how we are appropriately
25 suppose to treat one another.

26 There are different laws. And whether you
27 come from Saudi Arabia or Palestine or Israel or
28 London or Germany or South America or the

1 United States or Mexico or wherever, we all understand
2 the fundamentals of human rights, the right to life,
3 the right to continuity of your body, that should your
4 body ever be violated that the other person is capable
5 of taking accountability for that.

6 There are many people in our society who are
7 physically harmed. Sometimes harms can go even beyond
8 just your physical body.

9 THE COURT: Mr. Rosario, you have two minutes
10 left.

11 MR. ROSARIO: Okay. Like said, I am going to
12 do my best to ensure that I follow Judge Wong's
13 guidance and this Court's guidance.

14 I am a self-represented litigant. I have
15 made this decision because it is only fair that I am
16 not putting an attorney at risk for something that is
17 still -- or anybody at risk for something that is
18 still undecided as far as the causation, and the case
19 and the information is so profound; it is very
20 disturbing, some of it.

21 And like I said, the implications, the back
22 pressure of the denial, even today -- yesterday,
23 everyone heard it. He says, no fault, no touch,
24 nothing, I claim nothing, there is no reason
25 whatsoever that Mr. Rosario has any claim against me.

26 Imagine -- fast forward four years. If you
27 see any information that even gives you a 51-percent
28 more-likely-than-not that Mr. Abdelhalim -- then it

1 causes an entire chain reaction, that based upon that
2 one denial -- and I want you to understand that there
3 is a lot weighing on this decision from you.

4 And so you have to look at it and say: Is it
5 more likely than not that Mr. Abdelhalim caused this?

6 And how can you understand from my position
7 that I am not -- I don't wish it on anyone? I didn't
8 wish that this happened.

9 We could have settled this a long time ago
10 with him, he and I.

11 MS. NAVARATNASINGHAM: Objection.

12 THE COURT: Sustained.

13 MR. ROSARIO: This is not grounds, I am not
14 talking about money, I am talking about the truth. He
15 could have had the truth come out, okay?

16 And that is all that we are asking for here,
17 is for you guys to see the evidence that we all see
18 and determine on the truth of this.

19 But from there, I am going to sit back and I
20 am going to think about how to present the information
21 to you in a very logical cohesive manner that is not
22 embedded with emotion or conjecture.

23 I am not going to provide anything like that
24 at this stage right now.

25 We are going to look at facts, evidence and
26 videos and things like that, that have nothing to do
27 with me determining damages.

28 This stage right now has nothing to do right

1 now with money, at least in my eyes.

2 This truly has to do with: Is his denial
3 after four years true or false?

4 Is there enough information there from the
5 collection that you guys are going to see that you
6 have determined that he did indeed hit me and he
7 caused the injury that I am suffering, that I suffer,
8 and then we can go forward from there.

9 And I appreciate you guys, all of you. I am
10 so grateful, my whole family is grateful for you to be
11 here. And I admire all of you.

12 I personally have never been on a jury yet.
13 So experiencing it from this side is surreal and I can
14 imagine for you guys, to sit there. So I appreciate
15 it. I have taken up my time. I guess the Defense is
16 next.

17 Again, thank you. I appreciate you all.

18 THE COURT: All right. Thank you.

19 MS. NAVARATNASINGHAM: Your Honor, I think
20 Defense will reserve our opening until our case in
21 chief.

22 THE COURT: Very well. All right. Do you
23 want to call your first witness, please?

24 THE CLERK: Your Honor, if I could take out a
25 moment to pass out the juror notebooks.

26 THE COURT: Yes, thank you.

27 MR. ROSARIO: Before we call a witness, I
28 would like to establish what I guess you would say is

1 the theory of my case right now at this point.

2 THE COURT: Well, no. That is part of your
3 opening statements, sir. I gave you half an hour.

4 Now, if you want to tie it all together.

5 MR. ROSARIO: I am going to explain --

6 THE COURT: Explain it during your closing
7 statement in the case. All right?

8 MR. ROSARIO: Thirty minutes is insufficient.

9 THE COURT: I am not going to allow you to do
10 that.

11 It is now time to call your first witness in
12 this matter.

13 MR. ROSARIO: All right.

14 Officer Fernandez, we are going to locate him
15 here in the courthouse.

16 THE COURT: He should be outside.

17 MR. ROSARIO: So I guess the proper way --

18 THE COURT: Sir, let's just wait until
19 everybody has their notebooks. And we are going to
20 call Officer Fernandez now.

21 Step forward, sir.

22 (Whereupon, Officer David Fernandez was
23 called as a witness and sworn to testify as follows).

24 THE WITNESS: I do.

25 THE CLERK: Thank you, please be seated.
26 Could you please state your name and spell it clearly
27 for the record into the microphone.

28 THE WITNESS: David Fernandez, D-a-v-i-d,

1 F-e-r-n-a-n-d-e-z.

2 THE CLERK: Thank you.

3 THE COURT: Thank you. You may inquire.

4

5 DIRECT EXAMINATION BY

6 MR. ROSARIO: Q. Okay. I am going to offer
7 the deposition of Officer David Fernandez that was
8 taken by Esquire on March 10, 2023 also.

9 And I have all the copies necessary that was
10 requested, with the Bates stamps on everything.

11 MS. NAVARATNASINGHAM: Your Honor, I object.
12 I believe a certified copy is required for trial.

13 MR. ROSARIO: We have the certification. The
14 Defense has been served that already. We have the
15 proof of service.

16 THE COURT: Okay. Do we have a copy of the
17 deposition transcript? We don't have a sealed copy?

18 THE CLERK: We have no copy actually.

19 MR. ROSARIO: We have provided those in
20 pretrial.

21 THE COURT: Let's do this: First thing I
22 want you to do, since we have Officer Fernandez here,
23 is for you to ask him questions, and then we will
24 address the matter of the deposition transcript later.

25 Is it parts of the deposition transcript,
26 all, some or --

27 MR. ROSARIO: For this part -- we are going
28 to bring him back again in a little bit.

1 This first part is we are going to establish
2 a couple things.

3 First I want to make sure that Officer
4 Fernandez is the one who had taken the report and
5 other things. So I guess I can start.

6 And the Defense is going to claim that they
7 never got this.

8 They were actually -- the Defense was
9 actually --

10 THE COURT: Sir, the only thing I want you to
11 do right now is to proceed with Officer Fernandez's
12 testimony.

13 You are here to elicit his testimony.

14 MR. ROSARIO: Okay.

15 THE COURT: Part of his job is to be here in
16 response to your request. So please move forward with
17 the direct examination of Officer Fernandez.

18 MR. ROSARIO: Q. Do you mind if I sit down,
19 Officer Fernandez?

20 A. That is fine.

21 Q. Very good. And I guess, if you don't mind,
22 tell the Court and everyone what you do in your daily
23 job and what you do as a job duty, I guess, on a
24 regular basis.

25 A. Yes. I am a police officer for the City and
26 County of San Francisco and I respond to a call for
27 service and I take police reports.

28 Q. And do you sometimes do traffic and other

1 situations like that? I know there is a number of
2 different variations of the law. Correct?

3 A. Yes.

4 Q. And the different types of laws, for example,
5 vehicle codes, there is penal codes and things like
6 that.

7 How does an officer -- for you, do you see a
8 lot of different types of calls on a regular basis?

9 A. Yes.

10 Q. Excellent. And are you familiar with the
11 call -- I am sure -- you have been in here many times
12 with the contention.

13 Are you familiar with the situation that
14 happened between myself and Mr. Abdelhalim on
15 February 4th of 2021?

16 A. Yes.

17 Q. Now, were you personally at the scene when
18 the collision happened?

19 A. No.

20 Q. Okay. And so the details and material that
21 you wrote in there, none of that is actually
22 eyewitness; is that correct?

23 A. Sorry. Can you clarify the question?

24 Q. So you wrote down details about the
25 collision, the details like drawings and stuff like
26 that, that you entered into the record.

27 None of that actually came from -- for
28 example, the details of, Rosario was hit or whatever,

1 those were all taken from statements from people that
2 were at the scene.

3 MS. NAVARATNASINGHAM: I object. It lacks
4 foundation, it is vague and ambiguous.

5 THE COURT: Sustained. You have to
6 establish: What are you talking about?

7 It is in a vacuum right now for the jury.

8 So please elicit some foundational
9 information from him about what he did or did not do.

10 MR. ROSARIO: Q. There was a police report
11 that was recorded and you filed which has an incident
12 number, correct.

13 A. Yes.

14 Q. Okay. And I believe here -- and I will ask
15 you a question that kind of -- you probably would be
16 able to remember, you were the author of that report
17 and you had stated before that -- the other officer, I
18 believe, is Officer Orengo, who had taken a statement
19 from the Defendant, you identified him.

20 You weren't necessarily there but you were
21 given some information -- correct -- from Dr. Orengo?

22 A. Correct.

23 Q. So who did Officer Orengo -- he received the
24 statement from Mr. Abdelhalim, correct?

25 A. I believe so. I don't remember exactly who
26 spoke to which party but I know he was on the scene.

27 Q. All right. We will be able to show that from
28 body cams from other people, I think Officer Orengo.

1 That will be available later.

2 So Mr. Abdelhalim had made a statement to
3 Officer Orengo. He had provided that to you.

4 And so there was no, there was not
5 necessarily any reason to either believe or disbelieve
6 Mr. Abdelhalim's statement, you just took it, correct,
7 and you just write it down and that is what the
8 situation is; is that correct?

9 MS. NAVARATNASINGHAM: Objection, it lacks
10 foundation.

11 THE COURT: Sustained.

12 MR. ROSARIO: Q. The foundation is: Was
13 Mr. Abdelhalim under oath when you took the statement?

14 A. Sorry. What do you mean by "under oath"?

15 Q. Miranda rights, under oath. Did you read
16 Mr. Abdelhalim his Miranda rights before he made a
17 statement?

18 A. No. He was not under arrest; so, no.

19 Q. Did you read me -- anyone in the scene,
20 myself -- my Miranda rights?

21 A. No.

22 Q. Okay. The officers that are there, can you
23 tell me the protocol -- when an officer arrives, for
24 example, a traffic collision, would you guys make
25 judgments, or do you guys just collect the information
26 and provide that in a report? Which happens?

27 A. We just collect statements from parties
28 involved; witnesses; we canvas for video and take

1 photos and put them in the police report.

2 Q. So you officers do not declare who actually
3 is at fault; they just collect information for
4 potentially later unless there is some kind of
5 evidence, right?

6 A. Right. So when I write a police report, I do
7 have to choose the party who was at fault based on the
8 facts that we have at the time. So, yes.

9 Q. Right. Do facts -- are statements from
10 witnesses or parties involved facts, or are they just
11 statements?

12 A. I mean, we take statements from witnesses who
13 claim things and then based on damages, based on the
14 totality of the circumstances, we determine who is at
15 fault.

16 Q. So I am asking a kind of a question on that.
17 We will expand on that.

18 If, say, for example, two parties got in a
19 fight on the street and they both blame each other,
20 how do you find out who is at fault then if both
21 parties are blaming the other person?

22 A. That is why we look for witnesses or video;
23 if there is no third-party witness, then maybe based
24 on the injuries. But every situation is different.

25 Q. Excellent. Excellent. So that is great.

26 Do you recall there being any witnesses other
27 than Mr. Abdelhalim and myself?

28 A. I don't believe so.

1 Q. You do not recall?

2 A. Yeah. I don't recall.

3 Q. You don't, correct? There could have been,
4 correct?

5 A. Correct.

6 Q. And I believe that you arrived at the scene
7 at a pretty late time. Correct? I mean, you weren't
8 the first officer on the scene.

9 A. Correct.

10 Q. Right. And so you personally -- even though
11 you wrote the report, you didn't have all of the
12 information, correct?

13 You were getting reports from the other
14 officers in order to build your report. That is what
15 you said in your deposition.

16 A. Yeah. So an officer had provided me a
17 statement or information from the parties, then I
18 wrote the police report.

19 Q. So, you know, I have heard officers and other
20 people say that they are able to tell when somebody is
21 being dishonest or something like that.

22 I am not asking that you were or that you
23 know whether anybody was dishonest, but that does
24 happen, people do give false police reports, correct?

25 A. Are you asking if -- people, like the police?

26 Q. Yes, sir, that people have given lies or
27 false reports in your knowledge or experience.

28 A. I mean, people can lie, yes.

1 Q. Okay. So it is a possibility?

2 A. Yeah.

3 Q. All right. So if it is possible that a
4 person can lie to an officer and if the information
5 that was given for one party to you could have been
6 false and the information is collected to -- at least
7 of the best of the officer's ability, you don't take
8 responsibility if somebody falsely reports the
9 information, you are just there to record it as they
10 state it, correct? You are not making a judgment on
11 whether somebody is telling the truth or not, it is a
12 recorded statement.

13 MS. NAVARATNASINGHAM: Objection, vague and
14 ambiguous.

15 THE COURT: Sustained. Rephrase it, please.

16 MR. ROSARIO: Q. Your job is to record, as
17 you stated earlier; you do not determine whether a
18 person is telling the truth or not; is that correct?

19 A. If there is evidence that shows that they are
20 not telling the truth, then I can state that in my
21 report.

22 Q. Okay. Good. So, for example, if you were
23 told that somebody did not do something, you have to
24 take it prima facie that that is what their story is
25 and you just have to record it. You are not going to
26 try to unpack it.

27 So in this case, since you did not take
28 Mr. Abdelhalim's statement directly, you were

1 incapable of right now telling us whether you felt
2 that he was being honest or not; is that correct?

3 A. Correct.

4 Q. Okay. So it says right here that there were
5 statements recorded on the body cams -- the body-worn
6 cams in your statement before.

7 And so -- and it says that -- that it wasn't
8 recorded, from what I saw on my footage, but there
9 were three other videos at least.

10 So there was statements based upon a number
11 of questions that people had asked, particularly -- I
12 believe right now that, particularly, the statement
13 that Mr. Abdelhalim provided to your fellow officer --
14 and like I said, Mr. Abdelhalim is responsible for his
15 statement, not the officer;

16 The officer just records it, officers don't
17 make up statements for people, as far as we know.

18 MS. NAVARATNASINGHAM: Objection. Is there a
19 question?

20 MR. ROSARIO: Yes.

21 THE COURT: Sustained. Please ask a
22 question.

23 MR. ROSARIO: Q. All right. The question is
24 that -- that you: Did you read over Mr. Abdelhalim's
25 statement that he made?

26 A. What do you mean "read over"?

27 Q. Yeah. Did you read it before you put it into
28 the police report?

1 A. I believe Officer Orenco verbally provided a
2 statement.

3 Q. Okay. Thank you. So that was --
4 essentially, is that considered hearsay when somebody
5 gives something to somebody else?

6 MS. NAVARATNASINGHAM: Objection, calls for a
7 legal conclusion.

8 THE COURT: Sustained.

9 MR. ROSARIO: Okay. Well, I think it is. I
10 think the opposite of anyone else would agree. But
11 here we go.

12 MR. ROSARIO: Q. So the Defense had clearly
13 stated to Officer Orenco, this party, now, who
14 collected my statement -- do you know who that was?

15 A. I don't recall.

16 Q. Oh, you don't recall who collected my
17 statement. Is that recorded anywhere, who collected
18 my statement in the matter?

19 A. I am not sure. Yeah, I am not sure.

20 Q. Okay. So we only have one statement from one
21 party. We have a statement from Officer Orenco about
22 Mr. Abdelhalim, but we don't know who collected mine.

23 Are you familiar with the condition that I
24 was in, based upon the report?

25 A. Sorry. What do you mean?

26 Q. The physical condition I was in, the
27 condition I was in when the officers arrived and when
28 they departed.

1 I think you were there. I saw your body cam.
2 You had me -- one of my employees had come to the
3 scene and picked me up.

4 I recall seeing your body cam that you had
5 recorded that. Thank you very much for recording it.

6 But I didn't see any actual recording of a
7 statement from any officer so I was trying to figure
8 out if you had seen it somewhere else or if it was
9 delivered to you verbally from another officer or
10 anything like that.

11 THE COURT: Mr. Rosario, you are giving him
12 too many questions to answer.

13 You have to give him one question at a time.

14 We operate not from having you give a
15 narrative or him giving a narrative, the witness
16 giving a narrative.

17 We operate in bits and pieces.

18 So you have to ask your question in,
19 essentially, steps.

20 All right. So for each question, you have to
21 let him finish and you have to be clear where you are
22 coming from.

23 MR. ROSARIO: Q. Okay. So what we are going
24 to establish here is that there was a clear, party
25 admissions from Mr. Abdelhalim to Mr. Orengo. We do
26 not know who collected my statements.

27 A. I don't remember which officer spoke to you.

28 Q. Okay. Yet they decided, I believe, somewhere

1 along the lines that this was a traffic situation.
2 That is what the report says.

3 I am not going to tell everybody what I
4 believe it was, I guess. But from the record, it says
5 there was traffic situation -- there was -- between --
6 and the statement says that there was a motorized
7 vehicle collision between a scooter and a vehicle.

8 And from what I saw, it says that I was to
9 blame and somehow or another Mr. Abdelhalim's
10 statement was collected but we don't know who
11 collected my statement.

12 Is that a typical thing for officers to make
13 a determination from a single statement from one
14 single party?

15 A. Sorry. Can you repeat your question?

16 Q. The determination that I was at fault in the
17 police report, even though you weren't there, you said
18 that you never received any information about who
19 collected mine, no one told you who collected my
20 statement.

21 We have one statement from the Defendant,
22 none from me. It was established it was my fault for
23 the -- for a, quote, vehicle classified collision and
24 that is where we are at right now.

25 I am making sure we are all on the same page.
26 I am not blaming you. What I am trying to say --

27 MS. NAVARATNASINGHAM: Objection. I don't
28 understand the question. Vague and ambiguous.

1 THE COURT: Mr. Rosario, you have to ask a
2 question. No speeches, please.

3 MR. ROSARIO: Q. Did you determine the fault
4 based upon both of our statements or based upon one
5 statement, sir?

6 A. I believe based on both statements. I know a
7 officer spoke to you. I don't know which officer on
8 the scene spoke to you. And then based on the
9 information that was relayed to me, that is how I
10 determined how to write the police report.

11 Q. You don't recall which officer relayed that
12 they spoke to me?

13 A. Correct. It was in 2021 so I don't remember.

14 Q. Okay. But that wasn't listed either in the
15 police report, or there is no body cam at least that
16 shows an officer having a conversation with me about
17 my portion of the story.

18 So at least we are at this point right now --

19 MS. NAVARATNASINGHAM: Objection.

20 MR. ROSARIO: Q. Do you feel that your
21 report, Officer Fernandez, is 100 percent thorough, to
22 the best of your ability?

23 A. I would say that I wrote it as accurately as
24 I could based upon the statements provided.

25 Q. Yeah. I think you did.

26 THE COURT: All right. You need to ask
27 questions. There is no editorializing, Mr. Rosario.
28 Just please ask him questions.

1 MR. ROSARIO: Q. All right. We are not
2 completely through with this yet. I was about to
3 start into the next part of this, all right, which was
4 to establish when you arrived at the scene and when
5 somebody says that something has been done, all right,
6 like for example, somebody got hit at a bar, let's say
7 that.

8 You go to a bar. You arrive at the bar.
9 Somebody says I got beat up or stabbed or hit, or hit
10 with a beer bottle, and they are telling you this.

11 What is the process that you do to collect
12 witness information at that time?

13 Say everybody has been drinking at the bar.
14 One guy says I got hit. He says that guy did it to
15 me.

16 Do you ask people around the scene? Do you
17 only ask the people who were fighting? How is that
18 determined?

19 MS. NAVARATNASINGHAM: I object, incomplete
20 hypothetical.

21 MR. ROSARIO: This is absolutely to do with
22 how he collected the information and how he came to
23 the determination --

24 THE COURT: Okay. So anything that you
25 are -- when you speak about a DUI or some sort of
26 event relating to alcohol usage, that is not relevant
27 in this case.

28 MR. ROSARIO: Okay.

1 THE COURT: If you want to ask him what he
2 does to go about performing his investigation, you may
3 do so, but we don't really need a wind-up for this.

4 Just ask him a question head on.

5 MR. ROSARIO: I am being rushed through this.
6 All right?

7 THE COURT: No. I am not rushing you. I
8 would like for you to ask the officer the questions
9 you need to establish whatever part of your case you
10 would like, but your narratives; but, sir, your
11 narratives are unnecessary.

12 The process is such that you must ask
13 foundational questions in order to get him to answer
14 whatever you would like him to answer. Okay?

15 MR. ROSARIO: Q. Okay. All right. Okay.
16 We are going back to that.

17 To clarify, you don't know who took my
18 records, somebody told that you they took a statement
19 from me. Yes or no.

20 A. Correct.

21 Q. The statement from the Defendant was
22 collected by another officer and that was verbally
23 delivered to you correct. Yes or no?

24 A. Yes.

25 Q. The multiple officers -- was it you alone or
26 multiple officers that determined the fault in the
27 report itself?

28 A. I determined.

1 Q. Okay. And what mechanism do you do to do
2 that?

3 Do you take all the evidence or do you just
4 make a judgment call at the time.

5 A. I take all of the statements and evidence and
6 I make the decision.

7 Q. Okay. Are you aware that those statements
8 can have implications for people legally?

9 A. Yes.

10 Q. Okay. If one person makes a statement that
11 somebody has attacked them, how do you handle that?

12 MS. NAVARATNASINGHAM: Objection, relevance.

13 THE COURT: Sustained.

14 MR. ROSARIO: Q. When I made a statement
15 that the Defendant hit me with his vehicle, how did
16 you handle that?

17 A. Were you speaking to myself or another
18 officer?

19 Q. I was speaking to all of the officers at the
20 scene.

21 A. Okay. Sorry. What is the question again?

22 Q. I said I made multiple statements under video
23 camera as well as to the 911 department that he hit me
24 with his vehicle.

25 Why was that not followed up? Do you have
26 any idea of why my statements of him assaulting me
27 with his vehicle was not followed up?

28 A. Followed up in terms of what?

1 Q. If I said somebody stabbed me, sir, and I
2 reported it, I called 911 and I told the officers when
3 they get to the scene that I was stabbed, and I said
4 he hit me with his vehicle, why was that not followed
5 up.

6 I am not angry with you. I am trying to
7 figure out how to ask this question. I made a
8 statement in the 911 call and I made a statement to
9 multiple officers at the scene that he had hit me with
10 a vehicle.

11 That was not followed up by a single officer
12 and was not added to the report.

13 Is there a reason that you believe that that
14 did not make it into the report of me declaring that
15 he hit me with a vehicle?

16 It is a standard question.

17 MS. NAVARATNASINGHAM: Objection, vague and
18 ambiguous. I don't understand the question.

19 MR. ROSARIO: Q. Did you record that I said
20 he hit me in the police report?

21 A. I don't remember exactly what is in the
22 police report. Whatever is in there is what
23 statements I had at the time.

24 Q. Okay. Sure. Yeah. I know that you weren't
25 there during the interviews and so you worked with
26 what was given to you, I know that, and it is not your
27 fault.

28 MS. NAVARATNASINGHAM: Objection.

1 THE COURT: Sustained. All right.

2 Mr. Rosario, I just want to let the jury know
3 this. Okay?

4 Written police reports are not evidence for a
5 number of legal and evidentiary reasons; therefore,
6 you won't be receiving the written reports or copies
7 as evidence.

8 Certainly they can reference it. There is no
9 issue with regard to referencing them in their
10 examination of witness; however, as I said, you won't
11 be getting a copy.

12 If it is something that is important for you
13 to know, please record that in your notes, all right?
14 Okay.

15 So you may continue, sir.

16 MR. ROSARIO: Q. So if a person says that
17 they were assaulted and they have recorded on 911 and
18 it was recorded in body cams, is that something that
19 is important to determination of fault?

20 A. Sorry. Are you talking about a hypothetical
21 or are you talking about this incident?

22 Q. I would say, typically, in your regular
23 business operations of a day when you are out doing
24 your duty, Officer Fernandez -- and thank you very
25 much for what you are doing, my team really
26 appreciates you, we really do -- is it something that
27 if somebody states that they have been assaulted in a
28 situation, would that typically make it into a report?

1 MS. NAVARATNASINGHAM: I object as to
2 relevance and the term "assaulted."

3 THE COURT: Sustained. It is not relevant.

4 MR. ROSARIO: Q. Does it make sense, they
5 have been hit, assaulted, stabbed, whatever it might
6 be -- let's not split hairs or mince words with the
7 Defense -- if somebody reports that there has been
8 some kind of action done against them, is that
9 generally made into the report?

10 MS. NAVARATNASINGHAM: Objection, same
11 objection. I am not mincing words. I think stabbing
12 and a traffic collision is very different. So the
13 same objection.

14 THE COURT: Sustained.

15 MR. ROSARIO: I am trying to get a general
16 procedural method from which officers would report any
17 action taken against a person and avoiding the
18 statement that he hit me with the vehicle because that
19 is what is recorded.

20 I am going to show that evidence to the jury
21 later on.

22 MR. ROSARIO: Q. What I am trying to ask is:
23 What is the typical methodology of statements from a
24 victim when they report in 911 and on body cams
25 multiple times that they have been hurt?

26 Is that information ever allowed to be
27 excluded from the -- and like I said, you weren't
28 there --

1 THE COURT: Mr. Rosario, you have to give the
2 officer an opportunity -- the witness to answer one of
3 your questions.

4 MR. ROSARIO: Sorry --

5 THE COURT: Sir, listen carefully. You have
6 to ask one question at a time of any witness including
7 Officer Fernandez.

8 You've got to give him the opportunity to
9 respond to your question in an orderly fashion.

10 MR. ROSARIO: Q. All right. Did you know
11 that I had reported that I was hit and struck by the
12 Defendant?

13 A. Yes.

14 Q. Did you know after the collision or before --
15 after your report or before your report?

16 A. Sorry?

17 Q. Did you have knowledge that I had reported
18 that I was struck by the Defendant -- and I had
19 declared that in both the 911 before or after you
20 wrote your report.

21 Did you learn about it after your report when
22 you wrote it or did you learn about my statement that
23 I was hit by him before you wrote the report?

24 A. I was aware of a collision between his
25 vehicle and you and your vehicle.

26 Q. Let me clarify: Did you know when you wrote
27 the report that I had made a statement that he had
28 made?

1 A. Are you talking about his vehicle hitting you
2 in your vehicle?

3 Q. Did you know that I made a statement that he
4 hit me before you ever wrote the report? I am not
5 saying whether it is a fact or you saw it or anything.

6 I am saying: Were you made aware that I had
7 been telling the 911 and the police officers at the
8 scene that he hit me? Did you know about that because
9 you wrote the report after the whole event had
10 happened?

11 So did anyone inform you directly, saying:
12 Mr. Rosario says that that guy hit him and it is
13 recorded?

14 A. Can you specify, what do you mean by "hit"?

15 Q. I literally said: He hit me with his van.
16 He hit me, that guy hit me. I said it multiple times
17 in the video.

18 You weren't there. Did any of the other
19 officers report to you -- like I said, it is not your
20 fault. If no other officers --

21 MS. NAVARATNASINGHAM: Objection. Is there a
22 question?

23 THE COURT: Sustained.

24 MR. ROSARIO: Q. Did any other officers tell
25 you that I had said he hit me?

26 A. Yes. I was aware a collision occurred where
27 his vehicle had struck you, yes.

28 Q. Did any officers tell you that I said he hit

1 me?

2 MS. NAVARATNASINGHAM: Objection, asked and
3 answered.

4 THE COURT: Overruled.

5 MR. ROSARIO: Q. It is a yes-or-no question.
6 Did anyone tell you that that guy said he hit
7 him?

8 A. I don't know that any officers said that
9 verbatim. I don't know.

10 Q. I am not trying to say you did anything
11 wrong.

12 What I am trying to say is: You did not get
13 the information --

14 THE COURT: Next question, please.

15 MR. ROSARIO: Q. The next question is:
16 Since you did not have that -- I guess what we are
17 going to ask, then, is: If you had known, would you
18 have added that? Yes or no?

19 A. If I had known what?

20 Q. That I was making clear statements that he
21 had hit me with a vehicle. Would you have made sure
22 it was in the report?

23 If I said -- let's kind of do this again.

24 If I said that somebody stabbed me, would you
25 put that in? If I said somebody hit me with a
26 vehicle, would you put that in?

27 It doesn't matter. Would you put a
28 declaration of a person's accusation against another

1 person into a report, typically?

2 A. I am pretty sure the report states that his
3 vehicle hit you unless --

4 Q. Are you sure about that, Mr. Fernandez? Are
5 you sure that it says that it hit me?

6 A. From what I remember, I did this report
7 because there was some kind of collision occurred.

8 So unless you have some other -- unless you
9 have a report to show me that shows something
10 different.

11 Q. Therein lies the rub. Mr. Wong says it is
12 not admissible.

13 So what we have here is we can't debate what
14 you wrote in the report because a lot of things
15 happened because of that report to me, and because we
16 can't bring it, I am not allowed to illustrate to the
17 jury, who is the people who should see it.

18 All right. The next question I guess I am
19 going to say is: If I told you it was not in there,
20 would that be something that should probably be in
21 need of correction because the evidence shows that,
22 and if it had failed -- and I know it is not your
23 fault, you weren't there at the scene -- would an
24 officer normally go back and say wow, look at all this
25 evidence here, I need to make sure those things are
26 corrected on the record?

27 That is something that you would see? You
28 would see that evidence?

1 MS. NAVARATNASINGHAM: Objection. Sorry.
2 Relevance, lacks foundation, vague and ambiguous.

3 THE COURT: Let me ask you this, Mr. Rosario:
4 Do you have a hard copy of the police report?

5 MR. ROSARIO: Yeah. Absolutely. The police
6 report.

7 THE COURT: Not his deposition. The police
8 report.

9 MR. ROSARIO: Q. All right. We are going to
10 go ahead and say this one thing.

11 It clearly stated in the police report -- and
12 it was very clear -- that there was no contact with
13 the vehicle. Very clear.

14 And like I said, you didn't have all the
15 facts. Were you told by the people it slipped?

16 I am not trying to impeach you, sir, or blame
17 you for anything.

18 I am trying to ask you: If a victim of any
19 crime told you directly that somebody had done
20 something to them, you as a officer of the Court, your
21 duty to your everything, you would record that,
22 correct? Yes or no?

23 A. Yes.

24 Q. Okay.

25 THE COURT: Mr. Rosario, he is not an officer
26 of the Court.

27 MR. ROSARIO: Sorry. A police officer. I
28 get these confused all the time. I took a big bump to

1 my head. All right.

2 MR. ROSARIO: Q. So you would normally --
3 and that would be definitely in there if somebody, if
4 he said any kind of action was done to them by another
5 person, but unfortunately, that is not in the document
6 right now. It has been cited as inadmissible.

7 Unfortunately, where we are at, is if you are
8 right now reporting that you do not recall -- okay,
9 here we go. Now, then --

10 THE COURT: Well, no. This is what we are
11 going to do.

12 You ask that police reports are not
13 admissible.

14 However, it appears Officer Fernandez does
15 not remember what was in the police report verbatim.
16 He has a general understanding.

17 I am willing to have his recollection
18 refreshed if you have the police report, a hard copy
19 of that police report, to present to him.

20 I don't think it is entirely fair to Officer
21 Fernandez to ask him questions that -- to ask
22 questions about specifics in a police report when he
23 has not had the opportunity to review the report.

24 So if you could provide him with a copy, a
25 hard copy of the police report that he may refer to,
26 then I will permit further examination in this area;
27 otherwise, his simple answer is: Yeah, I got a call
28 that there was a collision that we didn't -- I don't

1 remember what else was said, but basically you were
2 there and Mr. Abdelhalim was there.

3 And that is really the extent that I have so
4 far about this. So, sir, you need to give him a copy
5 of the police report so he can review it so you can
6 have a more efficient examination of the witness.

7 MR. ROSARIO: We will come right back --

8 THE COURT: So have your assistants find that
9 report pronto.

10 MR. ROSARIO: Yes. We will do that. We will
11 come back to that in a second.

12 MR. SOBATI: Your Honor --

13 THE COURT: Sir, Mr. Sobati, you are not
14 permitted to say anything during these proceedings, as
15 you did.

16 MR. SOBATI: My apologies, Your Honor.

17 THE COURT: Not a word. You are his
18 assistant. He is prosecuting this case. You are not
19 allowed to. You are not a paralegal. You are simply
20 an assistant here.

21 Thou shalt remain silent throughout these
22 proceedings.

23 You may speak to him but not to the Court.

24 You may continue with questions, sir. No
25 speeches.

26 MR. ROSARIO: Q. Yes, sir. All right. When
27 we get back to that -- let's go ahead and cover a
28 couple of things that are very important to this whole

1 thing.

2 Are drivers obligated to yield to pedestrians
3 in crosswalks?

4 MS. NAVARATNASINGHAM: Objection, calls for a
5 legal conclusion.

6 THE COURT: Sustained.

7 MR. ROSARIO: Q. Okay. Have you ever
8 arrested anybody or picked anyone up for failing to
9 yield to pedestrians in a crosswalk? Yes or no?

10 A. I have possibly cited someone for that.

11 Q. And how do you determine whether somebody
12 fails to yield?

13 A. I mean, just based on what I observe, if a
14 pedestrian is in a crosswalk and a car doesn't yield.

15 Q. How is it determined if there is no officer
16 to observe it?

17 A. Sorry. Your question?

18 Q. How is an individual failing to yield
19 determined if an officer is not there to observe it?

20 What are the pieces of evidence you use to
21 determine that somebody failed to yield if there was
22 no observant other than a victim and a driver?

23 A. Are you talking about like for a citation or
24 for a police report?

25 Q. Yeah. You get called. There is a person
26 laying on the ground. There is a driver. There is a
27 stop sign. There is, you know, walk lines. How do
28 you determine that the driver failed to yield?

1 What is the process that you use?

2 A. You get statements from the parties involved
3 and from any witnesses or any video footage.

4 Q. Okay. And if there is none, do you use
5 reconstruction logic? Or what do you use?

6 MS. NAVARATNASINGHAM: Objection, vague and
7 ambiguous.

8 THE COURT: Sustained.

9 MR. ROSARIO: Q. How do you determine if
10 there is no videos?

11 A. I just go off of the statements that I have.

12 Q. What if the pedestrian is dead or
13 incapacitated?

14 MS. NAVARATNASINGHAM: Objection, irrelevant.

15 MR. ROSARIO: Q. How do you determine that?

16 THE COURT: Overruled. We can have that
17 answer.

18 THE WITNESS: If there is video evidence or
19 witnesses, yeah.

20 MR. ROSARIO: Q. Would you use, for example,
21 the position of the bodies and the vehicles, also?

22 A. So I would not use that. We do have a
23 traffic collision investigative unit that handles any
24 kind of vehicular manslaughter or any serious
25 injuries, so they would probably do that.

26 Q. Were they present at the incident between
27 Mr. Abdelhalim and myself?

28 A. No.

1 Q. So you said they were not present. Did they
2 come afterwards?

3 A. No.

4 Q. Did they analyze the evidence and come to a
5 finding afterwards?

6 A. No.

7 Q. Did that special unit, did they offer to
8 analyze it?

9 A. No.

10 Q. Did you forward it to the special unit that
11 determines --

12 A. All of our traffic police reports, they get
13 forwarded to our traffic division and they review the
14 reports.

15 Q. Okay, thank you. All right.

16 Now, the concept of, for example, duty of
17 care to prevent, you know, collisions with people,
18 which is, essentially, that they must yield in
19 crosswalks, are you familiar with that code?

20 MS. NAVARATNASINGHAM: Objection, calls for a
21 legal conclusion.

22 THE COURT: Sustained.

23 MR. ROSARIO: Legal conclusion?

24 MR. ROSARIO: Q. All right. A legal
25 conclusion.

26 What is the implications of that code, can
27 you tell us?

28 MS. NAVARATNASINGHAM: The same objection.

1 THE COURT: Sustained.

2 MR. ROSARIO: Q. Same objection? All right.
3 How does an officer tell somebody that they
4 have broken a rule?

5 Does that require a legal conclusion or does
6 it require your interpretation?

7 A. Sorry. Repeat the question.

8 Q. How does an officer tell somebody that they
9 violated the traffic code? I mean, is it a legal
10 conclusion or is it through your regular daily
11 operation of your business if you say that is a
12 violation when it happens?

13 Which is it? Are you making legal analysis
14 or are you making standard police officer observations
15 saying that is a violation based upon what the rules
16 are, what I know? Which is it?

17 A. I mean, I just interpret the different
18 vehicle codes and if I observe something, then I can
19 enforce it.

20 Q. Are you authorized to interpret vehicle codes
21 and make legal conclusions on codes?

22 A. I don't know. I am not sure what you mean by
23 "legal conclusions."

24 Q. Are you allowed to make a legal conclusion
25 on, for example, vehicle codes such as collisions?

26 A. What do you mean by "legal conclusion"?

27 Q. Well, the defense says that you are making a
28 legal conclusion. So the judge just sustained that.

1 I am asking: Do you know what a legal
2 conclusion on a vehicle code is?

3 MS. NAVARATNASINGHAM: Objection, relevance.

4 THE COURT: Sustained.

5 MR. ROSARIO: Q. Okay. Well, what is a
6 legal conclusion? I mean, this is a really
7 interesting thing.

8 This is kind of like -- it is such a big
9 concept that they are able to sustain it. Maybe -- I
10 am not an attorney.

11 How do you determine that the vehicle code
12 has been violated?

13 A. I interpret the different vehicle codes and
14 then I observe.

15 Q. Oh, my God. It is almost like a loop.

16 I ask you: How do you determine? She says
17 he -- Okay. We will move on to the next question.

18 Did you determine that there was any vehicle
19 codes violated in the incident between Mr. Abdelhalim
20 and myself?

21 A. Yes.

22 Q. All right. And you said -- you stated
23 earlier that you were not at the scene.

24 A. At the time of the collision. I believe I
25 arrived afterwards.

26 Q. And you stated that you collected the
27 information from other officers, correct?

28 A. Correct.

1 Q. And those other officers, they are not here
2 today, correct?

3 A. That is correct.

4 Q. Have you ever received a subpoena from the
5 Defense?

6 A. Yes.

7 Q. And did they ask you to bring the other
8 officers or just yourself?

9 A. Just myself.

10 Q. And you can speak legally about your own
11 observations.

12 Are you allowed to speak about the
13 observations of other officers?

14 A. I can talk about what was relayed to me from
15 what I recall, but I don't really recall what was said
16 exactly.

17 Q. You don't really recall?

18 A. Correct.

19 Q. Do you recall with perfect clarity enough to,
20 you know, convict somebody, or it is not enough, would
21 you say?

22 Would you say that your recollection is
23 enough to convict a person or not?

24 MS. NAVARATNASINGHAM: Objection, vague and
25 ambiguous, relevance.

26 THE COURT: Sustained. You are asking
27 whether he recalls other remarks by police officers.

28 Sir, that, by definition, is hearsay.

1 MR. ROSARIO: Oh, is that right? You said
2 that anything that he would recall from another
3 officer is actually hearsay?

4 THE COURT: Yes. You are asking for
5 specifics from the police officer. These are
6 out-of-court statements being offered to prove the
7 truth of the matter.

8 And, members of the jury, I know there are
9 lawyers here, but hearsay is often a concern of the
10 parties. And here is what hearsay is defined as:

11 You just heard me say it is a statement made
12 out of court offered to prove the truth of the matter.

13 In plain English, what that means is the
14 statement was made outside the courthouse, you were
15 not -- you, the jury, were not able to see the
16 circumstances under which those statements were made;
17 therefore, it is excluded, okay?

18 You don't have the ability to determine how
19 and under what conditions those statement were made.

20 So that is the concern about hearsay and what
21 I think is plain English. Okay.

22 So you may continue, sir.

23 MR. ROSARIO: We are moving along. Good.
24 Thank you.

25 Q. So you just said that all the other
26 officers -- everything that you said about what the
27 officers said is actually hearsay.

28 So because you never observed it by yourself

1 but, yet, you made the determination of fault based
2 upon the available information some officer had, you
3 said you don't remember who it was, there is no name
4 associated --

5 MS. NAVARATNASINGHAM: Objection. Is there a
6 question?

7 THE COURT: Sustained. Your question,
8 please.

9 MR. ROSARIO: Q. Yeah, there is.
10 You never stated to anybody who made the
11 statement about me, you made clearly that there was a
12 statement about him.

13 Now you are telling me that is the hearsay
14 from Mr. Abdelhalim through Mr. Orengo is what you
15 reported on; is that correct?

16 A. I wrote in my police report what was relayed
17 to me at the time and that is what is in there.

18 Q. Yes. So you would say, as the judge just
19 stated, because it was told to you from another
20 officer, that that counts as hearsay?

21 THE COURT: That is not what I am saying,
22 sir.

23 He may rely on the other police officer's
24 remarks to form an opinion or to make an assessment of
25 the accident scene.

26 What is not admissible are the actual
27 statements that were made to him.

28 You are asking him about how he formulated

1 his opinion regarding the accident scene at the time
2 he was performing the investigation.

3 So your simple question is: Did you rely on
4 other police officers to figure out what happened?

5 And his answer has simply been, in essence:
6 Yes.

7 MR. ROSARIO: All right.

8 THE COURT: So the next question, please.

9 MR. ROSARIO: Q. The next question would be:
10 None of the other officers reported any crimes that
11 were committed; is that correct?

12 There was no report to you from other
13 officers that a crime had been committed. I don't
14 believe I have seen anything on the report.

15 A. The only offense would be a traffic
16 infraction but no other -- all right.

17 Q. A traffic infraction. Which traffic
18 infraction do you believe had been -- okay.

19 Was anybody actually ticketed or cited?

20 A. No.

21 Q. So you said there is a traffic infraction.

22 Is it typical not to cite somebody if a
23 infraction had happened?

24 A. In a vehicle collision, if the party at fault
25 causes injury to someone else, then they would be
26 cited. That is just our rules from my department.

27 If the person at fault does not cause any
28 injury other than to themselves or they are the only

1 party that is injured, then they don't receive a
2 citation.

3 Q. So the party at fault. So we are talking
4 about the party at fault. What does "party at fault"
5 mean?

6 A. It is just the party that I placed at fault
7 during the investigation.

8 Q. What does it constitute to be determined that
9 the person is at fault? What is that calculation?
10 What does that mean? What does "party at fault" mean?

11 A. It just means they caused the collision or
12 contributed to the collision.

13 Q. Caused it or contributed?

14 A. Yes.

15 Q. So is it possible that a person could be ten
16 percent at fault or do they have to be a hundred
17 percent at fault?

18 A. I mean, there could be different variations.

19 Q. Okay. So you stated clearly earlier you got
20 the information from somebody else.

21 You read the information. You found that the
22 information provided to you in your regular duty of
23 your job stated that Mr. Rosario, myself, was the
24 party at fault.

25 You stated just a second ago that there was
26 some kind of a traffic infraction but that nobody had
27 been cited.

28 Can you tell us what that traffic infraction

1 was? Do you recall it?

2 A. I know it is in the police report. I don't
3 remember the exact vehicle code. I just know it is
4 the infraction for driving on the wrong side of the
5 road or riding or -- any vehicle on the wrong side of
6 the road.

7 Q. Does that include walking?

8 A. No. Any vehicle.

9 Q. Okay. So a person walking would not get that
10 citation?

11 A. Correct.

12 Q. So a person in a vehicle, what constitutes a
13 vehicle, sir?

14 A. It could be a bicycle, a scooter, a car.

15 Q. Is a skateboard a vehicle?

16 A. It could be, yes.

17 Q. Okay. And in order for this infraction to
18 have happened, you said riding on the wrong side of
19 the road.

20 How do you determine if somebody is riding on
21 the wrong side of the road?

22 There has to be evidence, correct, sir?

23 A. Usually everyone drives on the right side of
24 the yellow. So --

25 Q. You told me that potentially some kind of
26 vehicle code had -- an infraction had transpired.

27 You said that somebody in this case -- you
28 said riding on the wrong side of the road.

1 Where is the evidence, sir, that that
2 actually happened?

3 A. It is based on statements that were given on
4 the scene.

5 Q. Oh, so the statement by the Defendant, sir?

6 A. All statements from the parties on the scene.

7 Q. Okay. You stated clearly you don't know who
8 gave you my statement, correct?

9 A. Correct.

10 Q. You do know that Orengo gave you
11 Mr. Abdelhalim's statement, correct?

12 A. I believe so.

13 Q. Do you typically make assignments of, for
14 example, citations based upon parties, a one, single
15 party's statement?

16 A. Sorry. Repeat the question.

17 Q. In this case, would you find that you made
18 the determination that I was or my or whatever was
19 violating the code based upon Mr. Abdelhalim's
20 statement?

21 A. Based on everyone's statement that was
22 received.

23 Q. You said you did not, you said that somebody
24 had verbally stated to you what that was.

25 I am still trying to figure out where you
26 came to this determination that I -- or where the
27 evidence was presented to you.

28 Like I said, if you believe that somebody

1 else gave that information to you, that is fine. That
2 is not your fault.

3 MS. NAVARATNASINGHAM: Objection.

4 MR. ROSARIO: Q. But we are going to ask you
5 a question.

6 MS. NAVARATNASINGHAM: Narrative.

7 MR. ROSARIO: Q. Did you observe me
8 violating that law?

9 A. I did not observe that.

10 Q. Do you know what officers did?

11 A. I don't think any officer observed that
12 because we arrived after the collision.

13 Q. Okay. So you have no statement from me
14 clearly, correct?

15 A. I have a statement that you provided to
16 somebody on scene, and it is in the police report, but
17 I don't remember who.

18 Q. Correct, yeah. It was just -- I believe it
19 was just kind of agreed upon by officers that the
20 statement was -- I looked at the video, we will get to
21 that later.

22 I want to determine how you determined that I
23 was violating this.

24 Where is the evidence? You said other
25 officers saw that.

26 So that implication of that, how would the
27 other officers then be able to determine --

28 Can you please -- Your Honor --

1 THE COURT: Let's finish the questions here.
2 Then we will take a break. Then we can handle the --

3 MR. ROSARIO: Q. You are doing great. Thank
4 you very much. I appreciate it.

5 I am not trying to put you on the spot. It
6 just has to happen for this to get resolved.

7 I am digging into this. So do you understand
8 what I am trying to identify is where this evidence
9 that is sufficient to say that I was breaking the law?
10 And then the domino effect of that is that I am then
11 at fault, all right?

12 So where did that happen in here? You
13 weren't there. You heard hearsay from another officer
14 or a report from another officer.

15 You took the best information you did based
16 upon what you had and you did your duty as an officer
17 to make sure that was reported, and there we are.

18 So -- but the issue is that we don't have an
19 actual source of this statement. And because, like
20 you said, it is years, we don't know where it came
21 from --

22 MS. NAVARATNASINGHAM: This is narrative. Is
23 there a question?

24 THE COURT: Sustained. Can we have the
25 question, please?

26 MR. ROSARIO: Q. Could you stand right here,
27 sir, in front of me and tell any of us right now who
28 made that statement?

1 THE COURT: Which statement?

2 MR. ROSARIO: Q. The statement that you said
3 was used in order to say that I was violating a
4 traffic law.

5 Can you give us a name, please, sir?

6 A. Like I said earlier, I don't know who you
7 spoke to on the scene so I can't say.

8 Q. You cannot say? Or do you have an idea who
9 it was, sir?

10 MS. NAVARATNASINGHAM: Objection, asked and
11 answered.

12 THE COURT: Overruled.

13 MR. ROSARIO: Q. Do you know who stated it?
14 Any idea? It will be one of the police officers that
15 were present, correct?

16 A. Correct.

17 Q. One of them gave that to you and somehow you
18 gleaned that from a group, but not a single officer
19 could say: I collected a statement from Mr. Rosario
20 stating that he was violating the traffic law?

21 A. Somebody -- I don't know which officer I
22 spoke to. Like I said earlier, I don't remember. I
23 don't know who you spoke to.

24 Q. Would that be sufficient to use in a court?

25 MS. NAVARATNASINGHAM: Objection.

26 THE COURT: Sustained. That is not a proper
27 question. He is not a lawyer. You are asking for --

28 MR. ROSARIO: We are in a court, Your Honor.

1 I am trying to figure who said I violated the law to
2 give this guy the right to deny he ever touched me.

3 THE COURT: Sir, we are addressing the nature
4 of his investigation. You may do so.

5 But to ask him about what the law requires
6 and so forth, what his obligations under the law are
7 and to interpret particular code sections and so
8 forth, they are not relevant to your case here.

9 So let's --

10 MR. ROSARIO: It is absolutely relevant
11 because what we have here --

12 THE COURT: Let's take our break. You can
13 address the matter of relevance during our break.

14 Let's come back at 1:30.

15 Remember not to form or express any opinions
16 about this case to anyone. Please put the
17 notebooks -- you can leave them on your seats. They
18 will be back there when you return.

19 Officer Fernandez, you have to come back at
20 1:30. Thank you, sir.

21 (Whereupon, the jury was excused for noon
22 recess).

23 THE COURT: All right. We are back on the
24 record. Thank you. The jurors have been excused for
25 the midday break.

26 And there is an issue with regard to your
27 examination of Officer Fernandez.

28 MR. ROSARIO: I will tighten it up and only

1 ask questions, Your Honor. I apologize. I understand
2 what I was doing wrong. And I am going to correct
3 that, Your Honor.

4 I will make my logical questions, so that way
5 these narratives don't get stuck in the middle.

6 I am just speaking the thought process in my
7 mind, if you would rather I just be quiet during the
8 pause.

9 THE COURT: I am not asking you to be quiet.
10 I am asking you to form proper questions here. And
11 the Court will continue to sustain the objections.

12 At some point, if your questions are
13 repetitive, then I will strike the questions and the
14 answers because you have been essentially working
15 through the same couple issues with Officer Fernandez
16 and his traffic investigation for better than an hour,
17 an hour and 15 minutes.

18 MR. ROSARIO: Yeah.

19 THE COURT: And you need to be conscious of
20 your time. You need to be watching the clock.

21 You have only so much time to submit your
22 case so --

23 MR. ROSARIO: We are discussing right now the
24 origin of a statement that put me at blame, which the
25 Defense has postulated its entire defense, Your Honor.
26 So we are getting down to who made that statement
27 about me and I have a right to get down to it. So as
28 long as it takes, I have the right to find out.

1 THE COURT: You certainly do have a right to
2 present evidence, to cross-examine witnesses, but you
3 do not have a right to argue with the witnesses.

4 MR. ROSARIO: Okay.

5 THE COURT: You do not have a right to inject
6 your contentions into your narrative statements and
7 then the witness is left with: I am not sure what
8 question you are asking.

9 That is the problem. The jury is sitting
10 there, they want you to ask questions on direct so
11 that we have a direct question and a appropriate
12 response from the officer.

13 So far, the officer has been essentially
14 without the ability to recall everything because,
15 naturally, it has been almost four years ago or more
16 than four years ago that this accident took place.

17 MR. ROSARIO: He also wasn't at the scene
18 either.

19 THE COURT: I understand it. You have
20 established that. So know when to call it.

21 MR. ROSARIO: All right.

22 THE COURT: You don't have to announce it to
23 the jury. That is part of your argument to the jury
24 later on in the case.

25 You can say --

26 MR. ROSARIO: Oh, I see.

27 THE COURT: Okay. My questions established
28 he wasn't at the scene. He also said the other police

1 officers were not at the scene.

2 Then they have to give weight, whatever
3 weight they want to, in terms of evaluating how good
4 his investigation was.

5 You did ask questions about his
6 investigation.

7 If you want to argue that portions of the
8 investigation were faulty, you can do that in your
9 argument, but not during the trial, sir.

10 MR. ROSARIO: I was establishing how much
11 information --

12 THE COURT: Listen carefully. I don't need
13 to hear your excuses. I want you to proceed in an
14 efficient way.

15 This is no different than what you do at your
16 work. Be efficient. Don't get caught up on the side
17 or sidetracked with other matters of your concern.

18 The big picture is you want a single witness
19 to answer certain discrete -- to give discrete answers
20 about a particular issue. That's the goal here.

21 Beyond that, if you fail to observe that,
22 then at some point the Court will consider other
23 objections that Defendants may raise with respect to
24 the manner and mode of your interrogation of the
25 witnesses.

26 MR. ROSARIO: Okay.

27 THE COURT: I have not injected myself in
28 here; only when I am asked to do so by way of a motion

1 or an objection.

2 MR. ROSARIO: All right. After lunch, I will
3 have my sequence of questions appropriately structured
4 -- so that way we can move through them quickly -- as
5 best I can.

6 THE COURT: All right, very well.
7 (Whereupon, the noon recess was taken).

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1 AFTERNOON SESSION

2 THE CLERK: Please remain seated and come to
3 order. Thank you. Department 504 is in session.

4 THE COURT: We are back on the record, and
5 the record should reflect that all jurors are present,
6 all parties are present.

7 And can we have Officer Fernandez resume the
8 witness stand, please.

9 Sir, you are still under oath.

10 Once he is settled, Mr. Rosario, you may
11 resume your examination.

12

13 DIRECT EXAMINATION RESUMED BY

14 MR. ROSARIO: Q. Welcome back.

15 A. Thank you.

16 MR. ROSARIO: I guess now, for the Court, we
17 are providing the Court the police report that was
18 requested.

19 THE COURT: Okay. The record should reflect
20 that -- the traffic collision report, do we have it
21 marked?

22 THE CLERK: We don't.

23 THE COURT: I don't think we should mark it
24 yet. It is for purposes of refreshing his
25 recollection.

26 We will identify the item as a traffic
27 collision report and the Court number is 210079556 and
28 it appears to be initially a seven-page report. And

1 then there is a supplemental which -- there is a
2 supplemental nine pages.

3 So, in total, it is a 16-page document.

4 Now, if you are going to ask him a question,
5 sir, what you need to do is to ask him a question and
6 then direct him to -- if he does not know the answer,
7 direct him to the particular portion of the report
8 that you want him to review.

9 He reads it, he turns it back down, and then
10 you ask him the question, and then he answers. Okay?

11 That is how it works.

12 MR. ROSARIO: Okay. All right.

13 THE COURT: Members of the jury, frequently
14 witnesses will forget things and you could use
15 anything to refresh someone's recollection; in other
16 words, to jog someone's memory.

17 That item, it could be what I learned back in
18 the day -- and maybe some of the lawyers remember
19 this. There was a professor who used to say: A bowl
20 of meatballs could refresh your recollection.

21 It doesn't go into evidence, but that could
22 be used to jog someone's memory.

23 It is generally not admitted into evidence
24 unless there are certain other things triggered; but
25 for now, we are going to allow Officer Fernandez to
26 refer to this report in order to speed things along.
27 All right.

28 Again, the report will not be admitted for

1 various legal and evidentiary reasons.

2 You may proceed, sir.

3 MR. ROSARIO: Okay. All right. I got my
4 notes back together much better now. All right.

5

6 DIRECT EXAMINATION RESUMED BY

7 MR. ROSARIO: Q. Mr. Fernandez, on Page 5 of
8 the narrative supplemental report, on line -- I
9 believe line number 4 through lines -- number 6 --

10 THE COURT: Sir, you just need to ask him the
11 question. Then if he doesn't know the answer, then
12 you can refer him to the specific language in the --
13 or the specific part of the report that you are
14 contemplating.

15 He can look at it and say, yeah, now I
16 remember it, or I don't remember it. That is the way
17 it works.

18 You don't need to direct him specifically to
19 it. You just need to ask him the question first.

20 MR. ROSARIO: Q. All right. There was a
21 dispatch to -- called a vehicle collision with injury.

22 Are you familiar with the exact dispatch and
23 what was called in?

24 A. Sorry. Can you repeat the question?

25 Q. The record on the document shows that it was
26 a dispatch with an injury.

27 But were you aware of the details of that?

28 Was there any more specifics to the injury or

1 the incident more than what was listed right here in
2 your report?

3 A. I remember responding to a vehicle collision
4 with injury but I don't remember exactly what was said
5 during the call.

6 Q. And to clarify, you weren't the first officer
7 at the scene.

8 Do you know which officer was at the scene
9 first?

10 A. Correct. I was not the first officer. I
11 don't remember who was the first officer on the scene.

12 Q. Okay. And when you arrived at the scene, you
13 mentioned here that there were signs that were
14 available.

15 There was photos in your record of a yield to
16 pedestrian and bicycle sign.

17 Do you recall that sign?

18 A. No.

19 Q. I think at this point I would like to share
20 the sign that was taken from your body cams, the body
21 cams from your team, and I -- share that image that
22 came from the police report in the police images.

23 THE COURT: Mr. Bailiff, please assist
24 Mr. Rosario.

25 MS. NAVARATNASINGHAM: Your Honor, we just
26 object to the extent it lacks foundation,
27 authentication, and we have not received a copy of
28 what he is trying to offer.

1 THE COURT: Well, it is not being offered
2 into evidence yet. So it is only being offered
3 ostensibly to refresh the officer's recollection.

4 I am going to give him some bandwidth given
5 these procedures may not all be familiar to him.

6 MR. ROSARIO: I have a set of images here
7 that will show the sign that was recorded from the
8 body cam. All right.

9 MR. ROSARIO: Q. This is Exhibit No. 11 and
10 on -- there should be a Bates stamp on the top of the
11 Pages 001, 002. And if you go to 003, you will see a
12 sign there that clearly states that those turning
13 vehicles must yield to bicyclists or pedestrians.

14 There is not the words, but there is a
15 picture of a bicycle and a pedestrian walking.

16 Now, can you tell us what direction -- on
17 Page 002, you will see the same image but a little bit
18 farther back, which also shows that turning vehicles
19 must yield to bicyclists and pedestrians.

20 Do you see those?

21 A. Yes.

22 MS. NAVARATNASINGHAM: Your Honor,
23 Mr. Rosario, does he have a copy for us? I don't know
24 what we are viewing.

25 MR. SOBATI: I thought I had submitted it
26 already. My apologies.

27 THE COURT: Do we have a set for the Court as
28 well?

1 MR. SOBATI: Yes, of course, Your Honor.

2 THE COURT: Okay. Thank you.

3 Mr. Rosario, I am going to ask you to frame
4 your questions so that the witness can describe
5 whatever you are asking him to talk about.

6 You are not to testify during your
7 examination. You are describing everything in the
8 photograph, and the way it works is that is not
9 evidence.

10 The evidence is what he says, so keep that in
11 mind when you are asking questions.

12 MR. ROSARIO: Q. Okay. Can you verify that
13 that is the corner from where the incident happened?

14 MS. NAVARATNASINGHAM: What page are we
15 looking at?

16 MR. ROSARIO: We are looking at 002 on the
17 second image, right there is the incident. It is on
18 the corner of 5th and Tehama.

19 THE WITNESS: Yeah, it looks like a image
20 from Google maps. It appears to be the same
21 intersection.

22 MR. ROSARIO: Q. On Page 004 -- it is I
23 believe a body cam photo from Officer Thompson that
24 shows that exact same intersection.

25 Do those intersections match?

26 A. Yeah. It appears to be the same
27 intersection.

28 Q. On those photos, there is a bike lane,

1 correct?

2 A. Yes.

3 Q. Do you recall if that bike lane was printed
4 green or gray or anything like that?

5 A. I don't recall.

6 Q. And is there a stop light at that
7 intersection?

8 A. No.

9 Q. The curb and the sidewalk and the bicycle
10 lane are right next to each other, you know, the curb
11 and the bicycle lane.

12 Is there any signs that tell the bicyclist to
13 yield or stop there? Do you see anything?

14 A. What page are we talking about?

15 Q. On any of the photos there, do you see a
16 yield or a bicycle stop sign on the photos?

17 It says: Bicyclist must stop at this
18 intersection.

19 MS. NAVARATNASINGHAM: I am going to just
20 state for the record to the extent that it is showing
21 these photographs that have been produced off of what
22 appears to be Google maps and that have been
23 presented.

24 THE COURT: Well, I am not sure what your
25 objection is.

26 Is it that they are not authentic?

27 MS. NAVARATNASINGHAM: Yeah, exactly, it
28 lacks authentication.

1 It looks like they are Google maps and there
2 are various pictures and so I am just objecting to
3 lack of authentication and lack of foundation.

4 MR. ROSARIO: Okay. The foundation is
5 that --

6 THE COURT: Well, first of all, what are you
7 trying to accomplish here?

8 Are you trying to establish information about
9 the intersection and do we need the photographs to do
10 so? Or are you trying to have these photographs
11 admitted into evidence?

12 MR. ROSARIO: We are not trying to establish
13 the photographs into evidence right now.

14 We are trying to verify what you recall.

15 THE COURT: So ask him to describe the
16 intersection rather than trying to prove it through
17 materials that are not evidence yet.

18 MR. ROSARIO: Q. Okay. So now that you have
19 seen that, that there is a sign there, are vehicles
20 supposed to yield to pedestrians in that crosswalk?
21 Based upon the signs and the markings and the layout
22 of the road and the crosswalks, is that a place where
23 vehicles or pedestrians are supposed to yield?

24 MS. NAVARATNASINGHAM: Compound.

25 THE COURT: Sustained.

26 MR. ROSARIO: What did she say?

27 THE COURT: One question, ask a single
28 question.

1 MR. ROSARIO: Q. Based upon what you see,
2 are vehicles supposed to yield for pedestrians in this
3 intersection?

4 A. Yes.

5 Q. Based upon what you see and what you know of
6 those types of markings, are pedestrians obligated to
7 yield to vehicles who are turning into that street?

8 Are pedestrians obligated to yield to
9 vehicles as they are turning onto that street or is it
10 the other way around, the vehicles are to yield for
11 pedestrians?

12 MS. NAVARATNASINGHAM: Compound.

13 THE COURT: Overruled.

14 MR. ROSARIO: Q. One or the other.

15 A. So usually I know the pedestrians have the
16 right of way unless the vehicle is already in the
17 intersection, is already turning, so it depends. But
18 usually, the pedestrians have the right of way.

19 Q. Thank you. Okay. Clearly not, but okay.

20 As you stated earlier, there is no stop
21 light; there is no apparent signs for the pedestrians
22 to stop or bicyclists to stop.

23 You stated earlier there were no people -- is
24 that correct? As far as you know, there were no
25 witnesses?

26 A. Correct. We didn't receive any witness
27 statement.

28 Q. You did not receive witness statements?

1 A. Correct.

2 Q. You can't speak for the other officers, but
3 you personally did not receive any?

4 A. Correct.

5 Q. And as you stated earlier, that -- there were
6 no cameras that could have provided any information as
7 to the situation, correct?

8 A. Correct.

9 Q. On that day, was there a lot of traffic, do
10 you recall?

11 A. I don't recall.

12 Q. On February 4th, 2021, I believe the pandemic
13 was in full force; the city was fairly locked down.

14 Were -- those weeks and those months during
15 the pandemic, was there a lot of very heavy traffic in
16 downtown San Francisco, or was it fairly light?

17 A. I can't recall.

18 Q. Okay. That would be clarified by the body
19 cams, of course.

20 I see that in your report, that you reported
21 that the person -- that party one was complaining of
22 pain in the left side of his rib cage, on the left
23 side of his lower back, correct? That is in the
24 report?

25 A. Yes. I documented a complaint of pain to the
26 back and left side.

27 Q. Left side, okay. Where was that reported to
28 you, since you weren't there? Do you remember who had

1 told you it was the left side?

2 Was it a fireman or was it another officer?

3 A. I don't remember.

4 Q. And from the statement, did Mr. Abdelhalim
5 turn right or left into Tehama?

6 A. He turned right.

7 Q. Okay. On that -- if he turned right, if you
8 were to put it together, did that mean that I was
9 struck from his right side or from his left side of
10 his vehicle?

11 MS. NAVARATNASINGHAM: Calls for speculation.

12 THE COURT: Sustained.

13 MR. ROSARIO: Q. Did you listen to the 911
14 recording after the collision or after the incident?

15 A. No.

16 Q. So you are unaware of the foundation for
17 which the police were ordered there other than the
18 fact there was some kind of incident between -- there
19 was some kind of a collision incident, just a generic,
20 correct?

21 A. Dispatch received the call and then they
22 broadcast it for us. We usually don't listen to the
23 911 call.

24 Q. I will double check here. This is not
25 entering into testimony.

26 But what I will do is I will ask you if this
27 particular call number or a particular call message --

28 It says here: RP in a van hit male

1 pedestrian on a scooter.

2 That would probably pretty much align with
3 why you guys got a call, that is what the 911 dispatch
4 says.

5 Does that align correctly with the type of
6 response that you would normally have if that was to
7 be stated in a call for a dispatch for an officer?

8 You guys would arrive and expect to see some
9 kind of collision between two people?

10 A. I am sorry. Can you clarify your question?

11 Q. Yeah. The dispatch says that somebody was
12 struck, a pedestrian was struck, and you got there,
13 and the statement says here in your statement that you
14 were dispatched to a call of a vehicle collision with
15 injury; and the part about the pedestrian being struck
16 was left out in your report; whereas, the 911 dispatch
17 states a pedestrian was struck.

18 So we lost somehow or another the message
19 sent from the 911 to dispatcher, not to you, like you
20 said, but somehow from the 911 dispatch to the report,
21 the whole concept of a pedestrian has been dropped.

22 Can you explain that to us?

23 MS. NAVARATNASINGHAM: Objection, it lacks
24 foundation.

25 And also, do you have a copy we can look at.

26 THE COURT: Sustained.

27 Officer, typically what happens when a 911
28 call is processed and received.

1 What happens next?

2 THE WITNESS: So dispatch receives the call
3 and then they put it out on the radio and they either
4 assign a unit or a unit comes up for the call. And
5 then we also receive a computer that gets the message
6 showing where to respond -- sometimes it has details
7 of the incident -- and it has the name of the person
8 who called the 911.

9 MR. ROSARIO: Thank you.

10 THE COURT: So as you said, it would be
11 unusual to hear the 911 call; am I correct?

12 THE WITNESS: Correct.

13 THE COURT: That is what the dispatcher
14 hears?

15 THE WITNESS: Correct.

16 THE COURT: Thank you.

17 MR. ROSARIO: Q. And when you arrived, like
18 I said -- and I will speak a little in the third
19 person because -- I was the victim here myself, from
20 what you saw?

21 A. Yes.

22 Q. And as your report stated, you said it was on
23 my left side, correct?

24 A. Yes.

25 Q. Were you aware that it was actually my right
26 side that had been struck?

27 A. I was not aware.

28 Q. Okay. All right. Thank you.

1 Where was Mr. Abdelhalim's van located when
2 you arrived at the scene?

3 A. I don't recall.

4 Q. On the images, sir, taken by an
5 Officer Thompson's body cam, on the third --
6 Page 004 --

7 THE COURT: If he doesn't recall, if you want
8 to use this to refresh his recollection, you may; but
9 you cannot assert that that is an actual fact in
10 evidence here, sir. It is not evidence yet.

11 MR. ROSARIO: Okay. All right. Okay.

12 MR. ROSARIO: Q. Did you collect any -- you
13 did not collect the -- for example, the standard
14 information from Mr. Abdelhalim; it was another
15 officer, correct?

16 A. Correct.

17 Q. What are the things that are typically
18 collected from a officer, from a party that is not
19 involved in the collision?

20 Is there ever any information that is
21 collected from a person who just, for example, finds a
22 person laying on the ground?

23 Is there a reason to collect?

24 The question is: Is there a reason to
25 collect from a person who just finds a person on the
26 ground?

27 A. Are you talking about a witness or a victim?

28 Q. A witness, yeah, a witness walking by and

1 finds a person on the ground.

2 Is it required that you collect that
3 information?

4 A. We do gather information. Sometimes people
5 want to be anonymous and refuse and we can't force
6 them to provide that information.

7 Q. Would, there be a reason, if the person saw
8 somebody on the ground, that you would collect, for
9 example, their insurance information?

10 MS. NAVARATNASINGHAM: Objection.

11 THE COURT: Sustained. It is not relevant.

12 MR. ROSARIO: Q. Why was any information of
13 the driver up to and including various documents
14 necessary for them to operate a legal vehicle to be
15 collected if a person were a witness? Is there a
16 reason why all the various documents were collected
17 from Mr. Abdelhalim?

18 MS. NAVARATNASINGHAM: I just object; vague
19 and ambiguous.

20 THE COURT: Sustained.

21 MR. ROSARIO: Q. Okay. Are you aware if the
22 documents were collected from Mr. Abdelhalim?

23 A. No.

24 Q. It states here that there is information in
25 the report about Mr. Abdelhalim's vehicle and his home
26 address as well as a VIN number.

27 MS. NAVARATNASINGHAM: Objection as to which
28 report we are referring to.

1 MR. ROSARIO: The police report.

2 THE COURT: Overruled.

3 MR. ROSARIO: Q. And was that information
4 that is Page number 1 of the TCR document -- do you
5 have that in front of you?

6 A. Yes.

7 Q. And the information was collected by another
8 officer, correct?

9 A. Correct.

10 Q. All right. And did you collect information
11 regarding the scooter?

12 A. I don't recall who gathered that information.

13 Q. I believe it was you that locked it, the
14 scooter. Correct? You locked the scooter from your
15 body cam?

16 Do you remember doing that?

17 A. I don't remember.

18 Q. I believe it was you.

19 Do you remember checking the -- did you
20 operate the scooter?

21 A. No.

22 Q. You didn't check that the scooter was
23 operational?

24 A. Not that I recall.

25 Q. Did you check that the scooter had an
26 electrical charge?

27 A. No.

28 Q. Did you check that the scooter had any --

1 like, was locked in or anything like that?

2 A. No.

3 Q. How were you able to tell that the scooter
4 belonged to, say, me?

5 A. Based on whatever statement you provided.

6 Q. Earlier, you stated that you don't know who
7 collected that information, correct?

8 A. Correct.

9 Q. So you associated the scooter to me based
10 upon a statement from some other officer?

11 A. Yes.

12 Q. Okay. And that information led you to
13 believe that that scooter belonged to me and I was
14 operating it, from what the other officers stated?

15 A. Yes.

16 Q. But you personally had no actual evidence
17 about that.

18 Is it possible that that scooter could have
19 been laying there on that sidewalk?

20 A. Yes.

21 Q. All right. Do you have any evidence that I
22 was mounted on the scooter personally?

23 A. Just the statement that was provided.

24 Q. I am asking for your personal information.
25 Did you have any evidence provided to you
26 other than the statement?

27 A. No.

28 Q. All right. You had no images of me?

1 A. Correct.

2 Q. Do you know whether I was walking the scooter
3 or not?

4 A. I don't know.

5 Q. So you don't know whether I was walking with
6 it next to me or anything.

7 You just know there was a statement that I
8 was mounted on it?

9 A. Yes.

10 Q. Okay. Are scooters -- are all scooters
11 classified as vehicles? Is that right?

12 A. For the most part, all scooters operate on
13 the roadway just like any other vehicle.

14 Q. If they are operated on the sidewalks,
15 are -- they are operated on the sidewalks, are they
16 considered vehicles?

17 A. Technically, it is illegal to operate them on
18 the sidewalk.

19 Q. I wouldn't want my granddaughter riding on
20 the sidewalk with a scooter with me.

21 Okay. So you are saying that scooters on the
22 sidewalks of San Francisco are considered a vehicle?

23 A. I am saying that they are considered vehicles
24 when they are on the roadway.

25 Q. On the sidewalk -- in a crosswalk, for
26 example, is that considered a vehicle if it is found?

27 A. If it is found --

28 Q. Yeah. For example, the scooter is laying on

1 the ground in a crosswalk. Is it still considered a
2 vehicle or is it considered an object in a roadway?

3 MS. NAVARATNASINGHAM: Objection, vague and
4 ambiguous.

5 THE COURT: Overruled, I think he can answer.

6 THE WITNESS: Usually someone has to operate
7 the vehicle. So -- I mean, so if it is just found on
8 the road, I don't know if I can consider that a
9 vehicle at the time. Right.

10 MR. ROSARIO: Q. Thank you for clarifying
11 that.

12 So if you don't have evidence of a person
13 actually operating it and the person, say, for
14 example, is walking it, would they be susceptible to
15 the vehicle codes if they are just walking with the
16 scooter?

17 A. No.

18 Q. So if I had a bicycle next to me, I am
19 walking with my bicycle, then am I a pedestrian?

20 A. Yes.

21 Q. Does that also count for scooters?

22 A. Yes.

23 Q. And so it is a very fine line between whether
24 I was on the vehicle or if it is a pedestrian because
25 they have to be operating, correct?

26 A. Sorry. Say that again.

27 Q. You stated that a person, if they are
28 operating -- riding on the scooter, they're -- they

1 are a vehicle and it would be a violation of the
2 ordinance against riding on the sidewalks with
3 vehicles, a scooter or not --

4 A. Correct.

5 Q. -- a skateboard, also different things.

6 But if they are walking with it, they are now
7 a pedestrian?

8 A. Correct.

9 Q. Okay. So what you are saying now is that,
10 again, you collected information from an officer that
11 stated that I was operating it in a sidewalk, correct?

12 A. I believe the statement in the report states
13 you were operating the scooter in the bike lane.

14 Q. All right. But we have evidence that you
15 stated that you don't know where that statement came
16 from, which officer it came from?

17 A. Correct.

18 Q. Okay. Did that statement come from the
19 Defendant?

20 A. I am not sure. I don't think so.

21 Q. You didn't listen to the 911 statement, and
22 the Defendant did say that in the audio there.

23 If that were so and if that were in the
24 audio, would you then go ahead and repeat that into
25 your report, what was stated in an audio call, a 911
26 call?

27 If a person said: Hey, there was a person
28 that hit them, they were riding a scooter, and the

1 only witness was say, for example, the Defendant,
2 would you write down that they were operating a
3 scooter because the Defendant was the only person that
4 hit them would be the only person who was recording
5 it?

6 That is what you would provide?

7 A. I am sorry.

8 Q. Say somebody was knocked out, dead or
9 unconscious and somebody calls and says:

10 Hey, I hit somebody and they were riding a
11 scooter.

12 You would write down in that document, based
13 upon what the Defendant said, because you could not
14 get the statement from the person who is dead,
15 correct?

16 A. In this hypothetical situation, possibly.

17 Q. Okay. So would it not -- so somebody could
18 hit somebody; if there was no witnesses and no
19 cameras, they could state that somebody was riding a
20 scooter.

21 Would you take their word for it or would you
22 try to do more investigation?

23 A. I don't understand the question. Sorry.

24 Q. All right. If somebody called you and they
25 said: Hey, there is a person here unconscious or
26 dead, they were riding a scooter and I hit them, would
27 you write down that the person was riding the scooter
28 as a vehicle or would you state that they were a

1 pedestrian until the riding of the scooter had been
2 proven?

3 A. Whatever statements I receive, I am seeing,
4 that is usually what I put down in the police report.

5 Q. So here is a very straight question:
6 If my daughter were hit --

7 MS. NAVARATNASINGHAM: Objection.

8 THE COURT: The objection is sustained.

9 MR. ROSARIO: Q. Okay. If a person is
10 laying next to a scooter, the driver says that they
11 were riding it, the person is unconscious, what would
12 go into the report?

13 A. Whatever statement I have on the scene.

14 Q. Good. Okay. Excellent. You did not collect
15 my statement and no officers -- well, no officers that
16 you know collected my statement.

17 Do you have any evidence stating that I was
18 riding the scooter in the street?

19 A. At multiple points (inaudible) --

20 Q. Do you have any statements from me, recorded
21 otherwise, that clearly state without -- you know,
22 irrefutably, that I claimed that I was riding the
23 scooter in the street to qualify as a vehicle?

24 A. I do not have a recorded statement.

25 Q. You stated earlier that you got that
26 statement from another officer hearsay, correct?

27 MS. NAVARATNASINGHAM: Objection, asked and
28 answered.

1 THE COURT: Sustained.

2 MR. ROSARIO: Q. You stated that you got the
3 definition that I was riding the scooter from another
4 officer?

5 MS. NAVARATNASINGHAM: The same objection.

6 THE COURT: Sustained.

7 MR. ROSARIO: Q. I already asked this
8 question. So are you certified to recognize injuries
9 on human beings for medical reasons?

10 MS. NAVARATNASINGHAM: Objection, calls for
11 expert opinion.

12 MR. ROSARIO: No.

13 Q. I am asking --

14 THE COURT: Overruled.

15 MR. ROSARIO: Q. -- are you certified as an
16 EMT or a doctor to determine if a person is injured?

17 A. I am not certified as an EMT or a doctor.

18 Q. Did the San Francisco Fire Department EMTs
19 provide info on my injuries to you at the scene, or
20 after?

21 A. I don't recall.

22 Q. In your report, you stated that -- it states
23 that I was injured. It states here that you said I
24 was -- I was complaining of pain to the left side of
25 my rib cage and to my lower back.

26 Unfortunately, it was the wrong side, but,
27 okay. All right. Excellent. So -- all right.

28 We have established the EMTs did not give it

1 to you. It was delivered to you by -- through your
2 own observation of seeing me hurt. We got that.
3 Okay.

4 On 5th Street, now, at that intersection --
5 let's go deeper into that intersection right now and
6 identify it.

7 Now, it states clearly in the report that
8 Mr. Abdelhalim took a right-hand turn.

9 That means he would have been heading what
10 direction on 5th?

11 A. Southbound.

12 Q. So if I was in the intersection and he was
13 turning right, does that mean I would have been in
14 front of him in his rear view?

15 MS. NAVARATNASINGHAM: It calls for
16 speculation.

17 THE COURT: Sustained.

18 MR. ROSARIO: Q. If he is turning left -- if
19 you are approaching the intersection and you turn
20 right, that means you turn right, that means people
21 coming towards you would be in your rear view,
22 correct?

23 MS. NAVARATNASINGHAM: It calls for
24 speculation.

25 THE COURT: Sustained.

26 MR. ROSARIO: Q. Was Mr. Abdelhalim
27 obligated to look for pedestrians or bicyclists
28 approaching him when he approached that corner?

1 A. Yes.

2 Q. Was Mr. Abdelhalim required to pause to make
3 sure that vehicles might not be coming along his
4 right-hand side as well, going the opposite direction?

5 A. Are you referring to the bike lane?

6 Q. Yeah, bike lane or crosswalk.

7 A. Yes.

8 Q. If a person is riding their scooter or
9 bicycle in the crosswalk, does that mean that
10 Mr. Abdelhalim does not need to pay attention to them?

11 MS. NAVARATNASINGHAM: Objection.

12 THE COURT: It is argumentative.

13 MS. NAVARATNASINGHAM: Argumentative.

14 THE COURT: Sustained.

15 MR. ROSARIO: Q. Is Mr. Abdelhalim supposed
16 to pay attention to people in the bike lane and in the
17 crosswalk?

18 A. Yes.

19 Q. If he was turning right, that means that
20 anybody in front of him would be protected in that
21 crosswalk; is that correct, would be traversing that
22 crosswalk if they were walking as a pedestrian, and he
23 was obligated to yield.

24 MS. NAVARATNASINGHAM: Compound, vague and
25 ambiguous; it calls for speculation.

26 THE COURT: Sustained.

27 MR. ROSARIO: Q. Mr. Abdelhalim is obligated
28 to pause for people in that crosswalk. Yes or no?

1 A. He is required to yield.

2 Q. Yield, okay. Is there ever a time that he is
3 allowed to drive through there with a pedestrian
4 within that space? Is he allowed to do that legally?

5 MS. NAVARATNASINGHAM: Objection,
6 argumentative.

7 THE COURT: Sustained.

8 MR. ROSARIO: Q. So here we go. And this
9 is, again, I guess a basic rule of the road.

10 What is Mr. Abdelhalim supposed to do when a
11 pedestrian is in the crosswalk?

12 A. Yield.

13 Q. And what does that mean? Is he supposed to
14 yield until the pedestrian has fully traversed the
15 crosswalk or can he take off once they are about five
16 feet -- I mean, what is the law on when he is allowed
17 to make that turn?

18 MS. NAVARATNASINGHAM: Objection,
19 argumentative, compound.

20 THE COURT: Sustained.

21 MR. ROSARIO: Q. Is Mr. Abdelhalim allowed
22 to see if the person leaves the crosswalk?

23 MS. NAVARATNASINGHAM: I didn't hear the
24 question.

25 MR. ROSARIO: Q. Is Mr. Abdelhalim allowed
26 to turn before the pedestrian is out of the crosswalk?

27 MS. NAVARATNASINGHAM: The same objection.

28 MR. ROSARIO: Q. It is a straight rule of

1 the road; I think what we all need to know: Are
2 drivers allowed to turn while people are in the
3 crosswalk?

4 MS. NAVARATNASINGHAM: He asked and answered
5 that.

6 THE COURT: Well, I will allow this one last
7 question. I think we have the answer, Mr. Rosario.

8 THE WITNESS: He is allowed to turn when it
9 is safe to do so.

10 MR. ROSARIO: Q. Are there bike lanes that
11 go both directions?

12 A. Yes.

13 Q. There are, okay. There are bike lanes that
14 go both directions?

15 How are bicyclists and --

16 Okay. You said -- you stated earlier that
17 somebody is going against the flow of traffic.

18 So how can somebody be going against the flow
19 of traffic if the bike lane is in two directions?

20 MS. NAVARATNASINGHAM: Objection, vague and
21 ambiguous as to whether the description of the
22 intersection had a bike lane that was going both
23 directions.

24 MR. ROSARIO: Q. If the bike lanes can go
25 both directions, then it is possible for a person to
26 go the wrong direction against the flow; is that
27 correct?

28 THE COURT: Mr. Rosario, let's confine your

1 questions to this street, the -- Tehama Street, the
2 intersection.

3 You need to know whether or not he knows if
4 the bike lane was two directions or one directional.
5 We don't even know that yet.

6 So establish that first, and then you might
7 be able to ask your next question.

8 MR. ROSARIO: Q. Oh, okay.

9 You said you don't remember whether the
10 ground was painted or not -- correct, earlier?

11 A. Correct.

12 Q. So you don't know whether it was a
13 two-directional or a one-direction bike lane, correct?

14 A. From other instances in that area, I believe
15 it is a one-directional bike lane.

16 Q. How is a pedestrian or anybody going to
17 determine whether a bike lane is one direction or not?

18 A. So pedestrians don't walk in the bike lane.
19 Pedestrians can go either direction in a crosswalk.

20 If you are asking me about the bike lane, it
21 was one-directional, so they should be on the right
22 side of the double yellow, unless there is a bike lane
23 with two directions; it will show an arrow going both
24 ways.

25 Q. Okay. On Page 001, (sic) your image, is that
26 a two-directional bike lane?

27 MS. NAVARATNASINGHAM: Your Honor, I object.
28 The picture on 0001 is not the intersection in

1 question here.

2 I am not sure what road that is.

3 MR. ROSARIO: The lanes leading up to an
4 intersection would determine the direction a person
5 can go.

6 THE COURT: Sir, this is improper. Okay?

7 You have to establish -- if you are going to
8 examine him on the issues of whether or not this
9 street had a one or two-directional bike lane, you
10 have to ask him first, and he has already stated that
11 it was one direction.

12 If you present this document to him, you have
13 to ask him if he recognizes it and you have to
14 identify where this particular photograph comes from.

15 You haven't done so yet.

16 So one step at a time, sir. But so far, all
17 we have is the bike going south -- I think that is
18 what he testified to -- and it is a single direction.

19 MR. ROSARIO: Q. Page 002, you stated
20 clearly the arrows go a different direction than
21 traffic is going to go.

22 Image number 2 there is arrows pointing at
23 each other. What is going on there?

24 MS. NAVARATNASINGHAM: Your Honor, again,
25 objection --

26 MR. ROSARIO: Q. On 002, there is an arrow.
27 You stated that is a one-way.

28 You stated clearly how a pedestrian is to

1 know which direction, if I claim -- you stated clearly
2 that arrows determine that for the pedestrian.

3 THE COURT: Yes.

4 MS. NAVARATNASINGHAM: Thank you, Your Honor.
5 The picture referred to on 0002 is, once again, not
6 the intersection in question in this lawsuit.

7 I don't know where that is.

8 THE COURT: Do you know where this photograph
9 was taken, sir, or who took it?

10 MR. ROSARIO: Yeah. That is Tehama. It is
11 taken on Tehama.

12 THE COURT: Sir, you cannot testify. Who
13 took the photograph?

14 MR. ROSARIO: Officer Thompson took it.

15 THE COURT: Then you need to establish that
16 through Officer Thompson.

17 You cannot impeach a witness based on -- or
18 to try and contradict --

19 MR. ROSARIO: I am not trying to -- I am
20 trying to establish how clearly a pedestrian is
21 supposed to know whether they are allowed to be hit by
22 vehicles in an intersection based upon the flow of
23 traffic.

24 THE COURT: Then ask the question.

25 MR. ROSARIO: I am asking the question to
26 clarify how the arrows, which he clearly stated went
27 one direction or the other -- and I asked about an
28 image and she keeps on objecting.

1 MR. ROSARIO: Q. I am asking: There are
2 arrows in multiple bike lanes Mr. Fernandez --

3 THE COURT: There are a number of assumptions
4 you have made based upon this photograph.

5 First, I need to explain to you, the jury has
6 no understanding what you are addressing because the
7 photographs are not in evidence yet.

8 So you need to paint a picture for the jury
9 as to what you are doing.

10 The second photograph, top photo, on
11 Page 0002 has a photograph of some sort of lane with
12 one arrow pointing one direction and three arrows
13 pointing the other direction.

14 What does that mean?

15 Can you tell us, Officer Fernandez?

16 THE WITNESS: So the one arrow pointing in
17 whatever direction that is, that is usually the way
18 the bikes will travel.

19 The other three, they are not arrows. They
20 are some other kind of markings but they don't dictate
21 the direction of travel.

22 THE COURT: Thank you. Next question.

23 MR. ROSARIO: Q. Yes. So that is fairly
24 confusing.

25 Are you -- have you ticketed people for
26 riding in the direction that the arrows are going?

27 A. Are you talking about, in my entire career,
28 have I ever ticketed somebody for --

1 Q. For the bike lane violation of going in the
2 wrong direction. Have you ever given a ticket out
3 ever?

4 A. I don't believe so.

5 Q. Yet you cited -- but, yet, I was cited for
6 flowing in the wrong direction, correct?

7 A. You were not cited.

8 Q. You had mentioned I was violating going in
9 the wrong direction?

10 A. Correct.

11 Q. But you've never ever actually given out a
12 ticket.

13 A. Correct.

14 Q. Have you ever found anyone else personally,
15 other than me, to have gone in a wrong direction in a
16 bike lane?

17 A. Have I found other people, yeah, I have.

18 Q. But you have never given them citations?

19 A. I don't believe so.

20 Q. So it is not really something that
21 San Francisco -- since you've never done it -- I can't
22 speak for the other officers.

23 But you've never given out a citation for
24 somebody going the wrong direction?

25 A. On a bicycle, I don't believe so.

26 Q. Okay. Are drivers required to look both left
27 and right before they turn?

28 A. They are supposed to clear the intersection,

1 make sure it is safe.

2 Q. When a driver fails to look in a mirror
3 before they turn and if somebody is coming alongside
4 them and they turn and they hit them, would that be
5 the driver's fault, if the driver fails to look in the
6 mirror? Is that generally why they are asked to look
7 in the mirror?

8 MS. NAVARATNASINGHAM: Objection, incomplete
9 hypothetical, it calls for speculation, relevance.

10 THE COURT: Sustained.

11 MR. ROSARIO: Q. Why is -- in the "do you
12 care" which is the yield to pedestrians in the
13 crosswalks under Vehicle Code 21950, and these other
14 ones, why is it important? Why do we enforce this?

15 Actually, a good question.

16 Have you ever cited anybody for failing to
17 yield to the vehicle code at intersections for a
18 vehicle?

19 A. Say it again.

20 Q. Have you ever cited anybody for failing to
21 abide by the vehicle code of yielding to pedestrians
22 in crosswalks?

23 A. I believe so.

24 Q. So you have cited vehicles. You've never
25 cited pedestrians for failing -- or bicyclists or
26 scooters or anyone like that -- for violation of the
27 directional, but you have cited people for not
28 yielding to pedestrians, correct?

1 MS. NAVARATNASINGHAM: Objection, compound.

2 MR. ROSARIO: I was just verifying that.

3 That is correct. Okay. Next question.

4 What is the right or wrong side of the road?

5 I think you said against the flow of traffic.

6 Are crosswalks bi-directional? Are they

7 allowed to have people go both directions?

8 A. Crosswalks, yes.

9 Q. And only some bike lanes. Some bike lanes
10 are two-directional, correct?

11 A. Correct.

12 Q. Some bike lanes are one direction, correct?

13 A. Correct.

14 Q. But crosswalks are always two directions,
15 correct?

16 A. I believe so, yes.

17 Q. So if a person is doing circles in a
18 crosswalk, that is perfectly fine because they are
19 going both directions, crosswalks allow for two
20 different directions?

21 A. Yes.

22 Q. If a person -- say they drop their wallet and
23 they turn around on their bicycle in the bike lane to
24 pick up their wallet. Have they violated the code?

25 A. Repeat the question.

26 Q. If a person drops their wallet and they turn
27 their bike around to pick up the wallet, are they
28 violating the codes?

1 MS. NAVARATNASINGHAM: Objection, relevance.

2 THE COURT: Sustained. Mr. Rosario, I will
3 give you 10 minutes more to finish your examination.

4 MR. ROSARIO: Hold on. We are getting to the
5 point now.

6 THE COURT: Get to the point, sir. I am
7 going to give a 10-minute limit.

8 If I think it is reasonable, I will extend
9 it; but so far, you have spent the last 50 minutes
10 focused on the bike lanes.

11 MR. ROSARIO: Yes.

12 THE COURT: And Officer Fernandez's
13 investigation.

14 Let's get to the main point, please.

15 MR. ROSARIO: Q. All right.

16 You never spoke with Mr. Abdelhalim, correct?

17 MS. NAVARATNASINGHAM: Asked and answered.

18 THE COURT: Sustained.

19 MR. ROSARIO: All right.

20 THE WITNESS: Correct.

21 MR. ROSARIO: Q. And you are untrained to be
22 able to tell whether a person has been injured, so you
23 could not speak to whether I had -- the extent of my
24 injuries, correct?

25 MS. NAVARATNASINGHAM: Asked and answered.

26 THE COURT: Sustained.

27 MR. ROSARIO: Q. Okay. All right.

28 Do you believe that my testimony was

1 credible? You did not speak to me, but the officers
2 had told you that my testimony was credible?

3 MS. NAVARATNASINGHAM: Objection, calls for
4 speculation.

5 THE COURT: First of all, the only people in
6 this courtroom who could determine your credibility at
7 any point during this investigation or the accident or
8 during your testimony is the jury.

9 You cannot ask an officer or any other
10 witness: What did you think about the credibility of
11 some person you are interviewing on the street?

12 Your next question.

13 MR. ROSARIO: Q. All right. You did not
14 review the videos of Officer Thompson with the
15 eyewitness; is that correct?

16 A. Correct.

17 Q. Are you now aware that there is a video of an
18 eyewitness?

19 A. No.

20 Q. Okay. If there were an eyewitness, would you
21 have written that into the report?

22 A. Yes.

23 Q. What would be considered an eyewitness?
24 Would a person saying that they saw me struck by a
25 vehicle be considered an eyewitness?

26 A. Yes.

27 Q. Is there ever a reason to not record that?

28 A. Every situation is different. It depends --

1 I can't speak to a hypothetical.

2 Q. You did not record that there was an
3 eyewitness.

4 A. Correct.

5 Q. You know that Officer Thompson had mentioned
6 this before or after your report that you mentioned
7 that -- it could have been a week ago, I don't care --
8 has Officer Thompson mentioned that there was an
9 eyewitness?

10 A. Not that I remember.

11 Q. All right. How would you determine if a
12 person is an eyewitness?

13 A. If they claim to have witnessed something.

14 Q. Do they have to say that they saw the
15 incident?

16 A. They could observe the incident.

17 Sometimes the witnesses see the aftermath of
18 an incident. That could also be helpful. It just
19 depends.

20 Q. If an eyewitness was seen to have a collision
21 and one party was saying, hey, nothing happened, two
22 other eyewitnesss said that they did, what would you
23 normally do to -- write down?

24 Would you say there were two people saying
25 there was a collision and then one person saying there
26 was not a collision? Is that what you would write
27 down? Or would you take the statements of the people,
28 or more people?

1 Does more people matter on whether you write
2 down who is at fault?

3 That is the question. I am trying to figure
4 out: How does it make in there? Do you understand?

5 MS. NAVARATNASINGHAM: Objection, compound,
6 vague and ambiguous. I am not sure I understand the
7 question.

8 THE COURT: Sustained.

9 MR. ROSARIO: Q. All right. If you have two
10 people that say they saw or experienced the collision
11 and one person saying it didn't happen, how do you
12 determine who is at fault, who to write down?

13 A. It just depends on the situation. Every
14 situation is different. So it depends on the entire
15 evidence.

16 Q. All right. Is it standard procedure to -- is
17 it legal to omit eyewitnesses' and -- testimony from a
18 police report?

19 MS. NAVARATNASINGHAM: Objection, relevance,
20 vague and ambiguous.

21 THE COURT: Sustained.

22 MR. ROSARIO: Q. Are you aware of the
23 implications to conceal evidence?

24 MS. NAVARATNASINGHAM: Objection, relevance.

25 THE COURT: Sustained.

26 MR. ROSARIO: Q. Are you aware that
27 concealing --

28 THE COURT: Sir, you cannot ask these

1 questions unless you have a legitimate basis for doing
2 so through other proof in the record; otherwise, it is
3 merely speculation.

4 MR. ROSARIO: Q. Okay. I believe, then,
5 that what we can do is we can talk about the --

6 You said you did not review any of the
7 videos; is that correct?

8 A. Are you referring to the body cameras?

9 Q. Correct.

10 A. Correct. I don't have access to view other
11 officers' camera footage.

12 Q. Are body cameras used generally -- in the
13 reports, do they assist the officers in making sure
14 the information is correct?

15 A. Some officers will review their body cameras
16 to refresh their memory, others won't use them. It
17 depends on who is writing the report.

18 Q. It is up to the officer who is writing the
19 report to make a judgment; like if they see like an
20 eyewitness statement, it is up to the officer to
21 determine whether that statement is credible enough to
22 go into the report; is that correct?

23 A. An officer would determine what statement is
24 going into the report.

25 Q. Eyewitness statements generally, are they
26 credible?

27 A. It just depends on the witness.

28 Q. All right. In cases of injury, are

1 eyewitnesss to be recorded?

2 A. Sorry. What is the question?

3 Q. In the case of an injury -- for example, two
4 cars hit each other and no one is injured, it is one
5 thing, if a person is injured and there is a
6 eyewitness statement.

7 Is that typically almost always recorded in
8 the document?

9 A. Typically, it would go in the police report
10 as an eyewitness, yes.

11 Q. Now, since you don't have a direct experience
12 with the videos, we might ask for you to come back on
13 a couple of matters, but for right now, I think that
14 we have established most of the stuff, I will consider
15 what you said.

16 I really appreciate it. I guess now I will
17 hand it to the Defense.

18 THE COURT: All right.

19

20 CROSS-EXAMINATION BY

21 MS. NAVARATNASINGHAM: Q. Thank you.

22 Officer Fernandez, I will try to be to the
23 point and brief. Thank you for your time here.

24 A. Thank you.

25 Q. How long have you been a police officer here
26 in San Francisco?

27 A. Approximately 7 years.

28 Q. Do you have an estimate of how many traffic

1 incidents you may respond to in a given year?

2 A. I can't really estimate. I am not sure.

3 Q. That is fair. I would like to go through
4 your report, and I may ask you some very quick
5 questions just so that we have a clean record, okay?

6 You have the report in front of you, sir?

7 A. Yes.

8 Q. Great. If you can turn to the page that
9 is -- I guess it is this page, excuse me. A different
10 page.

11 So I guess the first page, you noted here,
12 Officer, that Mr. Rosario was operating a green Lime
13 scooter, correct?

14 A. Correct.

15 Q. And if you go to page 5 of 7, sir -- Officer,
16 my client was at the scene of the incident when you
17 arrived there. Correct?

18 It says: P2 -- who is my client -- he was
19 located on the scene?

20 A. Correct.

21 Q. Okay. And on that same page, Officer, it
22 says that the Lime scooter that Mr. Rosario was
23 operating, it did not sustain any damage, correct?

24 A. Correct.

25 Q. And the vehicle that my client was operating
26 also did not sustain any damage, correct?

27 A. Correct.

28 Q. And if you can turn to the next page,

1 Officer, Page 6 of 7, the statement -- and I want to
2 have a clean record here.

3 The statement that you noted here as to
4 Mr. Rosario. It says here that:

5 Mr. Rosario stated he was riding the Lime
6 scooter northbound on 5th Street approaching Tehama
7 Street. He was riding in the bicycle lane against the
8 flow of traffic. He observed my client's vehicle
9 approaching and attempted to turn westbound -- excuse
10 me -- he observed my client's vehicle approaching.

11 He attempted to slow down to avoid the
12 collision and he collided with my client's vehicle.

13 Do you see that?

14 A. Yes.

15 Q. Okay. Mr. Rosario reported to you he was
16 traveling approximately five miles per hour. Is that
17 correct?

18 A. Correct.

19 MR. ROSARIO: Objection. I did not say that
20 to him at all. That is hearsay. She is asking him to
21 make statements about things that I said and he never
22 heard me say that. He never took a statement from me.

23 MS. NAVARATNASINGHAM: I will rephrase,
24 Your Honor.

25 THE COURT: All right.

26 MS. NAVARATNASINGHAM: Q. Officer Fernandez,
27 it says the statement you received as to Mr. Rosario
28 was that he was traveling approximately five miles per

1 hour prior to the collision, correct?

2 A. Correct.

3 Q. Okay. You then have a statement here that my
4 client was driving southbound on 5th Street. Is that
5 correct?

6 A. Correct.

7 Q. And it says here that my client looked at his
8 rearview mirror to clear the bike lane.

9 You see that, correct?

10 A. I see the "side view mirror" to clear the
11 bike lane, yes.

12 Q. Then he completed his turn, correct?

13 A. Correct.

14 Q. And my client stated that he did not feel any
15 impact but instead heard screaming. Is that right?

16 A. Correct.

17 Q. And he did not see Mr. Rosario prior to the
18 collision, correct?

19 A. Correct.

20 Q. It says here my client was traveling
21 approximately five miles per hour. Is that right?

22 A. Correct.

23 Q. Then it says that my client exited the
24 vehicle to check on Mr. Rosario and call the police.
25 Is that correct?

26 A. Correct.

27 Q. And with reference to -- in your
28 experience -- because Mr. Rosario brought this up --

1 in your experience, Officer, a person traveling on a
2 scooter should be traveling with the flow of traffic,
3 correct?

4 A. Correct.

5 Q. You did not cite Mr. Rosario for traveling
6 against the flow of traffic, correct?

7 A. Correct.

8 Q. That was your conclusion, that Mr. Rosario
9 caused the collision in violation of California
10 Vehicle Code --

11 MR. ROSARIO: Objection. Speculation.

12 THE COURT: Response?

13 MS. NAVARATNASINGHAM: Your Honor,
14 Mr. Rosario opened the door to the causation as to
15 Mr. Fernandez's conclusion based upon his
16 investigation we just walked through.

17 THE COURT: It is a lay opinion. Very well.

18 MS. NAVARATNASINGHAM: Q. Mr. Fernandez,
19 based upon your investigation, you determined that
20 Mr. Rosario caused the collision by driving on the
21 opposite side of the road against the normal flow of
22 traffic in violation of California Vehicle Code
23 21651B, correct?

24 A. Correct.

25 Q. I just asked this: You did not cite
26 Mr. Rosario for traveling against the flow of traffic,
27 correct?

28 A. Correct.

1 Q. Why was that?

2 A. Our department policy is for vehicle
3 collisions, if a party causes injury to someone else
4 and they are at fault, we cite them.

5 If the person is at fault and they only cause
6 injury to themselves, we don't cite them.

7 Q. You didn't cite Mr. Rosario because it was
8 your determination, based upon the investigation, he
9 caused injuries to himself?

10 A. Correct.

11 MR. ROSARIO: Objection. He didn't run the
12 investigation; he collected the information to report
13 that.

14 THE COURT: It is overruled.

15 MS. NAVARATNASINGHAM: Q. And my client was
16 not cited, correct?

17 A. Correct.

18 Q. Why is that?

19 A. I didn't find any vehicle code violation.

20 Q. As far as the police report, do you recall if
21 you ever received any inquiries from Mr. Rosario to
22 make any changes to the report?

23 A. I don't believe so.

24 Q. If such an query had been made, that would be
25 noted, correct?

26 A. Correct.

27 Q. According to your report, Mr. Rosario was
28 examined at the scene by an ambulance personnel. Is

1 that right?

2 A. Correct.

3 Q. And he refused transport to the hospital at
4 the scene, correct?

5 A. Correct.

6 Q. I am only asking this because Mr. Rosario
7 brought this up.

8 But a driver has to be able to see an
9 oncoming scooter in order to yield, correct?

10 A. Correct.

11 Q. A driver can't be expected to yield to a
12 person or scooter that you can't see, correct?

13 A. Correct.

14 MS. NAVARATNASINGHAM: Thank you. I have no
15 further questions.

16 THE COURT: Redirect?

17

18 REDIRECT EXAMINATION BY

19 MR. ROSARIO: Q. If a driver is not capable
20 of seeing, they are still obligated to look; is that
21 correct, Officer Fernandez?

22 A. Sorry.

23 Q. Drivers are obligated to look and determine
24 they can safely traverse a sidewalk, correct?

25 A. They are required to make sure it is clear
26 and to yield to any pedestrians, and if it is safe to
27 do so, they can proceed.

28 Q. On the report you have there, there is a

1 supplement, correct?

2 A. Correct.

3 Q. So there was additional information. She had
4 stated there wasn't one, but obviously there is --

5 THE COURT: Sir. Just ask the question,
6 please.

7 MR. ROSARIO: Q. Okay.

8 Your report that you stated your findings
9 were, as you said -- stated earlier, are based upon
10 the other officers.

11 Is there ever a chance when you see and have
12 been given information that you are able to adjust
13 your report, or are you going to let these ones stand
14 like this? Would you change it?

15 A. What do you mean?

16 Q. Given new information, as an officer -- as an
17 officer, given new information that is provided that
18 provides, you know, differentiation from the story,
19 would you change your story, or at least the report,
20 to correctly address the facts?

21 A. So once the report is published or finished,
22 if new information is provided, then a supplemental
23 report is completed.

24 Q. Okay. So the supplemental, that is added to
25 the report that is in front of you?

26 A. Yeah. I have never seen this before.

27 Q. Yeah. I think you had also stated you had
28 never seen the body cams before either. Correct?

1 A. I only was able to watch my body cam.

2 Q. Correct. So for this one -- this was filed,
3 I believe, on November 15th of 2024 -- on the
4 supplemental testimony regarding the incident.

5 MS. NAVARATNASINGHAM: Your Honor, for the
6 record, I do want to just state, as far as this
7 document goes, this is not -- we subpoenaed the police
8 records for the incident and this is not anything that
9 we received as part of the subpoena.

10 I do also want to note for the record the
11 incident occurred February 4, 2021.

12 It appears that this supplement was submitted
13 by Mr. Rosario on November 13, 2024, over three years
14 after the subject incident.

15 So I would say this is unreliable and lacks
16 foundation.

17 MR. ROSARIO: It is still part of the police
18 report. It has got the stamps on it, it says: SFPD
19 crime information services.

20 It is part of the report. We just clarified
21 "people are" and the Defense just asked: People are
22 supposed to add a supplement.

23 There is a supplement now.

24 THE COURT: It is -- sir, it may very well be
25 part of the original police report; however, number
26 one, it is beyond the scope of the original -- the
27 cross-examination in this matter.

28 She did not, as far as I recall, address

1 anything that is contained in the
2 narrative/supplemental we are addressing.

3 Two, it is not evidence.

4 Three, the officer has testified he knows
5 nothing about the supplement.

6 So it is not in the report.

7 So you are asking him to testify about
8 something he has no idea about.

9 MR. ROSARIO: No, I am not.

10 MR. ROSARIO: Q. I am asking: Do you
11 recognize there is a supplement, sir?

12 THE COURT: By virtue of his testimony, he
13 says: Yeah, supplements are prepared when there is
14 new information that has been offered in connection
15 with this incident.

16 But beyond that, he has no -- from what I
17 gather, he doesn't have any understanding, he has
18 never seen this thing before.

19 Am I correct?

20 THE WITNESS: That is correct.

21 MR. ROSARIO: All right.

22 THE COURT: So the Court --

23 MR. ROSARIO: Q. When a supplement is added,
24 new evidence is presented, what happens then?

25 A. Repeat the question.

26 Q. Say new evidence is found about a situation
27 and that supplement has been added. What then
28 happens? You, as the officer who made the original

1 report -- and I guess in certain cases -- for example,
2 this Court just brought it to your attention -- what
3 happens then, when you have been aware that there is a
4 new supplement that has been added?

5 What do you do?

6 A. For a supplemental, I don't receive any
7 notification that you made a supplemental.

8 This would just be forwarded to the traffic
9 division. They would review it.

10 But I was never made aware of it so I don't
11 have any knowledge of this, sir, or anything.

12 Q. The traffic division is effectively like the
13 final word on these things. They could update your
14 report, correct?

15 A. They wouldn't update my report. They could
16 continue the investigation if they deem it necessary.

17 Q. All right. Here is a question that was asked
18 to you during your deposition.

19 THE COURT: No. This is beyond the scope of
20 the cross-examine.

21 MR. ROSARIO: It is in response to her. It
22 is a redirect.

23 MR. ROSARIO: Q. Are scooters traveling the
24 bike lane --

25 MS. NAVARATNASINGHAM: I object to him
26 reading from the deposition transcript when the
27 witness is here.

28 MR. ROSARIO: We are validating --

1 MR. ROSARIO: Q. If your deposition is still
2 true, regardless of the direction that -- traveling
3 in -- it says: In regard to the direction of the bike
4 or scooter is traveling in the street, is it fair game
5 for vehicles to strike them?

6 Your statement says: It is not fair game to
7 strike them, correct?

8 And you said: That is correct. It is not
9 okay to strike them.

10 MS. NAVARATNASINGHAM: Objection.
11 Argumentative.

12 THE COURT: Sustained.

13 You need not answer that question. It is
14 beyond the scope of cross-examination. Very well.

15 Do you have any other questions, sir?

16 MR. ROSARIO: At this moment, for Officer
17 Fernandez, that is what I have.

18 THE COURT: Officer, it appears you are
19 subject to recall. Very well. That means during the
20 pendency of this trial. All right.

21 Let's take our afternoon break. We will
22 start up at 3:05, please. Remember not to form or
23 express any opinions about this case to anyone. Thank
24 you.

25 (Short recess).

26 THE CLERK: Please remain seated and come to
27 order. Department 504 is back in session.

28 THE COURT: All right. We are back in

1 session. All jurors are present. All parties are
2 present.

3 Your next witness, Mr. Rosario.

4 MR. ROSARIO: Your Honor, I call myself to
5 the stand under Evidence Code 1220, party admission in
6 California Evidence Code 1271 business records, the
7 Evidence Code of 780, personal knowledge and
8 credibility, that I received the records from the
9 authorization of the Officer of the Court, the Dolan
10 Law Firm, who provided the Department of Emergency
11 Management record.

12 I am going to testify to my dying declaration
13 that I made during the 911 call to the police and
14 emergency services.

15 Party admissions is evidence of -- a
16 statement is not made inadmissible by hearsay rule
17 when offered against a declarant in an action to which
18 he is party.

19 And the Court or jurors may consider the
20 existence or nonexistence of a bias in the case where
21 the testimony of a witness concerning a particular
22 matter is inadmissible unless he has personal
23 knowledge of the matter.

24 THE COURT: Very well.

25 MR. ROSARIO: I can provide that -- as
26 Custodian of the Records, an affidavit of subpoena
27 custodian appearance. I received this -- I was
28 presented to the Court by my former attorney, the

1 Dolan Law Firm.

2 THE COURT: Okay. Well, all right. So how
3 are we going to proceed? Are we going to have someone
4 ask you questions?

5 MR. ROSARIO: I am going to play the
6 recording for the Court and I am going to allow that,
7 first, to stand, about my declarations that I made to
8 the 911 services. And I will be able to certify that
9 that is my voice in the recording.

10 It is going to be a little bit disturbing,
11 okay? But it is important for us to understand that
12 my personal declaration was the message that was sent.

13 THE COURT: Well, sir, I am just simply
14 asking you: How are we going to do this?

15 Typically, we have witnesses who take a
16 witness stand, and we have someone who will ask
17 questions.

18 Are one of your assistants going to be asking
19 the questions so we can have this evidence admitted
20 into evidence?

21 I am not saying that it is going to, but I
22 need to have somebody ask you the questions so that we
23 have the right foundation in order for the material to
24 be considered by the jury.

25 MR. ROSARIO: Okay. I have prepared some
26 questions and have gone over them with Mr. Sobati to
27 ask me.

28 THE COURT: Okay. In order to make this more

1 efficient, we will have Mr. Sobati ask you the
2 questions and you should take the witness stand and be
3 sworn.

4 MS. NAVARATNASINGHAM: Your Honor, before we
5 do that -- I don't believe that I have been -- and I
6 am not sure what recording he is referring to.

7 Before the jury hears it, I also believe a
8 dying declaration -- he is here present.

9 So I am not sure he can illicit that
10 testimony or that call. But I would like more
11 clarity, before a jury hears a recording, what we are
12 talking about here.

13 THE COURT: Okay. So the first thing is: If
14 this is a recording of individuals which you are
15 presenting, do you have a transcript of the
16 recordings?

17 MR. ROSARIO: Yes.

18 THE COURT: Okay. We need to have at least
19 18 copies.

20 Do you have that? That is so that we can
21 pass those out to the jury and I can give them
22 instructions about the transcript.

23 Do you have that?

24 MR. ROSARIO: We don't have 18. We prepared
25 the four the clerk told us to prepare. She told us to
26 have four copies prepared.

27 We can have that made right now.

28 THE COURT: All right. Next, I think as a

1 matter of courtesy, you should show Defense Counsel
2 the document that you propose to rely on.

3 Assuming the Court admits the audio
4 recording, members of the jury, what I am going to
5 tell you is that is the evidence in the case.

6 The transcript, which has been prepared is a
7 part of the local rules by the Court which require
8 that to aid a juror in listening to the recording,
9 that a guide -- that being a reiteration of what was
10 said -- has been reduced to paper.

11 That, however -- that document, however, is
12 not evidence; it is simply there for you to make a
13 notation.

14 If whatever you hear differs from what is on
15 the paper, it is what you hear that is the evidence.
16 It is not the document. Okay.

17 So before we go any further, I will hear from
18 Miss Navaratnasingham.

19 MS. NAVARATNASINGHAM: Thank you. So we have
20 been provided a 911 transcript from an eyewitness and
21 a 911 transcript for my client.

22 I don't know if it would be more
23 appropriate -- we have concerns about these two
24 documents and the recording. I don't know if it would
25 be more appropriate to do that outside the presence of
26 the jury, Your Honor, before the jury hears it,
27 because I have objections to this.

28 THE COURT: Okay. So let's do this: Can we

1 take other testimony, Mr. Rosario, and address this
2 issue at the end of the day?

3 MR. ROSARIO: We can review -- we can take my
4 testimony on my statements made during the body cam
5 that Officer Fernandez collected as another, what we
6 can do. Again, it is a party admission. I have the
7 right to certify my own messages and the messages that
8 I gave to Officer Fernandez at the scene.

9 THE COURT: Actually, sir, it is not a party
10 admission if you are offering it.

11 MR. ROSARIO: Oh?

12 THE COURT: It is hearsay. It is only a
13 party admission if the other side seeks to offer your
14 remarks.

15 MR. ROSARIO: I am going to present my own
16 statements to the police that were recorded.

17 THE COURT: Sir, you can simply testify as to
18 what you told the police on that day.

19 It is as simple as that. You don't have to
20 have a recording. The recording can simply be a form
21 of corroboration --

22 MR. ROSARIO: Yes, sir, I would like to do
23 that.

24 THE COURT: -- as to what you actually said,
25 if there is some question.

26 So my suggestion here -- and again, I am not
27 here to tell you how to practice law -- is to simply
28 have Mr. Sobati ask you questions about what happened

1 that day.

2 Can you do that?

3 MR. ROSARIO: Yeah. The Court had informed
4 me that I have to provide these piecemeal and we were
5 going to go through each one of the pieces of
6 evidence.

7 So I am trying to make sure that I am
8 following the rules.

9 THE COURT: I appreciate that. But what I am
10 asking you to do -- and I am not quite sure which
11 items you are talking about piecemeal, but yes,
12 evidence is admitted bit by bit and the Court's role
13 here is to ensure that it is orderly and presented to
14 the jury in some sort of organized and efficient
15 fashion.

16 So the first thing I am going to do is I am
17 going to ask you to testify; have you come up to the
18 witness stand, raise your right hand and get sworn, do
19 all those things, then Mr. Sobati can ask you the
20 questions about what happened.

21 If there is some question with respect to
22 some of the other items that you would like to have
23 admitted, then we will address those at the end of the
24 day.

25 But let's not have the jury wait outside
26 while we are trying to resolve some questions about
27 the admissibility of certain evidence.

28 Do you understand? In other words, you need

1 to get up on the witness stand and start telling the
2 jury what happened, okay?

3 MR. ROSARIO: All right. We will start that
4 today.

5 THE COURT: All right. Let's do that.
6 Sir, would you please approach the witness
7 stand.

8 Mr. Sobati, are you ready to proceed?

9 MR. SOBATI: Yes, Your Honor. One minute,
10 please, to get set up.

11 THE CLERK: Walk up to the witness stand.
12 Please just watch your step on the wire there.

13 MS. NAVARATNASINGHAM: Your Honor, I want to
14 lodge an objection, that I object to Mr. Sobati
15 questioning him. He is not a lawyer. It is outside
16 the scope of the accommodations that were requested.

17 THE COURT: I understand that. But there was
18 a comedy years ago, that some of us may be aware of,
19 called Bananas by Woody Allen, where we had Woody
20 Allen sitting on the witness stand, running back down
21 to the Counsel table asking him the question, him
22 coming back up and answering the question.

23 I am not going to have that silliness in this
24 courtroom. I am going to have this done in an orderly
25 fashion. And I am going to permit Mr. Sobati to ask
26 the questions so we don't have that kind of calamity
27 in the courtroom.

28 This is not for comedy, this is a serious

1 matter for Mr. Rosario and I expect him to be prepared
2 and ready to proceed.

3 So to the extent we can eliminate issues for
4 error in this case, then the Court is going to require
5 this in order to make the proceedings more efficient.

6 All right. Mr. Rosario, please come around
7 the witness stand, remain standing, raise your right
8 hand and the clerk will swear you in.

9 (Whereupon, Franciscus Dylan Rosario was
10 called as a witness and sworn to testify as follows).

11 THE CLERK: Please be seated. Please state
12 your name and spell it clearly, for the record.

13 THE WITNESS: My name is
14 Franciscus Dylan Rosario. I go by Frank or Dylan.

15 THE COURT: Spell your name, please.

16 THE WITNESS: F-r-a-n-c-i-s-c-u-s; Dylan,
17 D-y-l-a-n; the last name is Rosario, R-o-s-a-r-i-o.

18 THE CLERK: Thank you.

19 THE COURT: Mr. Sobati, you may inquire.

20 MR. SOBATI: Thank you, Your Honor, one
21 moment.

22

23 DIRECT EXAMINATION BY

24 MR. SOBATI: Q. Mr. Rosario, do you remember
25 the events of February 4, 2021 and your activities of
26 that day?

27 A. Yes, I do. Would you like me to --

28 Q. Can you please tell me --

1 THE COURT: We don't proceed by way of
2 narrative, okay?

3 So here is what I am going to suggest, and
4 this is what I tell every lay witness that comes to
5 this court. Okay?

6 You need to first listen very carefully to
7 each question and let Mr. Sobati or Defense Counsel --
8 either Mr. Reyna or Ms. Navaratnasingham -- finish the
9 question before you start answering because you may be
10 answering something that they are not asking.

11 Next, please listen very carefully to the
12 question and only answer the question. As I explained
13 earlier, we do not proceed by way of narrative.

14 We ask for separate and discrete bits of
15 information.

16 If either lawyer or either party seeks more
17 information, they will ask another question.

18 When you answer, you must answer out loud and
19 answer in a audible English word.

20 You cannot shake your head or throw your
21 hands -- or make certain gestures, rather, with your
22 hands because the Reporter cannot record that.

23 It is very important that we understand you
24 and that we have an accurate record of your verbal
25 responses.

26 Next, if there comes a time when you are not
27 sure, I ask and we ask that you not guess because you
28 are under oath.

1 If you do not understand a question, you may
2 say that you do not; and if you hear an objection, as
3 you already know, you must stop so that I can rule on
4 the objection.

5 I will tell you again if you must answer or I
6 will tell the party to rephrase or ask another
7 question.

8 Make sure that you keep your voice up, and
9 this will give a way -- or rather an order to the way
10 questions are answered and this will greatly assist
11 our Court Reporter here today.

12 Any questions?

13 THE WITNESS: Yeah. Can I use the restroom?
14 Sorry. I am kind of scared. That is all right.

15 I guess that I had prepared the questions for
16 Mr. Sobati to progress and I would give him answers
17 one in a bit and then the step next and then what
18 happened next after that.

19 So I will try to keep the answers as short as
20 possible and succinct, so that way, we have this.

21 THE COURT: Good.

22 THE WITNESS: So I believe he asked me if I
23 remember that day. Yes.

24 And then he started to ask me about what do I
25 remember.

26 MR. SOBATI: Q. Let's get a bit of context.

27 Where did you live at the time? What did you
28 do for work?

1 A. At the time, I was living in my work/live
2 space which was for the Rowzzy Corporation that I
3 founded with Dr. Lin Wang. It was located at 825 Van
4 Ness Boulevard over by the Chase Center.

5 I had a 3,000-square-foot facility where I
6 had my staff and my engineers, my computer scientists
7 working with me at the location.

8 It was a facility that was leased to myself
9 and to my CEO who I had hired to run the company for
10 me, Art Patel, and I was working and operating out of
11 that location.

12 Art Patel and I had --

13 MS. NAVARATNASINGHAM: Objection, narrative.

14 THE COURT: All right. Mr. Sobati -- the
15 questions need to be shorter.

16 MR. SOBATI: Yes, Your Honor.

17 THE COURT: And elicit shorter responses,
18 please. No narratives.

19 MR. SOBATI: Q. Were you happy with your
20 company and work at the time? Yes or no?

21 A. Yeah.

22 MS. NAVARATNASINGHAM: Objection, relevance.

23 THE COURT: I will allow some preliminary
24 questions.

25 THE WITNESS: Absolutely I was happy with it.
26 It was growing --

27 MR. SOBATI: Q. Yes or no, Mr. Rosario.
28 Can you briefly describe your health and

1 physical condition before the incident on February 4,
2 2021.

3 A. I was an athlete, I was surfing, mountain
4 climbing, dancing, out riding bicycles once in awhile.

5 Q. Thank you, Mr. Rosario. Let's go back to the
6 morning of February 4, 2021.

7 Where were you headed that day?

8 A. I was on my way to the grocery store that
9 day.

10 Q. What were you doing right before the
11 collision?

12 A. Well, I had -- well, hold on.

13 Right prior to my departure from my -- I am
14 sorry. That is a bit out of order.

15 Q. Let me rephrase. So you were on your way to
16 the grocery store --

17 A. Yes.

18 Q. -- when -- correct me if I am wrong -- this
19 collision happened.

20 But what were you doing just before this
21 collision? You were --

22 A. There is portions immediately before the
23 collision, it is blank. I don't remember what was
24 happening or what happened.

25 Q. Were you walking, or walking a scooter in a
26 marked crosswalk?

27 A. I know I had the scooter with me. I often
28 walk when I am at intersections or when I am

1 exhausted.

2 At the time, I believe I had the scooter and
3 I was walking through the intersection.

4 Q. Did you see the vehicle coming towards you?
5 Yes or no?

6 A. No.

7 Q. What happened next?

8 A. I don't remember. I remember coming to on a
9 sidewalk.

10 Q. What did you feel physically when you came
11 to? When you got hit and you regained consciousness,
12 it sounds like. Correct me if I am wrong.

13 A. There is one part of the question --

14 Q. What did you feel, when you came to and woke
15 up or regained consciousness, physically?

16 A. I felt like I was dying. I didn't know if my
17 spine was broken, if I was -- I had a hard time -- it
18 was breathing. I started breathing.

19 Q. Do you remember making any phone calls to
20 anyone?

21 A. Move a bit faster. I want to slow down.

22 The question was: What did I feel -- wait --
23 and to step through this incrementally, we go straight
24 from my office directory to that and during --

25 So let's -- you asked me how I felt about
26 getting hit.

27 And I thought I was dying. I thought I was
28 going to die. I didn't know what was going on.

1 All I know is it's grayness or black, and
2 then suddenly I am in severe pain and I am on the
3 ground and things are going in and out.

4 And I -- I -- on my feelings, I looked up
5 and -- from the ground, and I was by myself and there
6 was a vehicle pointed directly at me.

7 Q. Can you describe that vehicle?

8 A. It was a white van.

9 Q. Did you manage to find out what make and
10 model that was? Was it visible, or too far to tell?

11 A. At the time, no. It was a large white van
12 and there was somebody looking out the window at me
13 and the van was either idling or stopped in the
14 intersection.

15 I could see the scooter that I had with me, I
16 was walking with, and it was -- it was about 10 feet
17 away, and I realized I had been thrown and I couldn't
18 breathe.

19 Everything had been knocked out of my --

20 Q. This person looking at you in the van, was it
21 the first person you saw after you came to?

22 A. No. It wasn't. It was the second person I
23 saw.

24 Q. Is that person in the van in the courtroom
25 today?

26 A. The person in the van is in the courtroom
27 today.

28 Q. Can you identify him?

1 A. He is the Defendant over there,
2 Mr. Abdelhalim.

3 THE COURT: All right. The record will
4 reflect he has identified the Defendant.

5 THE WITNESS: He was the second person I saw.
6 There was another person.

7 MR. SOBATI: Q. Who was the first person?

8 A. The first person I saw was Mr. Dustin Roseman
9 (phonetic) who was laying on the ground leaning up
10 against the building about 30 feet away from me. He
11 was looking at me in the eyes and -- he was looking at
12 me in the eyes and I saw Dustin ahead of me on the
13 opposite side of the sidewalk.

14 And then I saw the van, it was -- it was
15 straddling the sidewalk.

16 Q. Did Mr. Roseman say anything to you?

17 A. He was nodding, he was nodding his head at me
18 acknowledging that he saw me.

19 Q. Did Mr. Abdelhalim say anything to you?

20 A. I don't recall. He then left, he drove away
21 with his van. I just recall that I was looking at
22 Roseman and Abdelhalim -- Mr. Abdelhalim and I
23 couldn't move.

24 And then his van pulled away.

25 Q. What did you decide to do then? I know this
26 is emotional so if you need a moment, there is a
27 Kleenex right there.

28 A. I thought I was going to die. I didn't know

1 what I was going to do. I thought I was dying. I
2 couldn't breathe.

3 And so I moved, I crawled back towards the
4 curb, and I was yelling for help. And my phone was
5 back by where I had been hit in the crosswalk.

6 I had been thrown further down the sidewalk.
7 And I couldn't move. My back was -- I was pulling
8 with my fingernails in the concrete and I wanted to
9 get to my phone to call 911 and I couldn't dial.

10 My sister or one of my employees was on the
11 speed dial and I called and I told them I was hit and
12 they said: Where are -- I remember it was my
13 sister who -- it was Mr. Ben Giler (phonetic) asked me
14 where I was, and I didn't know.

15 I actually had no clue where I was at. I
16 didn't know. I was completely blacked out.

17 Q. Do you recall if a passerby helped or do you
18 recall making that call and being able to release that
19 information yourself?

20 A. Yeah. Somebody walking by, they didn't even
21 stop afterwards. There was another man about 25 feet
22 from me who was -- I don't have evidence about what he
23 was on, but he was laying underneath a jacket with his
24 head covered and he was just laying there and he -- I
25 don't know if he was breathing or not. He was just on
26 the ground. I don't know why he was there.

27 Q. Let's take a moment, please, because you did
28 identify Mr. Roseman.

1 Was that the first or last time that you saw
2 Mr. Roseman in any recorded media or in person? Or
3 have you been in contact with him?

4 A. We are a going to hit ourselves right hear.
5 Slow down on this. There was three human beings --
6 four human beings at the scene when I made that call.

7 Q. Who were the other people?

8 A. Yeah. So there was a man who was on the
9 sidewalk on my side of the street, on my side of
10 Tehama, about 25 feet down the street.

11 I don't know whether he was -- I mean, there
12 is a lot of people on the sidewalk in San Francisco.
13 We don't know what is going on with them.

14 I am not going to presume the person was
15 overdosed or drunk or anything like that.

16 I am going to say it was a human being, a
17 man, laying on his stomach. It is in the video
18 cameras.

19 Mr. Roseman was across the intersection. The
20 intersection was about 20 maybe 25 feet wide.

21 It was for Tehama and 5th Avenue.

22 Q. How far were you approximately from the curb
23 at this point?

24 A. When I -- well, we are going fast. We need
25 to back up and go one step at a time.

26 I started crawling towards the curb and I
27 didn't know if I was going to die.

28 So I made a call to somebody -- it was either

1 my sister, or maybe I tried to call them both.

2 I know that Mr. Giler was one of my employees
3 that worked for Mr. Patel and myself at our facility
4 over at the -- over by the Chase Center.

5 Mr. Patel owns a restaurant called The Ramp
6 Restaurant here in San Francisco and he owns the
7 Boatyard and he is my CEO and my business partner and
8 he builds yachts, things like that.

9 So Ben was over there. He inevitably showed
10 up later on. I called because I didn't know where I
11 was at.

12 And Mr. Abdelhalim had left. He had not
13 called anyone.

14 MS. NAVARATNASINGHAM: Objection, lack of
15 foundation.

16 THE WITNESS: No, I was there. This is
17 absolutely, 100 percent my testimony.

18 THE COURT: I need to make a ruling.

19 THE WITNESS: Sorry. She said I lacked
20 foundation.

21 THE COURT: Don't answer for the Court,
22 please. It is overruled. The next question. Let's
23 have another question, please, rather than a
24 narrative.

25 THE WITNESS: All right.

26 MR. SOBATI: Q. So what injuries did you
27 become aware of right way?

28 A. I didn't know what my injuries were. All I

1 knew was that I was completely confused. I had a hard
2 time breathing. I couldn't get up. My back, my
3 spine, my legs, everything was -- my back was
4 inflamed, my chest was inflamed. I had a hard time
5 breathing.

6 I could barely talk and I had -- this is --
7 there is -- the -- the next step that happened here
8 was that I had called.

9 And you asked me what I was feeling after
10 that. I don't remember. I just remember that I was
11 on the ground. I was in extreme pain and I thought I
12 had been abandoned to die.

13 And so I started yelling for help.

14 Q. How long were you yelling for help, would you
15 estimate?

16 A. Minutes.

17 Q. Several minutes?

18 A. Yeah. Many.

19 Q. Then what happened next? Did Mr. Roseman or
20 anyone else render any type of aid?

21 A. It must have been at least 5 to 10 minutes.
22 I was asked -- I was trying to get somebody to help me
23 and then I hear somebody offer to come over and say:
24 Hey, you are okay.

25 Q. Who was that person?

26 A. That was Mr. Abdelhalim.

27 Q. How long approximately since he left the
28 scene in the van was this until you saw him next,

1 would you say?

2 A. It was long enough for me to have a phone
3 call and ask other people to provide information to
4 Mr. Giler, and for them -- and for me to hang up and
5 for me to crawl across the sidewalk and yell and
6 scream for help for several minutes, and then he
7 approached me on foot.

8 Q. Then what happened next?

9 A. He kept on telling me that I am okay and he
10 says: You are going to be all right. And then he --
11 he started offering me money.

12 Q. Money? What do you mean by that?

13 MS. NAVARATNASINGHAM: Objection.

14 THE WITNESS: He put money in my face. This
15 is my -- this is my recollection.

16 THE COURT: It is overruled.

17 THE WITNESS: I was offered money. I don't
18 know why I was being offered money. I own an AI
19 company. I make software, I don't know why I -- I
20 don't know why --

21 THE COURT: Just state what happened. Don't
22 speculate as to why someone else did something.

23 Your next question.

24 MR. SOBATI: Excuse me, Your Honor.

25 THE COURT: Next question, please.

26 MR. SOBATI: Q. Mr. Rosario, you stated you
27 believe your life was in peril due to the injuries you
28 sustained?

1 A. Yeah.

2 Q. You are laying there without aid. You have
3 someone offering you money. What did you do next?
4 You needed aid --

5 A. I thought I was going to die, right. And --
6 and I knew that he was wearing a mask, a blue mask on
7 his face, and it looked like sunglasses but he was
8 coming over and he was offering me this money.

9 And I told him -- I said -- I said: I need
10 help.

11 And he just kept on offering it. And he
12 stood over me and he kept on offering it.

13 And I said: I need help.

14 And then -- and then I realized he wasn't
15 gonna call 911. And I told him -- I said: You gotta
16 call 911. And I said -- and I tried -- I asked him
17 several different ways.

18 I said: Can you call 911? I finally told
19 him that there was cameras.

20 I told him that I took a photo and I sent it.

21 Q. How many times approximately did you have to
22 request him to call 911 to render aid prior to him
23 calling 911?

24 A. Minutes.

25 Q. Several?

26 A. Yeah, several minutes. He kept on offering
27 me the money. I was: What are you doing? Help me.
28 I thought I was going to die at that moment.

1 I didn't know what was going on. It is not
2 my fault. What am I supposed to do?

3 Q. Did Mr. Abdelhalim eventually call 911?

4 A. I don't like going through this. It's not
5 fair.

6 Q. Are you ready, Mr. Rosario?

7 A. Wait a minute. I started yelling for help
8 because I didn't think he was going to help me.

9 Q. Did Mr. Abdelhalim eventually call 911?

10 A. Yeah. After I started yelling for help, for
11 somebody else to come over to my aid.

12 He finally said -- it was one of the weirdest
13 things. And it was like -- it was like he acted like
14 he was surprised.

15 He was like: Oh, you want me to call 911.

16 And I am like: Yeah, I have been asking for
17 minutes. For minutes.

18 I said: How many times do I have to ask you?

19 Q. Could you be heard on that 911 call?

20 A. We jumped -- we jumped way, way ahead here.

21 MS. NAVARATNASINGHAM: It calls for
22 speculation.

23 THE COURT: Sustained. Sir, the answer is
24 stricken.

25 THE WITNESS: Yes, I --

26 THE COURT: The answer is stricken, sir. The
27 next question, please.

28 THE WITNESS: Okay.

1 MR. SOBATI: Q. After Mr. Abdelhalim called
2 911, what happened next?

3 A. He told them that he had hit me and he had
4 given them the location of where we were at. And I
5 was in such pain. I knew that he was on the call,
6 because he was standing over me, and I was worried
7 that I was going to die right there on the sidewalk
8 and I needed to make sure that I got a message to my
9 family about what happened to me.

10 And he was, you know, he said something like:
11 Oh, it is was barely anything.

12 I realized he wasn't going to tell the truth
13 or he was going to avoid it.

14 So I told him -- I said: He hit me with his
15 van. I had to breath in as much air -- and my lung
16 was collapsing, and I yelled and -- to make sure that
17 my family, my children, my everybody, my employees,
18 that they would know the man who is calling had hit me
19 with his van.

20 And I needed to make sure that was on the
21 record in case I died a few minutes later. I didn't
22 know what was going on. I was in so much pain.

23 Q. What happened next? How long would you say
24 that 911 call lasted?

25 A. I remember -- I just remember being in pain.
26 It just got worse after that.

27 My call, there was multiple times I was just
28 yelling in pain and I didn't know what to do.

1 I didn't even know if he was faking it. He
2 was like faking it, he was calling 911. He already
3 stood over me multiple minutes refusing to call.

4 I was like, all right, maybe this guy isn't
5 even calling.

6 Your mind and your fight or flight, it was
7 like adrenaline, it was all those things.

8 You are in severe, severe pain. And all I
9 know is my back was in pain and I just didn't know
10 what to do.

11 Q. Did Mr. Abdelhalim remain by you until first
12 responders appeared on the scene?

13 A. No. He did not.

14 Q. Where did he go?

15 A. I don't know. He moved away from me. All I
16 remember then was that there was sirens later and then
17 there was a police officer there at the scene.

18 Q. If your memory serves correctly, do you
19 remember the first police officer you saw? Do you
20 remember who that was?

21 A. They were just dark, black/blue figures. I
22 didn't see an individual person's face. All I knew is
23 there was people asking me questions, you know, and
24 they weren't even immediately offering me help.

25 They were just trying to figure out --
26 immediately they were like -- they started grilling me
27 for questions. It was offensive.

28 I was like: What is going on? Call me 911,

1 give me -- and then I realized lots of things were
2 going through my head.

3 THE COURT: Stop there.

4 Next question.

5 THE WITNESS: I need to take a break.

6 Your Honor, please. I need to take a break. I don't
7 think I can answer clearly right now.

8 We are going to have to come back to this
9 again in a minute or -- we are almost at 4:00 o'clock.
10 I think I need to take a break.

11 THE COURT: All right. We will take a
12 10-minute break. We will be back at 3:55 we need to
13 keep going with this, please.

14 THE WITNESS: It is 4:00. Are you going past
15 4:00?

16 THE COURT: I am going past 4:00. We need to
17 move the case along.

18 Remember not to form or express any opinions
19 about this.

20 Please be back at 3:55; please.

21 (Short recess).

22 THE CLERK: Remain seated. Come to order.
23 Department 504 is back in session.

24 THE COURT: All right. We are back on the
25 record.

26 Mr. Rosario, you are still under oath.

27 The record should reflect all jurors are
28 present and all parties are present including Counsel.

1 Mr. Sobati, your next question, please.

2 MR. SOBATI: Q. Yes.

3 Mr. Rosario, going back to that moment of
4 impact, as we are about to discuss some of these next
5 topics, how did you feel emotionally when you noticed
6 the driver leaving the scene?

7 A. I was terrified, I had no clue what -- I
8 mean, you are walking along and suddenly you get hit
9 from behind and it is like you don't know where -- you
10 know, most people are very aware what's in front of
11 us. I had no clue. It was just -- boom.

12 And -- and where I -- where I -- where I had
13 consciousness again or I was able to see, I saw
14 Mr. Abdelhalim in a van looking out of his window at
15 me. And I -- I was -- I literally wasn't sure what
16 was going on.

17 I just remember it was just such severe pain
18 in my back and around my spine and I -- I don't know.
19 I didn't know if my back was broken. I didn't know
20 what was going on.

21 I was just completely -- it was just like
22 blind, it was literally what they call blindsided. I
23 was terrified.

24 Q. To be clear, was the vehicle moving slowly or
25 did the vehicle actually stop and the driver did not
26 get out of the vehicle and then left?

27 MS. NAVARATNASINGHAM: It calls for
28 speculation.

1 THE COURT: Number one, it does call for
2 speculation; and two, Mr. Sobati, you are asking
3 compound questions.

4 You need to ask one question at a time.
5 And you cannot lead the witness.

6 MR. SOBATI: Yes, Your Honor.

7 THE COURT: In other words, you can suggest
8 the answer in the question saying: Yes or no?

9 THE WITNESS: Next, what happened, I can fill
10 that in.

11 MR. SOBATI: Yes, Your Honor.

12 THE COURT: No question is pending.

13 Mr. Sobati, the next question.

14 MR. SOBATI: Q. Mr. Rosario, after you were
15 struck did the driver stop the vehicle?

16 MS. NAVARATNASINGHAM: It calls for
17 speculation.

18 THE WITNESS: I was -- I saw the vehicle. It
19 was stopped in the intersection.

20 I remember looking down. I was looking at
21 -- it wasn't until like minutes, a couple minutes
22 later, that I realized I didn't have my cell phone.

23 THE COURT: The answer is stricken. It is
24 nonresponsive.

25 Next question please. The jury should
26 disregard the last question and answer of the witness.

27 MR. SOBATI: Q. After you were first struck,
28 did the driver exit the vehicle and come to you? Yes

1 or no?

2 A. I don't recall whether he did or not. I
3 don't know what happened.

4 I just remember that -- that -- that I was --
5 I was there and there was nobody around.

6 I saw the vehicle. I saw him through the
7 window and there was -- and I -- I had to call -- I
8 had to find my phone.

9 Q. Right. So we are at the phone now. What
10 happened next with your phone, after that last call
11 that you described that you made?

12 A. I -- I -- I continued to crawl across the
13 ground and I looked down the street where I saw the
14 van had departed and it was sitting there. I was just
15 laying there. And the van was parked like down the
16 block --

17 Q. Approximately how far away, would you say?

18 A. Maybe 200 feet. Quite away, about half a
19 block away. It was parked way down the block and I
20 was laying on the ground and I didn't know what was
21 going on.

22 I didn't know if it was the same van. I just
23 know that it looked like the one that had just hit me,
24 and by the time I got to the corner where the
25 crosswalk and the intersection and where the scooter
26 was at and my phone and things were at, is that I
27 could see it.

28 And while I was sitting there looking at the

1 van sitting there, I was able to take a photo and send
2 it to my -- I sent it to my sister or somebody. I got
3 a photo. I got a couple other photos. And this was
4 after I had called.

5 They said: Take a photo. Is he still there?

6 I said: I don't know.

7 Q. Are there any people in those photos?

8 A. Mr. Abdelhalim finally got out of the vehicle
9 and started to approach me and I got a photo of him
10 getting out of his van after he had parked it down the
11 street.

12 I don't know why he had taken it down the
13 street.

14 There was no traffic. There was nobody. So
15 I don't know why he had gone -- why hadn't he just
16 gotten out and helped me right there? I don't know
17 why.

18 I thought that he had driven off. I thought
19 I was going to die and I was left there on the
20 sidewalk. And I didn't know whether it was him or
21 not.

22 Then I saw him get out, and I am like: That
23 is the guy. And I got a photo. And it was my sister,
24 I think, who said: Okay, I got the license plate.

25 And -- and after that, I was in such pain I
26 could barely remember what he said other than that he
27 was offering me money and I didn't understand why he
28 was offering, I still don't understand why he offered

1 me money.

2 He just kept on offering me money after that.

3 And he walked back towards me. I saw him in
4 the picture I took from him. I was lying on the
5 sidewalk --

6 MS. NAVARATNASINGHAM: Your Honor, objection.

7 THE COURT: Sustained.

8 MR. SOBATI: Q. Mr. Rosario, we have gone
9 over this part. The next question I would like to ask
10 you is:

11 After you implored Mr. Abdelhalim repeatedly
12 to call 911 -- and he did make that 911 call.

13 MS. NAVARATNASINGHAM: Objection, leading.

14 THE COURT: Sustained.

15 MR. SOBATI: Q. When Mr. Abdelhalim made the
16 911 call, how long did that call last?

17 MS. NAVARATNASINGHAM: Objection, calls for
18 speculation.

19 THE COURT: Sustained.

20 MR. SOBATI: Q. When Mr. Abdelhalim made the
21 911 call, were you speaking on that same call?

22 A. Yes. Well, he told them he was calling for
23 me. He said: I hit him and there was barely anything
24 but I am calling for him and I -- at that moment, to
25 use his own words -- I hit him, it was barely
26 anything, I am calling for him.

27 And they started to ask -- and then I -- I
28 said: He hit me with his van.

1 I don't -- I couldn't hear the other end of
2 the conversation at that moment.

3 And he stepped away from me after that.

4 Q. Have you heard that recording of the 911
5 call? Yes or no?

6 A. I have now, yeah.

7 Q. Can you be heard on that 911 call?

8 A. Yeah. Absolutely, clearly, I made a
9 statement to my family and my children.

10 Q. What did you say on that 911 call?

11 A. I told the emergency services and my family
12 that he hit me with his van. I said: He had hit me
13 with his van.

14 Q. Did you say that once or more than once?

15 A. I said that one time. I was in such pain I
16 could barely speak after that. You know, I don't know
17 if it was adrenaline.

18 My body started finally relaxing, I guess,
19 maybe after minutes, finally, when the police arrived.

20 I was in such severe shock, I guess you want
21 to call it, when you get ran over from behind and you
22 don't see it.

23 MS. NAVARATNASINGHAM: Your Honor, objection.

24 THE COURT: Sustained. You shall disregard
25 the remarks.

26 MR. SOBATI: Q. Mr. Rosario, you mentioned
27 first responders are showing up.

28 What happened next?

1 A. I mentioned this, there was -- I don't know
2 where Mr. Abdelhalim went. He disappeared after that.
3 Then suddenly there was what I imagine was
4 police officers. I don't know. The police and
5 fireman have the same color suits. I don't know if
6 they were police or if they were firemen. People were
7 asking me questions. They were checking me out. They
8 were picking up my things. Somebody took my wallet.
9 Somebody had taken my phone from me. They had picked
10 up my jacket.
11 Somebody had moved me -- that helped drag me.
12 People had moved the -- the whole scene was being
13 moved around. People were trying to assist.
14 And so from where I was at --
15 MS. NAVARATNASINGHAM: Your Honor, objection.
16 THE COURT: Sir, it is a narrative. I will
17 strike the testimony --
18 THE WITNESS: What?
19 THE COURT: -- if you keep narrating. It is
20 bits and pieces of information.
21 THE WITNESS: He asked me what happened
22 afterwards. If we have to do this again --
23 THE COURT: Keep it short.
24 Mr. Sobati, next question, please.
25 What, if anything, happened --
26 THE WITNESS: The question was: What
27 happened next? I guess --
28 THE COURT: What, if anything, happened after

1 the fire department and the police department arrived?

2 MR. SOBATI: Q. I understood from your
3 testimony that obviously it was indistinguishable the
4 FD from the PD.

5 What happened after these individuals started
6 engaging you? What happened next?

7 A. They asked me all sorts of questions. I
8 don't even remember what was even asked. I just
9 kept -- I knew I wanted to get away from the area.

10 There was an officer, I just recall there --
11 somebody was being really aggressive towards me, like
12 really like going, like you were doing this, and they
13 were like jump --

14 Q. Was this person a government official?

15 A. It was one of guys in the blue. I don't
16 remember exactly who it was. I just remember one of
17 the guys in the blue, it was a fireman or a police
18 officer, started demanding questions I was in no shape
19 to answer.

20 I barely could breathe.

21 Q. You described having difficulty breathing and
22 speaking, earlier, yes.

23 Do you remember a statement?

24 A. I didn't remember at the time. I barely
25 remember my name. I remember --

26 MS. NAVARATNASINGHAM: Objection. No
27 question is pending.

28 THE COURT: Sustained.

1 THE WITNESS: Those are questions

2 Mr. Sobati --

3 MR. SOBATI: Q. Mr. Rosario, do you remember
4 giving any of these officials a statement?

5 A. I don't recall. I mean they -- no.

6 I wasn't -- I was not in a state of mind that
7 I could have given any accurate statement at that
8 time. I was in such severe pain.

9 Q. Do you remember the Defendant giving any of
10 the police or the fire department --

11 A. No, I didn't see him -- after he had departed
12 and he had -- you know, after he had made the 911
13 call, he disappeared almost completely. I never saw
14 him after that.

15 Q. Have you seen the police body cam footage of
16 the Defendant speaking to the police when they arrived
17 on the scene?

18 A. Yeah. That is after the fact now.

19 Let's stick on close to what happened at the
20 scene right now, and we are going to talk about those
21 things later.

22 Q. You are getting care.

23 Now you are sitting in the ambulance? Or
24 where are you?

25 A. No. I was on the sidewalk and I kept on
26 getting -- I got surrounded by police officers
27 demanding me to give them a story or a statement and
28 they are asking me -- it is kind of weird.

1 After the fact, when you see the video, you
2 are like -- and literally from my own mind, if I see
3 it, I am like I guess that happened. I don't recall
4 it happening.

5 Does that make sense? If you get hit so hard
6 your brain --

7 MS. NAVARATNASINGHAM: Objection, narrative.

8 THE COURT: The objection is sustained.

9 THE WITNESS: Mr. Sobati, ask me a quick
10 question one at a time. I will try not to go, but --
11 I apologize. My mind keep on trying to fill in gaps.

12 So more explicitly, do I remember what was
13 asked of me? No.

14 THE COURT: Next question, please.

15 The prior objection was sustained and the
16 jury shall disregard the remarks of the witness.

17 Proceed, please.

18 MR. SOBATI: Q. We had Officer Fernandez in
19 here earlier today.

20 What in his record, in your opinion, differed
21 from actual events?

22 A. One, they -- they made the statement that I
23 was -- I was riding a scooter. They fabricated that.

24 I said that I had a scooter with me.

25 Q. What direction were you traveling in?

26 A. I was -- I was traveling on 5th towards
27 Market, so that would have been northbound.
28 Northbound, I believe.

1 Q. When you were traveling, was the scooter
2 motorized or not? Yes or no?

3 A. It wasn't motorized. The scooter, its
4 battery had failed. I was walking it. I was
5 kick-scooting it, but -- I was, you know,
6 kick-scooting it.

7 Anyways, long story short, I was going
8 northbound. I got hit from behind.

9 Q. And after you got hit and you came to, we
10 have covered a lot of that there.

11 How do you know you got hit from behind?

12 A. I have broken ribs in my back along my spine.
13 That is where the images and the --

14 MS. NAVARATNASINGHAM: Objection, calls for
15 speculation.

16 THE COURT: It is hearsay.

17 THE WITNESS: I could feel my back was
18 broken. Not hearsay. This is my feeling. I am
19 allowed to tell people what I felt when my back was
20 broken.

21 THE COURT: You may. But the way --

22 THE WITNESS: You don't get to tell me I
23 didn't have my back broken. That is absolutely
24 absurd.

25 THE COURT: Mr. Rosario, the way you framed
26 it, it elicits a hearsay response, which is not
27 allowed.

28 If you want to talk about how you felt, that

1 is fine. But if you are going to speak to what you
2 read in medical reports and so forth, or what you were
3 told by doctors or physicians or folks in the medical
4 industry, you cannot repeat that because that is
5 hearsay.

6 THE WITNESS: Well, okay. For -- for eight
7 months afterwards, my back has been in pain, I feel my
8 back is in pain. Regardless of whether a doctor said
9 it, I couldn't lay on my back. My back was in pain.

10 The images, whatever. They told me my
11 back --

12 MS. NAVARATNASINGHAM: Objection, hearsay.

13 THE COURT: Sustained. Excuse me.

14 When they say "they told me," that is seeking
15 a hearsay remark. The objection is sustained.

16 Your next question, please.

17 MR. SOBATI: Q. How would you describe your
18 pain and suffering at this time?

19 A. At this time now?

20 Q. At the time of the incident or shortly
21 thereafter, that we were just discussing.

22 A. I thought I was going to die, yeah. I mean,
23 it was the worst pain I ever had in my life.

24 Q. Did you need help to move around, ambulate,
25 do normal life activities?

26 A. I could ambulate for about five to ten feet
27 and after that, I couldn't. I would need support.

28 Q. And did you have that support from around

1 you?

2 A. Immediately after the collision, Mr. Ben
3 Giler helped me. He is one of my employees at the
4 time. He picked me up from the scene when I called
5 him after Mr. Abdelhalim had departed. I had called
6 911 police to come pick me up. And he showed up and
7 picked me up there.

8 It was the middle of COVID and -- anyways --
9 but go ahead.

10 Q. So how long was it before you were able to
11 function on your own and not have to have somebody to
12 assist you regularly?

13 A. Well, I think that gets ahead of us right
14 now. I need to come back here and focus on the
15 immediate event, Mr. Sobati. So please let's get
16 through that.

17 Q. Then why don't you tell me, then, when
18 Mr. Giler arrived at the scene to pick you up, as you
19 had contacted him, where did he take you then?

20 A. Mr. Giler drove me to San Francisco General
21 Hospital at first. And next question after that --

22 Q. And were you admitted to San Francisco
23 General at that time?

24 A. No. There was a line.

25 Q. I heard you say earlier this was COVID.

26 Did you have medical concerns about being at
27 the hospital?

28 MS. NAVARATNASINGHAM: Objection, leading.

1 THE COURT: Sustained. But it is not
2 relevant.

3 THE WITNESS: I did not, I did not go into
4 San Francisco General Hospital, no. You know, I -- I
5 went to San Francisco General Hospital at first.

6 I was -- the paramedics at the scene, they
7 checked my back. They looked to see --

8 MS. NAVARATNASINGHAM: Objection, hearsay.

9 THE WITNESS: No. This is what I experienced
10 they put a thing on my back to check my breathing.

11 THE COURT: Overruled.

12 THE WITNESS: Then they looked at my side.
13 Officer Fernandez videotaped it.

14 You could see me squirming on the stretcher
15 in the thing, and they said to me -- they literally
16 said to me --

17 MS. NAVARATNASINGHAM: Objection hearsay.

18 THE COURT: Sustained.

19 THE WITNESS: Okay. I was released by them
20 because they did not feel I was or see that I was in
21 immediate life danger.

22 They warned me. They said, hey, go to the
23 hospital. That is when Mr. Giler, immediately after
24 getting me out of the ambulance, he took me there.
25 And there was a line to get in. There was people
26 dying from COVID so I decided to go and get a x-ray
27 myself.

28 MR. SOBATI: Q. Right. So what medical

1 facility did you first become aware that your injuries
2 were life threatening?

3 A. It was at San Francisco General Hospital --
4 excuse me -- it was at UCSF. I did not have bruises
5 but I was in severe pain all evening.

6 It started getting worse, you know. It --
7 it -- it plateaued for a bit. I thought I could make
8 it through.

9 And then it just continued to get worse. The
10 pain continued to elevate and elevate.

11 By the morning, Victoria, my wife, had taken
12 me to One Medical and they gave me a referral to UCSF
13 to go get an MRI or -- excuse me -- an x-ray.

14 Q. Then once you were at UCSF getting that
15 x-ray, you had a doctor administer that x-ray and tell
16 you what at that point?

17 MS. NAVARATNASINGHAM: Objection, hearsay.

18 THE COURT: No. I am sorry. That is
19 hearsay.

20 THE WITNESS: Just ask me what happened next.

21 MR. SOBATI: Q. What happened next?

22 A. Just repeat those, we will step through this.
23 Sorry, everybody. This is, you know, a
24 bit -- I wrote the questions for him.

25 All right. So what happened next?

26 I -- I went in, got the photographs, and the
27 gentleman offered to help me to walk out.

28 It was strange. He offered to help walk me

1 to the lobby.

2 MS. NAVARATNASINGHAM: Objection, hearsay.

3 THE COURT: It is hearsay. Sustained.

4 THE WITNESS: He said what? Oh, sorry.

5 He walked me to the lobby. I can't tell you
6 what other people said.

7 So he walked me to the lobby and I got a call
8 from my doctor telling me to go immediately --

9 MS. NAVARATNASINGHAM: Objection, hearsay.

10 THE WITNESS: No. My doctor told me to go to
11 the ER or I was going to die.

12 THE COURT: Overruled.

13 THE WITNESS: My doctor told me to go to ER
14 or I was going to die. That is what my doctor said.

15 My doctor called me and said: You are going
16 to die if you don't go.

17 MS. NAVARATNASINGHAM: Objection hearsay.

18 THE WITNESS: My doctor told me: You are
19 going to die.

20 I went to three ERs after that.

21 THE COURT: That is hearsay. It is
22 sustained.

23 THE WITNESS: Well, I got a call and I was
24 informed -- I am not going to say what they said -- I
25 was informed that I needed to be at a --

26 MS. NAVARATNASINGHAM: Objection, hearsay.

27 THE WITNESS: What?

28 MR. SOBATI: Q. Where did you go from UCSF,

1 Mr. Rosario?

2 A. I went to -- I went to -- from UCSF -- I went
3 from UCSF, Mr. Abdelhalim. I went from UCSF to Sutter
4 to try and get treated --

5 MS. NAVARATNASINGHAM: Objection, Your Honor.

6 THE WITNESS: -- for the hit that he did to
7 me. I know what he did to me.

8 Mr. Abdelhalim, you hit me.

9 MS. NAVARATNASINGHAM: Objection.

10 THE COURT: First of all, Mr. Rosario, there
11 is no question pending. Your remarks are stricken.

12 The jury is instructed to disregard what you
13 have said.

14 Sir, it is improper for you to make those
15 kind of remarks. Especially if there is no question
16 pending.

17 I have tried to --

18 THE WITNESS: It was improper for him to lie
19 about hitting me.

20 THE COURT: Sir, this is not an argument
21 between you and me at this moment. I am simply ruling
22 on what evidence can be admitted in this case.

23 Please conduct yourself appropriately.

24 Mr. Sobati, do you have another question that
25 does not invoke hearsay?

26 MR. SOBATI: Yes, Your Honor.

27 THE WITNESS: I got somehow --

28 THE COURT: There is no question pending.

1 THE WITNESS: Ask me what happened next, I
2 guess.

3 MR. SOBATI: Q. You were at UCSF, you spent
4 some time there. You went somewhere from there.

5 Where did you go?

6 A. Okay. I went to Sutter. Actually -- no, I
7 am sorry. I first went to the Parnassus -- to the
8 hospital at Parnassus and the line was all the way
9 around the block.

10 There was cars literally going all the way
11 down the hill and we could not get into --

12 Q. You left Parnassus.

13 Where did you go after that?

14 A. Thank you. Thank you for asking it this way.
15 We can step through this.

16 I then went -- Victoria drove me -- it got,
17 started getting worse, the pain, so we started looking
18 for the next available hospital.

19 I remember going to Sutter and I went in
20 there and that is where I engaged with the doctor
21 next, it was Dr. -- the record will show here -- it
22 was Dr. Yamamoto from Sutter.

23 Q. How was your breathing at this time?

24 A. The next thing that happened.

25 THE COURT: No question is pending.

26 THE WITNESS: Mr. Sobati, please ask me what
27 happened next. You are jumping way ahead.

28 I asked him to ask what is next in my

1 questionnaire.

2 So please, Mr. Sobati, please ask me --

3 THE COURT: Mr. Rosario, we are going to take
4 our afternoon recess. We will adjourn until tomorrow
5 at 9:30.

6 Members of the jury, please return tomorrow
7 at 9:30. Remember not to form or express any opinions
8 about this case. Thank you. Thank you for your
9 patience. Leave your notebooks behind. They will be
10 here tomorrow. Thank you.

11 (Whereupon, the jury was excused from the
12 courtroom).

13 THE COURT: You may step down, Mr. Rosario.

14 (Whereupon, the witness stepped down from the
15 witness stand).

16 THE COURT: All right. The record will
17 indicate that the jury has been excused for the day
18 and that we have all parties present including
19 Counsel.

20 I am going to ask now, Mr. Rosario: Do you
21 wish to continue with having Mr. Sobati ask you
22 questions or would you prefer to simply give a
23 narrative on the witness stand?

24 MR. ROSARIO: I believe I understand,
25 Your Honor, how the process that you want the answers
26 and I appreciate what Mr. Sobati is doing.

27 I believe that I need to -- tonight, to
28 prepare a proper sequence. And if it does not work,

1 we would default --

2 THE COURT: You are not answering my
3 question. Do you want to continue with Mr. Sobati or
4 do you want to give a narrative?

5 THE WITNESS: I believe a narrative right at
6 this moment unless Mr. Sobati and I can come to
7 agreement on how the questions should be framed right
8 now.

9 I could probably provide those questions for
10 you tomorrow.

11 THE COURT: I don't need the questions.
12 When I say "narrative," you can tell your
13 side of the story on the witness stand.

14 You are going to have to give the other side
15 the opportunity, however, to make appropriate
16 objections and for me to make the rulings.

17 Mr. Sobati does not seem to understand that
18 what follows an objection is a ruling, and the
19 Court Reporter has attempted to intervene without much
20 success; neither have I.

21 There have been occasions where I have not
22 intervened simply because I cannot get in a word
23 edgewise.

24 The polite way or courteous way to observe
25 courtroom decorum is to wait for the Court to make its
26 ruling.

27 You cannot continue to ask the question. So
28 when the Court has not even made or -- addressed the

1 remarks of opposing Counsel.

2 So I am discouraged by your use of Mr. Sobati
3 here because it is not turning out to be as efficient
4 as I thought.

5 So if you choose to do the narrative fashion,
6 if you choose to go that route, I expect you to give
7 short statements about what happened.

8 You understand what the rules are, the
9 motions in limine rulings have been, and I expect you
10 to follow them.

11 To the extent that you want to have an
12 emotional outburst or that you are upset about one
13 thing or another, that does not help you in this case.

14 MR. ROSARIO: All right.

15 THE COURT: It does not help your presence in
16 front of the jury.

17 The last few minutes in front of the Court
18 and in front of the jury were not helpful. That is
19 why I took an early break here, largely because you
20 were unraveling.

21 We cannot have you attack the other side with
22 personal opinions about the other witnesses in this
23 case whether you agree or disagree or not.

24 You have no place doing that.

25 The only people who have the right to decide
26 whether someone was right or wrong or to assess their
27 credibility and so forth is the jury.

28 You have no right to tell them how to think

1 or to say what you think. It is not relevant.

2 MR. ROSARIO: When somebody calls me and
3 tells me I am dying, I was trying to share that --

4 THE COURT: Sir, that is something that is to
5 be presented to the jury.

6 You have repeated it on numerous occasions
7 that you were dying and that you were terrified and
8 you were not sure what was happening.

9 I could repeat the testimony several times
10 over.

11 MR. ROSARIO: Okay.

12 THE COURT: And I have not; I have not ruled
13 that this is becoming cumulative, but I will.

14 So tomorrow you must understand that when you
15 testify, that you do not present anything other than
16 new material, understood?

17 MR. ROSARIO: Understood.

18 THE COURT: Otherwise, I will strike it. I
19 have been doing that this afternoon largely because
20 you repeat yourself many, many times and the jury gets
21 the point.

22 At some point, they hear it too often and
23 they will not take you seriously.

24 So make sure that you get in and get out with
25 your statements; short, brief, narrative statements
26 about what happened and why you think the other side
27 is liable and why there is causation.

28 You don't have to explain it. You simply

1 have to put the evidence on and then make the argument
2 to the Court.

3 That is how it works.

4 Anything else?

5 MS. NAVARATNASINGHAM: Your Honor, did you
6 want to address the transcripts that he had, or do you
7 want to do that tomorrow?

8 THE COURT: I have no idea. What transcripts
9 do we have? They don't have to be verbatim of the
10 recording.

11 They are simply there as a guide.

12 The question for me is whether there is going
13 to be an objection to the actual presentation of the
14 recording to the jury and what the basis for that is.

15 MS. NAVARATNASINGHAM: Yes, Your Honor.

16 First of all, there is a 911 transcript for
17 eye witness and this is aside from the fact that I
18 don't know who prepared these transcripts, for either
19 of these, but the 911 call for eyewitness in
20 particular, there is no identification as to who the
21 witness is.

22 And, you know, this is one of those, I
23 believe, maybe it was included in the Dolan documents
24 so if the Court is going to say authenticity is
25 established, that is fine, but we do object as hearsay
26 and it lacks foundation as we have no idea who this
27 person is.

28 There is no name in either, in the recording

1 or in the transcript.

2 Furthermore, relevance. She says here -- it
3 sounds like a passer-byer that says: There was a van
4 that might have hit a scooter. It might be a
5 hit-and-run, I don't know.

6 So I am not sure what the relevance even is.
7 But more importantly, the reliability of this, she
8 says: It might have been a hit and run, I don't know.
9 And she doesn't leave her name.

10 And it is unduly prejudicial where there is
11 no probative value for this for the jury to hear this
12 recording. They don't even know who this is.

13 THE COURT: Mr. Rosario?

14 MR. ROSARIO: The defense has had four years,
15 two and a half years since they received this
16 document, to challenge that.

17 It is spoliation. Like I said, I received
18 these documents from the Dolan Law firm.

19 Just because the person is dead or
20 disappeared on this does not mean that it is not
21 admissible.

22 It provides foundation for holding my claim
23 against Mr. Abdelhalim that he had struck me but that
24 I had been abandoned. And I can provide -- I guess,
25 you would say I could provide a motion here.

26 I have a Complex record of request where they
27 had resubpoenaed these records. This is not surprise
28 to them.

1 Mr. Alberto had requested these on the date
2 of February 26, 2024, where he had requested all
3 documents, records stored in any format recording --
4 regarding the report that occurred.

5 They have known about these for quite a long
6 time.

7 THE COURT: Mr. Rosario, the claim is
8 two-fold. It is not about the fact that they don't
9 have it.

10 They are not claiming that they are
11 prejudiced because of delay.

12 There is two reasons for it:

13 One, the first issue which I think I can
14 dispense with, is that there is some question about
15 its authenticity.

16 If it is from the Dolan Law firm and if this
17 is the same item that those two lawyers came in to
18 discuss, I did say that I would accept those 911 -- at
19 least that recording from the Dolan Law firm, that is
20 what they received because you had presented evidence
21 that the dispatch unit, the custodian of records for
22 those dispatches no longer have that in possession.

23 In any event, I am going to dispense with
24 that and assuming they are what they purport to be.
25 And certainly, you can make an argument about them,
26 Miss Navaratnasingham, about this authentic --
27 authentication.

28 But second, as to the other issue, I am going

1 to allow them in under Evidence Code Section 1240.

2 It does not require an identification of the
3 party who made the statements. It simply requires
4 that the declarant, who apparently is a woman, made
5 the statement.

6 It is explaining what she saw, the event, and
7 she is making it, she is making the statement in
8 response to what she has just seen and the event.

9 It does not appear, judging from what has
10 been said, that there has been any lapse of time to
11 change the content of what she is saying.

12 There is an inherent form of reliability made
13 in that statement, and to the extent it is relevant,
14 it is for the jury to decide how much weight it wants
15 to give.

16 It doesn't have a whole lot of weight simply
17 from the Court's view.

18 The jury has to say: Okay, she thinks the
19 van may have pulled over, maybe it didn't, maybe it is
20 a hit-and-run.

21 We don't know. All we know is what was
22 reported at the moment.

23 The Plaintiff is going to argue it was a
24 hit-and-run. You are going to argue, obviously,
25 through your -- you know, that there is no case for a
26 hit-and-run here.

27 So the Court is going to rule that that audio
28 recording may be played in front of the jury.

1 You folks, however, must have a device that
2 plays the recording. I don't see anything in front of
3 me right now.

4 You may have it in the anteroom, but that
5 needs to be ready and there should be no delays in
6 playing that once Mr. Rosario seeks to have that
7 played in front of the jury.

8 The transcripts, there should be 18 of them.
9 That is 15 for the jurors that are here; one for
10 Defense Counsel, who apparently has one; one for the
11 Court and one for the Courtroom Deputy.

12 And instruction that is always given is that
13 the evidence in the case is what the recording
14 purports to be -- I have already instructed them as
15 much -- not what the transcript says. All right?

16 The transcript is simply a guide for the
17 jurors to follow along.

18 To the extent that there is some difference
19 in what happened, it is the recording that takes
20 priority and is the evidence for them to consider.
21 All right.

22 So that addresses the 911.

23 Is there something else that you seek to have
24 admitted? I don't want to spend time during the
25 middle of the trial addressing these issues during the
26 time when the jury is present. It is a waste of their
27 time.

28 MR. ROSARIO: Your Honor, the Defense asked

1 for the body cams to be entered into evidence.

2 We would also like to use those. So we would
3 like to ask the Defense: Go ahead, provide the copies
4 of the body cams that they have retained from the San
5 Francisco Emergency Services so we can avoid this type
6 of problem, so they don't challenge the credibility.

7 They asked for the body cams, Your Honor, to
8 be admitted.

9 It is on their evidence list.

10 THE COURT: The question is -- I think the
11 ask is a request to review or to present the body cams
12 that are apparently on your exhibit list.

13 MS. NAVARATNASINGHAM: Sure. They were
14 provided by Dolan. He has had them for whatever,
15 sure.

16 THE COURT: All right. So what is the ask?
17 You don't have them?

18 MR. ROSARIO: No. I have them. I don't want
19 the same situation where they are going back saying we
20 don't know where they are from.

21 THE COURT: Mr. Rosario, let me put it this
22 way: If they are the only ones who had the video
23 recordings or the body cameras and for some reason you
24 never recovered them or retrieved them from the
25 Custodian of Records and so forth, and were not on
26 your exhibit list, you cannot come into the courtroom
27 and then ask the other side whether they would be
28 willing to part with those exhibits. It is their

1 call.

2 But if you have those materials, then you are
3 perfectly welcome to submit those, provided you
4 provide some authentication, proper authentication, of
5 the body cameras.

6 I am going to subject anything and everything
7 that any party submits in this matter to the rules of
8 evidence.

9 MR. ROSARIO: Okay. We will provide the
10 certifications we have.

11 MS. NAVARATNASINGHAM: Your Honor, on the
12 point of the body cam footage, there is five videos.
13 They are quite lengthy and a lot of it is just
14 standing around and some of it is talking about
15 something else.

16 There is also insurance references in there.

17 So what we did on our end was we pared it
18 down to just the relevant portions that we wanted the
19 jury to hear.

20 I think all in we have about 8 or 9 minutes
21 pared down, because it would be a waste of time for
22 them to listen to all five videos.

23 THE COURT: Are there transcripts with them?

24 MS. NAVARATNASINGHAM: We could prepare
25 transcripts.

26 THE COURT: You should.

27 MS. NAVARATNASINGHAM: Okay.

28 THE COURT: You should share them, obviously,

1 with Mr. Rosario.

2 MR. ROSARIO: Your Honor, I have my own
3 transcripts. I don't think that the Defense
4 cherry-picking official transcripts is appropriate.

5 We will, no problem, fast forward to the
6 certain parts. The Defendant's own statements and
7 admissions of insurance -- the jury is not here -- his
8 own statements that he has insurance and was going to
9 cover my damages are in there.

10 That was his admission. I am not going to --
11 and I don't think it is fair for anybody to allow the
12 Defendant to claim that it is covered to the police.

13 He was ensuring to the police my damages were
14 going to be covered.

15 Now they are saying, oh, by the way, we don't
16 want his admissions in there to be taken out.

17 It is the whole record. The record is the
18 record, good and bad, whatever it is. I am willing to
19 go in there. They want to say, hey, Mr. Rosario was
20 making claims he was riding the scooter.

21 It could be as equally damaging to me as it
22 is to him.

23 We can't change the official records because
24 it doesn't suit them or it is damaging to them.

25 THE COURT: Sir, there are certain parts of
26 audio and video recordings, and sometimes they need to
27 be redacted or they have -- must be deleted for
28 purposes of presentation to the jury.

1 If there is a reference to insurance, the
2 Court is going to, pursuant to its own ruling on
3 motions in limine that was presented to the Court,
4 have the parties strike any remarks having to do with
5 insurance.

6 It is irrelevant.

7 MR. ROSARIO: No. He used it as an excuse to
8 escape liability.

9 THE COURT: Sir, it is irrelevant.

10 MR. ROSARIO: He stated that is how I was
11 going to care for my liability.

12 It doesn't matter, he implied that to a
13 police officer.

14 THE COURT: Sir, if you insist on bringing
15 that in front of a jury -- you've already brought the
16 fact that he has offered to pay money or to settle.

17 I don't know the details. I allowed that in,
18 perhaps in error, but -- I have allowed it into
19 evidence, but I will not allow you to bring in the
20 fact of insurance into this case. I have already
21 ruled that.

22 The offer was, there was a ruling with regard
23 to settlements.

24 The settlement discussions and so forth are
25 clearly not matters that can be taken up by you. The
26 fact there was an offer by him, as I said, I should
27 have excluded that; but in any event, the issue here
28 is whether he caused the accident that you were

1 involved in and that's all that matters.

2 Whether or not he has got coverage for
3 insurance or not has nothing to do with causation or
4 liability. It is standard in the Evidence Code, sir,
5 and if you violate this I will hold a hearing and
6 there will be consequences.

7 MR. ROSARIO: I understand that is why we are
8 talking about it right now, Your Honor.

9 So if somebody says they get -- for example,
10 in this situation, he hits me, the police ask him:
11 Hey, good thing you have insurance, to make sure you
12 are covered for these things.

13 He says: Yes, my insurance will cover for
14 these things.

15 He directly states that he should not be held
16 accountable or liable or those things based upon the
17 fact that he had insurance coverage.

18 The police officers let him go, saying:
19 Okay, great, make sure you call your insurance. Make
20 sure you go take care of this guy.

21 He used it as a way of exiting his liability
22 and now, once we get to court, he is saying, oh, I
23 didn't say that.

24 Well, guess what? You can't use that as an
25 excuse and a justification to an officer.

26 THE COURT: He cannot reference that during
27 the trial.

28 If he were to offer that himself, that would

1 be hearsay.

2 You cannot offer that, period.

3 MR. ROSARIO: Okay.

4 THE COURT: There are consequences. If you
5 continue to refer to offers or settlements or
6 insurance -- these are all rulings from before, sir.

7 If you violate this again, there will be
8 sanctions that are associated with it.

9 MR. ROSARIO: I never violated it in front of
10 the jury.

11 THE COURT: Yes, you did. You did the thing
12 about -- you elicited comments about -- from yourself,
13 about the fact that Mr. Abdelhalim repeatedly offered
14 money to resolve this matter.

15 MR. ROSARIO: No, I did not. I said, I don't
16 know why he offered me --

17 THE COURT: I won't get into an argument.
18 You are going to follow my rulings or there will be
19 consequences.

20 MR. ROSARIO: All right.

21 THE COURT: I have already given you much
22 bandwidth in this matter and I am going to tighten
23 down that bandwidth sooner than you think.

24 So proceed with caution.

25 We are adjourned.

26 MS. NAVARATNASINGHAM: Thank you, Your Honor.

27 (Whereupon, the Court was in recess at 4:43
28 p.m.)

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1 STATE OF CALIFORNIA)
2) ss.
3 COUNTY OF SAN FRANCISCO)
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5 I, DENNIS M. SOUZA, CSR No. 3893, do hereby
6 certify that I am an official reporter Pro-Tem of the
7 Superior Court of the State of California, in and for
8 the County of San Francisco, and that as such, I was
9 present and reported in stenotype the proceedings had
10 in the within-entitled matter at the time and place
11 herein set forth, consisting of these proceedings held
12 on April 16, 2025, and that the same is a full, true
13 and correct transcription of said stenotype notes as
14 taken by me in said matter, to the best of my ability.

15 DATED: San Francisco, California, this 16th
16 day April, 2025.

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21 DENNIS M. SOUZA, CSR #3893
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-	2	504 110:3 160:27 185:23	53:10,17 56:15 60:28 61:5 66:14 67:24 68:2, 13,16 69:27 72:13,14 73:22 74:25 89:2 91:27 94:19 97:14 120:4 123:14 124:17,22 133:8,26 134:2,10,15, 27 135:10,21,25 144:16 175:2,19,22 178:12 179:26 182:3,9 183:1 184:11 186:14 189:8 190:11,15,20 192:2 198:5 202:3,8 209:23 218:13
---000--- 219:1	2 138:22	51 45:16 46:9 49:5	Abdelhalim's 30:7 68:6 71:28 72:24 75:9 101:11,19 123:1 124:25
0	20 177:20	51-percent 60:27	abide 142:21
0001 137:28	200 188:18	5th 115:18 133:4,10 151:6 152:4 177:21 195:26	ability 32:5 47:16 71:7 76:22 96:18 107:14
0002 139:5 140:11	2019 43:11	6	absence 33:26
001 114:11 137:25	2021 42:21 66:15 76:13 119:12 157:11 168:25 172:2,6	6 112:9 151:1	absolutely 6:6 57:10 77:21 87:5 105:10 171:25 178:17 191:8 196:23
002 114:11,17 115:16 138:19,26	2023 64:8	7	absurd 196:24
003 114:11	2024 157:3,13 210:2	7 149:27 150:15 151:1	absurdity 59:15
004 115:22 123:6	2025 5:1	780 161:7	accept 32:18 34:25 37:1 210:18
1	210079556 110:27	8	access 148:10
1 125:4	21651B 153:23	8 214:20	accident 7:18 9:13 12:17,21 97:25 98:1 107:16 145:7 216:28
10 13:11 64:8 144:3 174:16 179:21	21950 142:13	825 171:3	accommodations 167:16
10-minute 144:7 185:12	25 176:21 177:10,20	9	accomplish 117:7
100 76:21 178:17	26 210:2	9 214:20	accountability 44:27 52:19 53:10 54:1, 9 60:5
10:25 41:19	3	911 7:20 8:13 53:12 79:23 80:2,8 81:17 82:24 83:19 84:7 120:13,23 121:3,16,19, 20,27 122:8,11 129:21, 25 161:13 162:8 164:20,21 176:9 181:15,16,18,22,23 182:3,9,15,19 183:2,24 184:2,28 190:12,16,21 191:4,7,10 194:12 198:6 208:16,19 210:18 212:22	accountable 217:16
11 114:9	3,000-square-foot 171:5	9:30 22:19,22 204:5,7	accountant 26:20
122 52:23	30 18:10 175:10	A	accurate 32:19 169:24 194:7
1220 161:5	35 23:18	abandoned 179:12 209:24	accurately 76:23
1240 211:1	3:05 160:22	Abdelhalim 5:7 23:2 30:3,7,20 52:18	
1271 161:6	3:55 185:12,20		
13 157:13	4		
15 13:12 106:17 212:9	4 112:9 157:11 168:25 172:1,6		
15-minute 41:16	4:00 185:9,14,15,16		
15th 157:3	4:43 218:27		
16 5:1	4th 66:15 119:12		
16-page 111:3	5		
18 163:19,24 212:8	5 112:7 150:15 179:21		
1998 43:8	50 144:9		
1:30 105:14,20			

accusation 85:28	admissions 74:25 161:15 215:7,16	air 183:15	apologize 15:12 106:1 195:11
aches 9:12	admit 12:23 31:3	Alberto 23:14 210:1	apparent 118:21
acknowledging 175:18	admits 164:3	alcohol 77:26	apparently 211:4 212:10 213:12
act 36:4 38:7	admitted 9:2,25 14:17 31:6,8 33:13 34:5 111:23,28 117:11 162:19 166:12,23 198:22 202:22 212:24 213:8	align 121:2,5	appearance 161:27
acted 182:13	admonishes 46:21	allegation 19:1 56:8	appearances 23:5
action 82:8,17 88:4 161:17	admonition 21:17	alleged 30:8 49:13	appeared 184:12
activities 168:25 197:25	Admonitions 24:6	Allen 167:19,20	appears 88:14 110:28 115:20,26 116:22 157:12 160:18
actors 59:6	adrenaline 184:7 191:17	allowed 11:19 82:26 86:16 89:19 93:24 95:12 135:3,4,16,21,25 136:2,8 139:21 143:7 196:19,27 216:17,18	applied 29:12
actual 33:12,17,21 74:6 97:26 103:19 123:9 126:16 195:21 208:13	advisors 24:23	alongside 142:3	applies 31:16,20
add 51:13 157:22	advocate 23:10	alternate 37:8,9,17	apply 29:13,20
added 80:12 85:18 156:24 158:23,27 159:4	affect 24:19 38:3,7,9	amazing 46:16 55:12	appreciates 81:26
additional 19:27 156:3	affidavit 161:26	Amazon 43:13	approach 167:6 189:9
address 64:24 105:13 124:26 156:20 157:28 165:1 166:23 208:6	affirmative 14:1 19:18	ambiguous 67:4 71:14 75:28 80:18 87:2 91:7 95:25 124:19 128:4 134:25 136:21 147:6,20	approached 133:28 180:7
addressed 205:28	aftermath 146:17	ambulance 154:28 194:23 199:24	approaching 133:19,28 151:6,9,10
addresses 212:22	afternoon 110:1 160:21 204:4 207:19	ambulate 197:24,26	appropriately 59:24 109:3 202:23
addressing 105:3 140:6 158:2 212:25	age 38:24	America 59:28	approximately 149:27 151:16,28 152:21 177:22 179:27 181:21 188:17
adjourn 204:4	agencies 11:10	analysis 93:13	April 5:1
adjourned 218:25	aggressive 193:11	analyze 10:24 11:24 92:4,8	aptly 24:4
adjust 47:1 156:12	agree 11:23 12:15 22:18 28:3 34:22 35:1,5 73:10 206:23	angry 80:6	Arabia 59:27
adjustment 41:14	agreed 17:25 28:5 102:19	announce 107:22	architect 50:15
administer 200:15	agreeing 5:15	anonymous 124:5	area 42:3 88:26 137:14 193:9
admire 62:11	agreement 15:21 34:23 205:7	answering 167:22 169:9,10 205:2	argue 107:3 108:7 211:23,24
admissibility 8:26 166:27	agrees 13:16	answers 34:18 106:14 108:19 111:10 170:16,19 204:25	arguing 13:12
admissible 55:19 86:12 88:13 97:26 209:21	ahead 9:23 87:10 89:27 129:24 175:12 182:20 198:9,13 203:27 213:3	anteroom 22:4 212:4	argument 17:1 31:18 43:20 107:23 108:9 202:20 208:1 210:25 218:17
admission 16:21 161:5 165:6,10,13 215:10	AI 180:18	anterooms 22:4	argumentative 134:12,13 135:6,19 160:11
	aid 164:8 179:20 181:2,4,22 182:11	anxiety 57:19,20	
		apologies 89:16 114:26	

arguments 14:15
31:13,17,19 34:12,16
arrest 68:18
arrested 90:8
arrive 77:8 121:8
arrived 70:6 73:27
77:4 94:25 102:12
113:12 122:17 123:2
150:17 191:19 193:1
194:16 198:18
arrives 68:23
arrow 137:23 138:26
140:12,16
arrows 138:20,22
139:2,26 140:2,12,19,
26
Art 171:10,12
artificial 43:7,8 50:15
aspect 6:21
assaulted 81:17,27
82:2,5
assaulting 79:26
assert 123:9
assess 53:6 206:26
assessment 97:24
assign 122:4
assignments
101:13
assist 26:19 29:24
113:23 148:13 170:10
192:13 198:12
assistant 89:18,20
assistants 89:8
162:18
assume 29:16
assuming 18:1
164:3 210:24
assumption 21:10
assumptions 140:3
assured 48:19
athlete 172:3

attack 206:21
attacked 79:11
attempt 24:14 56:23
attempted 151:9,11
205:19
attention 37:13 38:2
58:21 134:10,16 159:2
attitude 36:12
attorney 34:20,21
42:24 43:5 54:24 58:9
60:16 94:10 161:28
attorneys 34:9,22
48:9 54:25
audible 169:19
audio 8:14 129:22,24,
25 164:3 211:27 215:26
authentic 116:26
210:26
authentication
113:27 116:28 117:3
210:27 214:4
authenticity 208:24
210:15
author 67:16
authorization
161:9
authorized 93:20
Avenue 177:21
avoid 22:14 25:17
44:26 151:11 183:13
213:5
avoiding 53:10
82:17
aware 37:24,26,28
38:5 79:7 83:24 84:6,26
112:27 122:25,27
124:21 145:17 147:22,
26 159:3,10 167:18
178:27 186:10 200:1
aways 188:18
awhile 172:4

B

Bachelor 58:28
back 5:22 11:13
21:22,25 22:3,16 33:2
41:19 47:4 49:23 54:6
56:13,14 59:18 60:21
61:19 64:28 78:16
86:24 89:7,11,27
105:14,18,19,23 110:4,
14 111:9,17 112:4
114:18 119:23,26
132:25 149:12 160:27,
28 167:20,22 172:5
176:3,5,7 177:25 179:2,
3 184:9 185:8,12,20,23,
24 186:3,18,19 190:3
196:12,17,19,23 197:7,
8,9,11 198:14 199:7,10
213:19
bad 215:18
Bailiff 25:24 26:11
113:23
balance 58:15
Bananas 167:19
bandwidth 114:4
218:22,23
bar 77:6,8,13
bare 59:2
barely 179:6 183:11
189:26 190:23,25
191:16 193:20,24
base 40:13 51:1
based 24:15 33:27
38:1,25 40:2 47:7 51:7,
23 61:1 69:7,13,23
72:10 73:24 76:4,6,8,24
90:13 93:15 97:1 101:3,
14,19,21 103:15 117:21
118:1,5 126:5,9 130:12
139:17,22 140:4
153:15,19 154:8 156:9
217:16
basic 14:5 135:9
basically 89:1
basis 22:10,14 65:24
66:8 148:1 208:14

Bates 8:1,19 64:10
114:10
battery 196:4
beat 77:9
beautiful 55:2 57:1,8
58:12
beer 77:10
begin 8:3 19:19 23:17
24:16 27:21 29:27
42:13
behalf 53:13,18
behavior 44:14
beings 132:9 177:5,6
belabor 18:21
belief 8:25
believable 57:27
belonged 126:4,13
Ben 176:13 178:9
198:2
bench 21:23 39:2,6
Berkeley 52:12
bi-directional
143:6
bias 24:14 27:26 36:8
37:19 38:9,18 39:1
161:20
biased 38:20
biases 37:20,22,24,
27 38:3,5,7
bicycle 100:14
113:16 114:15 116:9,
11,16 128:18,19 134:9
141:25 143:23 151:7
bicycles 172:4
bicyclist 116:12,17
bicyclists 114:13,19
118:22 133:27 136:15
142:25
bifurcate 5:10,15
12:9 15:22 17:25 28:5
bifurcated 17:8,13
bifurcating 47:24

bifurcation 15:18,
19 16:8
big 43:14 87:28 94:8
108:18
bike 115:28 116:3
129:13 134:5,6,16
136:10,13,19,22,24
137:4,13,15,17,18,20,
22,26 138:9,17 140:2
141:1,16 143:9,12,23,
27 144:10 152:8,11
159:24 160:3
bikes 140:18
bit 56:24 64:28 114:17
162:10 166:12 170:17,
26 172:14 173:21
200:7,24
bits 74:17 169:14
192:20
black 174:1
black/blue 184:21
blacked 176:16
blame 69:19 75:9
87:16 106:24
blaming 69:21 75:26
blank 172:23
blessed 43:4
blind 186:22
blindsided 186:22
block 188:16,19 203:9
blog 25:9 26:6
blue 181:6 193:15,17
Boatyard 178:7
bodies 7:17 91:21
body 45:6 60:3,4,8
67:28 72:5 74:1,4 76:15
81:18 82:24 113:20
114:8 115:23 119:18
123:5 125:15 148:8,12,
15 156:28 157:1 165:4
191:18 194:15 213:1,4,
7,11,23 214:5,12
body-warn 72:5
boom 186:11

born 55:3,6
bottle 77:10
Boulevard 171:4
bound 37:9
bowl 111:19
brain 18:24 19:1,14,
15,16 20:19,26 28:20
195:6
break 41:16 103:2
105:12,13,25 160:21
185:5,6,10,12 206:19
breaking 103:9
breaks 22:20
breath 183:15
breathe 174:18 176:2
193:20
breathing 173:18
176:25 179:2,5 193:21
199:10 203:23
briefly 171:28
bright 33:16
bring 22:22 64:28
86:16 95:7 216:19
bringing 216:14
broadcast 120:22
broken 10:9,17,20
11:2 93:4 173:17
186:19 196:12,18,20,23
brother 51:4
brought 38:2 50:25
152:28 155:7 159:2
216:15
bruises 200:4
build 8:2 70:14
building 175:10
builds 178:8
bullet 7:15 11:6,17,25
bullets 7:17
bump 87:28
bunch 7:22
burden 14:6

business 7:7,9 10:3
11:3,20 12:24 43:12
47:19 50:15 58:4 59:8
81:23 93:11 161:6
178:7
businessman
52:14

C

cage 119:22 132:25
18 99:9
calamity 167:26
calculation 51:17,
18 99:9
California 5:1 24:11
153:9,22 161:6
call 28:5 53:4,17 54:6
62:23,27 63:11,20
65:26 66:11 79:4 80:8
88:27 107:20 113:5
120:21,23,27 121:3,7,
14,28 122:2,4,11
129:25,26 152:24
161:4,13 163:10 176:9,
18 177:6,28 178:1
180:3 181:15,16,18,22
182:3,9,15,19 183:5,24,
27 184:3,28 186:22
187:1 188:7,10 190:12,
16,21 191:5,7,10,21
194:13 201:7,23 208:19
214:1 217:19
called 30:2,3,24,26,28
34:23 53:12,17 63:23
80:2 90:25 112:21,23
122:8 130:24 167:19
168:10 176:11 178:5,
10,13 179:8 183:1
189:4 198:4,5 201:15
calling 39:7 53:18
181:23 183:18 184:2,5
190:22,24,26
calls 50:27 66:8 73:6
90:4 92:20 120:11
130:9 132:10 133:15,23
134:25 142:9 145:3
173:19 182:21 186:27
187:16 190:17 196:14
207:2

cam 74:1,4 76:15
114:8 115:23 123:5
125:15 157:1 165:4
194:15 214:12
camera 79:23 148:11
cameras 119:6
130:19 148:8,12,15
177:18 181:19 213:23
214:5
cams 67:28 72:5,6
81:18 82:24 113:20,21
119:19 156:28 213:1,4,
7,11
candor 44:22 45:19
cane 21:24
canvas 68:28
capability 46:15
capable 48:15 56:1,
20 60:4 155:19
capacity 51:24
car 90:14 100:14
care 44:16 45:1,16,17
48:1 92:17 142:12
146:7 194:22 216:11
217:20
career 45:6 140:27
carefully 29:9 32:5
38:27 83:5 108:12
169:6,11
carry 56:9
cars 149:4 203:10
case 5:27 6:19 8:3
11:1 14:6,11 17:8,18,
22,25 18:8 19:2,16
20:17 21:3 23:2,20,24
24:8,13,21,27 25:1,11,
15,16,19,21,27 26:2,4,
7,9,15,18,22 27:13,22,
25 28:16,21,22,25
29:15,28 30:16 31:16
33:4,13,21,25,27,28
34:2 35:19,22 36:10,13
38:17 39:18 40:11
41:20 42:1 43:16 46:8
47:7,17,20 53:3 56:26
60:18 62:20 63:1,7
71:27 77:27 78:9 89:18
100:27 101:17 105:8,16

106:22 107:24 149:3 160:23 161:20 164:5 168:4 183:21 185:17 202:22 204:8 206:13,23 211:25 212:13 216:20	Chase 171:4 178:4 chat 25:8 check 120:24 125:22, 25,28 152:24 199:10 checked 199:7 checking 125:19 192:7 cherry-picking 215:4 chest 8:12 179:4 chief 62:21 child 54:27 children 53:14,19 55:1,21 57:22 183:17 191:9 choose 36:25 41:4 69:7 206:5,6 circles 143:17 circumstances 69:14 96:16 citation 90:23 99:2 100:10 141:23 citations 101:14 141:18 cite 98:22 153:5,25 154:4,6,7 cited 6:25 88:6 90:10 98:19,26 99:27 141:5,7 142:16,20,24,25,27 154:16 citizen 52:27 city 65:25 119:13 claim 19:15 59:11 60:24,25 65:6 69:13 139:1 146:13 209:22 210:7 215:12 claimed 131:22 claiming 6:7,9 11:4 210:10 claims 10:16 30:5 52:26 215:20 clarified 119:18 157:20	clarify 33:6 66:23 78:17 83:26 113:6 121:10 139:26 clarifying 21:16 128:10 clarity 22:17 95:19 163:11 classified 75:23 127:11 clause 7:9 clean 150:5 151:2 clear 19:15 58:18 74:21,24 85:20 87:12, 13 141:28 152:8,10 155:25 186:24 clerk 5:3 22:25 26:10 41:24 62:24 63:25 64:2, 18 110:2,22 160:26 163:25 167:11 168:8, 11,18 185:22 client 5:23 20:11 150:16,18,25 152:4,7, 14,20,23 154:15 164:21 client's 151:8,10,12 climbing 172:4 clock 106:20 close 194:19 closing 31:17,18 34:11 63:6 clue 176:15 186:7,11 co-workers 24:23 code 92:19,26 93:9 94:2,11 100:3,26 101:19 105:7 142:13, 17,21 143:24 153:10,22 154:19 161:5,6,7 211:1 217:4 codes 66:5 93:18,20, 21,25 94:13,19 128:15 143:28 cognitive 43:7 cohesive 61:21 coin 46:10 collapsed 10:5 53:19	collapsing 11:26 12:3 183:16 collect 68:25,27 69:3 77:11 123:12,13,23,25 124:2,8 125:10 131:14 collected 32:21 71:6 73:14,16,17,22 74:26 75:10,11,19 77:22 78:22 94:26 104:19 123:18,21 124:15,16,22 125:7 126:7 129:10 131:16 154:12 165:5 collection 62:5 collided 30:6 151:12 collision 8:18 30:8 44:17 66:18,25 68:24 75:7,23 82:12 83:14,24 84:26 86:7 88:28 91:23 94:24 98:24 99:11,12 102:12 110:20,27 112:21 113:3 120:14,19 121:9,14 123:19 146:20,25,26 147:10 151:12 152:1,18 153:9, 20 172:11,19,21,23 198:2 collisions 92:17 93:25 154:3 color 192:5 comedy 167:18,28 comments 32:22 218:12 committed 98:11,13 common 6:23 9:14 10:18 12:12 47:16 48:12 56:1 common-sense 10:26 communicate 39:25 communicating 39:23 communications 25:5 27:4 39:20,24 companies 10:13 43:10,13 50:16
---	--	--	---

company 43:11 52:15,18 171:9,20 180:19	condone 15:1	continuity 60:3	corrected 86:26
compassion 56:2,3	conduct 24:17 26:18 37:10 202:23	contradict 139:18	correction 86:21
complaining 119:21 132:24	conference 39:16, 17	contradicted 40:8	correctly 121:5 156:20 184:18
complaint 119:25	conferences 39:2,9	contributed 99:12, 13	corrects 57:5
complete 15:4 51:11	confine 136:28	conversation 39:6 76:16 191:2	corroboration 165:21
completed 152:12 156:23	confused 87:28 179:1	conversations 25:3	Counsel 6:25 9:27 13:16 15:15 42:4,7 164:1 167:21 169:7 185:28 204:19 206:1 212:10
completely 15:28 47:11 77:2 176:16 179:1 186:21 194:13	confusing 140:24	convict 95:20,23	count 128:21
Complex 209:26	conjecture 61:22	copies 64:9 81:6 163:19,26 213:3	country 48:18 57:9
complexity 12:11	connection 25:19 158:14	copy 64:12,16,17,18 81:11 87:4 88:18,24,25 89:4 113:27 114:23 121:25	counts 97:20
complicated 18:7	conscious 106:19	corner 115:13,18 133:28 188:24	county 23:25 65:26
compound 117:24 118:12 134:24 135:19 143:1 147:5 187:3	consciousness 173:11,15 186:13	corporate 43:14	couple 32:22 49:6 55:27 65:2 89:28 106:15 149:13 187:21 189:3
computer 25:7 122:5 171:6	consequences 40:1 217:6 218:4,19	Corporation 171:2	court 5:5,25,26,27 6:4,16 8:20,21,24,25 9:23 12:10 13:1,11,17 14:13,18,26 15:9,14,19, 24 16:6,12,20,28 17:7, 12,17,20 18:16,19,27 19:9,12 20:7,13 21:9, 16,28 22:19 23:4,16 26:10 27:6 32:14,17,18 34:7 36:1 39:28 40:4 41:11,16,26 42:2 44:28 47:3 49:2,26 51:6 54:14,15 60:9 61:12 62:18,22,26 63:2,6,9, 16,18 64:3,16,21 65:10, 15,22 67:5 68:11 71:15 72:21 73:8 74:11 76:1, 26 77:24 78:1,7 79:13 81:1 82:3,14 83:1,5 84:23 85:4,14 87:3,7, 20,25,26 88:10 89:8,13, 17,23 90:6 91:8,16 92:22 93:1 94:4 95:26 96:4,12 97:7,21 98:8 103:1,24 104:1,12,24, 26,28 105:3,12,23 106:9,11,19 107:1,5,19, 22,27 108:12,22,27 109:6 110:4,16,17,19, 23,27 111:13 112:10
con 59:6	considered 73:4 127:16,22,23,26 128:1, 2 145:23,25 162:24	correct 56:5 66:2,22 67:12,21,22,24 68:6,8 70:3,4,5,7,9,12,24 71:10,18 72:2,3 76:13 78:20,23 87:22 94:27, 28 95:2,3,18 97:15 98:11 100:11,22 101:8, 9,11 102:14,18 104:15, 16 106:2 113:10 116:1 118:24,26 119:1,4,7,8, 23 120:20 122:11,12, 15,23 123:15,16 125:8, 9,14 126:7,8 127:1 128:25 129:4,8,11,17 130:15 131:26 133:22 134:21 136:27 137:10, 11,13 141:6,10,13 142:28 143:3,10,11,12, 13,15 144:16,20,24 145:15,16 146:4 148:7, 9,10,14,22 150:13,14, 17,20,23,24,26,27 151:17,18 152:1,2,5,6, 9,12,13,16,18,19,22,25, 26 153:3,4,6,7,23,24, 27,28 154:10,16,17,25, 26 155:2,4,5,9,10,12, 13,21,24 156:1,2,28 157:2 158:19,20 159:14 160:7,8 172:18 173:12	
conceal 147:23	consistent 36:15		
concealing 147:27	constantly 46:11,21		
concept 16:1 92:16 94:9 121:21	constitute 99:8		
concern 27:17 96:9, 20 108:17	constitutes 100:12		
concerned 20:9 21:1 29:2 39:13	contact 25:17 26:19 87:12 177:3		
concerns 28:28 164:23 198:26	contacted 198:19		
conclude 12:16	contained 7:4 158:1		
conclusion 46:14 73:7 90:5 92:21,23,25 93:5,10,24,26,28 94:2,6 153:8,15	contemplating 112:14		
conclusions 50:11 93:21,23	contempt 27:6		
concrete 176:8	content 33:16 211:11		
condition 59:19,20 73:23,26,27 172:1	contention 66:12		
conditions 96:19	contentions 107:6		
	context 170:26		
	continue 22:14 81:15 89:24 96:22 106:11 159:16 204:21 205:3,27 218:5		
	continued 15:7 188:12 200:9,10		

113:23 114:1,27 115:2 116:24 117:6,15,25,27 118:13 120:12 121:26 122:10,13,16 123:7 124:11,20 125:2 128:5 131:8 132:1,6,14 133:17,25 134:12,14,26 135:7,20 136:6,28 138:6 139:3,8,12,15,24 140:3,22 142:10 144:2, 6,12,18,26 145:5 147:8, 21,25,28 149:18 151:25 153:12,17 154:14 155:16 156:5 157:24 158:12,22 159:2,19 160:12,18,28 161:9,19, 24,28 162:2,6,13,28 163:13,18,28 164:3,7, 28 165:9,12,17,24 166:3,9 167:5,17 168:4, 15,19 169:1,5 170:11, 21 171:14,17,23 175:3 178:18,21 180:16,21,25 182:23,26 185:3,11,16, 24 187:1,7,12,23 190:7, 14,19 191:24 192:16, 19,23,28 193:28 195:8, 14 196:16,21,25 197:13 199:1,11,18 200:18 201:3,12,21 202:10,20, 28 203:25 204:3,13,16 205:2,11,19,25,28 206:15,17 207:4,12,18 208:2,8,24 209:13 210:7 211:27 212:11 213:10,16,21 214:23, 26,28 215:25 216:2,3,9, 14 217:22,26 218:4,11, 17,21,27	courts 46:16 48:14,17 cover 89:27 215:9 217:13 coverage 217:2,17 covered 176:24 196:10 215:12,14 217:12 COVID 198:8,25 199:26 cracked 10:20 crawl 180:5 188:12 crawled 176:3 crawling 177:26 crazy 54:11 create 59:17 created 11:9 creates 6:4 credibility 145:6,10 161:8 206:27 213:6 credible 145:1,2 148:21,26 crime 87:19 98:13 157:19 crimes 98:10 criminal 45:14 53:3,4 critical 6:6 cross- examination 30:26 149:20 157:27 160:14 cross-examine 107:2 159:20 crosswalk 90:9,14 117:20 127:25 128:1 134:6,9,17,21,22,28 135:11,15,22,26 136:3 137:19 143:18 172:26 176:5 188:25 crosswalks 90:3 92:19 117:22 142:13,22 143:6,8,14,19 crying 52:27 CT 8:12 9:16 12:25 13:4	cumulative 207:13 curb 116:9,10 176:4 177:22,26 custodian 161:26,27 210:21 213:25 cybernetics 43:8	decade 45:11 deception 58:19 decide 18:2 25:1 27:13,24 31:10,12 33:27 34:1 35:20 36:22, 23 39:10 40:28 56:7 175:25 206:25 211:14 decided 29:19 36:11 43:14 44:25 74:28 199:26 decides 9:27 deciding 35:25 decision 24:19 37:3 38:19 60:15 61:3 79:6 decision-making 28:23 decisions 38:4,6,17 40:1,2,14 54:23 declarant 161:17 211:4 declaration 53:13 55:21 85:28 161:12 162:12 163:8 declarations 162:7 declare 69:2 declared 83:19 declaring 80:14 decorum 205:25 deem 159:16 deeper 133:5 default 205:1 Defendant 7:26 16:27 23:12,14 30:4 47:27 48:16 49:17 51:2 56:3,9 67:19 75:21 78:21 79:15 83:12,18 101:5 129:19,22 130:1, 3,13 175:1,4 194:9,16 215:12 Defendant's 215:6 Defendants 108:23 defense 5:8,13 6:24 10:16 13:16 14:20 15:7, 10,14,21,22 19:18 20:2
---	---	---	--

43:21 46:2,4 49:13 50:8
56:22 58:1 62:15,20
64:14 65:6,8 73:12 82:7
93:27 95:5 106:25
149:17 157:21 164:1
169:7 209:14 212:10,28
213:3 215:3

Defense's 59:3,15

defined 29:8,11
96:10

definition 95:28
132:3

definitions 29:10

defraud 48:17

delay 210:11

delays 212:5

delete 10:11

deleted 215:27

deliberate 5:21

deliberations
27:16,21 31:5 32:1,15

delivered 74:9 78:23
133:1

demand 15:4

demanding 193:18
194:27

demonstration
14:1

denial 43:25 51:11,14
53:2 60:22 61:2 62:2

denied 52:1 54:4

denies 30:7 43:28

deny 44:26 45:4 56:4
57:18 105:2

denying 39:17 54:18

departed 73:28
188:14 194:11 198:5

department 79:23
98:26 110:3 132:18
154:2 160:27 161:10
185:23 193:1 194:10

departure 172:13

depending 23:23

28:13 29:14
depends 40:18
118:17 145:28 146:19
147:13,14 148:17,27

deposed 52:20

deposition 8:17
64:7,17,24,25 70:15
87:7 159:18,26 160:1

Deputy 25:25 212:11

describe 6:26 36:3
115:4 117:15 171:28
174:7 197:17

describing 12:18
115:7

description 136:21

deserve 50:22 54:28

deserves 54:27

designed 43:9

designing 43:12

destroyed 32:21

details 8:7 14:11
66:20,24,25,28 112:27
122:6 216:17

determination
5:23 12:19 75:13,16
77:23 81:19 97:1
101:18,26 154:8

determine 7:12 28:8
47:27 61:18 69:14
71:17 76:3 90:11,21,28
91:9,15 94:11,16,18
96:18 100:20 102:22,27
132:16 137:17 138:4
139:2 145:6 146:11
147:12 148:21,23
155:23

determined 62:6
76:10 77:18 78:26,28
90:15,19 99:8 102:22
153:19

determines 92:11

determining 61:27

device 25:6 26:23
212:1

devices 27:5

dial 176:9,11

diaries 25:10

dictate 140:20

dictionaries 26:17

dictionary 10:7

die 11:12 173:28
175:28 177:27 179:12
181:5,28 183:7 189:19
197:22 201:11,14,16,19

died 183:21

differ 32:13

differed 195:20

difference 20:21
212:18

differences 36:21

differentiation
156:18

differently 36:20

differs 36:22 164:14

difficult 30:14

difficulty 193:21

digging 103:7

dire 19:6,13

direct 30:24 64:5
65:17 107:10,11 110:13
111:6,7 112:6,18
149:11 168:23

direction 114:16
133:10 134:4 136:26
137:17,19 138:4,11,18,
20 139:1,27 140:12,13,
17,21,26 141:2,6,9,15,
24 143:12 160:2,3
195:25

directional 137:4
142:27

directions 136:11,
14,19,23,25 137:4,23
143:7,14,19,20

directly 15:13 71:28
84:11 87:19 174:6
217:15

directory 173:24

disability 38:22

disagree 57:3
206:23

disagrees 13:17

disappeared 192:2
194:13 209:20

disbelieve 38:11
68:5

discharge 8:11

discharged 25:13

disclosure 40:18

discouraged 206:2

discrete 108:19
169:14

discuss 6:25 20:6
25:21,27 27:22 39:7
186:4 210:18

discussed 19:24
26:24 27:15

discussing 15:3
20:4 106:23 197:21

discussion 16:1

discussions 39:14
216:24

disfavor 37:22 38:14

dishonest 70:21,23

dispatch 112:21,22,
26 120:21 121:3,7,11,
16,20 122:2 210:21

dispatched 121:14

dispatcher 121:19
122:13

dispatches 210:22

dispense 210:14,23

disregard 35:16
187:26 191:24 195:16
202:12

disturbing 50:26
58:1 60:20 162:10

diversions 48:6

division 92:13 159:9,
12

doctor 26:20 132:16, 17 197:8 200:15 201:8, 10,13,14,15,18 203:20	drop 143:22	elaborate 59:6	entire 57:21 59:21 61:1 106:25 140:27 147:14
doctors 7:2 197:3	dropped 121:21	electrical 125:26	entitled 24:4 33:23 40:24
document 88:5 111:3 112:25 125:4 130:12 138:12 149:8 157:7 164:2,11,16 209:16	drops 143:26	electronic 25:4,5 27:5 39:20,23	equally 215:21
documentation 16:4	drove 175:20 198:20 203:16	electronically 39:25	equation 42:24
documented 11:27 119:25	drunk 177:15	elevate 200:10	equations 53:26
documents 10:8 30:27 34:4 51:28 124:13,16,22 164:24 208:23 209:18 210:3	dry 51:15	elicit 58:2 65:13 67:8 171:17	ER 201:11,13
Dolan 161:9 162:1 208:23 209:18 210:16, 19 213:14	due 180:27	elicited 218:12	erase 11:9
domino 103:10	DUI 77:25	elicits 196:26	error 168:4 216:18
door 153:14	Dustin 175:8,12	eliminate 168:3	ERS 201:20
double 120:24 137:22	duty 25:13,27 44:16 45:3,16 48:1 65:23 81:24 87:21 92:16 99:22 103:16	embedded 61:22	escape 216:8
doubled 56:16	dying 53:13,14,15,23 55:20 161:12 163:8 173:16,27 176:1 199:26 207:3,7	emergency 7:20 161:10,14 191:11 213:5	Esquire 64:8
downtown 119:16	Dylan 23:2,6 30:1 168:9,14,16	emotion 51:7 61:22	essence 98:5
drag 192:11	E	emotional 175:26 206:12	essentially 7:5,6 73:4 74:19 92:18 106:14 107:13
draw 33:15 48:12	earlier 6:20 71:17 94:23 99:19 104:6,22 118:20,23 119:5 126:6 131:25 136:16 137:10 156:9 169:13 193:22 195:19 198:25	emotionally 46:6 186:5	establish 8:5 12:15 44:11,18 52:7 62:28 65:1 67:6 74:24 77:4 78:9 117:8,12 137:6 138:7 139:15,20
drawings 66:25	early 51:28 206:19	emotions 51:2 58:3	established 6:3 75:22 107:20,27 132:28 149:14 208:25
drink 41:9	easier 33:15	employees 48:22 74:2 176:10 178:2 183:17 198:3	establishing 108:10
drinking 77:13	easily 40:10	EMT 132:16,17	estimate 149:28 150:2 179:15
drive 135:3	echoes 57:21	EMTS 132:18,28	ethnicity 38:22
driven 189:18	edgewise 205:23	end 27:28 32:20 47:14 165:2 166:23 191:1 214:17	evaluate 38:27 40:16
driver 45:18 90:22,26, 28 124:13 131:10 142:2,5 155:8,11,19 186:6,25 187:15,28	editorializing 76:27	enforce 93:19 142:14	evaluating 108:3
driver's 142:5	educated 48:9	engaged 203:20	Evan 23:8
drivers 90:2 136:2 141:26 155:23	effect 38:5 103:10	engaging 193:6	evening 200:5
drives 100:23	effectively 159:12	engineers 171:6	event 26:22 28:27 36:19 77:26 84:9 198:15 210:23 211:6,8 216:27
driving 52:26 100:4 152:4 153:20	efficient 89:6 108:14, 16 163:1 166:14 168:5 206:3	English 96:13,21 169:19	events 7:22,23 12:4 43:24 44:1 168:25 195:21
	effort 49:4	ensure 60:12 166:13	eventually 182:3,9
		ensuring 215:13	
		enter 41:2	
		entered 22:24 66:26 213:1	
		entering 120:25	

everyday 29:6,12	excluding 16:17,20	explained 169:12	fact 6:4 8:3 37:7 44:5
everyone's 101:21	excuse 150:9 151:9	explaining 9:15	49:21 52:26 58:4 84:5
evidence 7:28 8:6	180:24 197:13 200:4,13	211:6	120:18 123:9 194:18
9:21,24 13:13,21,23,27,	216:7 217:25	explicit 16:4	195:1 208:17 210:8
28 14:2,4,17 16:22	excused 37:15	explicitly 195:12	216:16,20,26 217:17
18:17 19:1,8 20:10,17	105:21,24 204:11,17	express 27:12 41:20	218:13
21:11,12 24:15 26:13	excuses 108:13	105:15 160:23 185:18	factors 35:26 53:5
27:10,14 28:24 30:11,	exercises 22:2	204:7	facts 27:24 29:14,18,
13,15,17,18,19,21 31:3,	exhausted 173:1	expression 38:23	19,20 34:1,23,26 40:13,
4,6,8,9,11,15,19,20	exhibit 8:20 114:9	extend 144:8	18 47:19,26 53:28
32:8,10 33:10,12,17,21,	213:12,26	extends 25:4 26:5	61:25 69:8,9,10 87:15
28 34:1,2,5,6,11,13,15,	exhibits 7:22,28 8:1,	extent 21:28 89:3	156:20
16,17,18,27 35:4 38:26,	9 30:28 31:3,6 213:28	113:26 116:20 144:23	fail 108:21
27 39:11,12,18 40:2,4,	exist 35:17	168:3 206:11 211:13	failed 52:2 86:22
8,16,19 41:5,7 45:13	existence 161:20	212:18	90:21,28 196:4
46:7 47:9,14 48:27	exit 187:28	extreme 179:11	failing 90:8,18
49:3,5,7,16 53:9 56:25	exited 152:23	eye 208:17	142:16,20,25
57:28 58:15,16 61:17,	exiting 217:21	eyes 15:12 62:1	fails 90:12 142:2,5
25 69:5 71:19 79:3,5	exonerated 54:15	175:11,12	fair 40:12 45:7 48:15
81:4,7 82:20 86:21,25,	expand 69:17	eyewitness 66:22	60:15 88:20 150:3
28 90:20 91:18 92:4	expect 17:5 121:8	145:15,18,20,23,25	160:4,6 182:5 215:11
100:22 101:1,27 102:24	168:1 206:6,9	146:3,9,12,20 148:20,	fairly 24:13 119:13,16
103:8 107:2 111:21,23	expected 12:17	25 149:6,10 164:20	140:23
114:2 115:9,10 117:11,	155:11	208:19	fake 56:25
13,17 123:10 126:16,	expects 30:12	eyewitnesses'	faking 184:1,2
21,25 128:12 129:14	expedite 21:8	147:17	fall 7:9 22:9
131:17 140:7 147:15,23	experience 6:23	eyewitnesss	false 62:3 70:24,27
158:3,24,26 161:5,6,7,	12:13 25:12 70:27	146:22 149:1	71:6
15 162:19,20 164:5,12,	149:11 152:28 153:1		falsely 71:8
15 166:6,12,27 176:22	experienced 47:26	F	familiar 66:10,13
202:22 208:1 210:20	57:20 147:10 199:9	F-E-R-N-A-N-D-E-	73:23 92:19 112:22
211:1 212:13,20 213:1,	experiencing 62:13	Z 64:1	114:5
9 214:8 216:19 217:4	experiments 26:19	F-R-A-N-C-I-S-C-	family 24:22 26:20
evidentiary 81:5	expert 7:3 9:17 10:16	U-S 168:16	45:22 48:21 52:9,18
112:1	11:5,18 12:14,22 20:2	fabricated 56:17	53:14,19,21 58:25
exact 100:3 112:22	132:11	59:4 195:23	62:10 183:9,17 191:9,
115:24	experts 6:18 11:11,	face 27:6,7 53:24,28	11
examination 30:24	23 20:1 47:18 51:21,24,	180:14 181:7 184:22	farther 114:18
64:5 65:17 81:10 88:26	25	face-to-face 25:3	fashion 83:9 166:15
89:6 105:27 110:11,13	explain 13:5 17:18,24	facie 71:24	167:25 206:5
112:6 115:7 144:3	24:16 27:28 28:2 29:25	facility 171:5,8 178:3	fast 60:26 177:24
155:18 168:23	50:7 63:5,6 121:22	200:1	215:5
examine 138:8	140:5 207:28		faster 173:21
examined 154:28			fault 6:3,9 30:8 52:24
exams 8:10			60:23 69:3,7,15,20
Excellent 66:10			75:16,22 76:3 78:26
69:25 131:14 132:27			
exclude 19:22			
excluded 82:27			
96:17 216:27			

80:27 81:19 84:20 86:23 97:1 98:24,27 99:3,4,6,9,10,16,17,24 102:2 103:11 142:5 147:2,12 154:4,5 182:2	filed 30:1 67:11 157:2 files 8:14 fill 187:9 195:11 final 159:13 finally 181:18 182:12 189:8 191:18,19 financial 51:24 financials 51:22 find 7:14 18:1 29:21 69:20 89:8 101:17 106:28 154:19 174:9 188:8 finding 92:5 findings 29:14 156:8 finds 123:21,25 124:1 fine 9:25 27:7 65:20 102:1 128:23 143:18 197:1 208:25 fingerprints 176:8 finish 74:21 103:1 144:3 169:8 finished 30:20 156:21 fire 132:18 193:1 194:10 fireman 120:2 192:5 193:17 firemen 192:6 firm 161:10 162:1 209:18 210:16,19 flight 184:6 flow 21:5 136:17,18,26 139:22 143:5 151:8 153:2,6,21,26 flowing 141:6 focus 198:14 focused 144:10 focusing 15:12 fold 33:11 folks 28:28 29:2 42:3 197:3 212:1	follow 28:1,2 29:10, 20 44:15 60:12 206:10 212:17 218:18 fooled 48:6 foot 180:7 footage 72:8 91:3 148:11 194:15 214:12 force 119:13 124:5 forecast 9:19 forget 33:15 36:18 111:14 form 5:11,20 9:27 15:23,27 17:2 20:24 21:1 27:12 28:12,13 41:20 97:24 105:15 106:10 160:22 165:20 185:18 204:7 211:12 format 210:3 forms 25:4 formulated 97:28 forward 6:5,11 8:4 60:26 62:8 63:21 65:16 92:10 215:5 forwarded 92:13 159:8 found 52:27 54:8 99:21 127:26,27 128:7 141:14,17 158:26 foundation 67:4 68:10,12 87:2 113:26 117:3,4 120:16 121:24 157:16 162:23 178:15, 20 208:26 209:22 foundational 67:8 78:13 founded 43:11 171:3 fractured 11:26 frame 115:3 framed 196:25 205:7 framework 24:2 Franciscans 42:17 43:15 Francisco 5:1 45:27 48:5 53:22 55:7 56:7	65:26 119:16 127:22 132:18 141:21 149:26 177:12 178:6 198:20,22 199:4,5 200:3 213:5 Franciscus 23:2,6 30:1 168:9,14 Frank 168:14 frequently 111:13 friends 24:23 front 6:8 20:25 21:24, 25,26 22:6 47:9 48:28 59:11 103:27 125:5 133:14 134:20 150:6 156:25 186:10 206:16, 17,18 211:28 212:2,7 216:15 218:9 full 119:13 fully 37:26,27 56:1 135:14 fumbling 46:19 function 198:11 fundamental 24:10 fundamentals 43:20 60:2 furlough 48:22
G			
			gamble 45:26 game 59:6 160:4,6 gaps 195:11 gather 124:4 158:17 gathered 40:20 125:12 gave 63:3 101:8,10 102:1 104:17 165:8 200:12 gender 38:22,23 general 13:14 82:15 88:16 198:20,23 199:4, 5 200:3 generalize 28:27 generally 20:15 43:15 82:9 111:23

142:6 148:12,25	granddaughter 127:19	189:23 217:20	hard 87:4 88:18,25 173:17 179:1,4 195:5
generic 120:19	Grandpa 55:5	guys 45:27 46:1 47:6, 21,25 48:3,5,14,27 51:1,6 55:20 58:24,26 59:2 61:17 62:5,9,14 68:24,25 121:3,8 193:15,17	harmed 60:7
gentleman 49:21 200:27	grandsons 42:27 55:2,10		harms 60:7
Germany 59:28	grant 15:24 35:15 39:15	H	hate 18:20
gestures 169:21	granting 14:21 39:16		head 15:2 78:4 88:1 169:20 175:17 176:24 185:2
get all 6:1	grateful 42:19 43:4 59:17 62:10		headed 172:7
gift 55:13	gray 116:4	hairs 82:6	heading 133:9
Giler 176:13 178:2 180:4 198:3,18,20 199:23	grayness 174:1	half 18:6 41:12 45:11 63:3 188:18 209:15	heads 46:11,13
Giuliani 54:23 56:13	great 69:25 103:3 150:8 217:19	hand 32:24,26 36:27 149:17 166:18 168:8	health 171:28
give 9:6 13:9 17:21 23:28 29:2,10,16 30:14 35:27 36:16 41:12 70:24 74:13,14 83:1,8 89:4 104:5 105:2 108:2, 19 114:4 132:28 144:3, 7 163:21 170:9,16 185:1 194:27 204:22 205:4,14 206:6 211:15	greatly 170:10	handed 33:7	hear 9:5 13:22 14:3,13 15:14 16:14,28 17:10 22:12 23:26 26:12 30:18 31:13 32:25 34:3, 7 35:28 38:10 40:3,9,15 51:8 53:8 58:22 108:13 122:11 135:23 164:14, 15,17 170:2 177:4 179:23 191:1 207:22 209:11 214:19
giving 9:19 13:14 23:19 36:13 74:11,15, 16 194:4,9	green 116:4 150:12	handle 79:11,16 103:2	heard 5:19 13:13 27:14 35:14 60:23 70:19 96:11 103:13 151:22 152:15 182:19 191:4,7 198:25
gleaned 104:18	grilling 184:26	handles 91:23	hearing 17:13 20:16 39:5 217:5
goal 108:20	grocery 172:8,16	hands 169:21,22	hears 23:22 122:14 163:7,11 164:26
God 94:15	ground 90:26 123:22, 26 124:1,8 128:1 137:10 174:3,5 175:9 176:26 179:11 188:13, 20	hang 51:15 180:4	hearsay 7:6 9:6,27 12:27 13:7 73:4 95:28 96:3,9,10,20,27 97:13, 20 103:13 131:26 151:20 161:16 165:12 196:16,18,26 197:5,12, 15 199:8,17 200:17,19 201:2,3,9,17,21,26 202:25 208:25 218:1
good 23:9,11,13,15 39:24 42:17 52:27 56:7 65:21 71:22 96:23 108:3 131:14 142:15 170:21 215:18 217:11	grounds 61:13	hanging 45:10	heart 57:12
goodness 48:4	group 26:16 27:1 37:23 40:14 49:9 104:18	happen 6:3 7:16 17:5 26:26 44:1 54:6 70:24 103:6,12 147:11	heavy 119:15
Google 43:13 115:20 116:22 117:1	growing 171:26	happened 6:22,26 9:13 12:19,20 32:3 36:3,17 44:16,18 45:3 48:26 49:10,19 51:10 61:8 66:14,18 84:10 86:15 98:4,23 100:18 101:2 115:13 146:21 165:28 166:20 167:2 170:18 172:19,24 173:7 179:7,19 180:8,21 183:2,9,23 187:9 188:3, 10 191:28 192:21,25, 27,28 193:5,6 194:19 195:3 200:20,21,25 203:1,24,27 206:7 207:26 212:19	held 27:5 217:15
gotta 181:15	guarantee 8:25	happening 48:19 51:14 172:24 195:4 207:8	helped 53:23 176:17 189:16 192:11 198:3
govern 31:7 32:11 37:10	guess 27:19 35:9 39:14 47:14 52:16 62:15,28 63:17 65:5,21, 23 75:4 85:16 86:18 110:16 135:9 149:16 150:9,11 159:1 169:27 170:15 191:18,20 192:27 195:3 203:2 209:24 217:24	happiness 43:1	helpful 146:18 206:18
government 193:14	guidance 60:13	happy 171:19,25	
graduate 52:12	guide 164:9 208:11 212:16		
grand 59:3	gunshot 7:14 10:22		
grandchildren 55:2,5 56:18	guy 54:12 77:14 84:12, 16 85:6 105:2 184:4		

hey 43:26 47:15 129:27 130:10,25 146:21 179:24 199:22 215:19 217:11	204:25 208:5,15 212:28 213:7 214:11 215:2 217:8 218:26	image 113:21 114:17 115:17,19 137:25 138:22 139:28	inaudible 52:12 131:19
highly 48:9	hoping 48:12 56:20	images 7:23 8:11 50:27 113:22 114:6 123:4 126:28 196:13 197:10	incapable 72:1
hill 203:11	hospital 8:16 58:5 155:3 198:21,27 199:4, 5,23 200:3 203:8,18	imagine 43:24 49:18 50:9 51:4 53:1 60:26 62:14 192:3	incapacitated 91:13
hired 171:9	hospitals 7:8 11:28	imagined 50:4	incident 8:18 25:24 67:11 81:21 91:26 94:19 113:1 115:13,17 120:14,18,19 122:7 146:15,16,18 150:16 157:4,8,11,14 158:15 172:1 197:20
hit 10:19 43:18,26 44:11,12 45:16 47:27 49:16 62:6 66:28 77:6, 9,14 79:15,23 80:4,9, 15,20 82:5,18 83:11,23 84:4,8,12,14,15,16,25, 28 85:6,21,25 86:3,5 120:28 129:28 130:4, 10,18,26 131:6 139:21 142:4 149:4 173:11,26 176:5,11 177:4 183:3, 14,18 186:8 188:23 190:23,25,28 191:12 195:5 196:8,9,11 202:6, 8 209:4,8	hour 18:6 22:10 41:12 63:3 106:16,17 151:16 152:1,21	immediately 8:8 31:12 44:16 172:22 184:24,26 198:2 199:23 201:8	incidents 8:7 150:1
hit-and-run 209:5 211:20,24,26	household 24:22	immune 54:25	inclined 21:14
hits 217:10	human 54:27 59:19, 20 60:2 132:9 177:5,6, 16	impact 152:15 186:4	include 100:7
hitting 84:1 202:19	humor 59:18	impaneled 21:22	included 208:23
hold 144:4 172:12 217:5	hundred 48:23 99:16	impeach 87:16 139:17	including 24:22 25:9 26:6 27:4 51:27 83:6 124:13 185:28 204:18
holding 209:22	hurt 82:25 133:2	implication 102:26	income 45:20
holds 58:16	hypothetical 77:20 81:20 130:16 142:9 146:1	implications 60:21 79:8 92:26 147:23	incomplete 77:19 142:8
home 45:6 124:25	I	implicit 37:28 38:3	incrementally 173:23
honest 44:21 55:8 72:2	IBM 43:10	implied 216:12	independent 32:10
honestly 45:19	idea 79:26 104:8,14 158:8 208:8,26	implored 190:11	indication 39:17
honesty 48:4 58:18	identification 208:20 211:2	importance 24:9	indifferent 55:15
Honor 5:14,18 11:7 15:16 18:11,20 19:12 20:8 21:2 23:12,13,15 41:22 62:19,24 64:11 89:12,16 102:28 104:28 106:1,3,25 113:25 114:22 115:1 137:27 138:24 139:4 151:24 153:13 157:5 161:4 163:4 164:26 167:9,13 168:20 171:16 180:24 185:6 187:6,11 190:6 191:23 192:15 202:5,26	identified 31:2 67:19 175:4	important 21:18 26:12 27:9 35:21 36:25 38:17 39:28 44:10,21 47:17 55:25 81:12,19 89:28 142:14 162:11 169:23	indistinguishable 193:3
	identify 38:14 103:8 110:26 133:6 138:14 174:28 176:28	importantly 209:7	individual 11:25 53:25 90:18 184:22
	identifying 29:27	imposed 28:15	individuals 48:10 163:14 193:5
	identity 38:23	impress 24:8	industry 197:4
	idling 174:13	impression 32:7	inevitably 178:9
	ignore 35:7,12 37:2	improper 138:6 202:14,18	inflamed 179:4
	illegal 127:17	inadmissible 88:6 161:16,22	influence 27:27 38:19
	illicit 163:9	inapplicable 40:10	influenced 32:8,12 38:28
	illness 37:16	inappropriate 54:18	info 132:19
	illustrate 86:16		inform 84:11

information 7:11
25:11 26:3,8 39:10
40:13,20 50:24 60:19,
27 61:20 62:4 67:9,21
68:25 69:3 70:12,17
71:4,6,9 75:18 76:9
77:12,22 82:26 85:13
94:27 97:2 99:20,21,22
102:1 103:15 108:11
117:8 119:6 123:14,20
124:3,4,6,9,12,24
125:3,7,10,12 126:7,12,
24 129:10 148:14
154:12 156:3,12,16,17,
22 157:19 158:14
169:15,17 176:19 180:3
192:20
informed 47:7 166:3
201:24,25
infraction 98:16,17,
18,21,23 99:26,28
100:4,17,26
inherent 211:12
inherently 57:12
initially 110:28
inject 107:5
injected 108:27
injured 99:1 132:16,
23 144:22 149:4,5
injuries 5:16,22,24
6:27 10:26 11:11,16,23
12:18,21 20:28 69:24
91:25 132:8,19 144:24
154:9 178:26,28 180:27
200:1
injury 7:23 11:8,9,20
12:7,11 18:24 19:1,14,
16 20:19,27 28:20 30:5
62:7 98:25,28 112:21,
26,28 113:4 121:15
148:28 149:3 154:3,6
inquire 64:3 168:19
inquiries 154:21
inside 7:15 11:17
57:12
insist 216:14
instances 137:14

instant 25:8
instruct 31:16
instructed 202:12
212:14
instruction 23:21,
27 24:1,3 29:2,17 33:22
40:23 212:12
instructions 17:22
23:19 28:11 29:8,11,13,
20 37:13 163:22
insufficient 63:8
insurance 33:23,25,
26 124:9 214:16 215:7,
8 216:1,5,20 217:3,11,
13,17,19 218:6
integrity 47:7
intelligence 43:7,8
50:15
interesting 94:7
interfere 32:4
internet 25:7,8 26:6,
17,22
interpret 11:18
93:17,20 94:13 105:7
interpretation 93:6
interpretations
16:11
interpreted 13:4
interrogation
108:24
interrupting 47:5
intersection
115:21,24,27 116:7,18
117:9,16 118:3,17
133:4,5,12,19 136:22
137:2,28 138:4 139:6,
22 141:28 173:3 174:14
177:19,20 187:19
188:25
intersections
115:25 142:17 172:28
intervene 205:19
intervened 205:22
interviewing

145:11
interviews 80:25
introduce 8:2
investigate 26:18,
27
investigation 78:2
98:2 99:7 105:4 106:16
108:4,6,8 130:22
144:13 145:7 153:16,19
154:8,12 159:16
investigative 91:23
invoke 202:25
involved 24:21 25:15
26:7,22 36:9 68:28
69:10 91:2 123:19
217:1
involvement 54:5
irrefutably 131:22
irrelevant 33:26
91:14 216:6,9
Israel 59:27
issue 5:15,16,19
12:12 15:18,19,24
16:22 18:26 19:2 20:22
21:3,10 81:9 103:18
105:26 108:20 165:2
210:13,28 216:27
issues 16:15 17:13,
28 28:8,28 40:28
106:15 138:8 168:3
212:25
item 29:1 110:26
111:17 210:17
items 8:26 166:11,22

J

jacket 176:23 192:10
jail 27:7
job 43:9 46:4,16 65:15,
23 71:16 99:23
jobs 43:14 50:16
jog 111:16,22

journey 59:1
judge 19:28 46:8 49:2
51:23 60:12 93:28
97:18
judging 211:9
judgment 19:21
71:10 79:4 148:19
judgments 68:25
jump 50:11 193:13
jumped 182:20
jumping 203:27
juror 21:5 23:22
25:12,22 37:9,15 40:15
62:25 164:8
juror's 37:18
jurors 19:5,13 24:7,28
26:12 27:15,23 29:24
32:9,12 37:8,10 38:16
39:28 40:21 105:24
110:5 161:1,19 185:27
212:9,17
jurors' 20:9
jury 5:20,21,22 6:8,21
12:2,16 14:9 16:13
17:4,6,8 18:24,25,28
20:14 21:21,22,24,25,
27 22:6,23,24 24:9,10,
13,25 25:13,27 27:22
30:18 31:26,28 39:5,6
41:4 42:18 50:10 52:22
56:6 58:13 62:12 67:7
81:2 82:20 86:17 96:8,
15 105:21 107:9,23
111:13 140:5,8 145:8
162:24 163:7,11,21
164:4,26 166:14,25
167:2 187:25 195:16
202:12 204:6,11,17
206:16,18,27 207:5,20
208:14 209:11 211:14,
18,28 212:7,26 214:19
215:7,28 216:15 218:10
justice 50:22 56:28
57:8
justification 217:25

K	large 174:11	55:18,21 60:10 107:7	limit 18:5,9 46:5 144:7
	largely 20:21 42:7 206:19 207:19	119:22,26,27 120:1,5,9 121:16 122:23 132:24 133:18 141:26 175:20 178:12 179:27 186:26 189:19 203:12	limitations 56:22
	lasted 183:24		limited 25:2
	late 70:7	leg 11:2	Lin 171:3
	laugh 59:16,18	legal 23:10 29:3,5 73:7 81:5 90:5 92:21, 23,24 93:5,9,13,21,23, 24,26,28 94:1,6 112:1 124:14 147:17	lines 75:1 90:27 112:9
	law 6:24 8:15 10:28 11:1 28:1,2,3 31:16,20 33:27 34:12,15 49:2 57:16 66:2 102:8 103:9 104:4,20 105:1,5,6 135:16 161:10 162:1 165:27 209:18 210:16, 19	legally 79:8 95:10 135:4	lips 42:9
	laws 59:26 66:4	legitimate 148:1	list 48:24 213:9,12,26
	lawsuit 30:2 139:6	legs 179:3	listed 76:14 113:1
	lawyer 26:20 104:27 167:15 169:16	lengthy 214:13	listen 25:14 26:1 29:9 32:5 83:5 108:12 120:13,22 129:21 169:6,11 214:22
	lawyers 25:18 28:5 96:9 111:18 210:17	lethargic 22:11	listening 42:8 164:8
L	lay 153:17 169:4 197:9	letter 31:1 57:25	literally 47:24 84:15 186:15,22 195:2 199:15 203:10
	laying 90:26 123:22 126:19 127:28 131:10 175:9 176:23,24 177:17 181:2 188:15,20	level 49:1	litigant 60:14
	layout 117:21	liability 5:15,19,20 15:27 16:2,3,5,9,15,18, 19,24,25 17:14,28 18:1 28:8 51:19 216:8,11 217:4,21	live 170:27
	lead 187:5	liability/causation 15:23	living 24:22 171:1
	leaders 24:23	liable 5:23 48:1 49:17 207:27 217:16	lobby 201:1,5,7
	leading 138:3 190:13 198:28	license 189:24	local 164:7
	leaning 175:9	lie 56:12 70:28 71:4 202:18	locate 63:14
	learn 59:19 83:21,22	lies 56:9,21 70:26 86:11	located 123:1 150:19 171:3
	learned 55:16 111:17	life 43:6 54:7 57:2 60:2 180:27 197:23,25 199:21 200:2	location 171:7,11 183:4
	learning 39:23	life-threatening 11:11,16	locked 119:13 125:13,14 126:1
	leased 171:8	light 19:2 48:15 116:6 118:21 119:16	lodge 167:14
	leave 45:10 105:17 204:9 209:9	Lime 30:6 150:12,22 151:5	logic 91:5
	leaves 135:22	limine 6:21 19:3 206:9 216:3	logical 61:21 106:4
	leaving 186:6		logically 51:3
	lectern 41:13 42:5		London 59:28
	led 7:23 126:12		long 24:25 42:21 56:5 61:9 106:28 149:25 179:14,27 180:2 183:23 190:16 196:7 198:10 210:5
	left 43:14 46:26 51:15		long-term 11:22
			longer 210:22
			looked 102:20 152:7

174:4 181:7 188:13,23
199:7,12

loop 94:15

loses 45:5

lost 121:18

lot 10:28 43:15 44:7
61:3 66:8 86:14 119:9,
15 177:12 196:10
211:16 214:13

lots 44:3 185:1

loud 169:18

lower 119:23 132:25

lunch 21:22 109:2

lung 10:5,17 11:27
12:3 53:19 183:15

lying 54:17 190:4

M

made 14:11,16 19:16
20:14 60:15 68:2,16
72:25 79:14,22 80:7,8
82:9 83:27,28 84:3,6
85:21 96:11,14,16,19
97:1,10,11,27 101:17
103:28 106:26 140:4
154:24 158:28 159:7,10
161:13,16 162:7 163:27
165:4 177:6,28 188:11
190:15,20 191:8 194:12
195:22 205:28 211:3,4,
12

maidens 58:28

main 144:14

make 9:1,23 12:18
16:6,23 18:5,27 20:20
21:7,12 27:18 30:9
31:17 35:13 36:18 37:3
38:4,16 39:28 41:4
42:22 46:5,6 47:4,6
48:14,21,26 49:3 50:27
53:13 56:23 58:11 59:9,
14 65:3 68:24 72:17
75:12 79:4,6 80:14
81:28 82:4 86:25 93:21,
24 97:24 101:13 103:17
106:4 134:2 135:17
142:1 147:4 148:19

151:21 154:22 155:25
162:28 164:12 166:7
168:5 169:21 170:8
174:9 178:18 180:19
183:8,16,20 190:12
195:5 200:7 202:14
205:15,16,25 207:24
208:1 210:25 217:11,19

makes 5:25 14:20
42:10 54:23 59:16
79:10

making 21:11 32:14
55:4,7 59:14 71:10
75:25 85:20 93:13,14,
27 148:13 173:19
176:18 211:7 215:20

male 120:28

man 55:21 59:5
176:21 177:8,17 183:18

manage 174:9

Management
161:11

manifest 7:17

manner 51:6 61:21
108:24

manslaughter
91:24

manual 23:21

mapping 26:23

maps 26:22 115:20
116:22 117:1

March 64:8

mark 110:23

marked 110:21
172:26

Market 195:27

markings 117:21
118:6 140:20

mask 181:6

massive 43:9

match 115:25

material 18:12 66:20
162:23 207:16

materials 26:18

117:17 214:2

mathematics 52:11

matter 8:22 13:2 15:3,
22 17:4 18:2 20:7,21
21:19 22:3 23:1 42:26
49:21 52:26 63:12
64:24 73:18 85:27 96:7,
12 105:13 147:1 157:27
161:22,23 164:1 168:1
214:7 216:12 218:14,22

matters 6:23 9:14
21:17 39:8 54:2 108:17
149:13 216:25 217:1

meaning 43:17

meanings 29:3,5,6,
12

means 10:5 22:18
27:6 45:15 46:4 58:25
96:13 99:11 133:9,20
134:19 160:19

meatballs 111:20

mechanism 57:18
79:1

media 25:6 177:2

medical 6:13,17 7:4,
24 8:16 10:21 11:2,10
46:28 132:9 197:2,3
198:26 199:28 200:12

members 42:18 96:8
111:13 164:4 204:6

memory 111:16,22
148:16 184:18

mention 18:23

mentioned 19:14
21:17 28:19 41:28
113:13 141:8 146:5,6,8
191:26 192:1

message 53:18,21
55:18 120:27 121:18
122:5 162:12 183:8

messages 165:7

messaging 25:8

messed 51:27

method 82:16

methodology
82:23

Mexico 60:1

microphone 63:27

midday 105:25

middle 106:5 198:8
212:25

miles 151:16,28
152:21

mince 82:6

mincing 82:11

mind 27:9 30:17
65:18,21 106:7 115:11
184:6 194:6 195:2,11

minds 20:9

mine 73:22 75:19

minute 55:28 167:9
182:7 185:9

minutes 13:12 14:8
18:10 23:18 60:9 63:8
106:17 144:3,9 179:16,
17,21 180:6 181:24,26
182:17 183:21 184:3
187:21 191:19 206:17
214:20

Miranda 68:15,16,20

mirror 142:2,6,7
152:8,10

misdirections
56:21

misinterpretation
s 57:4

misrepresentation
s 48:7

misspoke 20:19

mistakes 36:18

mode 108:24

model 174:10

moment 7:1 9:14
22:26 45:8 62:25
160:16 168:21 175:26
176:27 181:28 186:3
190:24 191:2 202:21
205:6 211:22

momentarily 49:25

money 50:13 51:25
59:14 61:14 62:1
180:11,12,14,17,18
181:3,8,27 189:27
190:1,2 216:16 218:14

Montegue/capulet
52:17

month 55:11

months 119:14 197:7

more-likely-than-not 60:28

morning 17:8 23:9,
11,13,15 42:17 172:6
200:11

mother 51:4 57:23

motion 5:10 6:21
15:24 16:12 17:1,12
19:3 35:13,15 108:28
209:25

motions 206:9 216:3

motivate 56:4

motivated 50:12

motivation 50:8,11
59:10

motorized 75:6
196:2,3

mountain 172:3

mounted 126:22
127:8

move 5:24 6:5,11 8:4
9:8 65:16 94:17 109:4
173:21 175:23 176:7
185:17 197:24

moved 176:3 184:15
192:11,12,13

moving 15:1 96:23
186:24

MRI 8:11 9:16 12:25
200:13

MRIS 7:8 13:4

multi-million-dollar 50:14 59:8

multiple 14:12,15,16
43:21 78:25,26 79:22

80:9 82:25 84:16
131:19 140:2 183:27
184:3

murdered 53:20

N

narrating 192:19

narrative 74:15,16
102:6 103:22 107:6
112:8 169:2,13 171:13
178:24 192:16 195:7
204:23 205:4,5,12
206:5 207:25

**narrative/
supplemental**
158:2

narratives 78:10,11
106:5 171:18

narrow 57:4

national 38:21

naturally 107:15

nature 23:24 105:3

Navaratnasingha

m 5:9,14 15:16 18:20
19:11 20:8,28 21:15,19
23:11,12 47:2 61:11
62:19 64:11 67:3 68:9
71:13 72:18 73:6 75:27
76:19 77:19 79:12
80:17,28 82:1,10 84:21
85:2 87:1 90:4 91:6,14
92:20,28 94:3 95:24
97:5 102:3,6 103:22
104:10,25 113:25
114:22 115:14 116:19,
27 117:24 118:12
120:11 121:23 124:10,
18,27 128:3 131:7,27
132:5,10 133:15,23
134:11,13,24 135:5,18,
23,27 136:4,20 137:27
138:24 139:4 142:8
143:1 144:1,17,25
145:3 147:5,19,24
149:21 151:23,26
153:13,18 154:15
155:14 157:5 159:25
160:10 163:4 164:18,19
167:13 169:8 171:13,22

178:14 180:13 182:21
186:27 187:16 190:6,
13,17 191:23 192:15
193:26 195:7 196:14
197:12 198:28 199:8,17
200:17 201:2,9,17,26
202:5,9 208:5,15
210:26 213:13 214:11,
24,27 218:26

necessarily 46:19
67:20 68:5

needed 34:25 53:15
55:14 181:4 183:8,20
201:25

negligent 44:13,15

Ness 171:4

Netscape 43:9

networking 25:9

news 26:2,3

nodding 175:17

non-retained 51:26

nonexistence
161:20

nonresponsive
187:24

noon 105:21 109:7

normal 153:21
197:25

north 23:25

northbound 151:6
195:27,28 196:8

notation 164:13

note 157:10

notebooks 31:24,26
33:8,18 62:25 63:19
105:17 204:9

noted 150:11 151:3
154:25

notes 31:23,25,28
32:2,9,12,13,20 33:20
81:13 112:4

notetaking 32:4

noticed 186:5

notification 159:7

November 157:3,13

number 6:2 18:23
31:1 44:18 48:3 53:11
66:1 67:12 72:10 81:5
110:27 112:9 120:27
124:26 125:4 138:22
140:3 157:25 187:1

numbers 8:20

numerous 207:6

O

oath 43:22 68:13,14,
15 110:9 169:28 185:26

object 10:1 21:4
31:10 34:27 64:11 67:3
77:19 82:1 113:26
124:18 128:2 137:27
159:25 167:14 208:25

objecting 14:1 117:2
139:28

objection 9:4,5,6,27
12:26 13:8,17 14:21,22,
23 17:1 19:17 21:13
35:1,3,5,6,10 47:2
61:11 68:9 71:13 72:18
73:6 75:27 76:19 79:12
80:17,28 82:10,11,13
84:21 85:2 87:1 90:4
91:6,14 92:20,28 93:2
94:3 95:24 97:5 102:3
104:10,25 109:1 116:25
121:23 124:10,27 128:3
131:7,8,27 132:5,10
134:11 135:5,18,27
136:20 138:25 142:8
143:1 144:1 145:3
147:5,19,24 151:19
153:11 154:11 160:10
167:14 170:2,4 171:13,
22 178:14 180:13
190:6,13,17 191:23
192:15 193:26 195:7,8,
15 196:14 197:12,15
198:28 199:8,17 200:17
201:2,9,17,26 202:5,9
205:18 208:13

objections 8:28
13:26 14:19 15:17
106:11 108:23 164:27

205:16	office 173:24	omitting 46:2	111:26 155:9 160:27
objective 47:11	officer 8:17 18:12,13	on-line 25:10	162:23,28 168:5 170:9
objects 30:27	49:23 50:2 63:14,20,22	oncoming 155:9	172:14 185:22
obligated 45:8,18	64:7,22 65:3,11,17,19,	one-direction	ordered 120:17
90:2 118:6,8 133:27	25 66:7 67:17,18,23,28	137:13	orderly 83:9 166:13
134:23,27 155:20,23	68:3,23 70:8,16 71:4	one-directional	167:24
obligation 45:3	72:13,15,16 73:1,13,21	137:15,21	ordinance 129:2
obligations 105:6	74:7,9,27 76:7,11,16,21	one-way 138:27	ordinary 29:12
observant 90:22	78:8,22 79:18 80:11	open 22:4 27:9	Orengo 67:18,21,23,
observation 133:2	81:24 83:2,7 86:24	opened 153:14	28 68:3 73:1,13,21
observations	87:20,25,27 88:14,20	opening 18:5,6,9,17	74:25 97:14 101:10
93:14 95:11,13	90:15,19 93:3,8,14	30:9,11,15 33:10,12,16,	organically 57:24
observe 37:12 90:13,	96:3,5 97:2,20 102:11	19 34:11 41:4,5,18,28	organization 48:13
16,19 93:18 94:14	103:13,14,16 104:18,21	42:1,13,16 49:27 58:27	57:22
102:7,9 108:21 146:16	105:19,27 106:15	62:20 63:3	organized 166:14
205:24	107:12,13 110:7 111:25	opens 51:20	orientation 38:24
observed 96:28	113:6,8,10,11 115:23	operate 74:14,17	origin 38:22 106:24
102:11 151:8,10	120:2 121:7,27 123:5,	124:14 125:20 127:12,	original 157:25,26
obvious 7:15 10:10,	15,18 125:8 126:10	17 128:6	158:28
23,25	129:10,16 131:26 132:4	operated 47:28	Orvil 43:10
obviousness 47:17	139:14,16 140:15	127:14,15	ostensibly 114:3
occasion 14:8 41:28	144:12 145:9,14 146:5,	operating 126:14	out-of-court 13:1
occasional 46:28	8 148:18,20,23 149:22,	128:13,25,28 129:11,13	96:6
occasions 14:15	25 150:12,15,21 151:1,	130:2 150:12,23,25	outburst 206:12
205:21 207:6	26 153:1 155:21	171:10	outcome 42:26
occurred 84:26 86:7	156:16,17 158:4,28	operation 93:11	outline 13:14 30:12
157:11 210:4	160:16,18 161:9 165:5,	operational 125:23	outright 43:25
offense 98:15	8 184:17,19 193:10,18	operations 81:23	overdosed 177:15
offensive 184:27	195:18 199:13 216:13	opinion 6:26 7:3	overrule 35:3
offer 8:10,21 13:24	217:25	26:15 27:12,27 38:19	overruled 35:2 47:3
64:6 92:7 113:28	officer's 71:7 97:23	39:18 41:20 97:24 98:1	85:4 91:16 104:12
165:13 179:23 216:22,	114:3	132:11 153:17 195:20	118:13 125:2 128:5
26 217:28 218:2	officers 68:22 69:2	opinions 105:15	132:14 154:14 178:22
offered 13:2 31:19	70:14,19 72:16 73:27	160:23 185:18 204:7	180:16 199:11 201:12
34:28 96:6,12 114:1,2	75:12 78:25,26 79:19	206:22	overruling 14:22
158:14 161:17 180:17,	80:2,9 82:16 84:7,19,	opportunity 9:7	overview 24:4 29:22
18 189:28 200:27,28	20,24,28 85:8 94:27	13:19 30:21 33:20	30:16
216:16 218:13,16	95:1,8,13,27 96:26,27	40:15 41:3 47:8 52:19	owned 50:14 52:15
offering 13:22	98:4,10,13 102:10,19,	83:2,8 88:23 205:15	owns 178:5,6
165:10 180:11 181:3,8,	25,27 104:14 108:1	opposing 206:1	
11,12,26 184:24	119:2 126:14 131:15	opposite 73:10	
189:27,28 190:2	141:22 145:1 148:13,15	134:4 153:21 175:13	
offers 14:16 218:5	156:10 192:4 194:26	order 5:4 22:13 30:15	
	217:18	41:25 70:14 78:13	
	officers' 148:11	100:17 104:3 110:3	
	official 193:14 215:4,		
	23		
	officials 194:4		
	oftentimes 46:4		
	57:5,19		
	omit 147:17		

P			
	70:17 91:2 96:10 101:6, 14 110:6 161:1 185:28 204:18 216:4	peers 56:6	90:25 95:23 98:27 99:9, 15 100:9,12 119:21
p.m. 218:28	parties' 34:17	penal 66:5	122:7,19 123:21,22,25
P2 150:18	partner 43:12 178:7	pendency 160:20	124:1,7,15 128:12,13, 27 129:27 130:3,4,14, 25,27 131:9,11 132:16
pages 111:2 114:11	parts 43:16 64:25 215:6,25	pending 187:12 193:27 202:11,16,28 203:25	134:8 135:22 136:25 138:4 143:17,22,26 144:22 145:11,24
pain 22:2 45:24 119:22,25 132:24 174:2 179:11 183:5,22,25,28 184:8,9 186:17 189:25 191:15 194:8 197:7,8,9, 18,23 200:5,10 203:17	party 13:28 30:12 35:13 39:1 40:26 41:6, 11 44:13 67:26 69:7 71:5 73:13,21 74:24 75:14 98:24 99:1,3,4,6, 10,24 119:21 123:18 146:21 154:3 161:5,15, 18 165:6,9,13 169:16 170:6 211:3 214:7	people 6:8 7:11,16 10:26 11:1 12:2,5 24:21 25:15 36:17,19 37:21, 23 38:13,15 45:21,24, 26 48:5,16,18,23,25 50:12,19 51:28 52:23 53:4,22 54:15,17 56:7, 12 57:2,22 60:6 67:1,28 70:20,24,25,26,28 72:11,17 77:16,17 79:8 86:17 87:15 92:17 118:23 121:9 124:4 133:20 134:16,28 136:2 140:25 141:17 142:27 143:7 145:5 146:24,27, 28 147:1,10 157:21 177:7,12 180:3 184:23 186:10 189:7 192:6,12, 13 196:19 199:25 201:6 206:25	146:12,25 147:11 149:5 153:1 154:5 155:12 174:20,21,22,24,26 175:5,6,7,8 177:2,14 179:25 193:14 208:27 209:19
pains 9:12	party's 39:15 40:27 101:15	percent 45:16 46:9 49:5 76:21 99:16,17 178:17	person's 54:7 85:28 184:22
paint 140:8	pass 26:26 62:25 163:21	perceptions 37:21	personal 12:11 36:8, 10 57:20 126:24 161:7, 22 162:12 206:22
painted 137:10	passer-byer 209:3	perfect 95:19	personally 57:20 62:12 66:17 70:10 119:3 126:16,22 141:14
Palestine 59:27	passerby 176:17	perfectly 143:18 214:3	personnel 154:28
pandemic 119:12,15	past 185:14,16	performing 78:2 98:2	persons 24:22
panel 37:11,14	Patel 171:10,12 178:3, 5	peril 180:27	phase 5:12 18:1 19:22,25 28:7,11,14 31:21 41:2
paper 164:10,15	patience 204:9	period 218:2	phases 17:18,26 28:6,17 29:26
paralegal 89:19	pause 11:18 106:8 134:2,28	permit 88:26 167:25	phone 25:6 53:12 173:19 176:4,9 180:2 187:22 188:8,9,10,26 192:9
paramedics 199:6	pay 27:7 37:13 50:16 58:20 134:10,16 216:16	permitted 30:25 31:11 89:14	phonetic 175:9 176:13
parameters 16:21	paying 44:2	person 7:15,19 10:18,19 11:12,17 14:5 25:21,23 35:18 37:23 43:27,28 44:3 45:2,5,7, 10 52:9 53:27 54:3 60:4 69:21 71:4,18 79:10 81:16 82:17 86:1 88:5	photo 115:23 140:10 181:20 189:1,3,5,9,23
pared 214:17,21	PD 193:4		photograph 115:8 138:14 139:8,13 140:4, 10,11
parked 188:15,19 189:10	PDA 25:7		photographs 116:21 117:9,10,13 140:7 200:26
Parnassus 203:7,8, 12	pedestrian 8:4 90:14 91:12 113:16 114:15 121:1,12,15,17, 21 128:19,24 129:7 131:1 134:22 135:3,11, 14,26 137:16 138:28 139:2,20		photos 8:13,18 69:1 113:15 115:28 116:15, 16 189:3,7
part 7:8 12:19 21:11, 12 28:18,22,23 35:23 37:1 43:20 44:5,21 47:17 48:8 56:19 57:17, 26 58:12 63:2 64:27 65:1,15 77:3 78:9 107:23 112:13 121:15 127:12 157:9,17,20,25 164:7 173:13 190:9 213:28	pedestrians 90:2,9 114:13,19 117:20,23 118:2,6,8,11,15,18,21 133:27 137:18,19 142:12,21,25,28 155:26		
participate 28:7			
parties 15:5,20 17:25 24:12 25:17 28:4 29:27 31:17,18 33:9,11,25 34:8,10,12,14 36:9 38:21 39:4,27 40:1,12, 22,24 41:3,27 42:1,7 68:27 69:10,18,21			

phrases 29:4,7,10	214:12	precious 55:10	presents 31:9
physical 44:3 45:6 60:8 73:26 172:1	pointed 174:6	prediction 41:6	pressure 54:6 60:22
physically 60:7 173:10,15	pointing 138:22 140:12,13,16	prefer 30:15 204:22	presume 177:14
physicians 52:4 197:3	points 18:21 131:19	preference 22:28	pretrial 64:20
physics 52:11 53:26	police 8:13,15 50:6 58:5 65:25,27 67:10 69:1,6 70:18,24,25 72:28 75:17 76:10,15 80:20,22 81:4 84:7 87:4,5,7,11,27 88:12, 15,18,19,22,25 89:5 90:24 92:12 93:14 95:27 96:5 97:16,23 98:4 100:2 102:16 104:14 107:28 110:17 113:22 120:17 125:1 131:4 147:18 149:9,25 152:24 154:20 157:7, 17,25 161:13 165:16,18 184:17,19 191:19 192:4,6 193:1,17 194:10,15,16,26 198:6 215:12,13 216:13 217:10,18	pregnant 55:11	pretty 23:26 56:8 70:7 86:2 121:2
pick 143:24,27 198:6, 18		prejudice 27:26 36:8 38:18	prevent 92:17
picked 74:3 90:8 192:9 198:4,7		prejudiced 210:11	preventing 6:20
picking 192:8		prejudicial 209:10	prima 71:24
picture 108:18 114:15 137:28 139:5 140:8 190:4		preliminary 24:6 171:23	printed 116:3
pictures 117:2		premature 19:22 20:3	prior 5:11 152:1,17 172:13 181:22 195:15
piece 6:7 13:28 27:11 56:27 58:15,16		premise 59:21	priority 212:20
piecemeal 166:4,11		prepare 41:10 163:25 204:28 214:24	private 22:3
pieces 50:24 74:17 90:20 166:5 192:20		prepared 5:19 8:19 15:23 17:2 18:16 57:25 158:13 162:25 163:24, 26 164:6 168:1 170:15 208:18	Priya 23:12
place 11:13 22:9 26:24 37:18 107:16 117:22 206:24	policy 154:2	preponderance 49:4 57:27	Pro 46:18
plain 96:13,21	polite 205:24	presence 31:14 33:25 39:8 164:25 206:15	probability 46:11
Plaintiff 16:7,13 23:7 30:2 34:22 211:23	poor 45:22	present 5:7 7:2 8:27 10:15 11:20 27:23 30:19,21 39:6 41:27 45:13 46:7 48:2 49:8 55:19 61:20 88:19 91:26 92:1 104:15 107:2 110:5,6 138:12 161:1,2 163:8 165:15 185:28 204:18 207:15 212:26 213:11	probative 209:11
Plaintiff's 34:20	portion 47:18,20 51:16 76:17 111:7	presentation 18:28 19:8 20:10 30:17 208:13 215:28	problem 56:13 107:9 213:6 215:5
plan 7:2	portions 108:7 172:22 214:18		procedural 82:16
plate 189:24	position 59:15 61:6 91:21		procedure 147:16
plateaued 200:7	possession 210:22		procedures 114:5
play 162:5	possibility 71:1		proceed 23:20 24:1 28:10 29:25 38:4 65:11 108:13 112:2 155:27 162:3 167:8 168:2 169:1,13 195:17 218:24
played 211:28 212:7	possibly 53:20 90:10 130:16		proceedings 5:2 47:5 89:14,22 168:5
playing 212:6	postulated 106:25		process 5:18 22:17 40:17,21 77:11 78:12 91:1 106:6 204:25
plays 212:2	potential 21:5		processed 121:28
pneumothorax 10:4,9 11:26	potentially 69:4 100:25	presented 8:20 24:15 27:10 31:15 33:18 38:26 40:4,14 101:27 116:23 158:24 161:28 166:13 207:5 210:20 216:3	produce 12:17
point 56:11 63:1 76:18 106:12 108:22 113:19 144:5,6,14 145:7 149:23 177:23 200:16 207:21,22	poverty 40:26,27	presenting 46:24 163:15	produced 116:21
	practice 57:15 165:27		professional 43:5
			professor 111:19
			profound 60:19
			program 26:23

programs 26:23
progress 170:16
Prohibited 39:21
prohibition 25:2
26:5
prohibitions 27:3,4
promptly 26:10
pronto 89:9
proof 8:11,22 13:24
14:16 34:25 64:15
148:2
proper 27:1 63:17
104:26 106:10 204:28
214:4
properly 45:19 57:16
propose 164:2
prosecuting 89:18
prosecutor 53:7
58:9
protect 48:16
protected 134:20
protocol 52:2 68:23
prove 5:28 13:2 14:5
19:19 37:7 43:27 44:5
96:6,12 117:16
proven 131:2
provide 61:23 68:26
88:24 124:6 130:6
132:19 161:25 166:4
180:3 205:9 209:24,25
213:3 214:4,9
provided 10:12
15:26 19:18 64:19 68:3
70:16 72:13 73:1 76:24
99:22 102:15 119:6
126:5,23,25 156:17,22
161:10 164:20 213:14
214:3
providing 46:28
57:2 110:17
PSA 8:15
public 27:27 38:18
40:17,21 54:15

published 156:21
pulled 175:24 211:19
pulling 176:7
punctured 10:17
punishment 27:8
purport 210:24
purports 212:14
purpose 32:28 39:9
purposes 110:24
215:28
pursuant 216:2
put 13:22 14:4 18:17
47:9 48:27 55:20 56:8
57:28 59:20 69:1 72:27
85:25,26,27 103:5
105:16 106:24 120:8
122:3 131:4 180:14
199:10 208:1 213:21
putting 21:2 60:16

Q

qualify 131:23
quantum 53:25
query 154:24
question 30:25
32:16 34:20 35:7 66:23
67:15 69:16 72:19,22,
23 74:13,18,20 75:15,
28 76:2 78:4 79:21
80:7,16,18 83:6,9 84:22
85:5,14,15 86:18 90:17
93:7 94:17 97:6,7 98:3,
8,9 101:16 102:5
103:23,25 104:27
107:8,11 111:4,5,10
112:11,19,24 117:27,28
121:10 123:24 130:23
131:5 132:8 135:24
136:7 137:7 138:1
139:6,24,25 140:22
142:15 143:3,25 145:12
147:3,7 149:2 156:5
158:25 159:17 160:13
165:25 166:21 167:21,
22 169:7,9,12,17 170:1,
7 173:13,22 178:22,23

180:23,25 182:27 185:4
186:1 187:4,8,12,13,25,
26 190:9 192:24,26
193:27 195:10,14
197:16 198:21 202:11,
15,24,28 203:25 205:3,
27 208:12 210:14
213:10
questioned 30:22
40:7
questioning 167:15
questionnaire
204:1
questions 32:27
34:17 64:23 72:11
74:12 76:27,28 78:8,13
83:3 88:21,22 89:24
103:1 106:1,4,10,12,13
107:10,27 108:5 109:3
115:4,11 137:1 148:1
150:5 155:15 160:15
162:4,17,19,22,26
163:2 165:28 166:20,26
167:26 170:10,12,15
171:15,24 184:23,27
187:3 192:7 193:7,18
194:1 200:24 204:22
205:7,9,11

quick 150:4 195:9
quickly 21:20 109:4
quiet 106:7,9
quote 75:23

R

R-O-S-A-R-I-O
168:17
race 38:21
radio 122:3
raise 15:17 18:21
19:4,5 32:24,26 108:23
166:18 168:7
Ramp 178:5
ran 11:2 191:21
reach 24:14 28:1
38:28 49:1 58:10

reaching 40:25
reaction 61:1
read 26:1 28:26 32:17
33:2 40:9 68:15,19
72:24,26,27 99:21
197:2
reading 26:6 159:26
readjust 22:16
reads 111:9
ready 41:8 167:8
168:2 182:6 212:5
real 57:21
reality 10:12
realized 50:6 174:17
181:14 183:12 185:1
187:22
rear 133:14,21
rearview 152:8
reason 22:21 33:9
36:6 37:16 48:24 51:21
60:24 68:5 80:13
123:23,24 124:7,16
145:27 213:23
reasonable 144:8
reasons 27:18 39:25
81:5 112:1 132:9
210:12
recall 69:26 70:1,2
73:15,16 74:4 76:11
88:8 95:15,17,19 96:2
100:1 107:14 113:17
116:3,5 117:14 119:10,
11,17 123:3,7 125:12,
24 132:21 154:20
157:28 160:19 175:20,
21 176:17,18 188:2
193:10 194:5 195:3
recalls 95:27
receive 25:10 26:8
40:12 99:1 118:26,28
119:3 122:5 131:3
159:6
received 5:10 23:21
67:23 75:18 95:4
101:22 113:27 120:21
121:28 151:27 154:21
157:9 161:8,27 209:15,

17 210:20	72:16 78:18 157:8	relation 12:20	187:20 188:4 189:26
receives 122:2	161:6,8,26 209:27	relationship 36:9	193:8,16,23,24,25
receiving 81:6	210:3,21 213:25 215:23	relax 22:8	194:3,9 195:12 203:19
recess 11:14 39:7	recovered 213:24	relaxing 191:18	204:7
41:23 105:22 109:7	redacted 215:27	relayed 76:9,11	remind 32:2
160:25 185:21 204:4	redirect 155:16,18	95:14 97:16	reminder 22:27
218:27	159:22	release 176:18	render 16:14 179:20
recesses 22:15	reduced 164:10	released 25:26	181:22
recognize 132:8	refer 37:27 88:25	199:19	repeat 33:1,6 75:15
158:11	111:26 112:12 218:5	relevance 79:12	93:7 101:16 112:24
recognizes 138:13	reference 19:13	82:2 87:2 94:3 95:25	129:24 143:25 158:25
recollection 32:10	26:17 81:8 152:27	105:13 142:9 144:1	197:4 200:22 207:9,20
88:17 95:22 110:25	216:1 217:26	147:19,24 171:22	repeated 14:15
111:15,20 114:3 123:8	references 214:16	209:2,6	207:6
180:15	referencing 81:9	relevant 39:10 40:27	repeatedly 190:11
reconstruction	referral 200:12	44:8 77:26 82:3 105:8,	218:13
91:5	referred 30:27 139:5	10 124:11 199:2 207:1	repetitive 106:13
record 5:5 11:2,20	referring 124:28	211:13 214:18	rephrase 71:15
12:24 32:14,18 33:20	134:5 148:8 163:6	reliability 209:7	151:23 170:6 172:15
41:26 42:10 45:4 53:15	reflect 5:6 41:27	211:12	report 8:13 25:24
63:27 66:26 71:9,16,25	110:5,19 175:4 185:27	relief 22:2	26:10 45:18 65:4 67:10,
75:4 80:19 81:13 86:26	refrain 21:26	religion 38:23	16 68:26 69:1,6 70:11,
87:21 105:24 110:4,5,	refresh 111:15,20	rely 97:23 98:3 164:2	14,18 71:21 72:28
19 112:25 113:15	114:3 123:8 148:16	relying 13:3	73:24 75:2,17 76:10,15,
116:20 145:27 146:2	refreshed 88:18	remain 41:24 49:27	21 78:27 80:12,14,20,
148:2 150:5 151:2	refreshing 110:24	89:21 110:2 160:26	22 81:28 82:9,16,24
157:6,10 161:11 168:12	refuse 124:5	168:7 184:11 185:22	83:15,20,21,23,27 84:4,
169:22,24 175:3 183:21	refused 52:18,21	remark 197:15	9,19 85:22 86:1,2,6,9,
185:25,27 195:20	155:3	remarks 20:14 33:11,	14,15 87:4,6,8,11
203:21 204:16 209:26	refusing 184:3	17 41:12,18 42:1,14	88:15,18,19,22,23,25
215:17,18	regained 173:11,15	95:27 97:24 165:14	89:5,9 90:24 97:16
recorded 11:10,21	regard 12:20 81:9	191:25 195:16 202:11,	98:12,14 100:2 102:16
67:11 71:12 72:5,8	105:26 160:3 216:22	15 206:1 216:4	103:14 110:17,20,27,28
73:17 74:5 81:17,18	regret 20:18	remember 32:13	111:7,26,28 112:8,13
82:19 84:13 114:7	regular 22:9,13 65:24	36:2,18,20 38:10 41:19	113:2,22 119:20,24
131:20,24 149:1,7	66:8 81:22 93:10 99:22	46:8 49:4 54:26 67:16,	121:16,20 122:22
165:16 177:2	regularly 198:12	25 74:27 76:13 80:21	124:25,28 125:1
recording 53:21	reiteration 164:9	86:6 88:15 89:1 97:3	129:12,25 131:4,12
55:22 74:5,6 120:14	reject 38:2	100:3 102:17 104:22	132:22 133:7 145:21
130:4 162:6,9 163:6,11,	related 35:19	105:15 111:18 112:16	146:6 147:18 148:17,
14 164:4,8,24 165:20	relating 77:26	113:3,4,11 119:28	19,22,24 149:9 150:4,6
191:4 208:10,14,28		120:3 125:16,17,19	154:12,20,22,27 155:28
209:12 210:3,19 211:28		137:9 146:10 160:22	156:8,13,19,21,23,25
212:2,13,19		168:24 170:23,25	157:18,20,25 158:6
recordings 163:16		172:23 173:8,19 176:12	159:1,14,15 210:4
213:23 215:26		179:10 183:25 184:16,	reported 49:17 80:2
records 7:1,4,7,9		19,20 185:18 186:17	83:11,17 97:15 98:10
8:15,16 10:4,12 11:3			103:17 119:20,27
15:17 32:17 47:20 58:5			151:15 211:22

Reporter 32:14 33:2 42:2,4,6 169:22 170:11 205:19	response 65:16 107:12 121:6 153:12 159:21 196:26 211:8	60:2 68:15,16,20	4,11,15,19,21,27 145:13 147:9,22,26 148:4 150:12,22 151:4, 5,15,19,27 152:17,24, 28 153:5,8,11,14,20,26 154:7,11,21,27 155:6, 19 156:7 157:13,17 158:9,10,21,23 159:21, 23,28 160:1,16 161:3,4, 25 162:5,25 163:17,24 165:1,3,11,15,22 166:3 167:3 168:1,6,9,14,17, 24 171:27 172:5 180:26 182:6 185:26 186:3 187:14 190:8 191:26 194:3 196:25 202:1,10 204:3,13,20,24 206:14 207:2,11,17 209:13,14 210:7 212:6,28 213:18, 21 214:9 215:1,2,19 216:7,10 217:7 218:3,9, 15,20
Reporter's 32:17,18	responses 169:25 171:17	rings 58:18	Roseman 175:8,16, 22 176:28 177:2,19 179:19
reporting 88:8	responsibility 71:8	risk 60:16,17	roughly 23:22 41:12
reports 26:2,3 65:27 70:13,24,27 71:8 81:4,6 82:7 88:12 92:12,14 148:13 197:2	responsible 72:14	road 100:5,6,19,21,28 117:22 128:8 135:9 136:1 138:2 143:4 153:21	route 206:6
represented 5:8	rest 37:2 48:18	roadway 127:13,24 128:2	Rowzzy 171:2
request 5:17 8:15 9:1 18:27 19:7 22:15 39:15, 17 42:6 65:16 181:22 209:26 213:11	restaurant 178:5,6	role 166:12	RP 120:28
requested 16:7 64:10 110:18 167:16 210:1,2	restroom 170:13	room 7:20 22:16 25:9 27:22 31:26,28	rub 86:11
requests 8:13 9:1 16:13	resubpoenaed 209:27	Rosario 5:6,7,27 7:7 9:22 10:3 12:10,28 13:9 14:10,25 15:6,11,26 16:17,23 17:5,10,15,19 18:11,18 19:4,17 21:23 22:1,7 23:2,6 30:1,5,19, 20 41:8,9,14 42:12,13, 17 46:28 47:4 50:2 51:11 52:8,17 54:16 57:5,15 60:9,11,25 61:13 62:27 63:5,8,13, 17 64:6,13,19,27 65:14, 18 66:28 67:10 68:12 71:16 72:20,23 73:9,12 74:11,23 76:1,3,20,27 77:1,21,28 78:5,15 79:14 80:19 81:2,16 82:4,15,22 83:1,4,10 84:12,24 85:5,15 87:3, 5,9,25,27 88:2 89:7,10, 26 90:7 91:9,15,20 92:23,24 93:2 94:5 96:1,23 97:9 98:7,9 99:23 102:4,7 103:3,26 104:2,13,19,28 105:10, 28 106:18,23 107:4,17, 21,26 108:10,26 109:2 110:10,14,16 111:12 112:3,7,20 113:24 114:6,9,23 115:3,12,16, 22 117:4,12,18,26 118:1,14 120:13 122:9, 17 123:11,12 124:12,21 125:1,3 128:10 131:9 132:2,7,12,15 133:18, 26 134:15,27 135:8,21, 25,28 136:7,10,24,28 137:8 138:3,19,26 139:10,14,19,25 140:1, 23 142:11 143:2 144:2,	rules 31:7,11 37:10 39:11 93:15 98:26 164:7 166:8 206:8 214:7
require 10:6 11:11,23 19:28 93:5,6 164:7 168:4 211:2	result 57:19		ruled 9:8 207:12 216:21
required 12:14 14:2, 4 25:28 30:10 51:25 64:12 124:2 134:2 135:1 141:26 155:25	results 9:16		rulings 13:15 27:18 57:14 205:16 206:9 218:6,18
requires 7:2 9:17 10:20 11:18 20:1 49:3 105:5 211:3	resume 110:7,11		run 154:11 171:9 209:8
research 26:16 27:4, 5 39:20,24,26	RESUMED 110:13 112:6		running 167:20
reserve 62:20	retained 213:4		
resist 38:28	retrieved 213:24		
resolve 166:26 218:14	return 105:18 204:6		
resolved 103:6	reveal 37:25		
respect 6:18 13:15 15:4 28:14 48:11 57:10 58:23 59:22 108:23 166:21	review 17:3 88:23 89:5 92:13 111:8 145:14 148:6,15 159:9 165:3 213:11		
respond 9:7 65:26 83:9 122:6 150:1	reviewed 7:5		
responders 184:12 191:27	reward 54:17		
responding 113:3	Reyna 5:9 23:13,14 169:8		
	rib 10:20 119:22 132:25		
	ribs 10:9,17 11:26 196:12		
	riding 30:6 100:5,18, 20,28 127:19 128:28 129:2,28 130:10,19,26, 27 131:1,11,18,22 132:3 134:8 140:26 151:5,7 172:4 195:23 215:20		
	right-hand 133:8 134:4		
	rights 40:22 54:28		

rushed 78:5	130:3,11,20,26,27	serve 27:7	showed 178:9 198:6
rushing 78:7	131:1,10,18,23 132:3	served 54:9,10 64:14	showing 7:26 19:25
S	134:8 150:13,22 151:6	serves 184:18	49:16 116:20 122:6
	153:2 155:9,12 160:4	service 25:7,8 64:15	191:27
	172:25,27 173:2 174:15	65:27	shown 7:6 40:5
	188:25 195:23,24	services 53:12	shows 48:4 71:19
sabotage 59:7	196:1,3 209:4 215:20	157:19 161:14 162:8	76:16 86:9,21 112:25
sacrifice 50:20	scooters 127:10,12,	191:11 213:5	114:18 115:24
safe 136:9 142:1	21 128:21 142:26	serving 24:9	sic 137:25
155:26	159:23	session 22:20 34:7	side 30:9,10,23,25
safely 155:24	scope 157:26 159:19	110:1,3 160:27 161:1	31:9 34:27,28 37:4 40:6
Samsung 43:10	160:14 167:16	185:23	54:22 62:13 100:4,5,18,
San 5:1 42:17 43:15	scream 180:6	set 45:4 114:6,27	21,23,28 108:16
45:27 48:5 53:22 55:7	screaming 152:15	167:10	119:22,23,26,27 120:1,
56:7 65:26 119:16	sealed 64:17	settle 216:16	9 122:23,26 132:24,26
127:22 132:18 141:21	search 26:24	settled 61:9 110:10	134:4 137:22 143:4
149:26 177:12 178:6	seated 5:3 21:23	settlement 216:24	152:10 153:21 165:13
198:20,22 199:4,5	41:24 63:25 110:2	settlements 216:23	175:13 177:9 199:12
200:3 213:4	160:26 168:11 185:22	218:5	205:13,14 206:21
sanctions 27:6	seats 105:17	seven-page 110:28	207:26 213:27
218:8	seconds 41:15	severe 174:2 184:8	sidetracked 108:17
sanctity 59:22	secret 40:20	186:17 191:20 194:8	sidewalk 52:28
Saudi 59:27	section 47:22 211:1	200:5	53:14 116:9 126:19
scales 56:28	sections 105:7	sexual 38:23	127:18,20,25 129:11
scan 9:16 12:25	seek 8:26 22:20	SFPD 8:13 157:18	155:24 173:9 175:13,15
scans 8:12 13:4	212:23	shake 169:20	176:6 177:9,12 180:5
scared 170:14	seeking 197:14	shalt 89:21	183:7 189:20 190:5
scene 8:17 26:21,26,	seeks 30:2 165:13	shape 193:18	194:25
28 66:17 67:2,26 68:19	169:16 212:6	share 55:26 113:19,	sidewalks 127:14,
70:6,8 74:3 76:8 77:4,	sees 7:19 11:25 52:9	21 207:3 214:28	15,22 129:2
16 79:20 80:3,9 84:8	selected 24:13 37:18	shock 191:20	sign 90:27 113:16,17,
86:23 94:23 97:25 98:1	selection 20:14	short 33:23 40:23	20 114:7,12 116:16
101:4,6 102:16 104:7	self-represented	41:23 160:25 170:19	117:19
107:17,28 108:1 113:7,	42:23 60:14	185:21 192:23 196:7	signs 113:13 116:12
8,11,12 123:2 131:13	send 25:10 189:1	206:7 207:25	117:21 118:21
132:19 150:16,19	sense 5:25 36:1 48:13	shorter 171:15,17	silence 22:27
154:28 155:4 165:8	56:1 58:11 59:9 82:4	shortly 49:23 197:20	silent 89:21
177:6 179:28 184:12,17	195:5	shot 7:17 10:22 11:1,5	silliness 167:23
186:6 192:12 194:17,20	separate 43:12	show 7:21,22 8:6	similar 38:13
198:4,18 199:6	169:14	11:3,8 12:7 16:27 21:9	simple 88:27 98:3
scientist 43:6 52:14	sequence 109:3	30:13 36:8 41:7 53:9	165:19
scientists 171:6	204:28	67:27 82:20 86:9 114:7	simply 17:2 25:23
scooter 30:6 75:7	seriousness 24:9	137:23 164:1 203:21	30:11 32:23,25 37:3
100:14 121:1 125:11,			47:19 89:19 98:5
14,20,22,25,28 126:3,9,			162:13 164:12 165:17,
13,18,22 127:2,20,28			20,27 202:21 204:22
128:16,28 129:3,13,28			205:22 207:28 208:11
			211:3,16 212:16

single 37:7 56:24,27 75:13,14 80:11 101:14 104:18 108:18 117:27 138:18	smart 25:6 46:1	special 5:11 10:6,7 11:4 16:14 92:7,10	stand 5:13 45:25 57:10 103:26 110:8 156:13 161:5 162:7,16 163:2 166:18 167:1,7, 11,20 168:7 204:15,23 205:13
sir 8:21 10:2 14:13,24, 25 15:5,10 16:12 17:1, 12 18:17 41:13 63:3,18, 21 65:10 70:26 76:5 78:10 80:1 81:15 83:5 87:16 89:4,13,24,26 95:28 96:22 97:22 100:13,22 101:1,5 103:27 104:5,9 105:3, 20 108:9 110:9 111:5 112:2,10 123:4,10 138:6,16 139:9,12 144:6 147:28 150:6,15 156:5 157:24 158:11 159:11 160:15 162:13 165:9,17,22 167:6 182:23,26 192:16 202:14,20 207:4 215:25 216:9,14 217:4 218:6	Sobati 5:8 23:9 49:25 50:1 89:12,13,16 114:25 115:1 162:26 163:1 165:28 166:19 167:8,9,14,25 168:19, 20,24 169:7 170:16,26 171:14,16,19,27 175:7 178:26 180:24,26 183:1 186:1,2 187:2,6,11,13, 14,27 190:8,15,20 191:26 192:24 193:2 194:2,3 195:9,18 197:17 198:15 199:28 200:21 201:28 202:24, 26 203:3,26 204:2,21, 26 205:3,6,17 206:2	specific 13:28 19:9 112:12,13	standard 7:9 23:21 49:2 80:16 93:14 123:13 147:16 217:4
sirens 184:16	social 25:9	speculate 180:22	standing 48:25 168:7 183:6 214:14
sister 176:10,13 178:1 189:2,23	society 44:24 45:3 46:26 54:19 59:21 60:6	speculation 120:11 133:16,24 134:25 142:9 145:4 148:3 153:11 182:22 186:28 187:2,17 190:18 196:15	standpoint 43:23
sisters 57:23	socioeconomic 38:24	speeches 76:2 89:25	Stanford 52:13
sit 46:12 47:13 55:28 59:18 61:19 62:14 65:18	software 180:19	speed 111:26 176:11	start 5:28 7:1 9:15 17:15 42:12 65:5 77:3 160:22 167:1,3 169:9
sitting 37:11,14 50:4 107:9 167:20 188:14,28 189:1 194:23	solely 38:25	spell 63:26 168:12,15	started 22:26 43:12 170:24 173:18 177:26 179:13 180:11 182:7,10 184:26 189:9 190:27 191:18 193:5,18 200:6 203:17
situation 16:26 45:14,19 50:5 52:17 53:24 54:26 66:13 68:8 69:24 75:1,5 81:28 119:7 130:16 145:28 147:13,14 158:26 213:19 217:10	someone's 111:15, 16,22	spend 13:11 212:24	starts 12:3 22:8,12
situations 66:1	sooner 218:23	spent 57:2 144:9 203:3	state 10:8 23:22 63:26 71:10,20 116:20 130:19,28 131:21 157:6 168:11 180:21 194:6
skateboard 100:15 129:5	sort 28:27 77:25 140:11 166:14	spine 22:8 173:17 179:3 186:18 196:12	stated 6:8,12 14:11 43:21 67:17 71:17 73:13 87:11 94:22,26 97:10,19 99:19,23,25 101:7,24 104:13 118:20,23 119:5 121:7 122:22 126:6,14 128:27 129:11,15,25 131:25 132:2,22 136:16 138:10,19,27,28 139:1, 26 151:5 152:14 156:4, 8,9,27 180:26 216:10
slipped 87:15	sorts 44:1 193:7	spiritual 24:23	statement 13:2 18:5, 6,28 30:10,11,16 33:6, 10 41:5 42:16 63:7 67:18,24 68:2,6,13,17 70:17 71:12,28 72:6,12, 15,25 73:2,14,17,18,20, 21 74:7 75:6,10,11,13, 20,21 76:5 78:18,21 79:10,14 80:8 82:18 83:22,27 84:3 96:11,14, 19 97:11,12 101:5,8,11, 15,20,21 102:13,15,20
slow 151:11 173:21 177:5	soul 59:2	split 43:16 82:6	
slowly 186:24	sounds 173:12 209:3	spoke 67:26 74:27 76:7,8,12 104:7,22,23 144:16	
small 22:15	source 26:9 103:19	spoken 50:10	
	south 23:25 59:28 138:17	spoliation 209:17	
	southbound 133:11 152:4	spot 103:5	
	space 135:4 171:2	squirming 199:14	
	speak 13:20 15:2 36:4 42:7 57:24 77:25 89:23 95:10,12 119:2 122:18 141:22 144:23 145:1 146:1 191:16 197:1	stab 7:14	
	speaking 14:27 15:9,10,13 79:17,19 106:6 190:21 193:22 194:16	stabbed 77:9 80:1,3 82:5 85:24	
		stabbing 82:11	
		staff 171:6	
		stage 58:21 61:24,28	
		stake 36:10	
		stamp 114:10	
		stamps 8:1,19 64:10 157:18	

103:19,28 104:1,2,19 106:24,26 118:27 120:4 121:13 126:5,10,23,26 127:7 129:12,15,18,21 130:14 131:13,15,16, 24,26 148:20,21,23 149:6 151:1,3,22,27 152:3 160:6 161:16 191:9 193:23 194:4,7, 27 195:22 211:5,7,13	store 172:8,16 stored 210:3 story 54:16,22 58:23 59:4 71:24 76:17 156:18,19 194:27 196:7 205:13 straddling 175:15 straight 41:17 45:4 131:5 135:28 173:23 strange 200:28 strategically 9:28 streamline 5:18 street 69:19 118:7,9 131:18,23 133:4 137:1 138:9 145:11 151:6,7 152:4 160:4 177:9,10 188:13 189:11,13 stretcher 199:14 stretches 21:25 stretching 22:2 stricken 182:24,26 187:23 202:11 strike 35:13 43:14 106:13 160:5,7,9 192:17 207:18 216:4 striking 8:8 strong 45:23 struck 8:6 42:20 83:11,18 84:27 120:9 121:12,15,17 122:26 145:24 187:15,27 209:23 structure 59:21 structured 109:3 stuck 55:4 106:5 students 52:10 studied 52:11 studies 52:12 stuff 66:25 149:14 stupid 53:26 Subhi 23:2 30:3 subject 14:19 157:14	160:19 214:6 submit 5:11 106:21 214:3 submits 214:7 submitted 17:4 114:25 157:12 subpoena 8:15 18:13 95:4 157:9 161:26 subpoenaed 18:15 157:7 success 205:20 succinct 170:20 suddenly 16:18 174:2 186:8 192:3 suffer 42:25 62:7 suffering 49:13 62:7 197:18 sufficient 103:9 104:24 suffocate 10:10 suggest 19:12 169:3 187:7 suggesting 29:17 suggestion 165:26 suggests 34:21 suit 215:24 suits 192:5 summary 19:21 sunglasses 181:7 supervision 27:2 supplement 156:1 157:12,22,23 158:5,11, 23,27 159:4 supplemental 111:1,2 112:8 156:22, 24 157:4 159:6,7 supplements 158:13 support 50:20 197:27,28 suppose 59:25	supposed 117:20,23 118:2 134:15 135:10,13 139:21 141:28 157:22 182:2 surfing 172:3 surprise 209:27 surprised 16:1 182:14 surreal 62:13 surrounded 194:26 survived 53:22 susceptible 128:14 sustain 13:7 35:6 94:9 106:11 150:23,26 sustained 21:13 30:5 35:6,10 61:12 67:5 68:11 71:15 72:21 73:8 79:13 81:1 82:3,14 84:23 90:6 91:8 92:22 93:1,28 94:4 95:26 97:7 103:24 104:26 117:25 120:12 121:26 124:11, 20 131:8 132:1,6 133:17,25 134:14,26 135:7,20 142:10 144:2, 18,26 147:8,21,25 160:12 180:28 182:23 190:7,14,19 191:24 193:28 195:8,15 197:13,15 199:1,18 201:3,22 sustaining 14:22 Sutter 7:24 8:11 202:3 203:6,19,22 swear 168:8 sworn 24:7 34:4 63:23 163:3 166:18 168:10 sympathy 27:26 system 57:1,8 systems 43:9,13
T			
table 42:4,7 167:21			

takes 106:28 212:19	testifying 36:5	Thompson's 123:5	today 17:6 18:15 42:26 43:6 48:19 49:22 51:10 52:22 58:24 60:22 95:2 167:4 170:11 174:25,27 195:19
taking 31:23 32:9 47:25 60:5	testimony 12:14,22 26:25 32:6 34:4 35:13, 16,22,24,26 36:13,22, 23 37:6 65:12,13 120:25 144:28 145:2,8 147:17 157:4 158:12 161:21 163:10 165:1,4 178:17 192:17 193:3 207:9	Thou 89:21	told 13:7 29:26 36:28 45:12 49:18 51:23 71:23 75:19 78:18 80:2 86:19 87:15,19 97:19 100:25 120:1 145:2 163:25 165:18 176:11 181:9,15,18,20 183:3, 14 190:22 191:11 197:3,10,14 201:10,13, 18
talk 9:17 16:10 24:20, 27 25:15,20 34:12 39:4 49:12,15 52:6,8 55:24 95:14 115:5 148:5 179:6 194:20 196:28	text 25:8	thought 22:17 50:4 53:15 106:6 114:25 173:27 175:28 176:1 179:11 181:5,28 189:18 197:22 200:7 206:4	tomorrow 204:4,6, 10 205:10 207:14 208:7
talking 14:10 15:6 18:25 19:5 25:23 61:14 67:6 81:20,21 84:1 90:23 99:3 116:14 123:27 140:27 163:12 166:11 214:14 217:8	themself 154:6	thoughts 38:9	tonight 204:27
task 29:24	theorize 58:8	thousand 58:17	top 114:10 140:10
TBI 20:3	theory 8:2 63:1	threatening 200:2	topics 186:5
TCR 125:4	therapists 24:24	threshold 16:14 17:13,27 28:8	total 49:7 111:3
teach 52:10,11	thing 5:17 6:15 7:18 9:2 21:7 31:22 44:10 46:7 57:7 64:21 65:10 75:12 87:10 90:1 94:7 149:5 158:18 163:13 166:16 199:10,15 203:24 206:13 217:11 218:11	throw 46:10 59:11 169:20	totality 69:14
team 48:22 81:25 113:21	things 6:1,2,25 7:16 10:10,25 11:3,27 14:12 19:24,27 21:25 23:23 28:26 33:5 36:18,28 44:1,4,7,18,27,28 45:7 46:5,24 47:20 48:3 49:10,12,19 51:8,10 52:3,6 53:1 54:6,12,18 55:16,25 56:22 57:3 58:8,20 59:8 61:26 65:2,5 66:5 69:13 86:14,25 89:28 111:14, 24,26 123:17 129:5 151:21 159:13 166:19 174:3 178:8 182:13 184:7 185:1 188:26 192:8 194:21 217:12, 14,16	thrown 174:17 176:6	totally 22:18 33:26 35:15
tear 58:26	thinking 18:25	throws 59:13	touch 60:23
Technically 127:17	thinks 211:18	ticket 141:2,12	touched 43:22 51:11 52:21,23 56:10 105:2
Tehama 115:18 120:5 137:1 139:10,11 151:6 177:10,21	third-party 69:23	ticketed 98:19 140:25,28	traffic 65:28 68:24 75:1,5 82:12 91:23 92:12,13 93:9 98:15,17, 21 99:26,28 104:4,20 106:16 110:20,26 119:9,15 136:17,19 138:21 139:23 143:5 149:28 151:8 153:2,6, 22,26 159:8,12 189:14
telling 6:21 12:1 16:21 46:24 48:2 54:26 71:11,18,20 72:1 77:10 84:7 97:13 167:1 180:9 201:8	Thirty 63:8	tie 63:4	transcript 64:17,24, 25 159:26 163:15,22 164:6,20,21 208:16 209:1 212:15,16
tells 46:21 207:3	Thompson 115:23 139:14,16 145:14 146:5,8	tighten 105:28 218:22	transcripts 8:14 208:6,8,18 212:8 214:23,25 215:3,4
ten 99:15 197:26		till 50:21	transparency 47:8 57:26
tendency 37:22		time 14:16 20:6 22:25 23:16 25:1 26:13 27:7, 11 31:27 39:3 42:21 55:12 56:27 58:22 61:9 62:15 63:11 69:8 70:7 74:13 77:12 79:4 80:23 83:6 87:28 94:24 97:17 98:1 106:20,21 128:9 135:2 138:16 149:23 169:26 170:27 171:1,20 173:2,17 174:11 177:1, 25 179:2,4 187:4 188:24 191:15 193:24 194:8 195:10 197:18, 19,20 198:4,23 203:4, 23 210:6 211:10 212:24,26,27 214:21	transparent 46:25
term 82:2		times 43:21 66:11 82:25 84:16 181:21 182:18 183:27 207:9,20	
terms 79:28 108:3		tip 58:14	
terrified 186:7,23 207:7			
tested 40:5			
testified 138:18 158:4			
testify 6:18 9:11 30:23 32:6 63:23 115:6 139:12 158:7 161:12 165:17 166:17 168:10 207:15			

transpired 100:26	turned 120:6,7	88:16 140:6 158:17	vehicle 30:7 43:22,26
transport 155:3	turning 15:2 114:12, 18 118:7,9,17 133:13, 18 134:19 206:3	understands 10:19	44:12,13 47:28 51:12
trauma 57:19		understood 28:21 193:2 207:16,17	52:21,23 56:10 66:5
traumatic 18:24 19:1,14,15 20:19,26 28:20	turns 111:9	unduly 209:10	75:7,23 79:15,24,27
travel 140:18,21	two-directional 137:13,26 138:9 143:10	unfavorably 38:8	80:4,10,15 82:18 83:25
traveling 151:16,28 152:20 153:1,2,5,26 159:23 160:2,4 195:25, 26 196:1	two-fold 210:8	unfold 28:24	84:1,2,27 85:21,26 86:3
traverse 155:24	two-word 9:6	unfortunate 45:26	87:13 93:18,20,25 94:2, 11,13,18 98:24 100:3,5, 8,12,13,15,26 112:21
traversed 135:14	type 11:24 53:24 121:5 179:20 213:5	unit 91:23 92:7,10 122:4 210:21	113:3 118:16 120:10
traversing 134:21	types 19:24 66:4,8 118:6	United 60:1	121:14 124:14,25
treat 35:16 59:22,25	typical 75:12 82:23 98:22	unnecessary 78:11	127:13,22,26 128:2,7,9, 15,24 129:1 130:28
treated 39:11 202:4	typically 81:22,28 86:1 101:13 121:27 123:17 149:7,9 162:15	unpack 71:26	131:23 142:13,17,18,21
treating 52:4		unraveling 206:20	145:25 150:25 151:8, 10,12 152:24 153:10,22
trial 14:7 17:26 23:17 24:4,10,12,17,20,26 25:14,26 26:1 27:1,10, 13,19,28 28:5,6,10 29:4,22,25 30:28 31:23, 25,27 32:3,20 34:3,10, 26 37:12,16 39:3,27 40:12,17 41:3 42:27 55:3,26 64:12 108:9 160:20 212:25 217:27	U	unreliable 157:15	154:2,19 173:4 174:6,7
triggered 111:24	UCSF 7:25 8:10 200:4,12,14 201:28 202:2,3 203:3	untrained 144:21	186:24,25,26 187:15, 18,28 188:6 189:8
trouble 44:23	unavailable 44:4	untrue 36:22	vehicles 91:21 114:13,18 117:19,23 118:2,7,9,10 127:11,16, 23 129:3 134:3 139:22 142:24 160:5
truck 59:11,13	unaware 120:16	unusual 122:11	vehicular 91:24
true 34:19,21,23,26 36:7 37:2,6 54:16 62:3 160:2	unclear 32:24,25	unwind 10:11	veil 46:3
truth 13:2 36:24,28 37:1 44:22 45:8,12,28 46:25 48:5 54:1,3,8,26 55:4,8 61:14,15,18 71:11,18,20 96:7,12 183:12	unconscious 37:28 38:3 130:9,25 131:11	update 159:13,15	verbal 169:24
truthful 44:22	undecided 60:18	upset 50:28 206:12	verbally 73:1 74:9 78:22 101:24
truthfully 50:6 52:15	undermines 40:21	urge 38:28	verbatim 85:9 88:15 208:9
turn 22:27 120:5 133:8,19,20 135:17,26 136:2,8 141:27 142:3,4 143:23,26 150:8,28 151:9 152:12	underneath 176:23	usage 77:26	verdict 5:11,20 15:23,27 16:14 17:2 20:24 21:1 24:14 27:14, 20,27 28:1,12,13 32:11 38:25,28 40:25 43:17 48:4
	understand 10:17, 26 12:2,10,28 14:28 30:12 31:20 34:15 43:19 44:11 57:9 59:23 60:1 61:2,6 75:28 80:18 103:7 106:1 107:19 130:23 147:4,6 162:11 166:28 167:17 169:23 170:1 189:27,28 204:24 205:17 206:8 207:14 217:7	V	verify 115:12 117:14
	understanding 9:10,14,15 10:14 13:6	vacuum 67:7	verifying 143:2
		vague 67:4 71:13 75:28 80:17 87:2 91:6 95:24 124:18 128:3 134:24 136:20 147:6,20	versions 36:17
		validating 159:28	versus 5:6 23:2
		van 84:15 120:28 123:1 171:3 174:8,11, 13,20,24,26 175:14,21, 24 179:28 183:15,19 186:14 188:14,15,22 189:1,10 190:28 191:12,13 209:3 211:19	vertebras 22:9
		variations 66:2 99:18	victim 82:24 87:18 90:22 122:19 123:27
			Victoria 46:27 200:11 203:16
			video 68:28 69:22 79:22 84:17 91:3,18

102:20 145:17 177:17
195:1 213:22 215:26
videos 50:27 61:26
72:9 91:10 145:14
148:7 149:12 214:12,22
view 20:13 26:21,24,
28 39:18 133:14,21
148:10 152:10 211:17

viewing 114:24

vigilante 54:11

VIN 124:26

violate 27:3 217:5
218:7

violated 60:4 93:9
94:12,19 105:1 143:24
218:9

violates 40:22

violating 101:19
102:8,23 104:3,20
141:8 143:28

violation 27:8 93:12,
15 129:1 141:1 142:26
153:9,22 154:19

virtue 158:12

visible 174:10

vision 22:12

visit 26:21

voice 23:15 162:9
170:8

voir 19:6,13

W

wait 63:18 166:25
173:22 182:7 205:25

walk 11:1 25:24 90:27
137:18 167:11 172:28
200:27,28

walked 44:24 153:16
190:3 201:5,7

walking 15:1 100:7,9
114:15 123:28 127:2,5
128:14,15,19 129:6
134:22 172:25 173:3
174:16 176:20 186:8

196:4
wallet 143:22,24,26,
27 192:8

Wang 171:3

wanted 18:21 19:10
57:24 176:8 193:9
214:18

warned 199:22

warning 6:28

Washington 54:20

waste 212:26 214:21

watch 26:2 32:6 157:1
167:12

watching 42:8 58:27
106:20

water 41:9

ways 17:26 137:24
181:17

wealth 40:24,26,27

wearing 181:6

website 25:9

websites 25:10

week 146:7

weeks 119:14

weighed 56:27

weighing 61:3

weight 21:2 49:7 53:2
55:20 58:17 108:2,3
211:14,16

weird 194:28

weirdest 182:12

westbound 151:9

whatsoever 60:25

white 174:8,11

wholly 16:22

wide 177:20

wife 45:22 46:27 58:25
200:11

wind-up 78:3

window 174:12
186:14 188:7

wire 167:12

witness's 7:3 35:21,
24,25 36:12

witnessed 146:13

witnesses 25:18
32:6 34:9 35:18 36:16
37:4 38:21 48:24 49:26
68:28 69:10,12,22,26
91:3,19 107:2,3 108:25
111:14 118:25 130:18
146:17 162:15 206:22

witnesses' 34:18

woke 173:14

woman 211:4

Wong 46:16 49:2
57:1,3 58:13 86:11

Wong's 60:12

Woody 167:19

word 10:4 20:18 89:17
130:21 159:13 169:19
205:22

words 29:4,7,10 46:3
82:6,11 111:16 114:14
166:28 187:7 190:25

work 17:23 42:10,24
108:16 170:28 171:20
204:28

work/live 171:1

worked 43:7 48:10
80:25 178:3

working 106:14
171:7,10

works 57:7 111:11
112:17 115:8 208:3

world 58:25

worried 183:6

worse 183:26 200:6,9
203:17

worst 197:23

wound 7:14 10:23
11:6,17,25

wow 51:9 86:24

wrinkle 28:4

write 53:25 68:7 69:6
76:10 130:2,12,27
146:23,26 147:1,12

writing 148:17,18

written 81:4,6 145:21

wrong 40:5,10 44:25
45:2 48:26 57:6 85:11
100:4,5,18,21,28 106:2
132:26 136:26 141:2,6,
9,15,24 143:4 172:18
173:12 206:26

wrote 66:21,24 70:11,
18 76:23 83:20,22,23,
26 84:4,9 86:14 97:16
200:24

X

x-ray 12:25 199:26
200:13,15

x-rays 7:8,25 8:10
13:3

Y

yachts 178:8

Yamamoto 203:22

year 150:1

years 42:20 43:10
45:5,11 49:18 50:21
51:14 52:20 53:2 54:4,
18 56:10,14 59:16
60:26 62:3 103:20
107:15,16 149:27
157:13 167:18 209:14,
15

yell 180:5

yelled 183:16

yelling 176:4 179:13,
14 182:7,10 183:28

yellow 100:24 137:22

yes-or-no 85:5

yesterday 5:10 6:8

18:22 19:4 21:4,21

28:19 50:10 52:22

60:22

yesterday's 19:13

yield 90:2,9,12,14,18,

21,28 92:18 113:15

114:13,19 116:13,16

117:20,23 118:2,7,8,10

134:23 135:1,2,12,14

142:12,17 155:9,11,26

yielding 142:21,28

York 54:12

Z

Zuckerberg 7:25

8:12